

The Hawks of Hawk-Hollow: A Tradition of Pennsylvania

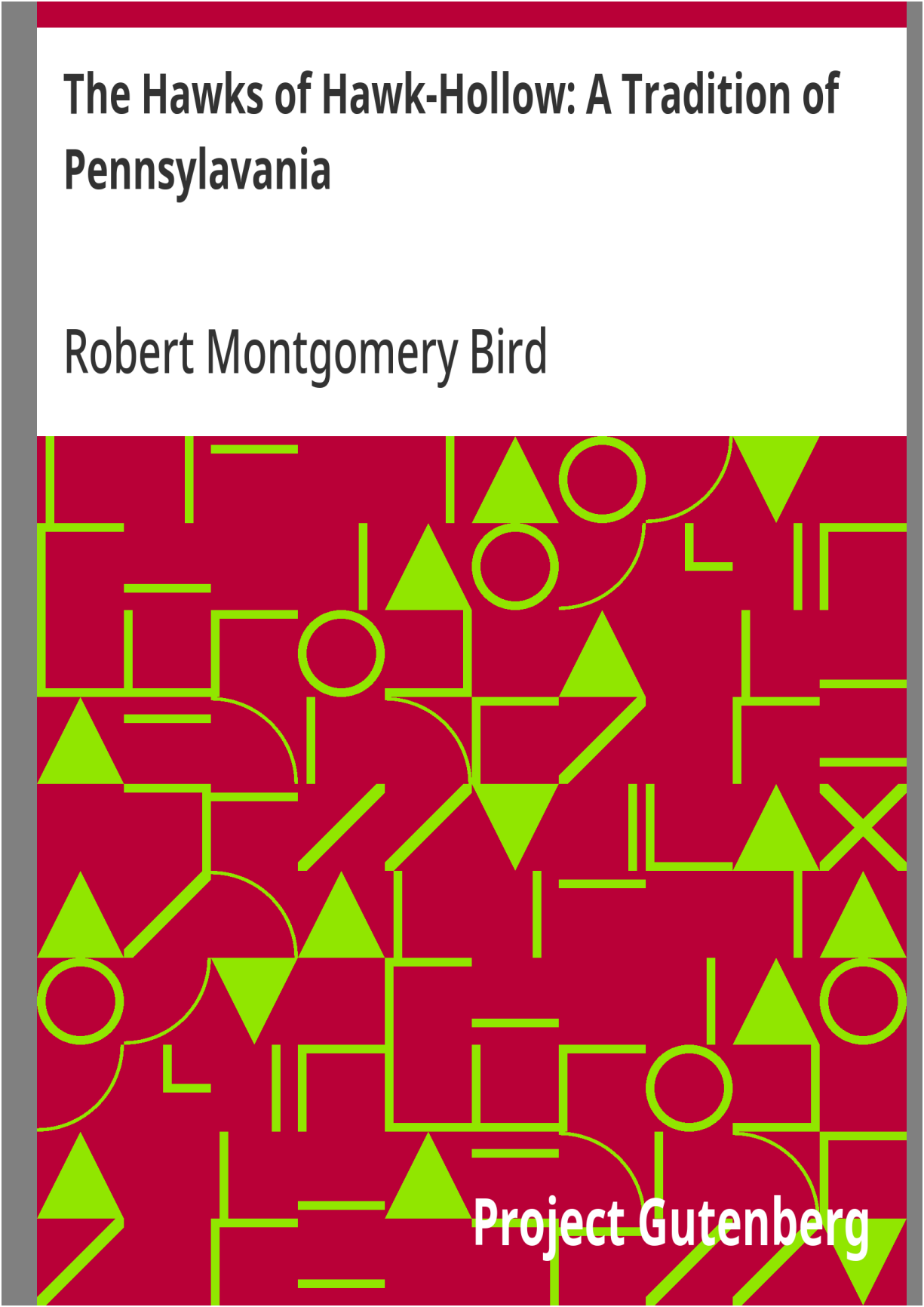
Robert Montgomery Bird



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HAWK-HOLLOW: A TRADITION OF PENNSYLVANIA ***

THE

HAWKS OF HAWK-HOLLOW.

A

TRADITION OF PENNSYLVANIA.

BY THE AUTHOR OF "CALAVAR," AND "THE INFIDEL."

Where dwellest thou?——
Under the canopy,—i' the city of kites and crows.
Coriolanus.

IN TWO VOLUMES.

VOL. I.

Philadelphia:

CAREY, LEA, & BLANCHARD.

1835.

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INTRODUCTION

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INTRODUCTION.



"Escúchame, y no me creas
Despues de haberme escuchado"—

"Hear me, but don't believe me, after you have heard"—says Calderon, the Spanish dramatic poet, with a droll spirit of honesty, only equalled by the English Burton, who concludes the tale of the Prebend, in his Anatomy of Melancholy, by exclaiming, "You have heard my tale; but, alas! it is but a tale,—a mere fiction: 'twas never so, never like to be,—and so let it rest." We might imitate the frankness of these ancient worthies, in regard to the degree of credit which should be accorded to our tradition; but it would be

at an expense of greater space and tediousness than we care to bestow upon the reader. We could not declare, in the same wholesale way, that the following narrative is a mere fabrication, for such it is not; while to let the reader into the secret, and point out the different facts (for facts there are) that are interwoven with the long gossamer web of fiction, would be a work of both time and labour.

We have always held the Delaware to be the finest and noblest river in the world,—not, indeed, that it *is* so, but because that was a cardinal item in our creed of childhood; and to all such points of belief we hold as strongly as we can, philosophy and experience to the contrary notwithstanding. They are holy and useful, though flimsy, ties—little pieces of rose-coloured pack-thread that keep sorted together whole bundles of pleasant reminiscences, and therefore as precious in our esteem as shreds of gold and silver. In consequence of this persuasion, we have learned to attach importance to every little legend of adventure, in any way associated with the Ganga of our affections; and of such it has been our custom, time out of mind, to construct, at least in imagination, little fairy edifices, in which golden blocks of truth were united with a cement of fancy. A novel is, at best, a piece of Mosaic-work, of which the materials have been scraped up here and there, sometimes in an un-chronicled corner of the world itself, sometimes from the forgotten tablets of a predecessor, sometimes from the decaying pillars of history, sometimes from the little mine of precious stones that is found in the human brain—at least as often as the pearl in the toad's head, of which John Bunyan discourses so poetically, in the *Apology for his Pilgrim's Progress*. Of some of the pebbles that we have picked up along the banks of the Delaware, the following story has been constructed; but at what precise place they were gathered we do not think it needful to say. The torrent of fashionable summer rustication has already sent off a few little rills of visitation towards different corners of Pennsylvania, and one has begun to flow up the channel of the Delaware. In a few years——*Eheu! fugaces, Posthume, Posthume!*——this one will increase to a flood, all of men, women, and children, rolling on towards the Water-Gap; and *then* some curious individual will discover the nook into which we have been prying; and perhaps, if he chooses, come off with prizes still more valuable. At all events, he will discover—and that we hold to be something worth recording—that his eyes have seldom looked upon a more enchanting

series of landscapes than stretches along this river, in one long and varied line of beauty, from New Hope and the Nockamixon Rocks, almost to its sources.

The story, such as it is, is rather a domestic tale, treating of incidents and characters common to the whole world, than one of which these components can be considered *peculiarly* American. This is, perhaps, unfortunate,—the tendency of the public taste seeming to require of American authors that they should confine themselves to what is, in subject, event, and character, indigenous to their own hemisphere; although such a requisition would end in reducing their materials to such a stock as might be carried about in a nut-shell. America is a part of the great world, and, like other parts, has little (that is, suited to the purposes of fiction) which it can call exclusively its own; and how far that little has been already *used up*, any one may tell, who is conversant with our domestic literature. Some little, however, of that little yet remains; and, by and by, we will perhaps ourselves join in the general scramble after it.

To conclude our Prolegomena—we recommend to all Philadelphians, who thirst for the breath of the mountains, and are willing to breathe it within the limits of their own noble State, to repair to the Delaware Water-Gap, sit them down in the porch of our friend Snyder, (or Schneider—we forget whether he yet sticks to the *Vaterländisch* orthography or not,) discourse with him concerning trout, deer, and rattlesnakes, and make themselves at home with him for a week. They will find themselves in one of the boldest mountain-passes in the United States, in the heart of a scene comprising crags, forests, and a river sprinkled with numerous islands, all striking, harmonious, and romantic. There, indeed, is neither a Round-Top nor a Mount Washington, with ladders on which to climb to heaven; but there are certain mountain ridges hard by, from whose tops he who is hardy enough to mount them, can well believe he *looks down* on heaven, so broad, so fair, so elysian are the prospects that stretch below. There, also, our friends will find such lime-trees as will cause them to rejoice that they have planted scions of the same noble and fragrant race at their own doors; and such a glorious display of rosebays, or *rhododendrons*, the noblest of American flowering shrubs, as may perhaps teach them the wisdom of transferring a few to their own gardens.

But we have not space to mention one-half the charms that await them in the Gap. If they have eyes to distinguish between the flutter of wings and loose hanging mosses, they may behold, at evening, the national bald-eagle soaring among his native cliffs, and winging to his perch on the far-up old hemlock, where they may see his reverend white head gleaming like a snow-flake among the leaves, until the wail of the whippoorwill calls the shadows of night over the whole mountain. Besides all this, and the other charms too tedious to mention, if they commend themselves to the favour of mine host, they will be roused up in the morning by the roar of a waterfall under their very pillows, and then, leaping into a boat, and rowing into the river, they may survey it at their ease,—as lovely a sheet of foam, rushing over a cliff an hundred and forty feet high, as was ever stolen from its bed of beauty to drive——'*Eheu! eheu conditionem hujus temporis!*'——the machinery of—a saw-mill.

THE

HAWKS OF HAWK-HOLLOW.

CHAPTER I.

What man that sees the ever-whirling wheele
Of Change, the which all mortall thing doth sway,
But that thereby doth find, and plainly feele,
How Mutability in them doth play
Her cruel sports to many men's decay.

SPENSER—*Faerie Queene.*

America is especially the land of change. From the moment of discovery, its history has been a record of convulsions, such as necessarily attend a transition from barbarism to civilization; and to the end of time, it will witness those revolutions in society, which arise in a community unshackled by the restraints of prerogative. As no law of primogeniture can ever entail the distinctions meritoriously won, or the wealth painfully amassed, by a single individual, upon a line of descendants, the mutations in the condition of families will be perpetual. The Dives of to-day will be the Diogenes of to-morrow; and the 'man of the tub' will often live to see his children change place with those of the palace-builder. As it has been, so will it be,

"Now up, now down, as boket in a well;"

and the honoured and admired of one generation will be forgotten among the moth-lived luminaries of the next.

That American labours under a melancholy infatuation, who hopes, in the persons of his progeny, to preserve the state and consideration he has

acquired for himself. He cannot bequeath, along with lands and houses, the wisdom and good fortune which obtained them; nor can he devise preventives against the natural consequences of folly and waste. His edifice of pride must crumble to dust, when both corner-stone and hypogeum are based upon the contingencies of expectation; and the funeral-stone and the elm of his family mausoleum will vanish, in course of time, before the axe and plough of a new proprietor.

This is the ordinance of Nature, who, if she scatters her good gifts of talents with a somewhat despotic capriciousness, is well content that men should employ them in republican and equal rivalry.

In a little valley bordering upon the Delaware, there stood, fifty years since, a fair dwelling, within an ample domain, which a few years of vicissitude had seen transferred from its founder to a stranger, although wealth and a family of seven sons, the boldest and strongest in the land, might have seemed to insure its possession to them during at least two generations. The vale lies upon the right bank of the river, imbosomed among those swelling hills that skirt the south-eastern foot of the Alleghanies, (using that term in the broad, generic sense given it by geographers,) the principal ridge of which,—the Ka-katch-la-na-min, or Kittatinny, or, as it is commonly called, the Blue Mountain,—is so near at hand, that, upon a clear day, the eye can count the pines bristling over its gray and hazy crags. It stretches, indeed, like some military rampart of the Titans, from the right hand to the left, farther than the eye can reach, broken only by the gaps that, for the most part, give passage to rivers; and but for these, it would be entirely impassable.

The original proprietor of the estate was an English emigrant of humble degree, and, at first, of painfully contracted circumstances; but having fallen heir to a considerable property in his own land, and events of a very peculiar nature altering the resolution he had formed to enjoy it within the limits of the chalk-cliffs of Albin, he sat himself down in good earnest to improve the windfall at home. The little farm which he had cultivated with his own hands, was speedily swelled into an extensive manor; and deserting the hovel of logs which had first contented his wants, he built a dwelling-house of stone, so spacious, and of a style of structure so irregular and

fantastic, that it had, at a distance, the air rather of a hamlet than a single villa, and indeed looked not unlike a nest of dove-cots stuck together on the hill-side. Without possessing one single feature of architectural elegance, it had yet a romantic appearance, derived in part from the scenery around, from the beauty of the groves and clumps of trees that environed it, and the vines and trailing flowers that were made, in summer at least, to conceal many of its deformities. It was exceedingly sequestered also; for except the log hovel, into which Mr. Gilbert (for that was his name) had inducted a poor widow, befriended out of gratitude for kindness shown him, when their respective conditions were not so unequal, there was not another habitation to be seen from his house, though it commanded an extensive prospect even beyond the river. The highway to the neighbouring Water-Gap, indeed, ran through the estate; the broad river below often echoed to the cries of boatmen and raftsmen, floating merrily onward to their market; and the village dignified with the title of County-town, was not above seven or eight miles distant; so that the valley was not always invested with a Sabbath-day silence; and, besides, his protégée, the widow, had, with Mr. Gilbert's consent, converted her hovel into a house of entertainment, which sometimes seduced a wayfarer to sojourn for a period in the valley. Mr. Gilbert himself did all he could to add life and bustle to his possessions, by doing honour to such well behaved villagers, or even strangers, as he could induce to ruralize with him; for having built and planted, and torn down and transplanted, until he knew not well what to do with himself, he hit upon that expedient for driving away ennui which passes for hospitality,—namely, converting into guests all proper, and indeed improper, persons from whom he could derive amusement, and who could assist him to kill time. To this shift he was driven, in great part, by the undomestic character of his children; who, so soon as they arrived at an age for handling the rifle, individually and infallibly ran off into the woods, until, as the passion for hunting grew with their growth, they might be said almost to live in them. It was this wild propensity, acting upon a disposition unusually self-willed and inflexible, in the case of his eldest boy, Oran, that defeated his scheme of spending the remainder of his days in England. He actually crossed the sea, with his whole family, and remained in the neighbourhood of Bristol, his native town, for the space of a year; but in that time, Oran, a boy only twelve years old, 'heartily sick,' as he said, 'of a land where there were no woods, and no place where he could get by himself,' finding remonstrance

and entreaty fail to move his father's heart to his purpose, took the desperate resolution of returning to America alone; which he did, having concealed himself in the hold of a vessel, until she was out of the Channel. His sufferings were great, but he endured them with incredible fortitude; and finally after many remarkable adventures, he found himself again in his happy valley, in the charge or protection, if it could be so called, of the good widow Bell,—for that was the name of the poor woman befriended by his father. In a few months, his father followed him, perhaps instigated by affection, (for Oran, being the worst, was therefore the most favoured of his children,) by the murmurs of the others, or by the discovery he undoubtedly made, that his wealth would secure him, if not equal comfort, at least superior consideration, in the New World.

Consideration indeed he obtained, and increase of wealth; but the wild manners and habits of his children greatly afflicted him; and having married a second wife, he was induced, in the hope of 'making a gentleman,' as he called it, of the boy she bore him, (none of the others having that ambition,) to commit him to the protection of a sister, the widow of a Jamaica planter, who had divided with him the bequest that had made his fortune, and being childless herself, desired to adopt him as her heir.

Thus much of the early history of Mr. Gilbert was recollected with certainty, so late as the year 1782, by the villagers of Hillborough, the county-town already mentioned, who had so often shared his hospitality; but long before that time, he had vanished, with all his family, from the quiet, beautiful, and well-beloved valley. They were wont to speak with satisfaction of the good dinners they had eaten, the rare wines they had drunk, the merry frolics they had shared, in the Hawk's Hollow,—for so they perversely insisted upon calling what Mr. Gilbert, in right of possession, chose to designate as Avon-dale, in memory, or in honour of his own buxom river of Somerset; they related, too, to youthful listeners, the prophetic sagacity with which they had predicted violent ends to the young Hawks of Hawk-Hollow, (so they called the young Gilberts,) for their disobedience to father and mother, and their unusual passion for a life of adventure; and, finally, they shook their heads with suspicion and regret, when they spoke of Jessie, Gilbert's only daughter, of her early and mysterious death, and still more, to them, unaccountable burial. All that

could be gathered in relation to this unhappy maiden, was dark and unsatisfactory: her death had seemingly, in some way, produced the destruction of the family and the alienation of the estate. It was an event of more than twenty years back; and from that period, until the time of his own sudden flight, Mr. Gilbert's doors were no longer open, and his sons were no more seen associated with the young men of the county. The maiden had died suddenly, and been interred in a private place on the estate.

In connexion with this event, some, more garrulous than others, were wont to speak of Colonel Falconer, the present proprietor of Hawk-Hollow, as having had some agency in the catastrophe; but what it was, they either knew not, or they feared to speak. Evil suspicions, however, gathered about this gentleman's name; and as he was seldom, if ever, seen in Hawk-Hollow in person, but had committed the stewardship of the property to the hands of a distant relative, who resided on it, the young felt themselves at liberty to fill up from imagination, the sketch left imperfect by the old; and accordingly, the Colonel, in time, came to be considered by those who had never seen him, as one of the darkest-hearted and most dangerous of his species. He was very rich; the station he occupied in the eyes of his country was lofty, and might have been esteemed noble; for he had shed his blood in the great and fearful battle of rights that was now approaching to a close; and after being disabled by severe and honourable wounds, he had changed the sphere of his exertions, and was now as ardent and devoted a patriot in the senate as he had been before in the field. Yet in this distant quarter, these recommendations to favour were forgotten; it was said, if he had done good deeds, there were evil ones enough to bury them as in a mountain, and if he had fought well for his country, he had struggled still more devotedly to aggrandize himself. In a word, he was called a hard, avaricious, rapacious man, whose chief business was to enrich himself at the cost of the less patriotic, and who had got the mastery of more sequestered estates than an honest man could have come by. It was a sin of an unpardonable nature, that he had succeeded in getting possession of Hawk-Hollow, when there were so many others in the county who had set their hearts upon it.

His representative on the estate was a certain Captain John Loring, who, with all the patriotism of his connexion, and perhaps a great deal more, had never been able to turn it to any account. On the contrary, beginning the

world with an ample patrimony, at the time when Mr. Falconer commenced as an adventurer, he had descended in fortune with a rapidity only to be compared with that of his friend's exaltation. The love of glory had early driven him from his peaceful farm on the Brandywine; and after distinguishing himself as a volunteer in the Indo-Gallic wars of Western Pennsylvania, it was his hard fate to bring his career of effective service to a close on what he was always pleased to call the Fatal Field of Braddock. From that bloody encounter he came off with more honour than profit, and with a body so mangled and a constitution so shattered, that a quarter of a century had scarce served to repair the dilapidation of his animal man. But the Captain had lost neither his spirit nor his love of glory. At the first trump of the Revolution, he donned the panoply of valour; he snatched up the pistols he had taken from a dead Canadian at the Fatal Field of Braddock, strapped upon his thigh the sword he had received for his services in storming certain Indian forts on the Alleghany river, clapped into his pocket the commission which the colonial government had granted him in reward of that gallant exploit, and reported himself, among a crowd of younger patriots, as ready to do and die for his country. The Commissioners looked at his gray hairs and shattered leg, (the latter of which had once been as full of musket-bullets as was ever a cartouche-box,) commended his virtue and enthusiasm, and divided the honours of command among those who were better fitted to do the state service. The Captain retired to his patrimonial estate, and there contented himself as well as he could, until the current of conflict, diverted from one bloody channel into another, came surging at last into the pastoral haunts of the Brandywine. At that time, his home was blessed with two children, a gallant boy of eighteen, and a merry little maiden of twelve. But one morning, he heard a trumpet pealing over the hills and a cannon roaring hard by, behind the woods. He looked at the face of his son, and the eye of the boy reflected back the fire of his father's spirit. Their horses were saddled in the stalls, and the spurs were already on young Tom Loring's heels. It was enough—the Captain carried his son to the grave.—But, to his own dying day, he rejoiced over the young man's fall. On this subject, the Captain was commonly considered by his neighbours to be crack-brained.

After this, came other misfortunes; and the Captain was a ruined man, landless, homeless, and childless, save that his little Catherine was still left

to share his poverty, and, like a lamp in a cavern, to exaggerate rather than enlighten the gloom of his desolation. At this critical juncture, he found a firm and prudent friend in Colonel Falconer, by whom he was installed into the privileges, if not the actual possession of Hawk-Hollow, in the supervision and improvement of which he seemed now likely to pass the remainder of his days. How far the kindly feelings of relationship, or how far the influence of his daughter's growing beauty, had contributed to secure him the benevolence of this friend in need, was a question frequently agitated by the curious villagers. It was settled among them, that there was a wedding in the wind; but whether the young lady was to share the lot of her distinguished patron, or to be given to his gay and somewhat wild-brained son, was a point on which busy bodies were long coming at a conclusion. The Captain, though frank enough in his way, was not exactly the individual whom one would think of troubling with impertinent questions; and Miss Loring, however hospitable and courteous, had not yet selected a confidante from among the blooming nymphs of Hillborough. She was, however, the theme of as much admiration as curiosity; and being very beautiful, and of manners always gentle, and at times irresistibly engaging, the village poet immortalized her in rhyme, and the village belles forgave the eulogium.

It remains but to say a word more of the Gilberts, as a necessary introduction to a record, designed to rescue the story of their fate from the uncertain and unfaithful lips of tradition. After mingling in all the border wars, both Indian and civil, that, from the time of Braddock's defeat to the dispersion of the Connecticut settlers, distracted the unhappy Susquehanna settlements, they deserted the cause of their countrymen at the beginning of the Revolution, and appeared in the guise of destroying demons, at Wyoming, on that occasion of massacre, which has given to the spot a celebrity so mournful. In other words they were traitors and refugees; and however dreadful the reputation they obtained as bold and successful depredators, their fate was such as might have been, and perhaps was, anticipated by themselves. One after another, they were cut off, some by the rifle and tomahawk, one even by the halter, and all who did perish, by deaths of violence. It was indeed, at the time we speak of, confidently believed that Oran, the eldest of all, and the last survivor, had fallen within the space of a year, at a conflict on the banks of the Mohawk, along with

other refugees of the neighbouring commonwealth, with whom he had associated himself. Great were the rejoicings in consequence with all who dwelt among the scenes of his earlier exploits; though some professed to have their doubts on the subject, and swore, that Oran Gilbert was not to be trusted, dead or alive, until his scalp was seen nailed on the county court-house door.

CHAPTER II.

Come here, my good hostess, pray how do you do?

Where is Cicely so cleanly, and Prudence, and Sue?

And where is the widow that dwelt here?——

PRIOR.

The year 1782 was distinguished on the western continent as the close of the great contest, which obtained for America the name and privileges of a free nation. The harbingers of peace came flitting into the land, with the swallows of spring; and before the autumn had withered into winter, so little doubt prevailed of a speedy reconciliation taking place between Great Britain and the United States, founded upon a full recognition by the former of all the claims of the latter, that the Continental Congress passed a resolve for the reduction of its army, to take effect on the first day of the coming year. War was no longer waged upon any scale of magnitude; such hostilities as continued, were conducted almost solely by the desperate and lawless of both parties, and consisted of predatory incursions, occasionally attempted in the wilder parts of the country, by some skulking band of refugees, and of expeditions of vengeance, planned and executed in a moment of wrath, by the excited sufferers. At this period, the only portion of the States, north of the Potomac, in the hands of the British, was the city of New York, with its dependencies; and around these narrow possessions the lines of the Continental army were drawn, extending from the

Highlands of New York to the plains of Monmouth in New Jersey. Military posts therefore existed at no great distance from the Hawk's Valley; and although the wild and mountainous country on either bank of the Delaware offered the strongest retreats to men of desperate character, it had been very long since the inhabitants had apprehended any danger from the presence of enemies. In the earlier part of the year, at least, they had no cause for alarm; and accordingly they mingled, without alloy, their raptures at the prospect of returning peace with their rejoicings over the death of Oran Gilbert, the most dreaded and detested of the Hawks of Hawk-Hollow.

One atrocity had indeed been committed, in a neighbouring state, which, besides exciting the fiercest indignation, had taught the occupants of the valley how little their security was owing to any relenting of spirit, or want of military daring, on the part of the refugees, whom the general success of the republican arms had driven in great numbers into the city of New York. A certain Captain Joshua, or Jonathan, Huddy, of the New Jersey state troops, having been captured, after a gallant resistance, at one of the posts in Monmouth county of that state, by a party of loyalists from New York, was for a while immured in prison, then carried back to his native state, and finally hanged by his captors, without trial, sentence, or any authority whatever, except what was derived from the verbal orders of a body of men calling themselves the Board of Directors of the Associated Loyalists. The result of this wanton and brutal murder, and of the failure of the British authorities to bring the chief perpetrator to justice, was an instant order on the part of the American Commander-in-chief, to retaliate upon a British prisoner of equal rank; and before the month of May was over, young Asgill of the British Guards, whose story is familiar to all readers of American history, was conducted to the lines at Morristown, to await, in painful uncertainty, the fate that now depended, or seemed to depend, upon the movements of his countrymen in relation to the true criminal.

Late in the spring of this year, Hawk-Hollow received a new addition to its society, in the person of a stranger, who, one pleasant evening, rode up to the hovel, which, as was before mentioned, Dame Alice, or as she was more familiarly called, Elsie Bell, had, so many years before, converted into a house of entertainment. But the credit of the poor woman, now aged, infirm, and almost friendless, had long since departed; and the tongues of

the ignorant and foolish, in an age when the most ridiculous superstitions were not wholly confined to the brains of children, had invested her habitation with a character which repelled alike the curious and the weary. Her age, her poverty, her loneliness, her unsocial character, and perhaps also her attachment to the memory of a family all others had learned to detest, had brought her into bad odour; and some thoughtless or malicious persons having persuaded themselves that a certain famous mortality among their cattle could have been caused by nothing short of witchcraft, it was soon determined that old Elsie had stronger claims to the character of a broom-rider than any other person in the county. It was fortunate for her that the imputation fell upon her in a land, which once, in the case of an old woman brought before a jury under the same charge, had rendered the wise and humane verdict, that they found her "guilty, not of being a witch, but of being *suspected*." It never once occurred to any individual to prosecute, or even persecute, poor Elsie; nor is it supposed that any sane man ever seriously believed a charge so cruel and absurd; yet the stain rested upon the unfortunate creature, and was the cause of her losing all the little custom of her house, and being, at one period, reduced to great straits.

Her house had a very lonely appearance, especially dreadful, at nightfall, in the eyes of the passing urchin. It was in a hollow place on the road-side, the head of a gully, which, expanding into a wide, though broken and winding ravine, ran down to the river, half a mile distant, receiving, before it had yet reached it, the waters of a foaming rivulet coming from another quarter. A little enclosure, or yard, serving as an approach to the house, was surrounded by oak-trees. Its surface was broken, and on one side was a rough and jagged rock, almost a crag, sprinkled with sumach and other wild plants, that hid one half of the lowly fabric, while the other peeped insidiously from under the boughs of an antique, spectral-looking sycamore, springing from the side of the ravine, which was, in part, overlooked by the hovel. A little runnel crossed the road immediately before the house; and flowing through the yard, and making its way among the naked roots of the sycamore, it fell, with a gurgling sound, into the ravine. The murmurs of this little cascade, affected variously by drought and rain, and by the echoes of the hollow, sent many a superstitious thrill to the heart of the countryman whom any unlucky accident compelled to pass by the cabin at midnight.

Of a silent, reserved, and even saturnine temper, there was perhaps enough in Elsie's cold welcome to repel visitation, even without the addition of imputed witchcraft; and long before that heavy charge had fallen upon her, it was esteemed a misfortune to be obliged to tarry above an hour at the Traveller's Rest, as the inn had been called in its days of credit. To crown all, about the time when men and boys were beginning to talk ominously about the rot and murrain, a rival establishment was set up, a few miles farther down the river, which offered the attractions of good liquors, lounging idlers, and a talkative host, who made it his business to be always well provided with news from the market, the army, and Congress. The last resource of the Traveller's Rest gave way before such a rival, and never more (at least for many years) was there seen a guest quaffing his cider, or smoking his pipe, in the shadow of Elsie's porch, except occasionally, when some stranger passed by, who boldly disregarded, or was entirely unacquainted with the popular superstition in relation to the hostess.

The privations suffered by the poor old woman, in consequence of this failure of her ordinary means of subsistence, were very great,—greater, indeed, than was suspected; for she uttered no complaint, and sought no relief. A few acres of ground had been added to the hovel, given to her by the elder Gilbert. The title was not, indeed, thought to be very strong, and as it lay in the very centre of Colonel Falconer's domains, a true *regnum in regno*, it was sometimes wondered he made no attempt to dispossess her, and thus complete her ruin. From these worn-out fields, had she been able to retain any one about her to cultivate them, she might have gleaned a scanty yet sufficient subsistence. But neither son nor kinsman of any degree, had the poor widow left in the wide world; and when men began to doubt, suspect, and shun her, she was no longer able to procure the assistance even of hirelings; and her fields lay fallow and overgrown with brambles. Her situation grew hopelessly distressed and desolate; in vain she exposed her slender stores of gingerbread in the window, and her bottles of spruce-beer in the cool brook, to tempt the wayfarer to turn aside for such refreshments. If the stranger did feel for a moment urged to exchange the scorching road, on a July day, for the shadowy porch, he cast his eye upon the garden, at the road-side, now the last dependence of the miserable widow, and beholding her uninviting and squalid appearance, passed on,

without thinking how much real charity might have been conferred by the disbursement of a few pence at that abode of poverty.

Such was the condition of this poor solitary creature, when Captain Loring was installed into the manor house; and such it might have continued, had not his daughter, shocked at the discovery of her distresses, and interested doubly when she found in her a tone of mind and manners worthy of a better fate, came immediately, like an angel, to her aid, and restored her again to a state of comfort. Not satisfied with rendering this assistance, she rested not day or night, until she had procured a labourer to till the neglected fields, and had even obtained a little negro wench to dwell with Elsie as a domestic; and perceiving how much her sufferings were really owing to the ridiculous fears and prejudices of the country people, she made it a point frequently to visit her house in person, dragging along with her, when she could, the beaux and belles of the village, in the hope that others would soon follow the example, and thus restore the Traveller's Rest to its ancient reputation. She even prevailed upon her father to honour the house with his patronage, at least so far as to visit it, when riding by; and, though there was nothing in the tempers of the two to make any intercourse between them very friendly and agreeable, the Captain had humoured his daughter so long in that way, that it grew to be one of his habits; and he seldom passed by, without stopping for a moment, to bestow a few civilities upon the widow. Notwithstanding all these benevolent exertions of Miss Loring, however, the Traveller's Rest never recovered its reputation or custom; and when the traveller spoken of before, rode up to the porch, and announced his intention of entering, and even sleeping, under her roof, the poor widow herself regarded him with a species of amazement.

"How is it, good mother?" said he, observing her hesitation: "They told me, in the village, you could give me both meat and lodging. Do not fear I shall prove a fault-finder;—a crust of bread and a cup of milk, or, if need be, of water, will satisfy me; and as for a bed, why a sack of straw,—or the floor and my saddle-bags,—will be a couch for a king. Can you not receive me?"

As he spoke, he took note of her countenance and appearance. The former was withered and furrowed, for she was very old; her hairs were gray and thin, and one of her hands shook with a paralytic affection. Yet she bore her

years bravely, and when she had shaken off the abstraction of mind, which had become almost habitual from her long life of solitude, and lifted her eyes, he saw that they shone with any thing but the gleams of dotage. He observed, too, as she rose from the wheel she had been plying on the porch, and approached to its verge, that her step was firm, and even, as it afterwards appeared, agile. Her dress was of the humblest texture, and none of the newest, but studiously clean and neat, and the muslin coif on her head was white as snow.

"If your wants be indeed so humble," she said, with a manner that surprised him, and a voice almost without the quaver of age, "I can receive you into my poor house, and bid you welcome. But, good young sir, here have I no one to help you, and to take your horse. My man Dancy, is in the field, and the girl Margery"——

"Say not a word about them," said the traveller, leaping from his horse, "I am my own groom and lackey of the chamber; and with your consent, I will find my way to the stable, which I see behind the rock; and Long-legs here will follow me."

He was as good as his word, and stabled his steed without farther preliminary; and thus, by showing himself ready to adapt his manners to his circumstances, he won the good will of Elsie immediately. Indeed, as if to convince her of his sincerity, he told her at once his name, and his objects in coming to her house. His name, he said, was Hunter,—Herman Hunter,—his country South Carolina; he was a painter,—or so professed himself; and his only motive for intruding upon the solitude of Hawk-Hollow, was to improve himself in his art, by devoting some weeks to study, among the neighbouring cliffs and mountains. It had been his intention, he avowed, to take up his quarters some miles farther on, in the heart of the neighbouring gorge; 'but he liked the neatness and privacy of the Traveller's Rest so well, he thought he could do nothing better than remain where he was; at least, he would remain a few days,—perhaps, he might stay two or three weeks,—he did not know, but he thought Hawk-Hollow exceedingly pretty.'

There were two circumstances which recommended him to the poor widow's regard, even more strongly than his affable and conformable behaviour. In the first place, it appeared that his name Herman, had been

borne by some deceased son or relative, and its familiar sound brought a mournful pleasure to her ears,—in the second, his appearance was highly prepossessing. He could not have been above four or five and twenty years old; his figure, though somewhat beneath the middle size, was good, and his limbs well knit and active; his face was decidedly handsome, with a very dark complexion,—his eyes black and sparkling, and his mouth, which disclosed at every laugh, a set of the finest teeth in the world, expressive of good-humour and a mirthful spirit. As for the ornaments of his outward man, they consisted of under-clothes of some white summer-stuff, a frock of blue cloth, a grass hat, short boots and gloves; and to show that he was somewhat of a coxcomb withal, he wore a laced scarlet vest, an embroidered neckcloth, and a huge gold ring on his finger, glistening with a sapphire, or some cerulean substitute. He had a good roan horse, too, and saddlebags of enviable capacity; besides which, he made his first appearance with a carbine slung to his back, and a leathern portfolio under his arm; so that he looked like one who visited the retreat, with a resolution to make the most of its advantages.

Having taken a second look around the hovel, he saw no reason to abate his satisfaction. Though poverty was apparent on the naked walls and uncarpeted floors, yet every thing was clean and well ordered. The hands of the widow had eked out the lack of more costly decorations, by sticking in the fire-place and windows, and over the mantel and table-tops, green laurel boughs and sprigs of flowers, such as abounded on the neighbouring hills, or were cultivated in her little garden, and such as were pleasant enough at this season. Besides, a grape-vine had been encouraged to trail over one corner of the porch, and the other supported festoons of nasturtions and morning-glories. His evening meal, though simple and humble enough, he was pleased to commend; and if his bed was hard, and the sheets somewhat coarser than were wont to encircle his limbs, a happy temperament and a heart at ease made them endurable, and even pleasant. If he found Dancy, the farmer, when he returned from the fields, to be taciturn and even stupid, still he liked his honest face; and the little negro wench, Margery, ugly, awkward, and a thousand times more stupid than Dancy himself, he soon discovered, would prove a source of unfailing amusement.

Being of this happy mood, and persuading himself that his quarters were exactly to his desire, he prepared, the day after his arrival, to approve his zeal and skill, by sketching some one or other of the pretty prospects presented from the Traveller's Rest. He rose with the dawn and trudged down the ravine, until he reached the river; wherein, after looking about him with much satisfaction, at the hills sleeping in morning mist, he plunged, and amused himself with a bather's enthusiasm, now swimming luxuriously in the limpid and serene flood of the Delaware, and now trying his strength against the ruder current, that came dashing from the rivulet. This bore the patronymical title of Hawk-Hollow Run. And here we may as well observe, that upon a promontory at its mouth, he discovered the origin of that name, which, notwithstanding the efforts of Mr. Gilbert to christen it anew, his neighbours had so obstinately continued to give the valley. Upon a tall and conspicuous oak-tree, dead, barkless, and well nigh branchless, a pair of antique fishing-hawks screamed over their eyry; and here they had preserved it from immemorial ages. The dead tree and the nest of sticks being conspicuous objects, even from a distance on the river, the earlier navigators had soon learned to designate the whole valley after the majestic birds that seemed its monarchs.

After this, he set himself to work with paper and pencil, but with no good effect, not being in the mood, or because he discovered there were divers obstacles in his way. First, the sun did not shine from the right place, and secondly, it shone in the wrong one; then there was no way of getting a rock converted into a chair, at the precise place where he wanted it, though there were so many thousands where he did not; and, in fine, he found himself, when all was ready, waxing eager for breakfast.

After breakfast, he had as many difficulties to encounter; and in short, after making divers essays, he beheld the afternoon sun sink low towards the west, without having accomplished any thing worthy of being deposited in the port-folio. "But never mind," said he, with a philosophical disregard of his indolence and fickleness, "we shall have the fit more strongly upon us on the morrow."

He sat down in the porch and cast his eyes towards the manor house, which was commonly known by the title, so little flattering to the founder's

memory, of Gilbert's Folly. At this distance, and from this spot, it had an impressive and even charming appearance. It lay upon the slope of a hill, perhaps a mile or more from the Traveller's Rest; and, as it faced very nearly towards the east, he had remarked it, in the morning, when illuminated by the first beams of the day-spring, shining, with a sort of aristocratic pomp and pride, at its lowly neighbour, from the midst of green woods and airy hills. At the present moment, the front being entirely in shade, it had a somewhat sullen and melancholy look, resulting in part from the sombre hue of the stone of which it was built; and though slanting rays of sunshine, here and there striking on the sides of chimneys, gables, and other elevations, gave it a picturesque relief, it still preserved an air of soberness and gloom. It seemed to lie in the heart of a mighty paddock, once, however, termed a park, that was circumscribed by a line of pollards, sweeping over the hill-side, and here and there broken by groves of unchecked growth. In one or two places on the grounds, were rows of Italian poplars, stretching along in military rank and file, and adding that peculiar *palisaded* beauty to the landscape, which is seen to the greatest advantage in a hilly country. Here, too, was another exotic stranger, the weeping-willow, drooping in the moist hollow, and shaking its boughs in the pool. The principal trees, however, were the natives of the valley, most of them perhaps left standing in their original places, when the grounds were laid out in the forest. The picture is complete, when it is added that the slopes of the hills were carpeted with the rich embellishments of agriculture: the wheat-fields and maize-plantations, waving like lakes of verdure, in the breeze, were certainly not the least of the charms of Hawk-Hollow, except perhaps, at that moment, to the anti-utilitarian painter.

He regarded the prospect for a long time in silence, and then muttered his thoughts aloud, half to himself, and half to his ancient hostess, who had drawn her wheel up to her favourite seat on the porch, and added its drowsy murmur to the sound of the oak-boughs, rustling together in the breeze:

"This, then," he exclaimed, "is the little elysium, from which wrong, and the revenge of wrong, drove a once happy and honoured family, to wander exiles and outlaws in the land? And not one permitted even to lay his bones in the loam of his birth-place! and no friend left to avenge or lament! '*Quis sit laturus in aras thura?*'"

The wheel of Alice revolved with increased velocity, but she betrayed no inclination to yield to the prattling infirmity of age; though she, doubtless, of all persons in the country, was best informed on the subject now uppermost in the mind of the painter. He was in the mood, however, for extracting such information as he could; and after a moment's silence, he resumed, with a direct question,

"That is Avondale Hall, is it not, good mother?"

"It is Gilbert's Folly," replied the hostess, drily. "We know no other name.—There are some call it Falconer's Trump-card—but that is nothing."

"Perhaps not," said the young man: "but who can tell better than yourself? Good mother Elsie—you must forgive me for being so familiar; but, in truth, I love the name—it was the name of my nurse, the first I learned to utter:—I have a great curiosity about these poor Gilberts; and, I was told, no one could inform me about them so well as yourself."

"And why should you ask about them?" demanded the hostess, who, as Herman had long since observed, conversed in language that would scarce have been anticipated from her appearance. "They can have done you no harm, and certainly they never did you good. You cannot fear them, for they are dead; and you yourself said, they left none to lament them."

"But they left many to curse," said Herman; "and it is this that makes me curious to know the truth about them. I have not heard any men pronounce the name, without accompanying it with maledictions; which were just so many proofs that they were unsafe informants."

"It is better then that they should be forgotten," muttered Elsie: "If they did wrong, bitterly have they been punished; if they provoked men to curses, the curses have been heavy on their heads, and are now even heaped upon their graves. Yet you speak of them not like others—how comes it that *you* pronounce their name without a curse?"

"Simply because, never having received any hurt at their hands, and having nothing of the hound about me, I feel no impulse to join in the cry of the pack, until I know what beast they are baying. I saw, in the village, an old

man begging; I was told, his house had been burned down, and his wife and children in it, by 'the accursed Gilberts;' I saw also, a miserable idiot, or madman, I know not which, dancing along the road-side, and inviting me to a wedding: I asked about him, and was informed he dwelt of yore in the Wyoming Valley, and was set upon by the Hawks of Hawk-Hollow, in the hour of his marriage, and he alone saved of all the bridal party—I saw"——

"It is enough—God has judged them," said the old woman, with a voice both solemn and reproachful. "All these things have they done, and many more as dreadful and cruel. These are the fruits of civil war; for men are then changed to beasts. I knew a man of Wyoming, who was killed by his own brother—shot through the head, while he knelt down, begging for quarter of his mother's son! God has judged these acts, for they who did them are gone; and God will yet judge the men that drove them into their madness."

"They had cause, then, for what they did?" asked Herman, with interest. "It was not in cold blood, and upon deliberate choice, that they sided with the tories against their countrymen?"

"Perhaps it was, perhaps it was not," said Mrs. Bell, mournfully. "A plough-furrow on the hill-side may grow at last into the bed of a torrent; and what is but a cause for light anger, may, in time, work the brain into a frenzy. But ask me not of these things now: it was in a season like this, twenty-four years since—but it is foolish to remember me of it,—perhaps sinful. Some time, perhaps, I may speak of these unhappy people to you; but I cannot now. Trust, at least, that if the Hawks of Hawk-Hollow, as you called them, did much wrong, they also endured it,—and that, too, when they had not provoked it."

Finding that his curiosity could obtain no farther gratification at the present moment, Herman Hunter again cast his eyes upon the mansion, and being greatly charmed by an effect made by the striking of the sunshine on certain parts, while others lay in the broadest and deepest shadow, he was seized with a fit of artist-like enthusiasm, and arranging his drawing materials upon a little table, which he drew into the porch for the purpose, he was straightway immersed in the business of sketching. While he was dotting down chimneys and windows with great haste and satisfaction, he was

struck with a new and unexpected effect in the picture. A scarlet mantle, beside which glittered another of snowy white, suddenly blazed out like a star from a clump of shadowy trees in the paddock, and he became aware that two females on horseback were issuing from the park, and riding down the road. But losing sight of them again, as they ambled into a hollow, and being now really engrossed in his employment, he thought no more of them, until they suddenly re-appeared from behind a thicket no great distance off, galloping forward with an impetuosity and violence that would have done honour to veteran dragoons.

Somewhat astonished at such an unexpected display of spirit, he dropped his pencil, and for an instant supposed that their ponies were running away with these damsels errant. They were not attired for the saddle, and seemed rather to have sprung upon their palfreys from some sudden whim and spirit of frolic than with a purpose of leaving the park, in which he had first caught sight of them. They were arrayed merely in simple walking-dresses of white, over which one had flung a light scarlet shawl; and instead of caps or round hats, they had low and broad-brimmed hats of thin felt, without veils, much better fitted for rambling in, over sunny meads, than for displaying to the winds on horseback.

His suspicion that their ponies had taken the matter into their own hands,—or rather the bits into their own teeth, was of short duration; and as they advanced with increased rapidity, he saw plainly, by the mirthful rivalry displayed in all their actions and gestures, that they were positively running a race, the scarlet mantle being the winner,—or, so far, at least, as a full length would go, in full prospect of winning.

Not a little diverted at the spectacle, and the merry cries with which they encouraged their steeds, he rose from the table, to take a better view of the fair jockeys, as they should brush by; when, to his great surprise, no sooner had they reached the little oak-yard that conducted to the Traveller's Rest, than they made a rapid wheel, and came dashing up to the porch in a style worthy of a race-course.

It happened, either because he was in part concealed by the veil of nasturtions that grew near to where he had placed his table, or because they were too much engaged in their frolic to raise their eyes, that the young

painter was seen by neither of the ladies, until they were within six yards of the porch; when the headmost, suddenly observing him, drew up in such confusion that she had well nigh jerked her pony over on his back. He perceived at once, that *his* appearance at the Traveller's Rest was wholly unexpected, and was any thing but welcome to the adventurous pair. Indeed, it was manifest that the consciousness of having been detected by a stranger engaged in such jockey-like amusement, had greatly disconcerted them both.

All this the young man observed in a moment, and could scarce suppress the smile that gathered over his visage, even when he saw that the confusion of the foremost damsel had discomposed her palfrey. However, as he looked into her face, florid at once with exercise and shame, he beheld a pair of such radiant black eyes, flashing with mingled mirth and vexation, and withal a countenance of such haughty and decidedly aristocratic character, as instantly put him upon his best behaviour. He took off his hat, like a well-bred gentleman, and advancing from the porch, would have taken her pony by the rein, had she not instantly recovered herself, and turned the animal aside, with an empress-like "I thank you, sir!" He thought the refusal of assistance, so respectfully offered, was somewhat ungrateful, and even rude; but she looked so beautiful, he could do nothing less than testify his admiration by another bow.

Meanwhile the second maiden, whose confusion seemed, at first, even greater than her companion's, and who blushed at the sight of him with even painful embarrassment, recovering herself more quickly, (for her filly was not so restiff as the other,) rode up to the porch, and saluting the ancient widow, who had risen to receive her, exclaimed, though with a flurried voice,

"You must pardon us, good Elsie—we came to visit you—but we knew not you had guests with you." Then turning to Herman, just as her friend had rejected his proffered assistance, she said, with the sweetest voice in the world, as if to make amends for the rudeness, "We are much obliged to you, sir—but the horses are very gentle." She then turned again to Dame Bell, and, as if resolved to explain away as much of the cause of visitation as possible, said,

"We are looking for my father, Elsie; and we thought, that, instead of waiting for him in the park, we would ride by your house, and ask you how you did. We will not intrude upon you longer.—Good by, my dear Mrs. Bell."

With these hurried expressions, and having inclined her head courteously to the painter, she rode out of the yard, followed by her companion; when having hesitated a moment, as if uncertain whether to continue upon the road or not, they suddenly came to a decision, and rode back towards the paddock, though at a much more moderate pace than before.

So great was the admiration with which Herman Hunter regarded the beauty of the red shawl, that he had scarce bestowed two glances upon her friend. He had noticed indeed, that a profusion of gold-shadowed locks and eyes of extreme gentleness and sweetness, gave a very agreeable expression to a countenance at least two years younger than the other's; but as there was none of the spirit of fire breaking out at a glance from those loop-holes of the soul, to make an instant impression on his imagination, as had been the case with the other, he lost the opportunity of satisfying himself by another look, how well her charms might endure a comparison with those of her companion. His admiration was doubly unfortunate; since, little as it deserved such a return, it laid the foundation for a spirit of hostility, little short of absolute hatred, in the bosom of the lady, as will be seen in the sequel of this tradition.

As the gay but disconcerted pair rode away together, he could scarce content himself until they got beyond earshot, before he exclaimed, with the most emphatic delight,

"I vow to heaven, my dear mother Elsie, she is the most beautiful creature I ever laid my eyes on!"

Alice responded with a faint sigh and a yet fainter smile; but her countenance immediately darkened, while she muttered,

"I pity her, poor child. The storm is coming upon her that she dreams not of; the curse will swallow up all that are, and shall be, of his house; and she in whom there is no wrong, and who was born no child of an unjust father,

will share the penalty with his children. Yes, yes," she added, straining her eyes, after the maidens, "I shall see *her* bright eyes dimmed with tears, and then closed,—*her* yellow locks parted over a forehead of stone and death,—and perhaps help to lay her in the earth out of men's sight, as I have helped with one who was as young and as fair!"

"I vow, mother Elsie," said the young man, surprised at the prophetic sadness and emphasis of her speech, but still more at the mention of "yellow locks," while his own thoughts were musing upon ringlets of raven. "I vow, you have mistaken me altogether. I meant the other lady, the black-eyed, angelic creature, who tossed her head at me with such disdain,—and, hang it, incivility, too; for it cannot be denied, she was uncivil."

"I thought you were speaking of the Captain's daughter," said the widow, coldly.

"I know no more about the Captain's daughter than my grandmother," said the youth, irreverently; "nor do I care half so much. But tell me Elsie,—who is that black-eyed creature? I never beheld any body to compare with her!"

"She is the daughter of Colonel Richard Falconer," said the hostess, resuming her labours at the wheel, yet apparently disposed to reply to any farther interrogatories the young man might propose. But the painter seemed satisfied with what he had heard. He exclaimed at once, with a look of strong disgust,

"Why then may the fiends seize the fancy, and my fool's head along with it! Hark'e, good dame Bell, did you ever hear of the old heathen *Lamiæ*? the *Lemures*, as they were sometimes called?"

"I have heard of some such beasts of Peru," said the complaisant hostess; "and I believe they are a kind of camels."

"Oh, that's the *llama*, the pretty little llama," said the young man, with the good-humour that became an instructor. "The *Lamiæ* were monsters and sorceresses of Africa, with the face and bust of women, and the body of a serpent,—a sort of land mermaids. (By the by, do you know, I saw a mermaid once? Some time, I will tell you all about her; but, just now, all I

can say is, that she was monstrous ugly.) These Lamiaë often bewitched men, who looked them in the face: if you looked there first, you were so blinded, you could not perceive their true deformity, until assisted by the counter-spell of some benevolent magician. Now, Elsie, this is my thought: I hold Miss Falconer to be a Lamia; and the sound of her father's name was the spell that opened my eyes to her true ugliness. Pho!" continued the youth, observing the incredulity and wonder of his auditor; "the image is a bad one after all, for it conveys an improper impression. I should say, that *I* am like the Lamia's lover, not Miss Falconer like the Lamia. To tell you the truth, I have heard so many ill things said of the father, that I feel myself heartily inclined to hate the daughter. A vixen, I warrant me!"

The old woman regarded him earnestly, and then replied,

"Little cause have I to love Colonel Falconer, or to speak well of him and his; yet why should a stranger like you, assume the post of the judge, and visit the father's faults upon the head of his offspring? But you do not speak seriously. I know no evil of Miss Falconer, and I have heard none. This is the first time I have ever seen her so near to my threshold: and I know not what strange fancy could have brought her hither. As for Miss Catherine, the Captain's daughter, she often comes to inquire about me. Poor child! she fears not the 'old witch,' for she has done no harm to me nor to any other mortal; she does not hate 'wicked old Elsie,' for hatred dwells not in her nature; but she looks with respect and pity upon the miseries of age and penury. And many a good deed she has done me, when others passed me by with scorn and hate. Would that I might go down to the grave in her place! were it but in memory of her goodness. But when the bolt is aimed at the little willow, even the withered old oak cannot arrest it."

With such expressions as these the old woman, if she did not re-inspire Herman Hunter with admiration for Miss Falconer, succeeded at least in awakening some interest for the younger lady; which was greatly increased, when he came to suspect, from some expressions Elsie let fall, that the miseries she seemed so confidently to predict as being in store for the maiden, were predicated upon the knowledge of a contemplated union between her and the brother of her friend. It was plain, from what Elsie said, that this was to be a marriage of convenience, in which Catherine's

affections were to be sacrificed, or disregarded. It is true, that Elsie did not directly affirm this to be the case; but the inference from her expressions was consequential and inevitable; and Herman only wondered that the young lady, whom he now pictured to himself as dying of a broken heart, should have looked so rosy and happy.

In the meanwhile, the maidens rode on, returning towards the park, until they reached the grove in the hollow, where they were sheltered from view. Here they paused, and the Captain's daughter gave at once the flattest contradiction to all Elsie's piteous allusions to the state of her feelings, by looking archly into her companion's face, and then bursting into an uncontrollable fit of laughter.

"Well, what now, dear Hal?" she cried, while tears of genuine merriment swam in her eyes and rolled on her cheeks; "what do you think of your race *now*? Shall we try it over again?"

"Upon my word, Miss Loring"——

"Kate! call me Kate, or never look to see me laugh more," exclaimed the Captain's daughter. "Now pray, cousin Hal, do you not think we have exhibited our horsemanship somewhat too advantageously to-day? Fy, Harriet, I will never forgive you! To think we should go galloping in this manner, almost into the arms of a young fellow with a scarlet waistcoat! It is *too* ridiculous!"

"So much for dragging me along after you, to the old witch's!" said Miss Falconer, pettishly.

"*After* me?" cried the other, with increased mirth; "why, you were leading—you had beaten me by full a length and a half, as the jockeys call it:—so much for not starting fair! And as for dragging you there, Harriet, pray do me justice; you know it was your own wicked suggestion altogether that carried you thither, and my frailty that made me follow. It is all a punishment on you, for breaking the commandment, and running after the forbidden fruit. Oh, curiosity! curiosity! when shall we poor women shuffle the little tempter from our bosoms? But pray, cousin, what made you treat the young man so rudely? Sure, he was very handsome and well-behaved;

and sure, young gentlemen, handsome and well-behaved, are not so plentiful in Hawk-Hollow! I think we will get pa to invite him to dinner."

"Well, Catherine," said the other, "you are merry to-day; but it happens so seldom, and I am so glad of it, that I pardon you, although your mirth is all at my expense."

"You are angry with me, Harriet?" said the Captain's daughter, riding up to her friend, and stretching forth her hand. Her frolicsome spirits vanished in a moment, and the change on her countenance and in her whole manner, from extreme gayety to impetuous emotion, was inexpressibly striking and touching.

"Angry? by no means," said Miss Falconer, as Catherine flung her arm round her neck and kissed her. "Poor wayward Kate! I would you could laugh at me for ever. Why do you cry, mouse? You are certainly the most extraordinary mad creature in the world!"

"Yes, I am," said Miss Loring, smiling through her tears; "I can't abide being talked stiffly to. But what shall we do? Shall we ride up to the park? Shall we sit down here, and play long-straws for sweethearts? Shall we take heart of grace, and ride on in search of papa? Or shall we play termagant again, whip, cut and spur, whoop and halloo, and call Monsieur Red-Jacket to stand up for umpire? Any thing, dear Hal, to kill time, and find you amusement."

"Was Monsieur Red-Jacket so handsome, after all?" demanded Miss Falconer.

"I don't know," said Catherine: "He kept his eyes so fixed upon your own face, I could not half see him. But, really, he seemed to admire you very much—I suppose, because you were first in! I don't see how you could have the heart to treat him so uncivilly, when his admiration was so manifest, and his bearing so respectful?"

"Was it, indeed?" said the other, shaking her head, as if regretfully. "Young, handsome, well bred, and an admirer—and yet, I know, I shall never abide the sight of him. What! see me riding in full race, with whoop and halloo,

and all that, as you say, like a grazier's daughter!—poh, it is intolerable: it can never be forgiven!"

"Why, he saw me, too," said Miss Loring; "and I am sure, *I* forgive him! And it is no such great matter, after all."

"No great matter, to be sure; but small ones govern the world. No one can forgive being made ridiculous, especially a woman of spirit. Come, we will gallop back to the park, and leave the Captain to find his own way."

With these words, they returned to the paddock.

In the confession of a weak and capricious prepossession, which was perhaps more than half serious, Miss Falconer showed an almost prophetic sense of what would be the future temper of her mind towards the unlucky Herman. Neither the manifest folly nor injustice of the sentiment, even when gratitude should have expelled it from her bosom for ever, could prevent it ripening into jealousy and final dislike; and unfortunately circumstances of an accidental nature soon arose to give a double impulse to these unamiable feelings.

CHAPTER III.

A man of blood, being brought up in the wars
And cruel executions.

BEAUMONT AND FLETCHER.

———A very foolish, fond old man,
Four-score and upwards; and, to deal plainly,
I fear, he is not in his proper mind.

KING LEAR.

The painter, still keeping his eyes upon the pair, pondered over that propensity of our nature, which urges even the coldest and demurest of mortals into acts of extravagance, when removed a moment from artificial restraints. The whole system of social federation is a state of enthrallment and captivity, although undoubtedly a wholesome one; and he who publicly rejects its fetters, though he may personally enjoy his independence, violates that compact which separates the refined from the primitive and uncivilized states of existence, and encourages others to rush back upon the savage freedom of the latter. The preservation of a certain share of dignity is incumbent upon men, not merely as a means of holding caste, but of preventing a downslide in manners and mind. The hero may properly play at bo-peep with his children, though not at the head of his army; and, by the same rule, a fair lady may shoot and drive, play the fiddle, and race horses, to her heart's content, so long as the amusement is confined to the proper circle. For our own part, we think there is no more delightful spectacle in the world than is afforded by a troop of grown-up hoydens, released from the heavy trammels of etiquette, and yielding, in all the confidence of privacy, to the wild extravagancies of freedom; though a public display of the kind would, undoubtedly, be any thing but agreeable. Such were the sentiments of the painter; and however much the young ladies may have been mortified at an introduction made in a way so boisterous and masculine, it is questionable whether any other could have caused them to produce a stronger, or even more favourable, impression on his imagination. Being of a joyous temperament himself, he rejoiced at the manifestation of similar spirit in others; and only regretted that the parentage of the most admired (for his prejudice against the name of Falconer had been strongly avowed,) should have so soon driven away the visions of amusement and delight, that, at the glance of her brilliant eyes, came rushing through his brain.

He had scarce lost sight of them in the park, before the road again echoed with the sound of hoofs; and looking round, he beheld three young men, very genteely dressed, ride by, and make their way to the park gate. As they passed the cottage, they turned their faces towards it, saluting the widow by name, and acknowledging the presence of the stranger by courteous nods. He perceived, however, that they were somewhat surprised, and not a little diverted, by his appearance at such a place; for they exchanged smiles, and

by and by, when they had got a little beyond the brook, they were heard laughing together.

"Well done, ye vagabonds," muttered the good-humoured youth to himself: "never trust me, if I do not make you more in love with my lodgings than your own empty skulls, before we are many days older. There *is* some life in Hawk-Hollow, after all."

He had just succeeded in recalling his attention to his unfinished sketch, when it was distracted for the third time by the sudden appearance of a carriage, somewhat old-fashioned and grim, that rolled up to the inn at an unusual speed, and was in the act of passing it, when an old gentleman, whose head was thrust from the window, caught sight of Herman, and immediately diverted it from its course, by roaring out to the coachman, a venerable negro,—

"Holla, you Dick! right about wheel,—turn,—halt!" and the coach, guided with ready skill, stopped at the porch-step, almost before the last word had been pronounced.

Open flew the door, for it was evident the old gentleman was too impatient to await the tardy assistance of his servant, and out flew the steps, unfolding at a kick of his foot, which immediately followed them. As he thrust himself thus hurriedly from the vehicle, Herman observed, that besides his aged appearance, he had another claim to such duties as a young man could render, in a second foot, which, instead of displaying any of the strength and agility of the former, was battered out of shape by some ancient injury, and was pendent to a leg unquestionably infirm and halt. Seeing this, the young painter instantly stepped forward, and assisted him to descend; a courtesy that was acknowledged by a hearty gripe of the hand, and the exclamation,

"Surrender, you dog, or I'll blow your brains out!"—And to complete the astonishment of the young man, he perceived, at the same moment, a great horse-pistol, which the old gentleman had whipped out of the vehicle, presented within three inches of his ear.

Astounded at such an unexpected mode of salutation, the painter could do little more than express his alarm and confusion, by echoing the word, "Surrender?" when Elsie interfered in his behalf, crying out, "For Heaven's sake, Captain Loring! what are you doing? Do the young gentleman no harm!"

"*Gentleman!*" cried the Captain, somewhat staggered himself. "Adzooks! do you say so?—a gentleman? What! and no cut-throat Gilbert, hah? By the lord, I thought I had him! Why, you vagabond young fellow, give an account of yourself.—Who are you? what are you? and how did you come here? You are a gentleman, hah? and you have not killed Colonel Falconer, hah? and you profess yourself to be an honest man, hah! Why, what will the world come to!"

As he spoke, in these abrupt and startling phrases, Herman had leisure, notwithstanding his surprise, to observe that he was a comely, eccentric-looking old man, with a bottle-shaped nose, gray eyes, and huge beetle-brows, his whole countenance puckered into wrinkles, that seemed to begin at the tip of his nose, or on his upper lip, as a common centre, and radiate thence to all parts of his visage, though they appeared in the greatest luxuriance on the chin and forehead. His hair was clubbed, queued, and powdered; and, although he was evidently battered by time and hard service, and limped withal very uncouthly on his wounded leg, a three-cornered hat, and a half-and-half old military dress, gave him a somewhat heroic appearance. His coat was blue, his breeches buff; and he had a boot on one leg, and a shoe on the other,—or,—to speak more strictly, on the foot thereof, *that* being incapable of the more manly decoration. But at the present moment, it was scarce possible to obtain a just idea of his appearance or character, had Herman been cool enough for the attempt. The violence of his attack upon one in the act of rendering him a humane courtesy, indicated that he was somewhat beside himself; and it was equally plain, from the medley of expressions on his visage, agitated at once by suspicion, anxiety, indignation, fury, triumph, and doubt, that he was in a condition to be replied to rather with softness than anger. In truth, there was something so ridiculous in his appearance, as well as in the circumstance of his own unexpected arrest, that Herman was no sooner relieved of the fear of death, by the dropping of the pistol, which the gallant soldier removed at

the remonstrance of Elsie, than he burst into a laugh, and would have indulged it freely, had not the Captain cut him short by exclaiming,

"Hark ye, ye grinning cub! is it a thing to laugh at, when a man's murdered, and you arrested on suspicion?"

"Murdered, Captain!" cried the widow, whom some of his previous ejaculations seemed to have turned into stone:—"Murdered, Captain, did you say?" she exclaimed, seizing the soldier by the arm, and wholly disregarding the presence of the painter,—"*Richard Falconer murdered at last? and by a Gilbert, when all that bore the name are in the grave? Impossible!*"

"Murdered, I tell you, and given over by the doctors," roared the Captain, "and by one of the cursed Hawk-Hollow Gilberts, if there's any believing words out of his own mouth: I have it by express. And hark ye, you old beldam, if you have given shelter to the villain, never trust me if I don't burn you at a stake. Adzooks! was there ever such a thing dreamed of?—Hark ye, sir, I arrest you on suspicion."

"What, sir! on suspicion of murder!" cried Hunter, who had by this time recovered his gravity, and now spoke with as much dignity as boldness: "If you have any authority to apprehend me, I am your prisoner, and will accompany you to the nearest magistrate.—This is the most extraordinary circumstance in the world; and let me tell you, sir,"—but he was interrupted by the widow; who, still grasping the Captain's arm, although he strove to cast her off, exclaimed,

"Do no rash folly with the young man. Look at him—does *he* look like a Gilbert? You are mad to think it, Captain Loring!"

Then, as if satisfied that such argument was sufficient to acquit her lodger of all suspicion, she again renewed her questions; and Herman, giving ear to the Captain, gathered from his broken and impetuous expressions, that assassination had been committed, or rather attempted, (for it did not appear that the victim was dead,) upon the body of Colonel Falconer, who had been so lately the subject of his thoughts and conversation,—that the outrage had been perpetrated at, or near, the metropolis of the State,—that

suspicion had fallen upon a man long esteemed defunct,—and that Captain Loring, in the fervour of his indignation and zeal to bring the assassin to justice, being never very notorious for the wisdom of his actions, had resolved to seize upon all suspicious persons,—that is to say, all strangers,—he might light on, without much question of his right to do so, until he had caught the true offender, who, he doubted not, being a refugee and a Gilbert, would be found lurking about the Hawk's Hollow. It seemed, that the suddenness of the intelligence had overpowered the veteran's brain, and left him as incapable of distinguishing the appearances of innocence from those of guilt, as of understanding the illegal character of his proceedings; yet, being a man of impulses, excitable both in head and heart, his suspicions were as easily diverted as inflamed; and, accordingly, after having come within an ace of shooting a pistol through the painter's head, his next act was to seize upon him in the most affectionate manner in the world, crying out by way of apology,

"Harkee, younker,—adzooks, no ill blood betwixt us? When my blood's up, I'm an old fool, d'ye see. Didn't mean to insult you; and as for shooting, that's neither here nor there. But when we're after a deserter, spy, refugee, murderer, or such dogs, why quick's the word, and 'Fall in, friend,' the order of the day. Must catch the villain, and take account of all skulking fellows without the counter-sign. Here's bloody murder in the wind. The old woman says you are a gentleman: so, gentleman, as you were! Adzooks, you look no more like a Gilbert than a mud-terrapin; but all honest men answer to their names—what's *yours*?"

"Hunter,—Herman Hunter," replied the young man; "and, if need be, I can easily convince you that I am no object of suspicion."

"Don't doubt it; you've an excellent phys'nomy,—very much like my poor son Tom's," cried the soldier, now as much struck with the open and agreeable countenance of the stranger, as he had been before blinded by his own impetuosity. "I like you! You're a soldier, hah? Where do you come from?"

"From South Carolina," said Hunter, exchanging the serious mood in which he first submitted to examination, for one more characteristic of his humorous temper. He began to understand and even relish the oddities of

the inquisitor; and as the Captain's questions were now put in a tone indicative of good will and admiration, and it was evident his turbulent feelings were giving way rapidly before others of a new character, he seemed disposed not only to endure but to encourage the ordeal.

"From South Carolina?" cried the Captain. "Too many tories there by half! But then you have some men there; yes, sir, some men, whom I call men! Sumpter, sir, and Marion, sir,—why I call such fellows *men*, sir! I like this swamp-fighting, too; I was brought up to it,—took my first lesson among red Delawares, and ended with Mingoes and Shawnees. A good tussle at Eutaw, too, sir, it was, by the lord!" exclaimed Captain Loring, warming into such a blaze of military ardour at the recollection, that he quite forgot the object of his delay, and the assassination of his kinsman into the bargain;—"a good tussle, (without saying any thing of my friend Morgan's rub-a-dub-dub at the Cowpens,)—a good tussle! And such glorious weather, too, when a man could fight and keep cool! Now I remember, that, at the fatal field of Braddock, ninth July, '55, it was the hottest work, what with the weather, what with the savages, what with the stupid cockney red-coats, that man ever saw,—an oven above, and a furnace all round; it was all blood and sweat, sir!—the wounded were boiled in their own gore. It was a day, sir, to make a man a man, sir,—it taught me to smell gun-powder! It was there, sir, I first looked in the face of George Washington,—a poor colonial buck-skin colonel then, but now, adzooks, the greatest man the world ever saw! Harkee, sir, have you served? have you smelt powder? have you heard a trumpet? have you ever fought a battle?"

"Certainly, sir," replied the young man, with humour; "I have inflicted bloody-noses, and received them. I was quite a Hector at school; and, so long as you stop short of killing, I am a Hector yet. But I never could find any appetite in me for bullets and broad-swords; and as for a bayonet, I think it the most inhuman weapon in the world. Noble Captain, I am a non-combatant, a man of peace."

"Hah!" cried the Captain, indignantly; "and how comes that? An able-bodied man, with your bleeding country calling on you, and no fight in you? Sir, let me tell you, sir, such a pair of legs should have been devoted to the service of your country, sir! Look you, sir, my son Tom Loring was only

eighteen years old, when he fought his battle on the Brandywine; and a whole year before, he was ripe for a rub, as he often told me. How comes it, sir, you have grown out of your teens, and never faced an enemy? Zounds, sir, I was beginning to have a good opinion of you!"

"There is no accounting for it, Captain, except"——

"Hark ye, Mr. What-d'ye-call-it," said the soldier, the good feelings with which he was beginning to regard the youth, giving place at once to contempt and indignation, "there is every thing in having the right sort of blood for these things, and you have no blood at all. I despise you, sir, and, adzooks, I believe you are some suspicious person after all, and very contemptible, for all of your red jacket.—Holloa, Dick, there! help me into the carriage."

And thus venting his disgust, and preparing to put the seal to his displeasure by instant departure, the young man was on the point of losing a friend so suddenly won, when, fortunately for him, the Captain's eye fell upon the little table with the drawing materials, which he had not before observed, and walking up to it, he began, without a moment's hesitation, to examine the unfinished sketch. The effect was instantaneous; the spectacle of his own dwelling, transferred, with not a little skill, to paper, though only in light lead marks, and so accurately that he instantly detected (as appeared to him wonderful enough) the windows of his own sleeping apartment, threw him into such transports, that he seemed on the point of dancing for joy, as he would perhaps have done, had it not been for the infirmity of his extremity.

"Lord bless us!" said he, "here's the Folly! the identical old Folly, with the grape-vine, the stables, the negro-houses, the locust grove, the three tulip-trees, the pot in the chimney, and the old martin-house on a pole! And here's my two negroes, Dick and Sam, at the gate, driving the cows out of the park"——

"No, Captain," said Herman, with a painter's dignity; "those are the two young ladies; and I flatter myself, when I have done a little more to them"——

"My girls?" cried the Captain, in a rapture; "why, so they are! And *you* did this? and you're a painter, hah?"

"A sort of one, as you see, Captain," replied the youth, with an air.

"A painter!" cried the Captain, grasping his hand, with delight. "Can you paint a soldier, hah?"

"Ay," replied the youth, "if he'll hold still long enough."

"And cannon, and horses, and smoke, and trees, and a dreadful splutter of blood and dead men, hah? Then, by the lord, you shall paint me the Fatal Field of Braddock, with the red-coats and the continentals, the savages and the Frenchmen,—and Braddock, lugged off on men's shoulders,—and George Washington rallying the colony-boys for another charge on the red-skins! What a picture that will make!—I'll tell you what, Mr. Harkem What-d'-ye-call-it, you shall come to my house, drink and be merry, and then you shall paint me that picture. You shall paint me the battle of Brandywine, too, with my poor Tom Loring bleeding to death, like a hero, as he was: and hark ye, you may bring *me* in, too, holding him on my knee,—for I did it,—and telling him to die like a man,—for an old fool, as I was, to think he could die like any thing else! And stick in my girl, too, if you can, weeping and wringing her hands, when I carried Tom Loring home that day. And remember the bugles and trumpets, blasting up for the charge of cavalry; you should have heard them sweeping by, just as Tom was dying.—It was the finest sound in nature!" continued the Captain, vehemently, and as he spoke, dashing a tear from his eye; "the finest music ever heard; as Tom acknowledged himself: 'Father!' said he, as he bled in my arms, 'it is not hard to die to such music, for I hear our own trumpets among the others!' And so died Tom Loring; he went to heaven amid thunder and trumpets; and if I had seven sons more, I should wish nothing better for them, than that they might go to heaven the same way,—I would, by the lord! For why? there's no way that's better!"

There was something in this eccentric burst of ardour, which, however ludicrous it seemed, touched some of the finer feelings of the painter, and checked the laugh which he could scarce repress, when the Captain began his energetic instructions. Not being disposed to accept a commission so

capriciously proffered, or to undertake a composition, in which, it was evident, if he hoped to please his employer, he must mingle together as many different scenes and actions as would furnish subjects for a whole gallery, and desiring to temper his refusal to the peculiarities of his patron, he was puzzling himself in what way to express it, when his good-fortune sent him aid in the person of another stranger, who, as the capricious stars would have it, designed, like himself, to make trial of the accommodations of the Traveller's Rest.

CHAPTER IV.

1st Friar. No doubt, brother, but this proceedeth of the Spirit?

2d Friar. Ay, and of a moving spirit, too; but come,

Let us intreat he may be entertain'd.

MARLOW—*The Jew of Malta.*

As the Captain concluded his eccentric oration, rather from want of breath than because he lacked the will to continue it, a sonorous voice, very manly and agreeable, save that it had a strong nasal twang, was heard pronouncing hard by, with solemn emphasis, the words from the Apocalypse,—

"And I looked, and behold, a pale horse: and his name that sat on him was Death, and hell followed with him. And power was given unto them over the fourth part of the earth, to kill with the sword, and with hunger, and with death, and with the beasts of the earth."

Startled at an interruption so unexpected, both looked round at the first sound of the voice, and even Elsie Bell woke from the trance into which the Captain's news had plunged her, to gaze as eagerly as the others after the cause. As they directed their eyes towards the entrance of the little oak-shaded yard, they saw, turning into it from the road, and slowly riding

towards them, an apparition that might almost have been supposed by a profane imagination to embody the conception of the grisly terror. It was a tall man in black raiment, riding an old gray horse, very meager and raw-boned, which moved with a step so slow and drowsy, as to oppose no obstruction to the meditations of the rider, who held a book in his hand, from which he read the words that followed so ominously after the burst of the Captain. He seemed so inwrought in his study as to be unconscious of the presence of strangers, having apparently yielded up the guidance of his course to the animal he bestrode; and as he drew nigh to the porch, still pronouncing the words, the first one of which had attracted their attention, all had an opportunity of gazing on him at leisure. He was a tall man, as has been said, being somewhat gaunt and thin in the lower part of his body, though his shoulders were broad and square. His joints were large and bony, and his hands and feet were any thing in the world but fairy-like. His neck was long and scraggy, his face of a cadaverous hue and lantern-jawed, and long locks of straight black hair, a little grizzled, fell from beneath an old cocked-hat, the brim of which was inclined to go slouching along with them, towards his shoulders. His coat was of black velvet, worn and soiled, and indeed extremely shabby, and so long, that, as he rode, the wide skirts almost concealed his saddle-bags and flapped about his heels; the collar was straight and short, and its place was supplied by a red bandanna handkerchief, which was twisted round his throat in a thong like a cable.

He continued to read aloud, until his horse suddenly paused before the porch; then lifting up his eyes, and closing the book, he bestowed a gracious stare upon the party, that had well nigh converted the painter's admiration into merriment, it was so extravagantly grave and sanctimonious. It dispelled also some of the reverence with which the soldier was beginning to regard him; and recurring suddenly to the objects which had brought him to the Traveller's Rest, Captain Loring hobbled up to the saintly apparition, advanced his hand to seize upon the bridle rein, and was just saluting him with a "Harkee, Mister, whoever you are,—being a stranger, you must give an account of yourself,"—when the worthy personage, rolling his eyes once more over the party, and then directing them to heaven, opened his mouth, and again lifted up his voice.

"Fellow sinners!" said he, with as much zeal as emphasis, seeming to consider that he had found a congregation in great need of his exhortations, "you have heard the words of the book: 'And I looked, and behold, a pale horse; and his name that sat on him was Death, and hell followed with him.' Death comes on the pale horse, and hell follows at his heels! Listen to what I have to say, and let your souls that are a-hungering, open their mouths and be satisfied. He that has ears to hear"——

"Is an ass!" cried Captain Loring, interrupting him without ceremony. "Come, you fanatical fool, none of your babble and sermonizing here of a week-day; but answer my questions."

"Will you rail upon the Lord's anointed? will you do violence to my holy vocation?" cried the preacher, hotly. "Get thee behind me, Satan! If thou wilt not profit by the unction of truth, shut thy mouth and get thee away, that others may not backslide after thee. Anathema upon thee! anathema baranathema! If thou stoppest the flood of the sweet waters that are ready to fall upon the thirsty-spirited, I say to thee, Anathema! Lo and behold! I am sent upon a mission, and the spirit waxes strong within me, so that I will wrestle with thee and prevail. Am not I he that is sent to scatter the good seed by the way-side? and art thou not a bush of thorns, that chokes up the grain ere it reaches the soil, or the rock that has no soil to receive it? I will preach the devil out of thee, I warrant thee, thou most antique sinner; for what says the word"——

"Harkee, friend methodist, or whatever you are," said Captain Loring, not a whit abashed by the violent zeal with which the fanatic prolonged this remonstrance, "it is not in my way to insult the cloth, all chaplains being non-combatants. But, hark ye, sir, adzooks, I don't believe you are a preacher at all, but a rogue in another man's feathers; and if you don't satisfy my mind, I will arrest you on suspicion of being a rascal, I will by the lord! and that's as true as any Scripture. And do you, you Harper What-d'ye-call-it," (turning to the painter,) "hand me my pistol, and hold him by the leg; and you, Dick! club your whip, and stand by to knock him off his horse; and you, Elsie, come forward for a witness; for I believe the dog's a Gilbert. Surrender, you villain, and give an account of yourself!"

Great was the confusion of the exhorting stranger, at finding he had lighted upon a zealot, of fire so much superior to his own, and a congregation so little disposed to bow down to his ministry; and great was the inclination of Herman Hunter to enjoy a rencounter betwixt two such antagonists, and even to add to its absurdities, by taking part with the Captain against a man who, whatever was his apparent sanctity, he was persuaded, was nothing more than a low and vulgar hypocrite. However, perceiving that the latter worthy, besides being greatly alarmed, was clubbing his bible as if weighing the propriety of employing all its arguments and exhortations together, in one fell swoop against the head of his irreligious captor, his humanity and love of peace drove the young man betwixt the eccentric pair, as a moderator and umpire.

"Stop, Captain," said he; "this mode of questioning is against the law; and you, reverend stranger, hearken to me. Being a man of religion and peace, and doubtless good sense and good manners, you can do nothing more than answer a civil question; which will save you the trouble of a ride, or drive, according to circumstances, to the nearest magistrate."

"Magistrate!" cried the preacher, blankly, "what have the servants of truth to do with a magistrate?"

"Yes, magistrate," blustered the soldier; "and then, adzooks, perhaps to the hangman afterwards."

"In a word, sir," said Herman, "there has been a murder attempted; though where, when, and how, I do not pretend to know; and this being a land where suspicion is somewhat capricious and even whimsical, you will see the necessity of doing as I myself have done but a moment before you;—that is, of declaring your name and business to this gentleman."

"Name, gentlemen! business, gentlemen!—Certainly, gentlemen,—certainly, fellow christians and sinners!" cried the preacher, recovering his equanimity, which had somewhat deserted him, and becoming ten times more nasal and sanctified than before. "I am a poor servant of the word, an expounder of the book, Nehemiah by name,—which is to say, Nehemiah Poke,—an humble labourer in the vineyard of sin—that is to say, of righteousness—and a warner and crier-out on the way-side, by the side of

the great road that leadeth to the place of despair, and of wailing, and of gnashing of teeth. You put your scorn upon me, men of the world, and sons of a stiff-necked generation; you spit in my face, you strike me over the mouth, and you take me by the beard, crying, 'Get up, you bald-head.' But *he* will reckon with you, who goeth about like a roaring lion, seeking whom he may devour. Open therefore your ears, and repent you, lest he who comes on the pale horse, with hell after him, shall fall upon you in your pride, and twist your necks, as you twist off a quid of tobacco from the roll. I come to the house of the good widow, for such, say the men of the world, is the widow Bell. I design to eat and refresh me with sleep; and then crossing over the river that lies in my path, wend my way to the scornors of truth, that are thick among the men of blood in the army; for among them, Death on the pale horse is ever ramping and roaring. But I see, that wickedness is here, even here, in this 'desert idle,' as it is written: I will therefore tarry awhile, and expound to you the words of comfort, and that before I eat and sleep, lest you fall and perish before the morning. Rest a moment then, irreverent and headstrong old man, and I will wrestle with the devil that is in thee. For I forgive thee, and will arouse thee with an exhortation, strong and fiery, 'fierce as ten furies, terrible as night,' according to the expression. Listen, therefore, to the words of my text: 'And I looked, and behold.'—And behold! the sinner rolleth away in his pride, rejecting the word! But he of the pale horse runneth after, even in the dust of his chariot wheels, shaking destruction from his shoulders, even as 'dew-drops from the lion's mane,' as it is written. Young man, give me thy hand, that I may descend; and widow, peace be to thy house, and comfort in the midst of thy poverty. He who tempers the wind to the shorn lamb, as the word has it, and marks even when a sparrow falls to the ground, will not turn from thine humble tenement, when its door is open to the weary pilgrim, and its porch resounds with the cry of prayer and thanksgiving."

"Mr. Nehemiah Poke," said Herman, who gave his hand, as required, to the pilgrim, and assisted him to descend, "you perceive, that your exhortations have driven away one-third of the congregation."—Captain Loring had been fully satisfied with the explanations of Mr. Poke, or alarmed at the prospect of a sermon; and while the preacher was kindling into fervour, had suddenly slipped into the carriage, and in a moment rumbled furiously away.—"You perceive that your sanctity has driven away one auditor, and

confounded another,—Mrs. Bell here being in a maze. Now know, likewise, that I, the remaining third, have no need of your edifying discourses, and request you to put an end to them."

This was said with a good-natured smile, and a knowing nod, which somewhat disconcerted the preacher. However, after staring at the youth awhile, he lifted up his eyes, hands, and voice together, saying,

"Are you a scorner of the word, then, in your early and tender youth? and will you shut your ears and harden your heart against the grace that is offered, even by my unworthy lips!"

"Even against all that can come from your unworthy lips, as you very properly term them," said the painter, with the most significant countenance in the world: "and to make you easy on that score, do me the favour to believe that I have studied Milton, Shakspeare, Sterne, and the Bible, so much more closely than yourself, that I never jumble them together, nor fail to perceive when another man does so. Do you understand me?"

"Truly not," said the preacher, with a somewhat humorous stare; "but out of the mouths of babes and sucklings we are sometimes wisely admonished. I perceive, that I have fallen among thieves—that is to say, among sinners; and that they are none the better, but much the worse, for any comfortable wisdom that is offered them. Therefore, I will hold my peace, lest the devil should be aggravated in your bosom; hoping that a better hour may be shown me, in which to warn you of the wickedness of your ways, and so pluck you as a brand out of the burning. Good woman," he continued, turning to Elsie, and speaking much better sense than before, "know, that by reason of thy poverty and widowhood, I have brought me lucre of silver and paper—that is to say, dollars both hard and soft—to reward thee for thy hospitality; and that I come, not like a thief and a man of war, to prey upon thy substance, and leave thee nothing in return; but as a guest, in the worldly sense, who will pay scot and lot, as the word is, without grumbling."

"Such as I have, you shall share," said Elsie, coldly, "whether you have gold or not, provided you will take the young gentleman's advice, and exhort no longer in my house."

"Woman," said Nehemiah, "let me not think that a devil has seized upon you, as well as the others. Shall wisdom cry aloud, not in the streets but at your house-door, and you regard it no more than the scoffers? I tell you, and I charge you to hear"——

"Softly, Mr. Poke," said Herman. "Remember your promise to hold your peace. That scrap from Sir John, though it smacks of a better origin, is of as clear an one as the others. Read your Bible, man, for a day or two more, and learn your trade better."

"Young man," said the preacher, again somewhat abashed, but with a stern voice, "you talk like one of the ignorant"——

"Groundlings!" said the other, laying a ludicrous stress upon the word. "'Thy face is valanced since I saw thee last!'—Does that come out of Habakkuk? If you will preach, why here fate sends you another auditor, in the form of another patron to the Traveller's Rest! As for myself, I am tired not only of your homilies, but your company; and I pray you, for our own two sakes, that you cross the river before supper. The sooner the better, I assure you; for though at present the 'rack' may 'stand still,' 'the bold wind' be

'Speechless, and the orb below
As hush as death; anon the dreadful thunder
Will rend the region,'

and scatter jackdaws, along with the owls and pigeons. Fare you well, 'Sir Topas, the Curate!'—'I am one of those gentle ones that will use the devil himself with courtesy'—I leave you to the pedler there, who may be of a better temper for conversation. '*Bonos dies*, Sir Topas!'"

And with these words, and laughing heartily, as at some jest perfectly well understood by Nehemiah, he left the porch, only looking once behind him, as the preacher stood regarding him with uplifted hands, and bursting into a second peal as he looked. He raised his eyes, nodding courteously to the new comer, whom he had justly characterized as a pedler—for so he seemed, having a pack strapped to his back, though riding a strong black horse. "Good luck for poor Elsie to-day!" he muttered to himself, as if even

diverted by so slight a circumstance as the unusual windfall of patronage. "I thought I could not be mistaken in the rogue's lantern-jaws and huge hands; and I doubt me, his religion is a mere cloak, put on for a purpose; though I *have* heard of such conversions before. However, honest or not, a fool or a scoundrel, a saint or a hypocrite, it is certain he can do me no mischief; and I'll see he does none to Elsie. As for others, they must take their chances."

Thus reflecting, and amusing himself with his cogitations, he made his way, though apparently without design or object, along the road, until he had passed the park-gate of Gilbert's Folly, and reached the rivulet described before, as emptying into the river at the mouth of the ravine, on which the Traveller's Rest was built. Although shallow and of a smooth bottom, where it crossed the road, there were rocks lying in its bed both above and below; and he could hear a murmuring noise among the trees that overshadowed it above, as if it made a cascade at no great distance in that direction. He had no doubt that, by leaving the road, he was trespassing upon the manor; but having no fear of intruding upon the haunts of any of its habitants, and being moved by a painter's curiosity, he did not hesitate to clamber over the rude stone wall, and dive at once into the shadowy grove bordering the stream.

CHAPTER V.

To arched walks of twilight groves,
And shadows brown, that Sylvan loves,
Of pine, or monumental oak,
Where the rude axe, with heaved stroke,
Was never heard the nymphs to daunt,
Or fright them from their hallow'd haunt.

IL PENSEROSO.

Meanwhile, the fair jockeys, after being repulsed from the highway, had betaken themselves to the park, where they galloped about for awhile, expecting the Captain. As they looked back ever and anon upon the road, they caught sight of the three young men, whom Hunter had seen pass the Traveller's Rest but a short time after the ladies themselves.

"Was ever any thing more provoking!" cried Miss Falconer. "Those three rural coxcombs, the doctor and the two lawyers! Will no one have the humanity to break a leg, or his neighbour's bones, so as to afford *them* some employment, and *us* a little peace and quiet? Must we be ever afflicted with their admiration and homage? It is more than a misfortune to be a fine woman in the country, where merit, as the old villanous poet says of female attraction in general,

'In its narrow circle gathers,
Nothing but chaff, and straw, and feathers.'

But we will escape them, if it be only for an hour. Down, Kate! down, ere they have seen you! Whip your filly, and I warrant me, she will find her way to the stable. We will hide in the woods, as I think we have done before from the same fellows."

Laughing heartily at a device that spoke so little in favour of the attractive qualities of the village beaux, the Captain's daughter leaped lightly from her palfrey, as Miss Falconer had done before her; and both flourishing their whips at the same time, the liberated animals fled towards the buildings, whilst their riders lost not a moment in burying themselves from sight, by plunging into a grove, from which they continued to ramble, until they had reached a little brook, as wild and merry as themselves, that gushed over a remote corner of the park, and then hid its gleaming waters in a hollow, overgrown with forest-trees.

Into this dell they made their way, following the brook, until it fell into a larger streamlet, which was indeed no other than Hawk-Hollow Run, so often mentioned before. Its banks were strown with huge masses of rock, gray and mossy, through which the waters, swollen by late rains, rushed with impetuous speed, and sometimes with great noise and fury, while its murmurs were rendered yet more impressively sonorous by the hollow

reverberations of the forest. Proceeding farther, the woods, which now invested the hills on either bank, and the rocks, assumed a sterner character of wildness and grandeur. Hemlocks, and other gloomy trees, with here a rugged maple, or ghostly beech, and there a gibbous oak, springing from interstices of the rocks, seemed, with their knotted and contorted roots, to bind the fragments together; while their thick and arched boughs flung over these ruins of nature a chilly and everlasting gloom. Aloft, on the hill, the grape-vine swung its massy locks from the oak, and, in the lower depths of the ravine, for such it was, the swamp-honeysuckle shook its fragrant clusters, and green dodders rose on the stump of the decaying birch. When their path had conducted the fair wanderers beyond the immediate vicinity of the falls and rapids, these exchanged their murmurs for other sounds not less agreeable. The chattering of jays, the lonely-sounding whistle of the wood-robin, the cry of a startled dove, and now and then the sudden whir of a pheasant, starting from his lair under a fallen trunk, and bustling noisily out of sight,—the small uproar of young rabbits, bouncing out of a brier or a bush of ferns, and galloping away up the hill,—the dropping of half-eaten nuts from the paw of the retreating squirrel, and a dozen other such noises as invade the solitude of the forest, here added a double loneliness and charm to a scene long since a favourite with the maidens.

"Now are we safe," cried Miss Falconer, with exultation; "for no one having seen us take this course, our admirers, were they even spirited enough to pursue, would think of twenty more reasonable places to seek us in than this. But let us make assurance doubly sure. Don't tell me you are tired—what business has a country-wench to be tired? We will go down to the sycamore, and then rest us awhile, till the sun peeps red in the hollow. I will bring you to your confession; for, having failed in my precious designs upon the old witch there, (may Monsieur Red-jacket sleep harder to-night than he ever did before, for a Marplot!) and my curiosity being so much the more inflammable, I am resolved to learn what I can, and that without ceremony. So come along, Kate,—

'Kate of my consolation,
'Kate of Kate-hall, my super-dainty Kate,'

as the bear of Verona said of your amiable namesake; all that you have now to do, is to be, like her, 'Kate conformable.'"

Thus whiling away the fatigue of climbing over rocks and creeping through thickets, with a gay rattle of discourse, the black-eyed maiden dragged her companion along, until they reached a place where the stream was contracted by the projection, on the one bank, of a huge mass of slaty rock, and, on the other, by the protrusion of the roots of a gigantic plane-tree,—the sycamore, or buttonwood, of vulgar speech. Above them, and beyond the crag, the channel of the rivulet widened into a pool; and there was a plot of green turf betwixt the water and the hill, on the farther bank, whereon fairies, if such had ever made their way to the World of Twilight, might have loved to gambol under the light of the moon. A hill shut up the glen at its upper extremity; and it was hemmed in, on the left, by the rocky and wooded declivity, over which the maidens had already passed. Over this, and just behind a black rounded shoulder that it thrust into the glen, a broad ray from the evening sun shot across the stream, and fell, in a rich yellow flood, over the vacant plot. There was something almost Arcadian in this little solitude; and if, instead of two well-bred maidens perched upon the roots of the sycamore, on seats chosen with a due regard to the claims of their dresses, there had been a batch of country girls romping in the water, a passing Actæon might have dreamed of the piny Gargaphy, its running well,—*fons tenui perlucidus unda*,—and the bright creatures of the mythic day, that once animated the waters of that solitary grot. But the fairy and the wood-nymph are alike unknown in America. Poetic illusion has not yet consecrated her glens and fountains; her forests nod in uninvaded gloom, her rivers roll in unsanctified silence, and even her ridgy mountains lift up their blue tops in unphantomed solitude. Association sleeps, or it reverts only to the vague mysteries of speculation. Perhaps

"A restless Indian queen,
Pale Marian with the braided hair,"

may wander at night by some highly-favoured spring; perhaps some tall and tawny hunter,

"In vestments for the chase array'd,"

may yet hunt the hart over certain distinguished ridges, or urge his barken canoe over some cypress-fringed pool; but all other places are left to the fancies of the utilitarian. A Greek would have invented a god, to dwell under the watery arch of Niagara; an American is satisfied with a paper-mill, clapped just above it.

The fair ladies of Hawk-Hollow were no more troubled with the absence of poetic association in their lovely retreat, than any of their countrymen would have been; as was plainly shown by the first words pronounced by Miss Falconer, after taking possession of a sort of arm-chair among the sycamore roots.

"This is a place, my mannikin," said she, bending her head majestically towards her kinswoman, whose seat was not so elevated,— "this is a place where one may think comfortably of murdering, whooping, scalping, and such sort of matters; and its solemnity will therefore give a degree of point to the story. Come, begin; I am all ears—that is, metaphorically speaking; though a viler metaphor, to come from men of rational imagination, could not have been invented. I tell you, Kate, I am dying with curiosity about these terrible Hawks; and as I know, you know *something*, I am determined you shall resuscitate me, in lack of a better physician, with such information as you have. No excuses—I know them all by heart, you have repeated them over so often. I declare upon my jockey-like word, that here I sit, as fixed as the very roots around me, and as immoveable; and here I *will* sit, until you surrender your scruples, and open your mouth, though I should remain until washed away by the next fresh. I am positive; my will is as inflexible as the laws of the Medes and Persians."

"You have mistaken me, Harriet," said the other, bending her eyes upon the stream; "I know nothing of the matter.—That I have heard many idle whispers, hints, and innuendoes, is true; but there is neither wisdom nor propriety in repeating them, particularly to *you*.—But is not this the most charming place in the world? Do you know, I have determined upon the spot I am to be buried in? It is further up the river, where three lime-trees grow together; behind them is a rock, covered with laurels, wild roses, and columbines; and there is such an array of azaleas below, with blood-roots, and wind-flowers, and dogwood, as has half-turned my brain. Can you tell

me, Hal, why I should be ever thinking of a grave, when I stumble upon such pretty places? It is always the first thought."

As Catherine spoke, she turned her eyes with much simplicity and earnestness of expression, upon her companion's face; and though it was evident, she had introduced the subject, for the purpose of diverting the conversation from the channel in which Miss Falconer desired to have it flow, it was equally plain, that it had already taken hold upon her imagination, and now occupied her mind alone. As she looked up, with such a thought at her bosom, it imparted a character of melancholy to her countenance, which, although not her natural and original expression, circumstances had made, of late, much more common than any other. Her face was the sweetest oval in the world, her features very regular and pretty, the hue of her complexion less brilliant than might have been expected in one with such light locks, but of a pleasant healthy tone, and her eyes, without being bright or striking, were so singularly earnest of expression, with a certain vague anxiety, or imploringness, mingled up with every look, as to seldom fail of interesting the feelings of the beholder in her favour. Besides, her brow, from which the hair was parted in the simplest and easiest manner, was particularly smooth and beautiful; and whatever might have been the depth of her melancholy, this noble feature lost nothing of its serenity. Indeed, when sadness dwelt upon her spirit, it seldom produced a change in any part of the countenance except the eyes; and it was in these alone, at the present moment, that emotion was betrayed by the change from the merry brightness which the events of the afternoon had thrown into them, to that appealing, anxious expression, already described. It must be added to this description that her voice was, if possible, even more strikingly expressive than her eyes. It was with her as with the Faerie Queene; always,

"When she spake,
Sweete wordes, like dropping honny, she did shed;
And 'twixt the perles and rubins softly brake
A silver sound:"

every exertion was characterized by some appropriate and harmonious change; her joyous spirits broke out with such sweet and jocund sounds as

come from tinkling bells; and when sadness was at her heart, her accents were such murmurs of subdued and contagious melancholy as the wood-pigeon breathes from the depths of the forest.

"Do I know *why*?" said Miss Falconer, looking down upon her with a mischievous air, and humming instantly,

"'The poor soul sat sying by a sycamore-tree,
Sing all a green willow;
Her hand on her bosom, her head on her knee,
Sing willow, willow, willow.'

But pr'ythee, be comforted; this is the way with all young ladies who have hair-brained sweethearts. But I assure you, he we wot of is the best, truest, and most amiable creature in the world; and if he be a little wild, why all men are so, you know."

At these allusions, which were evidently unexpected, Miss Loring blushed, then turned very pale; and finally, while Harriet drew breath, as if to continue the subject, she said, recurring abruptly to the original topic of discourse, and in a hurried manner,

"If you insist I should tell you what I have heard, I must obey. The story is singular and melancholy,—melancholy under every aspect, but doubly so, if that be true which I know you are most anxious to learn. But, Harriet, I cannot tell you *all*. What concerns the Gilberts alone I am ready to relate; but that which involves the connexion between,—that is to say—Harriet!" cried the young lady, after pausing with embarrassment, "it does not become a daughter to listen to aspersions cast upon the good name of a parent!"

"It does not," said Miss Falconer, gravely, "when they are breathed by the lips of an enemy. But fear not, I will not eat you. I do not ask you to repeat slanders, but to inform me what slanders are repeated by others. You might have added, it did not become me to pry into my father's secrets; but as his child, his daughter—I would to heaven I could say his son!—it is fitting I should at least know from what to defend him. I tell you, Kate, I have this thing much at heart. Fear not to shock me by your relations; for, not being

disposed to believe them, I shall not be grieved, except at discovering how extensive may be the malignity of our foes. I shall rest more sweetly on my pillow to-night, if I go not to sleep on suspicion. Begin, therefore, Kate, and scruple not to speak boldly."

CHAPTER VI.

For us, we do approve the Roman maxim,
To save one citizen is a greater prize,
Than to have killed, in war, ten enemies.

MASSINGER—*The Guardian*.

Blow, blow, thou winter wind,
Thou art not so unkind
As man's ingratitude.—
Freeze, freeze, thou bitter sky,
Thou dost not bite so nigh,
As benefits forgot.

AS YOU LIKE IT.

"You know then, I presume," said Catherine, beginning her narrative, ominously, with a sigh,— "you know, I suppose, all about old Mr. Gilbert, and his"——

"My dear creature," said Miss Falconer, "I know no more of Mr. Gilbert than the Grand Turk; and all that I can boast of knowledge in relation to his cut-throat children, is that they were the Hawks of Hawk-Hollow; but whether they were real kites, with claws and feathers, or only the philosopher's two-legged birds, human chanticleers, I could never yet determine. My father is not always so communicative as might be expected in a dutiful parent; and, once or twice, when I have been curious to come at

some of his early exploits on the frontiers, (for they say he was a great Indian-fighter,) he has not hesitated to assume a severe countenance, and scold me in the most paternal manner imaginable. Nay, my dear, he once assured me that, as it became a woman rather to garnish the outside of her head than the interior, I would do well never to trouble myself by searching after information that could not make me a whit more handsome. I bowed my head at the reproof, and ran straightway to my brother. But Harry, poor fellow, knew no more about these matters than he cared,—that is, nothing. Ah! he is a jewel of a man, and will make the best husband in the world, having nothing of the meddler about him. I have often thought, if pa were to commit a murder, or even break his neck, Harry would not trouble himself with either wonder or lamentation; and this, not from any want of affection, but simply because he would consider the thing his father's affair, not his. A good easy temper is an excellent thing in men,—as excellent indeed as the 'voice soft, gentle, and low,' in woman. So, now, you perceive the necessity of beginning just where your story begins. Take up the father,—the grandfather, if you choose,—of this savage brood; give me their genealogy, if they have any, and if it be german to the matter; draw all sorts of parallels, make all kinds of reflections, and, in fine, do and say any thing you may think proper,—only conceal nothing. My curiosity is as capacious of appetite as the Moor's revenge, (so much for ruralizing, when one must kill time with Shakspeare!) and demands that its gratification should be as complete."

Thus adjured and instructed, Miss Loring began the narration of Gilbert's story, and the description of his family, as they have been already recorded; into both which, however, she entered in greater detail than it was thought necessary to attempt.

The first part of the history, which was without melancholy, and related chiefly to the dilemmas into which the founder of Hawk-Hollow Hall was thrown by the sudden accession of wealth, and his vain struggles to refine the character of his children, long since determined by early habits upon rude and adventurous lives, Miss Loring, naturally a merry and waggish maiden, with strong talents for mimicry, delivered in a manner that soon became humorous, and, at last, highly diverting; so that the hollow forest began to peal with the approving merriment of her companion. Her

benevolence to the poor widow had so opened Elsie's heart, that she had cast aside most of the reserve with which she was accustomed to speak of the Gilberts; and, in consequence, Catherine was provided with an ample store of anecdotes, illustrative of their characters and habits, with which she now amused her friend. She related with what surprise the good Elsie, one autumn evening, (while Mr. Gilbert was yet in England with his whole family,) beheld the adventurous Oran, in ragged attire, and with a bundle at his back, come trudging up to the Traveller's Rest, looking as bold and resolute, to use her own whimsical illustrations, as a soldier marching up to the mouth of an empty cannon, or a militia-man returning from a campaign without battles; and she even mimicked, with voice, gesture, and looks, the appearance and bearing of the two friends, in the dialogue that followed as soon as the truant was recognized by the widow.

"'Heaven bless us!' said Elsie, with uplifted hands, 'is that *you*, Oran Gilbert?'"—Thus her story went on: "'What a foolish question!' muttered the hero of two lustres and a half, who had never affected much of the dulcet submissiveness of a child to any one, either in word or action; 'what a foolish question for you, goody Elsie! Here I am in Pennsylvania, and hungry, I reckon!' and with that, without waiting for invitation, he plumped himself down at the table, already set out for the widow's evening meal, and straightway fell to work with a zeal and industry that showed he had not mistaken the condition of his appetite. The widow regarded him with undiminished astonishment, crying out, for she feared lest some dreadful accident, by shipwreck or otherwise, had destroyed the rest, 'But your father and brothers, Oran,—where are *they*?' 'In Bristol,' mumbled the boy, scowling at her over a bone, but still making the most of it,—'in Bristol,—that is, the big English Bristol, and not our Pennsylvania town, down the river.' 'In Bristol,' echoed Elsie Bell; 'and what are you doing here without them?' 'Why, eating my supper, don't you see?' replied the juvenal. 'And how did you get here?' demanded Elsie. 'I came in a big ship to Philadelphia,' replied the boy, scarce intermitting his agreeable employment for a moment, 'and then, to be sure, I footed it.' 'You have run away from your father, Oran?' said Elsie. 'Yes, I have,' said the boy, grumly; 'let me eat my supper, and I'll tell you all about it.'

"The widow held her peace for awhile, until the lad had satisfied his ravenous appetite; and then, assuming a friendly and coaxing air, for well she knew nothing else would have any effect on that singular young reprobate, she drew from him a confession of his whole adventure, and the causes that led to it.

"It appeared, that, besides an extraordinary attachment to his native home among the wild woods, Oran had another cause to be discontented with his residence in England; and this he discovered in the public school, to which he was sent with his brother next in age, called Hyland. 'He sent me,' said Oran, expatiating upon the barbarity of his father, 'to a school, to learn grammar, and Latin, and reading and writing, and all that sort of thing!'—For you must know," said Catherine, speaking to her friend, "that the want of a teacher, or perhaps hard poverty, had prevented Gilbert sending his children to any school, before he fell heir to his fortune; which was the reason perhaps, that they got such wild notions and propensities among them as could never after be eradicated. 'Yes,' the urchin went on, 'he sent me to school, and Hy, too; for he has been a sort of crazy man ever since he came to his money. Well, the boys at school called me an Indian papoose, and I thumped 'em; and the man that was master he thumped *me*, and Hy also; for Hy came to help me. So, when school was out, I took Hyland along; and we went to a corner, and got a great heap of stones; and when the master came out, we pelted him!' 'You did?' cried Elsie, in alarm: 'I hit him one polt on the shin,' said Oran, warming with the recollection,—'I hit him one polt—it was what I call a sogdolloger,—that made him dance like a ducked cat; and just as he stooped down to scratch it, we blazed away again, me and Hy; and if you ever heard two hailstones rattle on a well-bucket, you may tell how his head sounded, I reckon!'

""But your father, Oran?" said Elsie,—'you have not told me what made you leave your father?' 'Father chose to take the master's part,' said Oran, sulkily; 'he said as how I must learn to be a gentleman, now I was in England, and never behave like a young savage no more, because I was never more to come home, meaning to Pennsylvania; and so I must go back to the master, and be thumped again; for nobody could be a gentleman, without having it thumped into him. Well, Goody, you see, I couldn't stand that; I was not going to a school to be called papoose, and trounced too; and

I was mighty sick of England, which is just like a big garden,—you can't turn out of the road, without treading on somebody's strawberry-patch, and having 'em holla after you with dogs, and men, and such things; and I got into a great pickle once, for killing a thumping big rabbit that I saw in a stubble. They called it a hare; I killed it with a stone; they made father pay money about it. Well, I made up my mind to come home, without making any more words about it. So I went down to the river among the docks, and there I saw a ship that was going to sail to Philadelphia next day. I told Hy about it, and he agreed we should go over. I went to the captain, and I said, "Captain, I want to go to Philadelphia," but he called me hard names, and swore at me—there was no getting any thing out of him. I looked about, and saw them putting boxes, and barrels and baskets, and all sorts of things, into the big hole below. I went ashore, and laid out the shilling father gave me to go back to school, in gingerbread. But Hy's heart failed him: I never thought he would come to much, he's too much of a coward; he began to cry, and said he would go home to father. I gave him a thumping for being such a fool; but that only made him cry harder. So I gave him half my gingerbread, and told him to go, letting him know, if he told on me, I would give him another banging. Then I clomb into the ship again, and slipped into the hole among the boxes. But before I went down, I looked back to Hy, and there he was on the wharf, eating his gingerbread and crying. I shook my fist at him, as much as to say, "If you tell, mind you!" and then I went below, and after awhile they fastened me up.'

"'It was as dark down there as the dickens,' said Oran, in reply to the piteous ejaculations of the widow; 'but there was plenty of rats—I tell you what, they scared me! They stole my gingerbread, and whenever I got to nodding, they seized me by the nose and fingers, and I thought I should have been nibbled up, like an ear of corn. But I knew I must stand 'em as long as I could; or it would be all up with me.—Well, after awhile they came to a place, I don't know where it was; but there was a great clatter on the deck, and swearing and trampling, and they opened the trap-doors, as I saw by the great flash of light. Then there was a heap of voices, and father's among them, and Hyland's too. The great villain Hy, was telling on me, for all I gave him half the gingerbread! When I catch him, I'll pay him up, I will, Goody, if I wait ten years!'—And here the young scape-gallows, as he

revolved the treachery of his fellow truant, clenched his fist, and looked as fierce and savage as a young bantam in his first fit of valour.

""Then,' continued this hopeful junior to the astonished widow, 'there was father, saying his son Oran was hid in the ship, and he would have him out, or bring the captain to the gallows for kidnapping him, meaning *me*; and there was Hy, the villain, telling him how I was to hide among the boxes; and there was the captain and the other folks, swearing that father was crazy, and ought to stay at home; though to make him easy, they had opened the traps, or the hatches, as they call them, and he might see for himself. Then father came down, and bawled out after me, and so did Hy; and Hy said, if I would come out, father would not send me to the grammar school, to be thumped no more; but he said nothing about father sending me back to Pennsylvania! no, not so much as a word! I was not to be caught by any such talking; so I laid snug and as mum as a rabbit. Then father took on as though I was dead, squeezed to pieces among the boxes, because I would not answer him—as if I was such a fool! Then he wanted the captain to take out the boxes, and the captain would not; then he went after constables; and when he was gone, they clapped down the hatches, and sailed away with all their might, and I never heard any thing more of father.'

""Poor fellow!" said Elsie, her sympathy for the anticipated sufferings of her young protégé driving from her mind all disapprobation of the hard-hearted perverseness that caused them, 'did they keep you long in that dismal, dreadful place?' 'You may say so,' replied the boy; 'they kept me down there till I was more tired of it than ever I had been of the grammar-school. I don't know how long it was, but I was mighty tired of it. Dickens, goody, but I was dry! I was in such a hurry to get down, that I forgot I should want water as well as gingerbread: I eat up all my gingerbread, but I was as dry as ever. Goody, you don't know what it is to be dry! I was always thinking and dreaming of springs, and wells, and pumps, and the big Delaware there, and even the ditches and gutters. But I held out as well as I could, till I thought we were clear of that hateful old England; and then I hollaed to 'em to let me out; but they did not hear me at all. There was a power of big baskets, that were rolled all about me; for you must know, a ship never holds still a minute at a time, but is always pitching and tumbling, now up and now down, like a cart in a corn-field; so the baskets rolled all over me; I thought

they would have squeezed the life out of me, and I could not get out from among them. So there I pulled and hollaed, till I was tired of it, or fell asleep; but no good came of it. I tell you what, goody, I would have taken a thumping for a drink of water! but there was no coming at it. I bawled out, "Water! water!" and "Fire! fire!" but it was no good; nobody heard me; and it set me to crying, to think what a hard time I had of it. Well, I reckon!—I was scraping about among the baskets, and some gave way, they were so rotten. I scraped among the willow twigs, and got my hand among the straw, without so much as thinking what I was about, when, all of a sudden, I found I had hold of a glass bottle. "Oho!" said I; it was a great long-necked thing, with wax over the cork. I did not mind that; I knocked the neck off against the basket, and, good dickens! such a fizzing and spluttering as it made! It foamed all over my face, and some fell on my lips, and it tasted good, like cider—you may be sure I drained it.' 'It was wine!' cried Elsie. 'I reckon,' said the juvenal; 'and I reckon it made my head sing, too!' he exclaimed, smacking his lips over the grateful recollection; 'such stuff as that I never tasted before. It made me feel good,—all comical, and merry, and ticklish-like,—I don't know how, but all as if I was rolling up hill and down hill,—huzzy-buzzy, sleek, and grand! Then I seemed as if I was dreaming, but such merry dreams, and talking, and roaring, and laughing; and then some of them opened the traps, and dragged me out; and then I had a tussle with some of them, for I felt big enough to fight them all; and then somehow I fell fast asleep.'

"When I came to, the captain said I was drunk, and he beat me: it was worse than the grammar-man. First, he thumped me for stealing into the ship, then for putting him to a bother, and then for drinking his cider, or champagne, as he called it.' 'He beat you, the villain!' cried Elsie; 'and you the son of Thomas Gilbert!' 'He did,' said the boy, with edifying coolness; 'he treated me like a dog, and he thumped me every day. I suppose the grammar-man could not have been harder on me than the captain of that big ship—they called her the Prince of Whales, for, you must know, a whale is a very big fish; but I could never get a peep at one. Goody! I never was so mauled in my life! If I crawled about the quarter-deck, as they call it, (because that's a place where the ship-boys never get any quarter,) why the captain cuffed me off; and it was pretty much the same with the mates, for they cuffed too, and every now and then, some one or other beat me with a

rope's end, because I would not go up the ropes, or do any thing else to make myself useful. I never did believe a Christian man's son could be treated so! but that's the way they treat boys on board a ship, only that the regular ship-boys were not handled so hard. They all beat me, captain, sailors, and all; the cook boxed my ears when I went to the caboose;—and if I hid on the forecastle, as they call it, the sailors run me up a rope and plumped me into the sea; and even the ship-boys tried their hands at me, but I reckon *they* got as much as they gave. They all beat me but Jackey Jones, an old fellow that had but one eye; and if it had not been for him, I believe they would have killed, or starved, or drowned me among them. One night he was washed overboard: and after that I was beat worse than ever. It was a great storm, goody; I reckon you don't know what a storm is, ashore, even when the trees are snapping; I tell you what, the sea was boiling up, just like a big pot, and the ship danced about just like an apple-dumpling; all the difference was, the water was not hot. They were all big cowards, for all they had been so big with me; and down they went on their knees, crying and praying, like methodist preachers. The captain was white all over the mouth, the chief mate got drunk, and Big George, a sailor that used to be hard on me, came to ask my pardon for treating me so badly. I told him, we should have a reckoning about that some other time; and that night he was washed overboard, along with Jackey Jones, and we saw them no more. I tell you what, goody! it was the happiest time I had aboard that ship; for I supposed it would sink, and drown 'em all; which was a great satisfaction for me to think on. However, it cleared up again next day; and if we had not soon reached Philadelphia, I don't know what would have become of me; for they were all worse than ever, especially the captain.' 'And that wretch,' cried Elsie; 'did no one punish him for his cruel and barbarous oppression of a poor, friendless boy?' 'You shall hear,' replied the urchin, with a grin that might have adorned the visage of an Indian coming out of battle, with a sack full of scalps; 'he was for fastening me up when we came to the wharf at Philadelphia, to see his merchant, and learn what was to be done with me. But I sneaked away, when he was gone, and hid among some barrels, till he came back. Then I watched him come out of the ship again, and ran to a corner, where there was a bundle of green hoop-poles, at a cooper's shop. Well, goody, I took one of the hoop-poles; and when he passed by, down it went, and down went the captain, too, like a butchered ox, with a great yell like a school-boy, that brought the people up. However, I gave him two

more, for as long as I had time; and then I had to scurry for it.' 'Good heavens!' cried Elsie, 'perhaps you killed him!' 'Well, if I didn't, I'm sure it was all the fault of the people that ran up so fast, so that I had not time. As for the rest of them, if I ever catch any of them up here among the hills, you may reckon what will come of it.' And as he spoke, he raised his eyes to an old musket, hanging on the wall, and nodded his head significantly.

"This," said the merry narrator, "is the very story I had from Elsie's lips, only that she spoiled it in telling; and I leave you to judge whether there was ever a more exquisite young savage in the whole world, than that same Oran Gilbert."

"Never, truly," said Miss Falconer, upon whom perhaps the unusual, yet natural, vivacity of her friend, had produced a still more pleasant impression than the story itself. "This Oran must have been the Paladin, the Orlando, the very Tom Thumb, of Hawk-Hollow;

'Though small his body,
Yet was his soul like any mountain big;'

and verily, if the other Hawks, callow or full fledged, were of the same colour and quality, you have begun the most diverting story in all your budget. Pr'ythee go on; there is a magic in the whole affair; for, while you speak it, it makes the teller herself again. Methinks you are now the same merry Kate I knew a year ago,—the bright Kate, no longer 'kerchieft in a cloud,' as Milton says,—the gay Kate, the madcap Kate, the Brandywine Kate"——

"Not a word about Brandywine, if you will have me play the fool longer," said Miss Loring, hurriedly. "And after all, there is nothing more to tell—that is, nothing more funny; and, after all, too, there was nothing funny in the sufferings of that poor, headstrong, vindictive boy; absurdity enough, I grant you, there was; but it was my wicked and hard heart that made me travesty an anecdote that poor Elsie considered serious enough."

She then went on to speak of the return of the boy's father, the building of the manor-house, the second marriage of Mr. Gilbert, and the exploits of his children. The peculiar temper of Oran soon determined the course of his life. While yet a boy of sixteen, he had extended his rambles over the mountains into the Wyoming valley, then occupied by two clans of Shawnee and Delaware Indians, who were often at feud together. "Among these barbarians," said the lady, "the young white Indian, for such he must be esteemed, fought his first battle, and took his first scalp. It was in the Grasshopper War"——

"The what?" cried Miss Falconer.

"Why, Hal, the Grasshopper War *I* call it," said Catherine, "out of tenderness to our sex; but all others call it the Squaw War. It was waged between those rival tribes I spoke of. The women of the two clans met together in a strawberry field, where they gathered fruit in company, very pacifically I doubt not, except a little scolding at one another. The children employed themselves, in the meanwhile, chasing grasshoppers; when, unfortunately, two boys belonging to different tribes pounced together upon a magnificent insect, that was perhaps the emperor of the field, and

contended for the possession of the prize. Up ran the mother of the Delaware, and boxed the young Shawnee's ears; the Shawnee parent ran to avenge her child; and others immediately taking part, in a few moments the whole field was in an uproar: such scratching, scolding, and pulling of caps, were perhaps never heard of before. Out ran the men from their villages to help their wives, and to it they went pell-mell; and the war, thus begun, did not end until hundreds had been slain on both sides, and the Shawnees entirely driven from the valley. The less we say of this war, the better; for I heard it instanced as one small proof out of a thousand better, that men never fall by the ears, without the women being at the bottom of the contention. The Delawares, with whom Oran fought, made much of him, gave him a name which signifies the Boy Warrior, and formally adopted him into their tribe. As his brothers grew up around him, he enticed them one by one into the woods, and made them as wild as himself; and by and by, when those dreadful Indian wars, that followed after the defeat of General Braddock, extended over the whole western country, and even east of the Susquehanna, he acquired a singular reputation as a bold and successful scalp-hunter. I don't know what else to call him; he was not a soldier, for he never could be prevailed upon to go out with any body of soldiers, under the command of regular governmental officers. He went with his brothers, and seldom allowed even a neighbour to join his little party, though this was an object with all who knew him; for none of the Gilberts having ever been seriously wounded in any of their mad enterprises, the people had a superstitious belief that good luck and safety went with them.

"In the meanwhile, Mr. Gilbert had taken a second wife; and being wealthy, he was able to choose one of gentler manners and character than her predecessor, who, they say, was a fierce, masculine woman, though devotedly attached to her children. It is said, he married her in the hope that her kindness and gentleness might wean his boys from their barbarous career; but the expedient only served to confirm them in their habits. They conceived a violent dislike to their step-mother; and the only bond of union between them—I should say, perhaps, the only moderator and protector of the poor woman, was the girl, Jessie, whom they all adored, rough as they were, and who—while she lived, at least—caused them to treat the unfortunate lady with some show of respect. I may say, since you are in the

poetical mood, and have already quoted one of Milton's clouds to me, that Jessie was, betwixt the timidity of the step-mother and the rudeness of her brothers,

'A shelter, and a kind of shading, cool,
Interposition, as a summer's cloud;'—

(I found that out myself!)—and, according to Elsie, she was one of the sweetest and warmest-hearted creatures in the world. They had a rich relation, an aunt, in the West Indies, who desired to adopt the maiden; but Mr. Gilbert refused to part with her. In her place he sent his youngest boy, an infant,—the child, and only one, of his second wife; I think Elsie told me, she died in giving it birth; but I am not certain as to that. This part of the story I never could understand perfectly; for whenever the poor widow speaks of it, she becomes dreadfully agitated. But certainly, it was most unhappy for all, that he did not send the girl."

"And why,—why unhappy, Catherine?" demanded Miss Falconer, losing somewhat of her serene self-possession, as she heard her friend's voice falter over the words.

"According to Elsie," muttered Miss Loring, with downcast eyes, "the misfortunes which crushed and ruined the whole family, might have been thus averted.—But, Harriet," she continued, "let us speak of these things to-morrow. What follows is dark, gloomy, dreadful; and I cannot speak it without giving you offence."

"I pledge you pardon and immunity beforehand," said Miss Falconer. "The ice is broken, and now I must dare the flood, though it be of gall and poison. Dreadful, indeed? What can be more dreadful than the state of a daughter, blindfold at the side of a parent whom all men are shooting at with the arrows of malice, which she hears hissing around her, yet knows not how to arrest? Speak then, Catherine, for you have placed me on a rack: nothing can be more painful than suspicion."

"Promise not to be offended with me then, dear Harriet," said Miss Loring, taking her hand, and looking deprecatingly into her face; "and do not think"—here her voice quivered a little, and her eyes again fell to the

ground,—"do not think, because I tell you these things as I have heard them, that I necessarily believe them—or, at least, *all* of them."

"Certainly, my love," said the other, with a slight tinge of asperity. "As you will, one day, have a duty, like myself, imposed upon you, to repel all calumnies against my father, the sooner you become incredulous, the better."

Catherine smiled faintly, then blushed, and, as had happened before, at a similar allusion, the glow of embarrassment was again followed by paleness.

"I presume," she said, after a moment's pause, "that the Colonel has often spoken to you of the dreadful peril at the Moravian settlements, from which he was rescued by Oran Gilbert and his two brothers?"

"Never," replied Harriet, in a sort of dismay. "My father rescued from peril! and by the Hawks of Hawk-Hollow? Why, here is a drama opening upon us indeed! But it is not true, Kate!"

"This, Harriet," replied the other, "is a circumstance well known in the neighbourhood; and I wonder you have never heard it before."

"On all subjects connected with the family of the Gilberts," said Miss Falconer, "my father is reserved and silent—at least to me; and, Catherine, I confess with shame, this very circumstance has often filled my mind with the most painful misgivings. I know nothing about the Moravian settlements, either. You must therefore tell your story to ignorance itself. I know that my father was, in his youth, an officer in the colonial war establishment, and that he did duty somewhere on the frontiers, and came off with scars; but that is all. Speak, therefore, without reserve."

"The country west of yonder blue cliffs, (how sweetly they peep through the hollow of that hill, and over the yellow tree-tops!) has always been the theatre of the most bloody contentions," said Catherine. "That same Wyoming, of which I have said so much, has never been entirely at peace since that redoubtable war of the grasshopper set its inhabitants by the ears. It was settled by certain Yankees from Connecticut, who claimed, and claim

yet, to erect a jurisdiction independent of Pennsylvania, and to this day the partisans of the two powers are quarrelling rancorously with one another, often shedding blood. When the inhabitants are driven away by enemies, they are obliged to cross a great swamp, to reach the Delaware. This has been crossed so often, and so many miserable wounded, and starving, and fainting wretches, have fallen down in the retreat and perished among its bogs, that it is yet called the Shades of Death. The wars that produced such suffering have commonly been waged in another county; but they have sometimes reached our own—(*Our own!* You see, I am making myself at home here!) The fall and winter of the year when Braddock was defeated in the extreme south-western frontier, were marked by many bloody incursions of the Indians, even in this county; and you may judge how terrible was their ferocity, when you hear that their enmity fell as heavily upon their friends as their foes. The poor Moravians, who, with a holy and unworldly zeal, had devoted their lives to the purpose of instructing and reclaiming them from barbarism, were among the first of their victims. The outer settlement of these poor missionaries was beyond the mountain, on one of the springs of the Lechaw, or Lehigh, as we now call it. It was beset, late in November, by the savages, and destroyed, together with many of the brothers. The next settlement was that called Gnadenhutten, where was much valuable property, and great stores of grain; and when the Moravians fled even from this in affright, the colonial government thought it of so much importance, that they directed it to be immediately garrisoned by a company of rangers. This was done; a fort was constructed in the neighbourhood, across the river, which was made the head-quarters of the company; while a detachment occupied the Moravian village. This detachment was commanded by your father, then holding the rank of lieutenant. And now, Harriet, I must tell you, that your father had enemies in these wild lands, even at that early day. I will not repeat what I have heard said, as the causes of enmity; for I doubt not they are mere scandals. I mention them only because some, I am told, yet declare that the barbarous attempt on his life was made by disguised white men, and not by Indians.

"Although from the time of the massacre of the over-hill Moravians, in November, until the end of the year, Indians were ever prowling in the woods, and occasionally carrying the tomahawk and flames to some lonely settlement, yet it was supposed that the presence of the soldiers at

Gnadenhutten and the fort, would prevent their making any serious attempts this side the mountain. This induced a false and fatal security; and when the Indians did appear, the detachment and village of Gnadenhutten were completely surprised. It was upon New-year's day, and all the white men were amusing themselves on the frozen river, without arms, and of course they fell an easy prey to the savage assailants. Many were butchered, the village was fired, your father captured in the vain attempt to escape, and carried off to the woods.

"During all this scene of terror," continued the Captain's daughter, "there were no scalp-hunters among the white men so busy, bold, and famous, as the three Gilberts. Elsie Bell says, that Oran was then only nineteen, and the youngest two years short of that; but, it seems, men grow old fast in the woods, when Indians are nigh—(it is well the *women* don't.) They were upon an excursion, fighting for themselves, at the very time of this calamity; and it was their fate to encounter the party that bore your father away a captive. It seems that the savages, after completing the destruction of the village, retreated in small bands to distract and avoid pursuit, for there were many companies of armed men in the county, ready to march at a moment's warning. Some took charge of the prisoners, and others were to strike at small and retired settlements. Your father, who had been severely, but not desperately wounded, was left in charge of one little division, six in number, and was carried off by a path so remote from those followed by others, that, I suppose, it was this circumstance which caused evil-minded persons to affirm he was captured by private enemies and white men. Their course was at least very singular, for it carried them rather to the north-east, along the foot of the mountain, than to the north and west. They dragged their prisoner on till after midnight, which has been mentioned as an unusual circumstance, at least with Indians; and, at dawn, they tied him to a tree, and piled around him dead boughs and pine-knots, intending, as he now saw, to torture him alive."

The narrator here paused, and looked upon her friend, who, after a slight shudder, very composedly said,

"Poor pa! he must have been horribly frightened! I should like to know how he looked, the moment he made the discovery!"

Catherine heard her with unconcealed amazement, but appreciated her philosophy, when she added, with an affected laugh,

"Why, my dear Kate, as, after all, he was *not* tortured, it would be but folly to fall into hysterics. I never grieve over misfortunes that were never happening. But come; how got he out of this doleful dilemma? You said something about the three Hawks—Ah! you spoiled the dramatic point of the story, by enabling me to forestall a discovery. And so the three Hawks discovered the six buzzards, and fell upon them, and took their lambkin from them? They are no true fishing-hawks, after all; for it is the part of these ravagers, not so much to rob, as to be robbed. They should have been called Eagles, for it is these birds that take such little liberties with the feathered Isaac Waltons, as I have once or twice seen with my own eyes. But these were heroical kites, I must acknowledge."

"They were, certainly," said Miss Loring, not well pleased with the levity of her kinswoman; "and, methinks, you should do them the justice to consider that it was no child's play for three men—three boys we may call them, to assail six stout Indians, vanquish them, and rescue a poor doomed prisoner out of their hands. If you will not do justice to their courage, acknowledge at least, the dreadful cost at which they exercised their humanity. Hyland Gilbert, the second son, the best beloved of all, as Elsie assured me, was shot dead, while he was cutting your father loose from the tree."——

"Good heavens!" cried Miss Falconer, with an emotion, that seemed, however, to be rather horror than grief, "was this so indeed? Did one of them fall?"

"He did," replied Catherine, "and his poor brothers buried him where he fell. According to Elsie's superstitious belief, they were punished by the genius of their fate, for exercising their humanity on an undeserving object. You know *she*, at least, holds on to her angry prejudices. She said, that from that moment, which was the first unlucky one to them, the Gilberts never more prospered in their undertakings; every thing that came after was mischance and disaster; death followed death, sorrow succeeded sorrow, and now not one remains alive of the whole family, unless it may be the youngest son, who was sent to the Islands in his infancy, and of whom Elsie

knows nothing whatever, although they have a report in the village that he also is dead."

"I am much obliged to Elsie," said Miss Falconer, sullenly; "after eating my father's bread, she might have the grace to abate her malevolence a little."

"Alas, Harriet," said Miss Loring, "do not call it malevolence; but the prejudice, the absurd and unjust prejudice of weak, dreamy old age, if you will. And you know, that she is ignorant from whom I derived the power to relieve her wants. I did but hint once that your father would befriend her, when she exclaimed, not in the heat of frenzy, but with a cold, iron-like determination, that she would gnaw the flints on the way-side for food, rather than receive a morsel of bread from the hands of Colonel Falconer. Indeed, your father himself directed me to conceal his agency in the benefaction."

"Peace to the silly old woman!" said Harriet, "and let us speak of her no more. Resume your story: I see, by your looks, that the worst is yet to come. But fear not: I am not so much shocked as I was, since the thing comes from that bitter old bundle of—oh, prejudice, my dear. Well, the two survivors saved my father's life—what then?"

"Then," said Catherine, "they bore him on a litter of boughs to their father's house; for, before they fled, the murderers had assailed him with their axes, and left him almost dying. The journey was very laborious; for to avoid the war-parties, now swarming through the country, they were obliged to steal along by circuitous paths,—and it was several days before they could procure assistance. They got him safe, however, to their father's house, and then played the good Samaritan with him. If you would like, I will show you the room where he lay, while recovering,—it is the chamber over the armoury, as you call it,—that is, my father's study, where he takes his afternoon's nap. Elsie told me there was a pane of glass on which he had cut his name with a diamond ring; but the sashes were changed, before she told me this, and I know not what has become of them. But, if you like, we will inquire about them.—He did not recover entirely before the autumn, and then he left the valley. I am told that there is an oak-tree on the lawn, at which he used to shoot pistols."——

"Catherine!" said Miss Falconer, with a piercing look, "you flutter about the subject, like a bird over the jaws of a serpent, unable to retreat and yet afraid to descend. Is there any thing so horrible to come?"

"There is indeed!" said Catherine, trembling; "but it is not true, cousin,—you must not believe it is true! It is about Jessie—they say she was very good and handsome—a kind nurse, simple-hearted, of an affectionate disposition, and"——

"Hold! hold!" cried Miss Falconer, vehemently, starting to her feet, with a pale face, and lips ashy and trembling, "this would be to make out my father a fiend! Saints of heaven! this is too much! Come,—let us proceed."

And thus muttering out her oppressive emotion, she darted down the stream, followed hastily by her friend.

Tall trees still overarched the rivulet; but its bank became smoother as they advanced. A few rods below, the channel was again contracted, but not by impending crags. A huge sycamore, ancient and thunder-scarred, but still flourishing, had been tumbled over the stream by some forgotten tempest; but so tightly were its roots twisted in the rocky soil of the one bank, and so tenacious was the hold of its gnarled and elbowed boughs upon the sward of the other, that it maintained its place despite the floods, which, it was evident, often washed over it, and thus afforded a bridge, rustic enough, but secure, though by no means easy of passage.

Upon this Harriet, still perturbed and driven onward by painful emotion, was about to place her foot, when she was restrained by the trembling grasp of her companion.

"What means the child?" she exclaimed, with a feverish accent: "there are no savages here."

"But," said Catherine, with a faint voice, "it was over there, by the rock, they dug the poor girl's grave!"

Miss Falconer recoiled for a moment, and then saying, with a firm voice, "It matters not—let us visit it," she sprang upon the bridge, followed by

Catherine, and made her way across. About thirty paces below, the stream darted over a rock, making a cascade ten or twelve feet high; and it was the roar of this fall, borne downwards by the breeze, which had attracted the painter's curiosity, as he paused for a moment on the road side. It possessed no very striking beauty, nor was the body of water that leaped over the rock of any extraordinary magnitude; yet it had a violent and even impressive look, and the waters hurrying impetuously towards it from above, shot under the sycamore with an appearance of fury that might have tried the nerves of any over-timid person, crossing by so precarious a bridge.

CHAPTER VII.

Dull grave—thou spoil'st the dance of youthful blood,
Strik'st out the dimple from the cheek of mirth,
And every smirking feature from the face,
Branding our laughter with the name of madness.
Where are the jesters now?——

—————Ah! sullen now,
And dumb as the green turf that covers them.

BLAIR—*The Grave.*

The spot which the maidens now reached, after crossing the rivulet, was wild and gloomy, yet exceedingly romantic. A little ascent led them up to a sort of platform, or shelf, of earth, the highest portion of the table-land, from which the torrent leaped downwards, making its way, in a series of foaming rapids, to the parent river. It therefore overlooked the sweeping hillocks and rustling forests below, and commanded a prospect of the river and the southern portion of the valley, both extensive and beautiful; and, indeed, a more charming nook could not have been imagined for one, who, though preferring personally to be surrounded by solitude, yet loved to send back his spirit to the world, and survey it from that distance which lends it

the sweetest enchantment. On the summit of the platform lay two huge masses of rock, that approached each other in one place so nigh as scarce to permit a passage between them; towards the rivulet, however, the intervening space was wider, and covered with a grassy turf; and a sort of wall, composed of smaller fragments, ran from the one crag to the other, yet so rudely, that it was difficult to say whether the irregular barrier had been piled up by the hands of nature or man. Besides a majestic growth of trees behind and around the rocks, there was one tall beech flourishing within the enclosure; and from its roots there gushed a cool fountain, that went dripping and leaking through green mosses, until it yielded its meager tribute to the streamlet. Both the crags were overgrown with lichens and ferns; and under the larger one, which, in the afternoon, cast its shadow over the whole nook, there flourished a luxuriant array of arums, mandrakes, violets, and other plants that delight in cool and moist situations. On the face, and at the foot, of the eastern rock, where the sunshine lingered longer, were dusky columbines, rock-daisies, and other plants, now in bloom, and, in the summer, their places would have been supplied by the aster and the golden-rod; and at the foot of the rock, among a heap of brambles, that seemed to have almost choked it, there grew a rose-bush, the only remarkable thing present, being obviously of an exotic species. It bore a single flower, visible among the green leaves and white blossoms of the blackberry, and it immediately attracted the notice of the maidens.

"Elsie told me," whispered Catherine, with a voice of fear, "that the poor old father planted a rose-bush on the grave,—it is strange it should live so long.—She said there was a grave-stone too—ah! there it is!—Let us go away."

As Harriet, bolder than her friend, or affecting to be so, reached forward, to remove the brier from the more lovely plant, in hopes that the rude and thorny veil might conceal other flowers, it yielded to her grasp, and revealed a hollow or sunken place in the ground, at one extremity of which was a rude stone, entirely shapeless and undressed, yet so placed as to mark undeniably the couch of some human clod of the valley. No name, letter, or device of any kind,—no inscription to record the virtues of the dead, no legend to perpetuate the grief of the living,—appeared on the rude

monument; and, indeed, however expressive the shape and appearance of the hollow place to those already aware that a grave had been dug in this unsanctified nook, it is scarce probable that a stranger, stumbling upon it by chance, could have believed that in that coarse and dishonoured fragment, his foot pressed upon a funeral stone. It was a singular grave—it was a singular cemetery; and the maidens regarded the brambled pit and the solitary flower with awe, the one because her spirit was especially susceptible of impressions from melancholy objects, and the other because the legend of her companion had invested the place with an interest personal, it might be said, to herself.

How little reflection is expended upon,—yet how much is called for, by the grave,—by the lowliest hillock that is piled over the icy bosom, by the grassiest hollow that has sunk with the mouldering bones of a fellow creature! And in this narrow haven rots the bark that has ploughed the surges of the great vital ocean! in this little den, that the thistle can overshadow in a day's growth, and the molewarp undermine in an hour of labour, is crushed the spirit that could enthral a world, and dare even a contest with destiny! How little it speaks for the value of the existence, which man endures so many evils to prolong; how much it reduces the significance of both the pomp and wretchedness of being, reducing all its vicissitudes into the indistinguishable identity which infinite distance gives to the stars,—a point without parallax, a speck, an atom! Such is life,—the gasp of a child that inspires the air of existence but once,—a single breath breathed from eternity. But the destiny that comes behind us,—oblivion! It is not enough that we moralize upon the equality of the sepulchre; that the rich man, whose soul is in the ostentation of a marble palace, and his heart in the splendour of the feast, should consider how small a pit must content him, or that the proud, who boast their 'pre-eminence above the beasts,' should know that the shaggy carcass and the lawn-shrouded corse must fatten the earth together. We should teach our vanity the lesson of humiliation that is afforded by the grave; neglecting the mighty mausoleums of those marvellous spirits which fame has rendered immortal, we should turn to the nameless tombs of the million, and in their deserted obscurity, discover the feeble hold which we ourselves must have upon earth and the memory of men. Friendship forgets what the devouring earth has claimed; and even enmity ceases at last to remember the resting place of

a foe. Love ourselves as we may, devote our affections to others as we can, yet must our memory perish with us in the grave; and all the immortality we leave to be cherished among friends, is expressed in the distich of a poet, whom the anticipation of enduring renown could not blind to the transitoriness of real remembrance:

Poor Pope will grieve a month, and Gay
A week, and Arbuthnot a day.¹

¹ SWIFT—*On the Death of Dr. Swift.*

But there were other thoughts necessarily associated, and other feelings excited by this lonely sepulchre; and while Miss Falconer preserved a moody and painful silence upon its brink, Catherine bent over it, scarce conscious that she bedewed the rose-bush with a tear, or that her own shadow had descended, as it were, into the pit, with an ominous readiness.

It was a delightful evening; the air was full of balmy freshness, the landscape resplendently verdant, and the sky cloudless, save in the west, where the sun was sinking among curtains of gold and pillars of flame; and the solitude and quiet of the whole scene, broken by no sounds, except the ceaseless turmoil of the water-fall, and the plaintive scream of the fishing-eagles, which had deserted their gray perch, to bathe in the pure floods of sunset, that beautified the upper air,—the solitude, quiet, and beauty of every thing around and nigh, were additional arguments for silence.

But silence, long continued, was not consonant to the restless and impatient temper of Miss Falconer; and notwithstanding the indignant incredulity with which she had interrupted her friend's narrative, the same curiosity which compelled the commencement of it, still thirsted for the conclusion. The presence of the dead, however, in so wild, so forlorn, so unblest a spot, where, as it would seem, the shame of proud but humbled hearts had dug the neglected grave, worked powerfully on her feelings; and it was with a hesitating and quivering, though an abrupt voice, that she demanded, after gazing for a long time on the grave,

"Did others,—did any beside this bitter-tongued woman, accuse my father of this thing?"

"I know not," replied Catherine, with accents still more unsteady; "all that I have gathered was from Elsie; and when she speaks of these things, as I mentioned before, she becomes fearfully agitated, so that I have sometimes thought her wits quite unsettled. She never pretended to tell me the whole story; nor indeed would I have been disposed to ask or listen, knowing it would be improper to do so. All these things have come in broken hints and exclamations. What others in the neighbourhood may say or think, I know not, never encouraging any to speak to me on the subject. The step-mother soon followed the daughter,—Elsie says, heart-broken; you may see her tomb in the village church-yard. The old father, too, became another man, gloomy, solitary, and indifferent to his friends, so that the neighbours ceased to visit him. His sons no longer hunted with the young men of the country, but went, as in their war-expeditions, alone; and when others thrust themselves into their company, they quarrelled with them, so that they began to be universally feared and detested. To crown all, as soon as the Revolution burst out, they went over to the enemy; and being distributed among the wild and murderous bands of savages forming on the north-western frontiers, they soon obtained a dreadful notoriety for their deeds of daring and cruelty. Of course, this remarkable defection of the sons caused the unlucky father to be suspected and watched. He was accused, at last, of aiding and abetting them in their treasonable practices; and soon, either from timidity or a consciousness of guilt, he fled, seeking refuge within the royal lines. This was sufficient for his ruin; for after the usual legal preliminaries, he was formally outlawed, as his sons had been before, and his property confiscated. He died soon afterward, either at New York, or in Jamaica, where he had gone to seek his youngest son—the lad he had sent away as a substitute for the daughter."

"And this son?" demanded Miss Falconer; "did you not say that he was dead?"

"Of him," said Catherine, "Elsie knows nothing; but if we can receive a belief that prevails in the village on the subject, it would seem as if the vials of wrath had been poured to the uttermost on the poor devoted family. They say, that the young man, just raised to wealth and distinction by the death of his munificent kinswoman, was one of the many victims to that dreadful

tornado which ravaged the island of Jamaica two years ago. But I never heard how this intelligence was obtained."

"And the other sons? the rest of this brood of traitors!" demanded Miss Falconer, who strove to merge the unpleasant feelings that had possession of her bosom, in patriotic detestation of the unfortunate family.

"They met the fate they must have anticipated," said the Captain's daughter. "They perished, one by one, in different bloody conflicts; one fell at Wyoming, another at Tioga Point, where the combined forces of savages and refugees were routed by General Sullivan; Oran himself, with a fourth brother, was killed at the battle of Johnstown, near the Mohawk river, where another refugee leader, Walter Butler, not less blood-thirsty and famous, met a similar fate. Their death was terrible; they cried for quarter, being wounded and helpless; but the victors bade them 'Remember Wyoming, and Cherry-Valley,' two prominent objects of their cruelty, and killed them without mercy. Another, I have heard, was somewhere hanged as a spy; and these, with Hyland, killed as I mentioned before, and the youngest, deceased, if indeed he be deceased, in Jamaica, made up the whole seven sons, all of whom therefore died violent deaths. The eighth child,—the poor daughter,—undoubtedly sleeps under this rock; and there are none left to mourn her. The destruction of the family was dreadful and complete."

CHAPTER VIII.

Run! run! run!

Quickly for a surgeon!

Call watch, constable! raise the hue and cry!

What's to be done?

Why the devil don't you stir, John?

This way, that way, every body fly!

DON GIOVANNI.

Thus ended the sketch of a story, imperfect, perhaps tedious and unsatisfactory, but still a necessary preliminary to the series of events that completes the tradition. A mere womanly curiosity was perhaps at the bottom of the nobler feeling with which Miss Falconer sought to excuse to herself the impropriety of urging the relation. From the first to the last, it was meted out to her reluctantly; and nothing but the command she had long since obtained over a character less firm and decided than her own, could have persuaded the Captain's daughter to breathe a syllable of it into ears, which, she could not but feel, ought not to be opened to it. Miss Falconer had, moreover, overrated her powers of scepticism; she had provoked the story, as men commonly provoke an argument,—that is, with a resolution not to be convinced; but like the logician, in many instances, when the discussion is over, her incredulity was sorely, though secretly, shaken, and nothing but her pride and strength of character checked the humiliating avowal. Some circumstances a delicate consideration for the feelings of her friend, and an unconquerable repugnance to speak more on the subject than could not be avoided, had prevented the Captain's daughter from relating. These would have thrown a still darker stain upon the character of Colonel Falconer. There was enough, however, said, to force one disagreeable conviction upon Harriet's mind; and this was, that, if her parent were even as guiltless of ingratitude and wrong as her fondest wishes would have him, calumny had, at least in one secluded corner of the world, sealed him with the opprobrium of a villain. It was a sore addition also to her discomfort, that her penetrating mind discovered how deeply her kinswoman was affected by the hateful history: if she doubted, she did not doubt strongly. Vexed, humbled, displeased with herself and with Catherine, she rose from the rocky shelf, on which both had seated themselves when Catherine resumed the story, and prepared to leave the scene, equally mournful and unpleasant, when an incident occurred, which at once gave a new turn to her feelings.

The Captain's daughter had observed the look of dissatisfaction, and anticipated the movement, by rising herself, to lead the way to the bridge. As she started up hastily, her hat, which she had loosened from her forehead, to enjoy the evening breeze, now puffing among the flowers, fell

from her head, and her beautiful countenance and golden ringlets were fully exposed. She raised her hands, naturally enough, to catch the falling hat, and thus assumed an attitude, of which she was herself unconscious, but which, to one spectator at least, had a character apparently menacing and forbidding. This spectator was no less a person than the young painter, who had rambled up the stream, and was now making his way across the sycamore, to obtain a view of the cascade, entirely ignorant of the presence of such visitors; for while they maintained their seats, their persons were concealed behind the low wall, and their voices drowned by the murmur of the water-fall.

A sudden exclamation, loud enough to be heard over this lulling din, drew Catherine's attention to the bridge; and there, to her extreme surprise, she beheld the young stranger struggling among the branches, as if he had lost his footing, while all the time, his eyes, instead of being employed in the more needful duty of looking to himself, were fixed upon her with an air of the most unaccountable wonder and alarm. The next instant, she beheld him, to her own infinite horror, fall from the tree, just as Harriet, starting up after her friend, had also caught sight of the strange spectacle. Both beheld the unlucky youth drop through the boughs, and both at once anticipated the most dreadful termination to such a misadventure; for a pitch over the cascade among the savage rocks below, could scarcely be less than fatal. The very instant she saw that the young man had lost his footing, Catherine uttered a loud scream, and then, driven onwards by an irresistible impulse, darted towards the river, to render him what aid she could. As for Miss Falconer, the shock had deprived her of her self-possession, and her tongue clove to her mouth with terror. She neither screamed nor rushed forwards to give aid, until her lethargy was dispelled by a distant voice, that suddenly echoed the scream of Catherine:

"Hark ye, Kate, you jade! hark ye, Kate, my dear Kate! my beloved Kate! what's the matter? I'm coming! I'll murder the villain! I'm coming, Kate!"

There was no mistaking the tones of Captain Loring, even altered as they were by anxiety and vociferation; and Miss Falconer recognising them, screamed out, "Quick, uncle, quick! for heaven's sake, quick!" and ran to the side of her friend.

The torrent, leaping along like a mill-race for the little distance that intervened betwixt the treacherous bridge and the fall, had immediately swept the young man from his feet; and as Catherine bounded to the verge, flinging out, with as much daring as presence of mind, the scarf of Harriet, which she had instinctively snatched up, in hope that he might seize it, she saw him swept by her like a feather in a whirlwind, and instantly hurried over the falls. The spectacle was really terrific; and as Miss Falconer caught sight of the dreary figure—the outstretched arm and the despairing countenance, revealed for one moment, as some rocky obstruction on the very brink of the cascade lifted the body half from the flood, and then instantly plunged it out of view—she lost what little courage remained, and was no longer capable of yielding the slightest assistance. If such was her overpowering terror, it might have been supposed that the Captain's daughter, who, whatever the vivacity and quickness of her mind, possessed little of the boldness of spirit that characterized her friend, would have been reduced to a state of imbecility still more benumbing and helpless. But this youthful girl concealed within the cells of a heart all of feeble flesh, a principle of feeling that could upon occasions, though she knew it not herself, nerve the throbbing organ into steel; and, at such times, if her brain was confounded, impulse governed her actions with an influence more useful, because more instant of operation.

Dreadful, therefore, as was the spectacle of the youth dashed down the abyss under her eyes, and almost in reach of her arm, she did not pause, like Harriet, to scream after the Captain, who was undoubtedly drawing nigh, and at an unusual pace; but leaving this to be done by her companion, she ran down the rocks that led to the base of the fall, and the next moment Harriet beheld her rush boldly into the water. The instant she reached the basin at the foot of the cascade, which was broken by rocks, black and slippery from the eternal spray, she caught sight of the body—for such it seemed—rolling in the flood where it boiled over a ridgy mole in a sheet of foam. It was scarce two paces from the bank, and though the torrent gushed over the rock with great impetuosity, it was shallow, at least in the nearer portion; and, unless too rash and daring, there was little danger she could be herself swept over the ledge among the deep and dangerous eddies below. She stepped therefore upon the rock as far as she durst, and stretching out her hand, succeeded in grasping the insensible figure, as it was whirling

over at a deeper place and in a fiercer current. All her strength, however, availed nothing further than to arrest the body where it was; and she must have speedily released her hold, or been swept with it herself from the ledge, when a new auxiliary, attracted by the same cries that had alarmed Captain Loring, came unexpectedly to her assistance, crackling through the bushes, and bounding over the rocks on the opposite side of the pool, which was a wilderness of rock and swamp. No sooner had this personage beheld her situation, than he ran a little lower down, where the stream was again contracted, sprang across from rock to rock, and immediately darted to her side. With one hand he dragged—or, to speak more strictly, he flung her, (for his actions were none of the gentlest,)—out of the water; and with the other, he lifted the unlucky painter from the torrent, and bore him to the bank, saying, as he laid him at the maiden's feet, in a voice none of the mildest in the world,

"Why, here's fine sport for a May-day, and a rough end to a fool's frolic! How many more of you must I fish up?"

By this time the gallant Captain Loring, urged by anxiety for his daughter, (not knowing that the danger concerned another,) into a speed that he had not attempted for twenty-five years, made his appearance at the top of the fall, and seeing her stand shivering with fright over what she esteemed a dead body,—for the painter showed not a single sign of life,—with a stranger of questionable appearance at her side, he burst into a roar of passion, crying, "Hark ye, you vagabond villain! if you touch my girl"—when his rage was put to flight by Miss Falconer suddenly finding tongue, and exclaiming, "He has saved the poor youth's life;—that is, Kate saved him, and this man helped her. I never was more frightened in my life! Let us go down, uncle—I fear the young man is hurt."

Meanwhile, Catherine, whose courage and presence of mind had almost deserted her, so soon as she beheld the young man safe ashore, being roused by the rough accents of the stranger, and the death-like appearance of the youth, exclaimed, in tones of entreaty, for the man had turned away, as if to depart,

"Do not go.—Alas! you came too late! Help us yet a little, or the poor youth will die where he is. Pray, hold up his head—indeed, he is very much hurt!"

"Hurt! To be sure he is," cried the stranger, with infinite coolness, bordering upon a sort of savage contempt, or at least disregard, of the miserable spectacle, "knocked as clean on the head as if a refugee had been at him. So, d'ye hear, my young madam, there's no great need of troubling yourself more about him; and here come enough of your good folk to groan over him. As for me, I have no time for moaning. If you want help, just scream over again; and, I reckon, you'll have the whole road at your elbow."

Catherine had herself performed the office of humanity she had so vainly asked of the stranger; she stooped down, and beckoning to her father and Harriet, who were descending the rocks, to hasten their steps, she raised up the painter's head, and endeavoured, with a faltering hand, to loosen the neckcloth from his throat. Struck by expressions so rude and unfeeling, she looked up for a moment, and for the first time took hasty note of the person and lineaments of her preserver. He was a man of middle age,—perhaps forty or more, with a long shirt or frock of coarse linen thrown over his other garments, and a broad-brimmed, round-crowned, slouching hat, like the favourite *sombrero* of the Spanish islands, which was, however, painted of a fiery red, and varnished, so as to resist the rain. His stature was not considerable, nor was his appearance very muscular, yet he had given proof of no mean strength in the ease with which he dragged the painter and herself from the water. His countenance, without being coarse or ugly, had yet a repulsive character, derived in part from several scars, the marks of violent blows from sabres or other weapons, one of which seemed to have destroyed his right eye, for it was bound round with a handkerchief; but perhaps the forbidden air was rather given by the savage fire that glimmered in the other, and the perpetual frown that contracted his brows. His hair was grizzled, and fell in a long lock over either dark and bony cheek. His mouth was particularly stern, grim, menacing, and even malevolent of character,—or so the Captain's daughter thought. All these things Catherine observed in a moment; yet, however unfavourably impressed by them, she could not refrain from again imploring his assistance, saying, with the most earnest accents,

"If you be a Christian man, do not leave us. We are none here but two feeble women, and an infirm old man; and before we can procure assistance, the young gentleman may perish. We will thank you,—we will reward"—

"Good heavens!" cried Miss Falconer, who had now reached the foot of the rocks, and beheld the pale and bleeding visage that Catherine so falteringly supported, "he is dying!"

"Dying! Who's dying?" echoed the Captain, limping up to the group; "Adzooks; what! my painter? my handsome young dog, that was to paint me my son Tom Loring? my Harman What-d'ye-call-it from Elsie Bell's? Hark ye, Mr. Red-hat, or whatever your name is, I intended to arrest you on suspicion——Adzooks, I believe the young dog's dead! He looks amazingly like my son Tom. Hark ye, Mr. Harmer What-d'ye-call-it, how do you feel? Why, adzooks, he's clean gone!—Hark ye, Mister Red-head, fetch him up the rocks——We'll carry him to the Folly."

While the Captain thus poured forth his mingled wonder and lamentation, a surprising change came over the visage of the stranger. He no sooner understood from the mention of the lodging-place and profession of the young man, that he did not belong to the party before him, and had therefore no greater claim upon their humanity than on his, than he at once dropped his rude and disregarding air, saying, as he released the others from the care of supporting the wounded unfortunate,

"I am neither stock nor stone; but I thought you had idlers enough to bury your own dead. And so the youngster is a stranger to you? a bird of old Elsie's, and none of your own roost? And this young lady was trying to save his life? I beg your pardon, if I have been rough with you, young madam."—He pronounced these words with a tone mild, and almost regretful; then turning to the Captain, he resumed, "Well, Captain Loring, for I believe that's your name,—what shall we do with this broken-headed fool? You see, here's an arm broke, and a gash on the head that might do credit to a tomahawk! How shall we get him to Elsie Bell's? I can carry him, sure enough—but 'tis a long mile off.——And then for a doctor? Here's a shoulder slipped, Captain. The fool! that must tumble down this dog-hole water-fall! Captain, you have servants and horses—you must send for a doctor.—Poor boy, how he groans!"

"Hark ye, Mr. Red-head," said Captain Loring, "we will carry him to the Folly, and cure him like a Christian. Just get him up these rocks here, and I'll give a lift myself; and hark ye, Mr. Red-head"——

"But the doctor, Captain? the doctor?" cried the stranger.

"He is at the house!" cried Catherine, eagerly. "We saw him ride there ourselves!"

"Adzooks! to be sure he is! so Sam told me! What a fool I was to forget it!" exclaimed the Captain. "Come along, up the rocks, double-quick step—march!"

The eyes of the stranger sparkled at the announcement of surgical assistance being so unexpectedly close at hand; for he seemed to have conceived as sudden a liking to the luckless painter as had the Captain himself. He raised him tenderly, and with singular ease, from the ground, and without a moment's delay, clambered up the rocky path that led to the platform. Then striding rapidly to the treacherous bridge, though encumbered by a burthen at once so inconvenient and piteous, he crossed it with a better fate than had distinguished the attempt of the painter, and, almost before the others had reached the deserted grave, was making his way over the shaded path at a pace that soon promised to carry him out of sight.

"Haste, father, dear father!" cried Catherine, to whom the terrible scene of peril and suffering she had witnessed and almost shared, had given a new energy, and, indeed, a new nature; "haste, or the man will miss the path, and the young gentleman die. Or stay—I will climb the hill here, and run to the house for assistance, and Harriet will walk faster, and point out the way."

"The path is broad, the wild fellow pursues it," cried Miss Falconer, giving the veteran the impulse of her own activity. "What could have brought the young man to the brook? What could have brought this wild barbarian? Nay, uncle, what could have brought yourself?"

"Sam told me," muttered Captain Loring; and of a thousand broken and confused expressions that now fell from his lips, all that the maidens could understand, as they hurried him along, was that he had met one of his labourers at the park-gate, who had seen them take refuge in the wood, and was then engaged catching their ponies, which were running wildly about,—that he had instantly left his carriage, and was seeking them along the stream, when he heard the shriek of his daughter. Something else of much

more importance, he seemed labouring to give utterance to; and this being nothing less than the fearful intelligence in relation to Colonel Falconer, which he knew not how to impart, his mind became so confounded betwixt fear of its effect upon the lady, indignation at the outrage, and the thousand other emotions which were distracting his breast, that the more he essayed to speak, the more mysterious became his expressions; so that the whole group had reached the door of the mansion, before a single suspicion of his object had entered the mind of either Miss Falconer or her friend. He mingled the oft-repeated name of her father with that of the dreaded Gilberts, and this again with Tom Loring's, and the painter's; now he burst into a frenzy of apprehension lest Catherine, whose garments were dripping with wet, and, in one or two places, spotted with blood from the wounds of Herman, should have suffered as many hurts as the youth himself, and now he fell into lamentations over the loss of 'that grand picture of Tom Loring dying!' which, it seemed not altogether improbable, death might prevent the poor painter ever attempting.

But if the Captain brought confusion with him to the mansion, it was evident, at the first glance Miss Falconer had of it, that the deranging fiend had been there before him, and still kept possession. The sun was then setting—a multitude of persons, old and young, sallow and sable, were bustling about in the shadows of the porch, some running to and fro with burthens in their hands, others shouting and screaming, or staring about them in speechless wonder; the carriage stood at the door, the ancient charioteer sitting whip in hand, as if expecting orders to start at a moment's warning, while a smart mulatto in livery was engaged strapping a portmanteau behind it. Horses, saddled and bridled, were hitched to trees, or held by servants; dogs were barking; pigeons flying about; and in a word, it seemed as if the inhabitants of the Folly, male and female, human and animal, were one and all preparing, in some ecstasy of confusion, to desert its troubled walls.

"In the name of heaven, uncle! what means all this?" cried Miss Falconer, recognising in the livery-servant a personal attendant of her own father, and in the portmanteau which he was fastening to the carriage, one of the repositories of her own womanly vanities.

Before the Captain could answer a word, the confusion was doubly confounded by the clatter of hoofs, and in an instant two horsemen in military apparel, came thundering up the avenue, as if the lives of a community depended upon their speed.

"My brother Henry, as I live!" cried the lady, starting forward. "Captain, what is the matter? Brother! heavens, brother! what can all this mean?"

At this, one half of the human elements of the chaos lifted up their voices, and groaned aloud, "Oh, the Gilberts! the bloody Gilberts!"

"Sister!" cried the foremost of the young soldiers, flinging himself from his steed, catching Miss Falconer in his arms, and speaking with a manner strangely compounded of horror and merriment,— "they have been at dad again! but don't fall into a fit—there's no murder this time! no, egad, only a few scratches. Don't be alarmed.—Ah, Miss Loring! my dear Miss Catherine!—you look dreadful pale—don't be frightened—beg pardon for coming in such a condition. Heard of it, Harry?—(my friend, Brooks,—Lieutenant Brooks, of the troop)—knew they'd send for you,—bent out of course—deflected, made a *detour*, as we say,—to fetch you. Not a moment to lose—must be in town by sunrise, if horse-flesh can carry us.—How d'ye do, Captain? All ready for marching?"

"Yes, all ready," said the Captain, recovering his tongue. "Don't be afraid, Harriet, my dear—Kate, bid your cousin good-bye. No great harm done,—only a little flesh wound that you can stitch up with your needle—by the lord, that's all! Must send you away—father sent a message after you—must have you to nurse him. Be a good girl, don't cry; 't an't all bad wounds do damage; saw many tomahawk-slashes at the fatal field of Braddock, and some got well. Tell the Colonel I'll be down to see him, and hope to fetch the assassin along."

"The assassin, Captain?" cried the young officer, as he leaped upon his horse, his sister having been already, almost without any exercise of her own will, thrust into the carriage, and the door secured. "Quick, Phil, you scoundrel, will you never have done strapping?—The assassin, Captain! oh yes, the assassin!—Remember the description—tall man, lantern-jawed, white horse, with a dappled near fore-leg, a black coat, and preaches!"

"Hah!" cried Captain Loring, with a shout of triumph, "saw the rascal, and meant to arrest him, but couldn't stand his sermons! I couldn't, by the lord!—Your horse, Phil! your horse! doctor, I'll take yours!—Whoop, Harry, you dog! down to the old witch's, and we'll nab him yet!"

While the Captain gave utterance to these expressions, he seized upon the nearest horse, and mounted him—a feat, that nothing but the frenzy of his enthusiasm could have urged him to attempt; for his infirmity had almost altogether incapacitated him from riding, save at the gentlest pace. But the recollection of the zealous Nehemiah, the assassin of his friend, now sheltered under a roof that he fancied, in the ardour of the moment, he could almost touch with his hand—and that holy impostor a villain so notorious and redoubted as the chief Hawk of the Hollow!—the fiery conception scattered his years and infirmities to the winds, and in an instant he was astride the beast of mettle, galloping over the park at full speed, followed by the two soldiers, as soon as they comprehended the meaning of his words—by the coach, which the venerable Richard set in motion upon an impulse of his own—and by some half a dozen of the male loungers, some on foot, some on horse, and all fired with the prospect of capturing a foe so famous and so deeply abhorred.

The pale gibbering ghosts, that start in affright at the magical alarum of the early chancicleer, could not have vanished from their doleful divan with a more impetuous haste, than did full two-thirds of those human beings from the mansion, who had given such life to it a moment before. In an instant, as it seemed, the hall was left to solitude; and the rough stranger, who still sustained the mangled frame of the painter, and had stood staring in astonishment at a scene so unexpected and confounding, had some reason to fear he was left to relieve the sufferings of his charge as he could, and to relieve them alone. A dark frown gathered over his visage, as he beheld the crowd rush away almost without bestowing a look upon his piteous burthen, or upon him; and he was about to mutter his indignation aloud, when it was pacified by a husky voice exclaiming in his ear,

"Hum, hah! bless my soul! what, drowned, eh? is the gentleman drowned? a case of suspended animation?—Hillo, Jingleum, stop! Come back, Pepperel! 'Pon my soul, 'tis the identical red-jacket we saw at the Rest!

Why, what the devil's all this?—Beg pardon, Miss Loring!—Bless my soul, I hope you ain't hurt? Blood about your sleeve, and look very pale and nervous! A little wine, with"——

"Think not of me, doctor," replied Catherine. "Attend to the young gentleman. This dreadful surprise and the hurry of my father—it will explain all, and excuse all. Aunt Rachel will show you a chamber: command every thing—every thing shall be done that you order. Hasten, doctor, pray hasten, and relieve the young gentleman's sufferings. Gentlemen, pray give your assistance to this good man, and heaven—yes, heaven will crown your exertions with success!"

With these hurried expressions, and still more earnest gestures, the young lady gave an impulse to the group now gathered about the wounded man, and he was immediately carried into the house and out of her sight.

"Oh, Miss Katy,—beg pardon—that's to say, Miss Catherine," cried a buxom, blubbering damsel, whose quavering treble had borne a distinguished part in the late din of voices, and who had no sooner laid eyes on the young lady, which she did as soon as the tumult was over, than she ran bustling hysterically to her side,—“never saw you in such a pucker! hope we shan't all be murdered. Such dreadful contractions were never heard of—great big hole in your sleeve—the Gilberts all come to life again, and will murder us as sure as we live!"

"Be quiet, Phoebe—come with me to my chamber—I don't think he will die!"

"Hope not, Miss Katy,—that's Miss Catherine; but they shot him right through the head with a blunderbush, and slashed him to pieces with a baggonet. Oh, the cruel murderers! And Philip, the yellow boy, says——Lor' 'a' mercy! Miss Katy, what's the matter?"

"I am sick, Phoebe, very sick—it will be over directly. Don't call your mother—don't disturb any one; let them stay with the young gentleman."

With great difficulty, assisted by the girl, whose station in the house, without being altogether so exalted as that of an humble companion, was

yet, at least in her own estimation, far removed from that of a menial—the young lady made her way to her apartment; when the impulse that had supported her energies through a scene of distress for so long a time, passed away, and was succeeded by prostration both of mind and body—by shuddering chills and assaults of partial insensibility, that terminated in fits of weeping, and these again in deep dejection of spirits, such as of late years had been a more prevailing characteristic than any other.

CHAPTER IX.

Whither shall I go now? O Lucian!—to thy ridiculous purgatory,—to find Alexander the Great cobbling shoes, Pompey tagging points, and Julius Cæsar making hair-buttons, Hannibal selling blacking, Augustus crying garlic, Charlemagne selling lists by the dozen, and King Pepin crying apples in a cart drawn with one horse?——

Then here's an end of me; farewell, daylight;
And, oh! contemptible physic!——

WEBSTER—*Vittoria Corombona.*

Conducted by the old woman, an heir-loom dependant in the Captain's family, whom Miss Loring had designated by the familiar and somewhat endearing title of Aunt Rachel, the grim-faced stranger bore the young painter to a chamber, where he was laid upon a couch, breathing forth occasional groans, but still insensible. His bearer, having thus finished what might have been considered his peculiar charge, lifted up his eyes, and looked around him, not however with any intention of departing. On the contrary, his rude indifference seemed gradually to have melted away, and been succeeded by an anxious wish to render further services to the youth, or at least to be assured they should be rendered by others as capable as himself. He fixed his eyes upon the physician, as if to determine the amount of his professional ability by such outward manifestations of wisdom as

might be traced in his visage and person; and the result was so little to his satisfaction that he resolved to remain in the apartment, to give the physician the benefit of his own counsels.

The man of science, who bore the undignified name of Merribody, was a youth of twenty-five or six, though the gravity of his countenance was worthy a practitioner of fifty. His frame was short, and roundest in the middle, and his limbs and neck of conformable brevity and dumpiness. His face corresponded with his body, being round as a melon, with features all highly insignificant, except his nose, which had a short and delicate pug that gave it some importance. His complexion had been originally fair, and his locks flaxen; but a few years' exposure to sun and sleet had communicated a certain foxy swarthiness to both, so that his eyes, which were of a light gray, were now entirely visible. His eye-brows had maintained their original creamy hue; and being the only part of the countenance possessing any great mobility, their motions up and down, and to and fro, were always distinguishable; and indeed they flitted about under the shadow of his hat, like two snowy moths entangled in a cobweb. Though no figure in the world could have been worse adapted to purposes of dignity, Dr. Merribody had thought proper to assume an important air, which he always preserved, except when irritated out of his decorum; a circumstance that not unfrequently happened, owing to a temper naturally testy and inflammable. His countenance he kept in a perpetual frown; and he cultivated an attitude he thought expressive of professional dignity, in which his feet were planted as far from one another as the length of his legs permitted, his head thrown back, or rather his chin turned up, for his neck was too short to allow much liberty to the temple of the soul, and his hands thrust into his breeches pockets; in which attitude he presented a miniature representation of the Rhodian Colossus. He had even bestowed much cultivation upon his voice, which being of a childish treble, and therefore highly incompatible with all pretensions to gravity, he forced it into artificial profundity, and spoke with a husky, catarrhal tone, a sort of falsetto bass, exceedingly pompous, and indeed sometimes majestic. However, the same testy temper which so often robbed him of his dignity of carriage, as frequently threw his voice into its hautboy alto; and on those occasions, he did not appear to advantage. At the present moment, the doctor certainly might be said to be in his glory; for the sight of a patient

threw him into the best humour in the world;—and by the presence of his two friends, without counting the stranger and Aunt Rachel, he was assured of witnesses to his skill in a case, which he declared, while trudging up stairs, to be 'exceedingly critical and interesting.' Notwithstanding this favourable condition of things, however, the man of the red hat conceived but a mean opinion of Dr. Merribody's professional skill; and having eyed him a second time, without finding any reason to alter his opinion, he demanded, in no very respectful terms,

"Well now, doctor, here's the man lying half dead and groaning,—what's to be done with him?"

"What's to be done?" echoed the doctor, turning up the cuffs of his coat, throwing out his legs, and looking important and complaisant together; "Why, sir, we are to——but, hark'e, sir, who are you? Don't know you—thought you was Dan Potts, the raftsmen, but see you a'n't. Who are you? and what are you doing here? Can't suffer a crowd in the room; it smothers the air. Must beg you to decamp, sir. Have plenty assistance, sir,"——

"Be content, doctor," said the man, drily, but not roughly. "My name is Green, John Green, the trader; every body knows Green, the York trader, as they call me. I fished up the young gentleman;—that is, I helped the lady; and I must see him through his troubles."

"Never heard of you, Mr. Green," said the doctor; "but you may stay. You have something the matter with your eye! Now I don't boast; but I believe I am good at the eyes—I will look at it directly."

"I don't doubt it, doctor," said Mr. Green; "but suppose, instead of talking of my eyes, you make the best use of your own. Here's the young man in great suffering."

"Oh, ay," said doctor Merribody. "The first thing to be done is to strip the patient, and see what's the matter with him. Method is the soul of business. Hurrah, Jingleum; come, off with his coat,—strip it off."

"*Rip* it off, you mean," said the trader, touching the fractured arm significantly, and indeed somewhat angrily. "Of all fools I ever heard of,

those are the greatest who break their arms, when necks are so much less valuable. Here's his right arm smashed like a sassafras-bough; and, I reckon, slipped at the shoulder, too!"

"Ay! the deuce! you don't say so? a luxation!" cried the physician. "Set the old woman to work with her scissors. Aunt Rachel, my good woman, rip up this sleeve; and rip it as gingerly as if every stitch was the nerve of a man's elbow. A comminuted fracture, I can tell by the feel!—Here, Pepperel, pour some warm water into the basin, chill it a thought from the ewer, and soak this rag in it. A very genteel-looking dog, I protest!—Jingleum, lay out my pocket-case, tear an old shirt into bandages two and a half inches wide, and roll 'em up; and you, Mr. York,—that is, Mr. Green, hand me the crooked scissors there, till I shave some of the hair from the wound. A devil of a job, if it turns out a trephine case! We must send off to town for Dr. Muller and his case of round saws—I don't object to consult with Dr. Muller; and if it comes to trephining, why the sooner we are ready for it the better. Method is the soul of business!"

"The cut on the head is but a scratch," said the trader: "I v'e looked at it myself. Goody, rip up the shirt-sleeve here, or let me do it—there's blacker work to look at."

"Method is the soul of business," cried the doctor, whose spirits were beginning to rise to a rapture, as business thickened on his hand, and who now raised himself a tip-toe among his temporary assistants, like a generalissimo surveying the manoeuvres of his subordinates on a field of battle, which is perhaps to determine the destinies of a nation; "there's nothing like method!" he ejaculated. "Aunt Rachel, scrape me a little lint—there are more scratches to be filled.—Hah! what! what the devil's the matter?" he cried, as the trader, groaning with sympathy at the sight, tore away the damp shirt from the shoulder, and displayed it deformed and shapeless from luxation. "Bless my soul, what! a dislocation, really, under the *pectoralis major*, anteriorly luxed! Oh, here's the devil to pay! Method is the soul of business: but what method is there in having at once an arm broke, a shoulder disjointed, a head cracked, and to be half drowned into the bargain? Murdering work, sir! murdering work! Where the deuce can I clap my pulley? and where the deuce, now I think of it, am I to get one?"

"A pulley!" exclaimed the trader, with scorn and indignation; "a pulley to drag a man's arm off! Why, where's your fingers? Come, doctor, now's the time."

"Method is the soul of business!" exclaimed the physician, waxing wroth. "Are you a doctor, a surgeon, a gentleman of the profession, Mr. What-d'-ye-call-'em, that you take it upon you to instruct *me* what to do? I tell you, sir, a physician is not to be prescribed his duty, sir; and I allow no man to interfere with me in my practice, sir!"

The strength of this declaration was increased by its being delivered in the doctor's natural voice, high and shrill; but it produced little effect on the obdurate trader.

"Come, doctor," said he, "I know all about these matters of broken and disjointed bones, from the toe up to the top-knot, having had a hand in making many of them, as a man who has been an Indian trader, in war-times, may well say. So take the benefit of my advice; for I intend to give it."

"Then, sir," said Dr. Merribody, with becoming indignation, "you may take the matter into your own hands; I wash mine clear of it. I'm not to be ruled by any ignoramus Indian trader, who, I believe, is no better than an Indian himself, and blind of an eye into the bargain; if you are to dictate, you Mr. What-d'-ye-call-'em, I'll have nothing to do with the case,—if I do I'll be hanged. No, sir! work away yourself, and kill the patient as soon as you like: he is at death's door already."

"Not at all," said Mr. Green, with a bitter sneer; "if he had been in any danger, I should have taken the matter up myself. Come, doctor," he added, more civilly; "don't be in a passion, and don't play the fool. I tell you, if it will be any satisfaction to you to know, that I, John Green, simple as I stand here, have seen more wounds and broken bones than you, and a dozen other such youngers, will ever have the mending of; and, for the matter of that, I have seen more mended than ever you will see hurt, ay, and helped in the mending, too,—as any man must, who has traded among Indians. So, come; look to your duty; the young gentleman will pay you for your services; and,

as he seems to be forlorn-like, with no better friend at hand, I shall stand by him, to see he gets the worth of his money."

The amazement with which the insulted leech listened to these contumelious expressions, was prodigious, and would have been expressed otherwise than by a simple, common-place "whew!" had it not been for the dark scowl that clouded the trader's visage, at the first sign of explosion. It was a look of more than ordinary resentment or menace; and, indeed, expressed equal malignance with the grin of a wild-cat, preparing for the spring. The terror it struck to the bosom of the doctor, was communicated to his friends, who betrayed at first some inclination to enter into the controversy, but ended the heroic impulse in sundry grumbling murmurs.

"A devilish strange fellow as ever I saw!" growled the doctor in the ear of one. "A case of *monomania*, sir; he is mad, sir: yes! I see mania in his eye; he has been hurt on the head, you can tell by the knocks there, the scars on his phys'nomy; and his eye shows the infirmity. So we must humour him, sirs, we must humour him.—'Tis the method; and method is the soul of business."

Thus apologizing for the surrender of his wrath and dignity, the surgeon betook himself again to his patient.

"Hum! hah!" he cried, laying his fingers on Herman's wrist,—"pulse irregular, intermittent.—The struggle between life and death—very low, sir, very low!—Aunt Rachel, make me half a dozen mustard-plasters, roast me a dozen bricks, and get me a coal of fire, to try if there's any feeling in him. One dare not bleed with such a pulse as this."

Green listened with visible impatience to the physician; and then, with as little consideration as before, exclaimed,

"What needs all these knick-knackereries? Clap this shoulder into place, and then think of them."

"My friend," said the doctor, his indignation supplying the place of courage, "I don't like to offend the feelings of any man; but you talk like an ass. Method is the soul of business; and there is no method in reducing a

luxation for a man hovering upon the brink of the grave, unless you may consider the act a method of helping him into it. No, sir; the violence of the operation would do his business as expeditiously as a thump over the head with a tomahawk, which I think, as you are an Indian trader and fighter, you know something about. Yes, sir; I'll allow you to be a complete master of the science of tomahawking, skinning, and scalping; but when you come to talk of bones and dislocations, then, sir, I say, in the words of the Latin poet, *Ne sudor ultra crepidam*—I don't know whether it is *sudor* or *sutor*; but it means, 'Mind your own business.'"

"I speak of nothing but what I know," replied Green, impatiently; "and I say, now is the time to fix the bone with the least trouble. Feel the lad's muscles; they are as loose and limber as a girl's in a swoon; wait till he opens his eyes, and you will find them as tough as ash-boughs. So go to work, doctor; for if you don't, *I* will—I have clapped a bone in place before now. So, doctor, you or John Green, the York trader; and much good may it do you, when I tell the folks up the river how I out-doctored you!"

The argument was conclusive, and luckily it was given more in the spirit of persuasion than command; Dr. Merribody condescended to adopt the advice of the rude philosopher. As he had intimated, the muscles of the sufferer were in a condition so relaxed, that it required but little effort to restore the bone to its place.

"There! it is done!" cried the surgeon, triumphantly; "but it hurt him like the mischief! He groaned as if I had been cutting his throat. Now for the mustard-plasters"——

"Now, if you please," said the trader, "for your lancet; and leave such things for the old women."

The doctor was again offended; but the interference of his adviser had effected one desirable object, and he now thought him worthy of remonstrance:

"This, my friend," said he, striking his attitude, sinking his voice to its most majestic depth, and stretching forth his hand, to give emphasis to the oration,—"*this is a case of concussion of the brain,—that is, while*

considered without reference to other minor injuries, such as the wound, the fracture, and the luxation. In concussion, sir, I would have you to understand, sir, the practitioner has to contend, or rather to provide beforehand, sir, against two insidious and dangerous consequences, *videlicet* depression and inflammation. Ehem, sir! do you understand that? If you don't, sir, you are no better than a—I won't say numskull, sir,—but something of that sort. Bleeding may undoubtedly prevent the latter, but it may as certainly aggravate the former,—it may sink the patient into the grave,—it may send him to the devil,—it may"—

"Open his eyes, and so rob the doctor of a patient," said the trader, gruffly. "Do you see how the blood begins to flush over his face? do you hear how hard he draws his breath? Bleed him, and he opens his eyes; warm him with bricks, and plasters, and such stuff, and he will have a brain-fever. Come, doctor, I'll take the blame. If it should hurt him, why a vein is easier stopped than a fool's mouth."

"*Probatum est*," muttered the physician; "for nothing but a gag could do that for one that shall be nameless.—The fellow has some gumption, though," he muttered to himself. "Well, I'll bleed him but I *should* like to put Dan Potts, the raftsmen, on him, or some such two-fisted fellow, and have him drubbed for his insolence! yes, I should like it!"

And grinning with the agreeableness of the fancy, the doctor phlebotomized the patient.

The wisdom of the trader's suggestion was again shown in the event. The blood, at first merely oozing in drops from the vein, at last gathered strength and volume, and the poor painter opened his eyes, and rolled them wildly from person to person. The trader surveyed him for a moment with a much gentler visage than he had hitherto displayed; then turning to the doctor, he said, softly, as if to avoid disturbing the patient,

"Now you can bind up the broken bone at leisure. Only keep him quiet, and the hurt is nothing. I did not mean to offend you, doctor—I have a rough way with me. Treat the young man well, and he will soon recover."

With these words, he took up his hat, left the apartment, and was soon heard stepping from the porch down to the avenue through the lawn.

"An impudent, ignoramus, unconscionable, rascal, with no manners, and half mad!" growled the doctor, giving his indignation full swing.

"A wasp-mouthed, sharp-tongued, malicious savage!" exclaimed his friends; and even the matron, who had all the time bustled about, seemingly regardless of all conversation that was not specially directed towards herself, concluded the chorus, by muttering,

"And a man that never goes to meeting, I warrant me!"

"Let's have candles here, Aunt Rachel!" cried the doctor, indulging his importance, in all the joy of liberation from restraint. "It is as dark as—oh! here they come, eh? Hark! there's horses' feet in the park! They're coming back from the Rest.—Bless my soul! I forgot all about the murder and the assassin! Hope they don't bring him here, slashed all to pieces by the soldiers; work enough on hand for one surgeon.—Only a simple fracture, after all! Hold the splints here, Jingleum. Don't be distressed, sir; won't hurt you more than I can possibly help."

With these words, the surgeon proceeded to tie up the fractured limb, the painter having recovered so far as to be able to wince and groan to the heart's content of the practitioner. Before the operation was concluded, Captain Loring came puffing and blowing into the room, and being instantly assailed by the doctor's friends with anxious questions concerning the result of the late assault upon the Traveller's Rest, answered in his usual hurried and broken manner,—

"Bird flown, adzooks—beat retreat in time,—struck colours, crossed the river; young Brooks and a posse after him; will have him before morning,—we will, by the lord! But, adzooks, here's my young painter that's to paint me that picture. Hark ye, Harman What-d'-ye-call-it, my boy," he exclaimed, taking a seat on the bed-side, and speaking with rough hospitality; "glad to see your eyes open. Mean to treat you as well as if you were my son Tom. How do you feel now, hark ye, my lad? What the plague

sent you tumbling down the rocks, hah? A mighty stupid trick, that, adzooks! How d'e do?"

The young man's wits were not yet clear enough to comprehend the question, or to digest a reply. He merely turned his eyes, with a wild and ghastly stare, upon the interrogator, and then rolled them vacantly from one individual of the company to another. He sighed heavily, and mumbled a little, as the doctor proceeded to secure the splints, but made no resistance.

"I don't like that stare," cried the Captain; "he looks as wild out of the eyes as a squeezed frog; and that's no good sign. I remember me, Tom Loring stared the same way, when the doctor was fishing for the bullet among his ribs. He'll never live to paint me that picture! He'll die, doctor, won't he?"

"Can't venture to say, Captain," replied Merribody; "a very critical situation, sir, a very critical situation. But I never despair, sir; for while there's life there's hope. My preceptor, the late celebrated Dr. Bones, of Bucks county, used to tell his patients, 'he never despaired till he heard the joiners screwing up the coffin.' A very good rule, that, sir! We'll hope, sir, we'll hope. Pulse very full and vigorous—will take a little more blood, and remain a few hours to watch him."

"Stay all night," said the Captain; "won't let you go, sir."

"As to staying all night, Captain," said the physician, with an air, "I can't say. Must look to my patients in the village—but will stay to tea with great pleasure. Jingleum, hold the basin!"

The practitioner removed the bandage from the vein he had before opened, and (the Captain, in the meanwhile, hobbling out to inquire into the condition of Catherine,) had soon the pleasure of seeing his patient recover his wits so far as to be able to answer questions, though he displayed a much greater inclination to ask them.

His first demand was, "What's the matter? what ails my head, and my arm? and who are you all here about me?—Oh! ay!" he continued, "I remember—that confounded brook! I vow to Heaven, I thought I saw a ghost, though

'twas broad daylight! Heavens! how my shoulder aches, and my arm, how it twinges! Are you a doctor? Where's Elsie?"

"Well, now, I warrant me, doctor," whispered Aunt Rachel, "he begins to wander."

"My dear sir," said the physician, "I must beg you to hold your tongue. Take this cooling draught, and go to sleep; and, for your comfort, know that you are now in much better quarters than you could have had at old witch Elsie's. You are now in Captain Loring's house."

"In Captain Loring's! What, Avondale? Gilbert's Folly," cried the painter, starting up.

"Be quiet, sir," cried Merribody. "Lie down, and keep yourself quiet; or I won't insure your life two hours."

"Nonsense, sir," cried the patient, petulantly. "I will dress, and get me to the Rest forthwith; and I warn you to take your hand from my shoulder; for, besides that, you hurt me insufferably, I don't choose to be treated like a prisoner of war, nor to be quartered on strangers."

"I warn you," cried the physician.—"There! was there ever such a dolt? —Hartshorn, Jingleum!"

The painter's resolution was greater than his ability. His struggle to arise upset the little strength he had remaining, and he fell back almost immediately in a swoon. When recovered again from this, he seemed sufficiently sensible of his impotent and helpless condition; but was still reluctant to remain where he was. He conjured the doctor to have him carried in a coach, an arm-chair, a cart,—in any thing,—but certainly to have him carried to the widow's hovel. Then, discovering the physician to be inflexible, he lowered his tone, consented to remain in the Captain's house, but implored so earnestly that he should send immediately for old Elsie to nurse him, that the doctor's heart was moved, and he condescended to argue the matter:

"Sir," said he, "I never saw a man with such ridiculous notions. Mrs. Rachel Jones here is the best nurse in the world. Old Elsie Bell is a witch and an ignoramus, and knows no more about nursing than she does about Greek; and she would poison you with some quack weed or another. I never trust these old women, that ramble about among the woods. And then, sir, what makes you think she will come to you? Why, sir, it is notorious, she never comes nigh the Folly; they say she swore an oath, when the Hawks were driven out, never to cross the threshold again, until they returned to it. Sir, a lady in this house has as much as admitted, that the old hag refused to come to it point-blank, a dozen times over. She won't come."

"Try her," murmured the patient, eagerly. "Say, I conjure her to come to me; tell her I am sick, dying, and will trust nobody's nursing but her's. And, hark'e, doctor, where's my waistcoat? There's a key there—it opens my saddle-bags—that's it! Send it to her; bid her fetch me some linen, and such things as she thinks I may want. My life upon it, the good old soul will come. Send it, doctor, and I'll take all your vile stuff without grumbling,—yes, all you have the conscience to give me. It is an awful thing to take physic!"

Having prevailed thus upon the physician to send his message and summons to the Rest, though no one perhaps save himself, expected to see it followed by the widow in person, he swallowed, with divers wry faces, the draught repeatedly offered to him before, groaned heavily once or twice, and then turning his face towards the wall, endeavoured to compose himself to sleep, while the physician and all his attendants, save the matron, Mrs. Jones, stole from the chamber.

CHAPTER X.

The trout within yon wimplin burn
Glides swift, a silver dart,

And safe beneath the shady thorn,
Defies the angler's art:
My life was ance that careless stream,
That wanton trout was I.

BURNS.

To the surprise of every individual in the mansion, who had been made acquainted with the summons sent by the painter to his late hostess, it was answered in less than an hour by the appearance at the door of Elsie herself. She was followed by the little negro wench, bearing a bundle of linen and other apparel, and in a short time was inducted into the sick chamber, from which she contrived, before many hours, to expel dame Rachel, whom she had found listening very curiously to the sleeping murmurs of the sufferer, as well as all the officious auxiliaries. Indeed, she betrayed some inclination at first to be as free even with the physician, who had been easily prevailed upon to remain all night at the Folly, while his friends returned to the village; but the young man became so extremely ill in the course of the night, that she soon pretermitted her scruples, and was glad to receive the doctor's assistance in quelling the threatened brain-fever.

This remarkable repugnance of the old woman to divide with any one the labours of watching over the stranger's couch, excited no little surprise among the domestics, and seemed to them to attach a degree of mysterious importance to his character, which none had dreamed of attaching before. Long and anxiously, in consequence, did the good Aunt Rachel and her daughter Phoebe, in the dearth of all better occupation, apply their ears to the chamber door, and their eyes to the key-hole, in the hope that some murmur of the sick man, some whisper of his privileged attendants, or perhaps some movement in the room, might give a clew to the enigma, of the existence of which every circumstance now left them still more strongly convinced. Thus, they persuaded themselves that in the delirium, which all night long oppressed the painter's brain, he was betraying divers dreadful secrets, not at all to his interest to be generally known; and they demonstrated also to their entire satisfaction, that Elsie Bell, who had acquired by some witchcraft or other a complete knowledge of the young stranger's history, was imparting it to the physician, coupled with many

injunctions on the one hand, and as many promises on the other, of honourable secrecy. Nay, they both affirmed, in after days, that they distinctly heard Dr. Merribody, in reply to some question or appeal of Elsie, say, with a manner highly characteristic of his dignified sense of honour, "The secrets of the sick room are as sacred as those of the confessional; and as for a doctor, Mrs. Bell, why you must know, we are all as mum as blacksnakes. A snake was the ancient symbol of physic, you know; because that's an animal which, if it don't *hold* its tongue, never makes any great noise with it!" They observed, too, as they surveyed her through the key-hole, that Elsie's countenance was darkened and troubled in an unusual degree; and once, they thought, they saw her shedding tears. However, they heard and saw little except what inflamed their curiosity to an intolerable extent; and, in consequence, they came within an ace of being caught in the act of eavesdropping by the physician himself, who came suddenly out of the room to demand ice to apply to the patient's head. Luckily, however, the degree of trust reposed in him by the widow, as they supposed, had filled him with uncommon importance, so that he made no remark on discovering them so near at hand, except to express his pleasure; "for," said he, "I supposed you were all sound in bed, and that there would be the devil to pay to get any out-of-the-way thing that might be wanted."

"Lord love you, doctor," said Aunt Rachel, "why we're all keeping awake, just a-purpose to be ready and handy; and besides, the young gentleman makes an awful groaning and taking on; and besides, there's my young madam, Miss Katy, who can't sleep a wink, out of concern for the young man; and she told me to ask you, doctor, what you thought of the young man's case, and whether he'll die or no?"

To this the doctor answered, with a look of great wisdom, 'that every thing depended upon circumstances.'

"And besides, doctor," said Phoebe, emboldened by the gracious reply vouchsafed to her mother, "she is mighty curious to know what all these things is, the young gentleman is talking about?"

"Sorry it is not consistent with the honour of the profession to gratify Miss Loring in that particular," replied the physician, with extreme gravity. "Must have ice, Mrs. Jones. Mighty fortunate I was able to remain all night! You

must bring me ice, Mrs. Jones; and you must just scratch on the door, to give me warning; and then you must keep all quiet, and let none approach the room, unless summoned by myself. And if you can venture to disturb the Captain, and tell him to turn over on his side, (the *right* side, mind you,) he won't snore so hard. Very prejudicial, to sleep on the back, I assure you! It sets the liver tumbling over the lungs, and so half smothers one. But let me have the ice, d'ye hear; and keep all things quiet in the house."

Notwithstanding the skill, and (what was perhaps a less questionable virtue,) the zeal of Dr. Merribody, and the faithful vigilance of poor Elsie, the patient continued to grow worse, and was indeed, towards morning, in an alarming situation, and so remained during the greater part of the two following days, not a little to the surprise of the physician, who phlebotomized him with extreme liberality, expecting on each occasion to give the *coup-de-grâce* to the disease. The truth is, the doctor, from having witnessed its efficacy at first, had grown enamoured of the remedy, and now applied it, we will not say without judgment, but entirely without mercy; and had not Elsie at last rebelled against his blood-thirsty humour, and resolutely resisted all further encouragement of it, there is no saying where the matter might have ended, unless in the grave. However, as the patient possessed a youthful and vigorous constitution, capable of withstanding disease and his tyrant together, he was at no time in absolute peril of death; and being left a little to himself, he began at last to mend, and in the course of the fourth day was, to the infinite satisfaction of Captain Loring and his fair daughter, pronounced entirely out of danger. His convalescence was rapid, and would perhaps have been still more so, had it not been for the pains his hospitable host took to expedite it; for Captain Loring beset his bed-side from the first appearance of a favourable symptom, mingling many joyous congratulations with a thousand exhortations and instructions in relation to 'that grand picture of the battle of Brandywine, and Tom Loring dying!'

From Captain Loring he also learned some of the particulars of those bustling events, which had taken place during the evening of his insensibility. He was much struck with the strange transformation of the sanctimonious Nehemiah Poke into no less a personage than the refugee and assassin, Oran Gilbert, and was very curious to hear the particulars of

his escape. They were told in a moment: the pursuers, headed by Lieutenant Brooks, (young Falconer having proceeded on his journey with his sister, and the Captain, much the worse for his gallop, having been forced to return to the Hall,) had followed across the river, and continued the search until nightfall rendered it useless to prolong it. They had, at one time, been close upon the fugitive's heels, having lighted upon a pedler, (not, however, Mr. John Green, the Indian trader, who was safely lodged at the time in the wounded man's chamber,) to whom the pretended preacher had sold his old gray horse, or exchanged it for a better; and from this man they obtained instructions, which put them in good hopes for awhile of coming up with him. Night, however, fell upon them, and the Lieutenant returned to the right bank of the river, to rejoin his friend and Miss Falconer, committing the whole charge of the pursuit to his volunteers, from whom the fugitive escaped, having baffled them completely. As for Mr. Green himself, he left the little inn betimes on the morning after the accident, and was seen no more.

In regard to the outrage upon Colonel Falconer, Herman was informed that it had been committed in a mode especially daring and audacious. He was entertaining certain gay and distinguished guests at his villa on the Schuylkill, and had stepped for a moment, in search of certain papers, to a little pavilion, which he had caused to be fitted up as a study, not sixty paces from the house, where he was presently found weltering in his blood by the guests, whom his sudden shrieks had drawn to the place. The assassin had already vanished, having added robbery, as Captain Loring averred, to murder. The sufferer had, however, recognised his well-known visage, and in the course of the following day some traces of him were discovered. It was found, at least, that a man answering the description had stolen a horse from a neighbouring farmer; and upon this horse, or one very like him, Mr. Nehemiah Poke, the parson, had been seen wending his way up the Delaware; and as no one knew or had ever before heard of this reverend gentleman, it was at once supposed that the assassin had assumed the character as a disguise. Before this second discovery had been made, a courier, whom the Captain stumbled upon in the village, was despatched to Hawk-Hollow, to recall Miss Falconer to the city. His intelligence therefore, though it caused the Captain to arrest the true offender, was not sufficient to legalize the capture, especially when this was opposed so strongly by the

zealous exhortations of Nehemiah, and the discreet remonstrances of the painter. When Captain Loring remembered the agency of Hunter in robbing him of his prey, he burst into a towering passion, and reproached and railed at him with as little ceremony as he would have done with his own son, or near kinsman. It was in vain that Herman pointed out the improbability of a wild hunter of the hills, like Oran Gilbert, being able to assume the character of a ranting preacher, and preserve it so well, and endeavoured to convince him, that, if Nehemiah were really not the assassin, he must be some other and some secret enemy. The Captain swore that Colonel Falconer had no other enemy in the world, and therefore, of course, Nehemiah, the parson, must be the identical Oran of the Hollow. This opinion he maintained with such fury, that the painter, if indeed he had no stronger reason for holding his tongue, did not choose to meet it with an argument derived from his own previous acquaintance with Nehemiah. He suffered the Captain to have his own way, and believe what he liked; and, in consequence, the Captain soon dropped the subject altogether, to take up another that now occupied his brain, almost to the exclusion of every other. This was the picture of the battle of Brandywine, and Tom Loring dying, the consideration of which, and of the painter's ability to execute it to his liking, was the main cause of the extraordinary affection he conceived for the youth.

Another piece of information, which the young man obtained from the Captain, was an account of the agency of Miss Loring in his deliverance from the brook, and perhaps from death. He had turned upon her a despairing eye, at the moment when, as he was pitching over the fall, she had cast out the end of the shawl to him; but of this circumstance he had retained not the slightest recollection, and indeed, it is more than probable that his faculties were at that moment in a state of torpor. Not content with this deed of daring humanity (for if he had clutched upon the mantle, the chances were that she would have been jerked into the torrent after him,) she had plunged among the boiling eddies below, and thus preserved him from a second and perhaps greater peril, and all the time with imminent risk to herself. His emotions upon making this discovery, mingled surprise and admiration with the gentler sentiment of gratitude.

"Is it possible," he cried, "that a young lady should have such spirit, such presence of mind, such courage?"

"Adzooks!" said the Captain, setting the matter to rest at once, "isn't she *my* daughter? By the lord, sir, when my son Tom was but a boy of ten years, he could trounce all the boys of the Brandywine of his own age, and two years older."

"So heroic!" ejaculated the painter; "instead of committing me to my destiny, with a pathetic scream, to run at once to my assistance, like an angel, rather than a woman!"

"Adzooks," cried Captain Loring, "it was no such thing, when I carried Tom Loring home; for then she fell to weeping and bewailing; and hark ye, Herman, my boy, that's the way you must paint her."

"So noble! so benevolent! so humane!" continued Hunter. "Noble impulses are only produced in noble spirits.—And I really, then, owe my escape, perhaps my life, to the humanity of this young lady, to whom I was but a stranger!—Captain, it was the noblest act in the world!"

"Adzooks," cried the Captain, "do you think so? Why then, by the lord, we'll paint that too! And, now I think of it, 'twill make a most excellent picture! Why, yes,—what a fool I was, not to think of it before! 'Twas very brave of her, and it shall be painted: You shall stick yourself at the bottom of the brook, and my Kate Loring fishing you out, with Harriet and me on the top of the rock; and as for that rusty fellow, the pedler, why you may leave him out."

"I am very curious about that man," said Hunter; "but 'tis no matter."

Then he fell to musing, and in spite of the noisy rapture with which the Captain danced about his bed, filled with the new conception of immortalizing paint,—of a picture which was to perpetuate the heroism of his daughter as effectually as the other was to record the glorious death of his son,—the painter indulged his meditations for a considerable time. The result was, first, a perfect conviction that the sooner he made a due acknowledgment of his gratitude the better; and, secondly, that he felt

himself strong and well enough to undertake a duty so pleasing, without further delay. In this opinion Captain Loring coincided with great satisfaction; and neither the physician nor his nurse being at hand to restrain him, (for so soon as he recovered his wits, and began to amend, they deserted his bed-side, returning only at stated periods,) he got up and dressed himself as well as he could, the Captain having in the meanwhile, descended, to apprise his daughter of the meditated visit. It was indeed lucky that the Captain did so; for after the young man had risen, and caught a view of himself in a mirror, his resolution melted away like wax in the fire.

"Heavens!" said he, "how villanous I look! Such lobster eyes, and such lantern-like jaws! That confounded doctor has bled me like a Turk: I wonder he did not make a Turk of me in earnest, and leave me with a poll as naked as a peeled yam. Truly I am now the *Caballero de la Triste Figura*, Don Quixotte in good earnest, as far as looks go; and truly I had better get me to bed again, and wait a month or two, before showing myself to any handsome young lady."

His objections, however, to descend were overruled by the Captain, and having been announced at his own instance, and the young lady having expressed great satisfaction at the happy change in his condition, as indicated by a renovation of strength so unexpected, he was even forced to do as he proposed, and suffer himself to be conducted into her presence.

Miss Loring was evidently surprised and shocked by the change in his appearance, which was still odiously visible, notwithstanding the great pains he had been at to arrange his battered person to advantage. The hair, massed over his forehead, to hide an envious patch, added but little ornament to his bloodless visage; nor did the splint on his right arm, the riband-ties of his sleeve which could not wholly conceal it, and the black silk sling that supported the arm on his breast, impart any peculiar elegance to a person of ghostly tenuity. However, the surprise of the young lady, though confirmatory of his own assurances in relation to his unprepossessing looks, served the good purpose of drawing what blood was left in his body into his cheeks, and thus, for an instant, removed one item of deformity.

The little confusion into which he was thrown by this inauspicious reception, was luckily driven to flight by the boisterous and triumphant introduction immediately commenced by Captain Loring.

"Look ye, Catherine, my girl," he cried; "here's my young Herman Hunter, the painter, that you fished so finely out of the water; and, adzooks, he says, he'll paint the action for you, as well as your brother Tom on the Brandywine, and General George Washington on the fatal field of Braddock! You see how quick we are curing him—begin to have quite an opinion of that fellow, Merribody!—As soon as we get his arm out of the stocks here, he's to begin. Don't intend to let him go back to Elsie's; but Elsie's a good nurse,—will say that for her. Have somebody to talk to, now! Will have cousin Harriet back as soon as possible. So be civil to my young Herman What-d'ye-call-it.—Think he looks very much like my poor Tom!"

With such characteristic expressions, the ancient soldier dispelled the young man's embarrassment; and Herman now turning his eyes upon the maiden with a disposition to be pleased, he found, in her countenance, so much to admire of beauty both physical and spiritual, that his approbation added a double emphasis to his expressions. Indeed he spoke of her act of heroism, and his own gratitude, with a warmth and energy of feeling that, to her own surprise, nearly startled the tears into her eyes, while they filled the Captain with a new sense of his daughter's merits.

"Adzooks!" he cried, in a rapture, "he tells the truth, and he speaks like an honest fellow! 'Twas the noblest deed in all the world, and 't shall be painted."

Anxious perhaps to escape the praises of her father, which, as he had a whimsical docility of temper, might be obtained at any moment,—rather than to avoid those of the guest, which struck her as being unusually agreeable, Miss Loring hastened to protest against all panegyrics, by referring to the more efficient aid rendered by the trader; and then, with an attempt at pleasantry, to lead the conversation still further from herself, she required to know 'to what mysterious cause of alarm on Mr. Hunter's part she owed the happy opportunity she had enjoyed of playing the heroine?'

"You will be astonished, Miss Loring," he replied: "but you were positively the cause yourself."

"I?" said she. "Ah! I understand," she continued, with a smile of infinite mirth—"you were thinking of the assault made by the two dragoons upon poor Elsie's habitation, which we were so near taking by storm; and you looked for nothing less than a repetition of the charge, while you were at a disadvantage on the narrow bridge!"

"By no means," said Herman, sharing somewhat of her animation, and smiling—"I really took you for a spectre; and being of a superstitious turn"——

"A spectre!" cried Captain Loring; "does my Catherine look like a ghost?"

And "A spectre!" re-echoed Miss Loring, though with a more serious emphasis.

"I had heard," said the young man, "that there was a grave beyond the falls"——

"Adzooks!" exclaimed Captain Loring, "I never heard of it.—Who's buried there? One of the Hawks, hah? By the lord, I'll root him up—have no such villain's bones lying about the place"——

"Father," said Catherine, "it is a woman's grave."—Which answer instantly checked the veteran's rising indignation, and some little disgust with which Hunter heard him threaten the lowly sepulchre with violation.

"In truth," resumed the painter, "my mind was affected by the solemn scenery that conducted me to the burial-place; and when I had reached the bridge, and, lifting up my eyes, beheld a figure rising, as it seemed out of the earth, and to all appearance commanding me, by menacing gestures (for such, Miss Loring, was your appearance,) to retire, you may judge how much my imagination was excited. I assure you, such was the hallucination of my mind, that I beheld, even in *your* countenance, the pallid hues of death, with tears, too, dropping from your eyes, and such an expression of mingled sorrow and displeasure, as I thought could exist only on the visage

of a disembodied spirit. In the sudden alarm produced by such an impression, I forgot entirely where I was, and so stepped off the narrow bridge into that malicious torrent, and thereby, as I may also add, fell under the obligation of owing you a life—an obligation, which, I assure you, is of so agreeable a nature, that"——

"If you say so," cried Catherine, perceiving that her father was preparing for another burst, and interrupting the speaker with a smile, "I shall undoubtedly expect you to give occasion for some second display of my heroism, by leaping into the brook again, as soon as you have recovered your strength. You have indeed lowered my own vain estimate of the obligation conferred, by showing how much I was the cause of your misfortune; and I now perceive, that I shall not have entirely atoned for my fault, until you are wholly restored to health. Allow me therefore to work out my pardon, by assuming the character of a mentor and governess.—You are yet unfit for the toils of a courtier, and the exertions of the visit have already exhausted your strength. I must command you back to your chamber, to rest and recruit your spirits; and to-morrow, if Dr. Merribody consents to such unusual grace, I will perhaps permit you to enjoy another half-hour of liberty.—You must obey me, Mr. Hunter; my father is a soldier; and, in his house, you are under martial law."

The painter would willingly have disputed the orders of the 'Lieutenant-commandant,' (for such Captain Loring, transported with her military spirit, immediately pronounced his daughter to be,) but Miss Loring spoke as if she had assumed the command in earnest; and Hunter admired how so much firmness could be expressed with so much pleasantry, and how both these qualities could be mingled in the same spirit with the maidenly gentleness becoming her youthful age. But, indeed, the young lady had found it convenient to put on both the former appearances, to terminate an interview irksome to herself, and perhaps prejudicial to the convalescent; for no sooner had he taken his leave, and her father with him, than she immediately walked into the garden, the supervision of which was the chief delight, and indeed passion, of her existence, and, sitting down under an arbour of honey-suckle and trumpet-flowers, indulged herself in a long fit of weeping.

CHAPTER XI.

Ladies' honours

Were ever, in my thoughts, unspotted ermines;
Their good deeds holy temples, where the incense
Burns not to common eyes. Your fears are virtuous,
And so I shall preserve them.

BEAUMONT AND FLETCHER.

The happy constitution which had empowered the young artist to contend successfully with fever and phlebotomy, soon enabled him to exchange his quarters under the Captain's roof for those he had occupied so short a time in the cottage of Elsie. This was a change he made with no little reluctance; for, independent of the superior comfort of Gilbert's Folly, there was a charm in the society of the Captain's daughter, which, with all the drawback resulting from the addition of the Captain's company, was not to be replaced by the attractions of the melancholy widow. Nevertheless, a consciousness that his presence at the mansion, however welcome to its inmates, was, at best, an intrusion, soon forced itself upon his mind; he felt that it was highly improper to take advantage of the affection of a whimsical old man, and the kindness of a solitary and almost unprotected girl; and accordingly he revealed the determination he had made to leave them, upon the third visit he made Miss Loring. His resolution was however combated with such violent hostility on the part of the veteran, who commonly devoted three-fourths of his time to expatiating upon the subjects of the three great pictures, and with such agreeable dissuasives on that of the lady, that his resolves easily melted away, and his sojourn was prolonged for a week or more beyond the period of his first visit. At last, however, he grew ashamed of his effeminate abandonment to an enjoyment which he had no right to consider his own; and one morning, having surveyed himself in the glass, and discovered with peculiar satisfaction, that his cheek-bones were

burying themselves in their former insignificance, and that his eyes were twinkling again with their natural sunshine, he took the sudden resolution of retreating to the Traveller's Rest that day; and this design, maugre all the furious opposition of the Captain, he was strengthened to put into immediate execution, by the frankly-expressed consent of his fair governor.

"Yes, I will go," he soliloquized, in his chamber, to which he had ascended for the purpose of collecting his scattered moveables; "it is plain enough, the girl is vastly delighted to get rid of me. 'You are now well enough to be released from captivity.' These were her very words; and she smiled as she uttered them, as if my discharge were a deliverance to herself!—Well,—and why should it not be?" he muttered, after a pause; "Why should my presence be a pleasure to her? and why should my departure afflict her? and why should I care whether she be pleased or not? A girl engaged,—betrothed,—and betrothed to a Falconer! Tush, I am a fool. I was a fool to come hither, too. The devil take the wars, and the king's commission into the bargain. I will leave the place—I would my arm were but sound, and I would leave it to-morrow,—ay, I vow I would!

'Oh, the bonny bright island.'—

I wonder she don't sing: for a speaking voice, she has the richest *soprano*,—a *mezzo-soprano*, I think,—I ever heard; it is a positive music, mellow, rich, and wild, like the hum of a pebble in the air, darted out of a sling—a most delicious, wondrous, incomprehensible voice. And then her eyes—Death! what care I for her eyes?

'Oh, the bonny bright island'—

Pshaw! I would I were home again.—Home? *home!*" he muttered, with long pauses betwixt each interjection, and nodding his head the while, as if surprised at his own reflections. Then, as if these silent comets of the brain had returned to the orbit in which they had so lately vapoured, he resumed,—"At all events, old Elsie's is not far off; and in common civility I must call and see her two or three times.—And, besides, I don't see how I can get off without painting the Captain 'that grand picture of the battle of Brandywine, and Tom Loring dying.' What an absurd old fellow!—A precious picture I should make of it! Yet I must do something to requite

their kindness.—Kindness! There's no doubt she saved my life. The Captain swears, nothing living that gets into the deep eddy under the fall, can get out living. His cow lay under there three days. To think I was so near my head-and-foot-stone! and to think this girl, this Catherine Loring, saved me from the destiny of a crumpled-horn! The most remarkable, fascinating. —Ah! the island's the place for me, after all.

'Oh, the island! the bonny bright island!'

Well, now she's in the garden among the flowers, and the Captain's taking his siesta. A little medicine, with some of its concomitant starvation, is quite a good thing for the voice."

During all the time of this soliloquy, the young man had ever and anon, sometimes insensibly to himself, been humming the *refrain* of a familiar air; until at last, being seduced by the sound of his own voice, and betrayed into a mood of melody by his reflections, he gradually fell to humming with more confidence; and, finally, supposing no one to be nigh, he even began to sing, though in a low voice, the following idle stanzas, that had been all the time jingling through his brain.

I.

Oh the island! the bonny bright island!
Ah! would I were on it again,
Looking out from the wood-cover'd highland,
To the blue surge that rolls from the main.
How sweet on the white beach to wander,
When the moon shows her face on the sea,
And an eye that is brighter and fonder,
Looks o'er her bright pathway with me!

II.

Oh the island! the bonny bright island!
Never more shall I see it again,
Never look from the wood-covered highland,

To the blue surge that rolls from the main.
Never more shall I walk with the maiden,
On the beach I remember so well:
Farewell to my hope's vanished Eden—
Oh my bonny bright island, farewell!

"Pshaw,—nonsense!" he went on, pursuing his reflections; "'the island, the bonny bright island,' is a very fine thing, but what do I care about it? I wonder if Elsie spoke the truth about the match? If I thought the girl's heart were not in it.—Pshaw again! She is the merriest-hearted creature I ever saw,—only of quick feelings, and strangely attached to the memory of her brother: her eyes always fill when the Captain talks of him—the very name makes the tears start; and good heaven! how superb her eyes look, with tears in them! But then the Captain is poor, and she knows it,—bent upon the match, and she knows that, too; and young Falconer is a soldier, and a handsome fellow, and she knows that, too. And he was here! I wish I had seen him. He has wealth, too—so have *I*; he is gay and handsome—I am neither sour nor ugly.—'Sdeath! where am I getting? I will find out, at least, what are her feelings towards him: if her heart be not in the match, why then.—Could any man stand by and see such a saint of heaven bartered away, sacrificed—sold to tears and captivity?"

Here he fell to musing again, and again his spirits seeking that vent to melancholy, he began to hum an air, extremely mournful, the words of which were in unison with his reflections.

I.

Darkly the wretch that in prison is pining,
Turns to the dim, dismal grating his eye;
Darkly he looks on the day-star that's shining,
The far-soaring eagles that float in the sky.
In the pale cheek, so furrow'd and wet,
The story of anguish is spoken;
The sun of his hope it is set,
The wing of his spirit is broken.
Darkly the wretch, &c.

II.

Heart! in thy dreary captivity heaving,
The fate of the poor, hopeless pris'ner is thine—
To look through a grate at the world thou art leaving,
And slowly the long silent sorrow resign.
But the vial is emptied at last,
The bolts have been shot from the quiver,
And the future has buried the past,
With the tears of the captive, for ever.
Heart! in thy dreary, &c.

Having despatched this second madrigal and his preparations together, he descended into the little apartment in which Miss Loring was wont to while away the time in reading, or plying her needle,—which latter employment she often followed in company with the girl Phoebe and the matron. On these occasions there commonly prevailed a proper degree of female noise and chatter; for which reason such convocations were strictly forbidden during that portion of the afternoon which Captain Loring devoted to napping—not indeed because any sound short of the blast of a trumpet or the roar of a musket, could disturb his slumbers, but because his brain was of too excitable a nature to sink into repose, so long as a single vocal murmur came to his ear. Herman had chosen this period to take his departure, for the sake of avoiding any altercation with his violent host; and he now stepped into the parlour, which opened into the garden, where he expected to find the Captain's daughter. However, he had no sooner entered the apartment, than he saw her therein, sitting by herself, plying her needle with unwonted industry, and her eyes filled with tears.

"Good heavens! Miss Loring," said he, "I hope nothing has happened?"

"By no means," she replied, displaying her countenance frankly, with a smile, and then proceeding, without any embarrassment, to wipe her eyes. "You must know, in the first place, that I come of a tearful tribe, a very lachrymose stock, and shed tears very often for no comprehensible purpose, except to pass the time; and in the second place, I have been paying the

auditor's tribute, and rewarding your music with the utmost stretch of sentimentality,—that is to say, by crying. I wonder where you could light upon such melancholy tunes? But I like the last song extremely: that release from captivity,—that ending of

'The tears of the captive for ever,'—

I should suppose you would have sung that line to the gay whistle of a blackbird!"

"I assure you, Miss Loring," said the painter, "my deliverance comes to me with no such spirit of rejoicing. I am ashamed you overheard me—I thought you were in the garden; I would not have otherwise presumed to hum so loud."

"Oh, I like your singing, I protest; and if you remain long enough in the valley, I shall claim a future exertion of the faculty, perhaps even a serenade. But beware of my father; if *he* discovers this new virtue in you, rest assured, you will have to sing him Yankee Doodle and God Save Great Washington, all day long; and this too," she added with a mirthful smile, "without any hope of escaping from 'that grand picture of the Battle of Brandywine and—and Tom Loring dying.'—Ah, Mr. Hunter," she said, apologetically, for her eyes again glistened, and her lip quivered, as she pronounced the familiar name, "you have perhaps laughed at my father, perhaps you will laugh at me, when you behold our usual insanity on the subject of my brother. But he was one whom it was not easy to forget,—one long to be remembered by both sire and sister.—But I see you are displaying your generalship; you intend to beat a retreat, while the enemy is sleeping. Perhaps you are wise. Richard will have the carriage ready in a few moments."

"Not so, Miss Loring: I will depart on foot, like a pilgrim, as will be best. An unlucky jolt in the carriage over a stone, might bring me under the tender mercies of the doctor again." And he touched his wounded arm significantly.

"You are right," said Catherine, after a pause. "The distance is short; Richard shall escort you, for fear of accident; and Phoebe and myself will

add to your retinue as far as the park-gate. Do you really consider yourself equal to the walk?"

"I do," replied the young man; "but pray be not in such a hurry to discharge me. In a very few days,—perhaps as soon as I am able to resume the saddle, I must take up my line of march, (to borrow your military illustration;) from Hawk-Hollow, with but little expectation,—that is, I think so,—of ever seeing it again."

"Must you, indeed? I thought you were to explore every cliff and brook in the county. However, I cannot blame you. I am afraid my father's strange conversation about 'those grand pictures,' must annoy you; and you are right to escape."

"On the contrary, Miss Loring," said the painter, "I am sincerely desirous to gratify him in that fancy; and, though sorely convinced of my inability to paint him any picture worthy acceptance, yet, were my arm well, I should do my best to paint him something; and if I had but a portrait or miniature of your deceased brother for a few hours, to secure a likeness"——

"You must not think of it seriously, Mr. Hunter. It is but a whimsical fancy, which my father will soon forget. There is no portrait of my brother; he was but a boy of eighteen, and his likeness was never painted. Indeed, I wish it had been, for my father's sake."

"Perhaps I can yet gratify him," said the painter. "I owe you a deep debt of gratitude—I have some skill in taking likenesses, and sometimes obtain them, even with but little aid of the sitter. The Captain has averred that you yourself bear an extraordinary resemblance to your brother——Perhaps, perhaps, Miss Loring, if you were to honour me so far—that is to say"——

"Ah!" cried Catherine, with sparkling eyes, "I see! Do you think it possible? I am indeed like my poor brother, if I can trust my own recollections. Do you think it practicable, from *my* visage, to construct a likeness of my brother's? Then, indeed, I would sit to you, and gladly!"

"With such a resemblance to begin upon," said Herman, greatly pleased with the satisfaction of the young lady, "and the help of your recollections

and criticisms, I do not doubt of success; and then the pleasure of presenting such a portrait!"——

"Of *presenting*, Mr. Hunter!" cried Catherine; "we cannot permit you to think of that. We will not convert your gratitude for a slight hospitality into an excuse for taxing your professional exertions."

"Professional, madam?" said the other, with some little petulance; "I hope you will not consider me a mercenary, hireling dauber?"

"A dauber, we hope not,—mercenary, assuredly not;—and hireling is a word not to be applied to one who receives payment for any generous labour," said Catherine. "If you insist upon painting 'the grand picture' for nothing, Mr. Hunter, you will certainly escape from all trouble in relation to it. Not even my father would think a moment of imposing such an unrecompensed task upon you, or such dishonour upon himself."

"You mortify me, Miss Loring," said Herman: "I can scarce call myself a painter by any thing more than inclination. If I have adopted the profession, it is not to make my bread by it; and indeed I can scarce say, I have adopted it at all.—That is," he added, in some confusion, for Catherine regarded him with a look of surprise—"In short, Miss Loring, it has been my good fortune to be put above the actual necessity of adopting this profession, or any other, for my support. I paint, because I love the art, and have nothing better to do; it suits my idle habits. I never have received a recompense for my labour, (you should have called it my amusement, for such it is,) and perhaps I never will;—not that I scorn recompense as being degrading, but because I need it not. The pleasure I feel in the labour is my reward; and I am doubly rewarded, when my poor sketches afford pleasure to those whose good opinion I covet. You have thrown me under obligation, Miss Loring; and I claim of your generosity, or if that word will not be permitted, of your justice, an opportunity to oblige in return."

"Your argument is singular, yet almost conclusive," said Catherine, with a pleasant accent, yet with a more distant air. "And so you are no poor painter—a wandering son of genius—after all; but a knight of romance, roaming the world over, with palette for buckler, and brush and maul-stick in lieu of lance and sword? Really, you have lost much by the transformation: it was a

great pleasure to me, to think I could patronise you—encourage an unfriended genius. But now—ah! my folly offends you! I beg your pardon; I will trifle no more."

"I am not offended, Miss Loring," said the youth, who had coloured deeply while she spoke; "but I *did* think your tone satirical, and indicative of a suspicion that I was not what I profess myself to be. Suffer me then to be a poor painter, as I really am; though not a man in very restricted pecuniary circumstances. I confess, that I was presumptuous, to think you—that is, your father,—would accept any gift at my hands; yet the persuasion that I had it in my power to give you—that is, *him*, a particular gratification, emboldened me to think I might presume to attempt what I thought a mere simple, allowable compliment."

"Pray, Mr. Hunter," said Catherine, "say nothing more about it. I believe you are right, and I wrong. We act here"—and here she smiled as merrily as before—"entirely upon impulses and instincts; and if impulses and instincts be conformable, as doubtless, some day, they will, we will accept the picture as freely as it is offered. But I see you are impatient to go;"—this was a discovery authorized by no particular symptom of dissatisfaction on the part of the painter, who, on the contrary, seemed well pleased to continue the tête-à-tête;—"you are impatient to go, and here comes Phoebe. —Phoebe, my dear, have the goodness to call Richard, to attend Mr. Hunter to Mrs. Bell's.—I am glad to see you walk so firmly, and look so well.—I will positively be your escort to the gate. It becomes me in my function of Lieutenant-commandant; and I will dismiss you with all the honours of war."

Thus speaking, and whiling away the walk with light and joyous conversation, Miss Loring conducted the guest to the park gate; where her eye suddenly caught sight of a little bush, of no great beauty of appearance, but exhaling an agreeable odour. This she instantly began to rob of its branches, expressing pleasure at the discovery.

"It is sweet-fern," she said, in answer to the painter's question, "not very rare, to be sure, but the first specimen that has come into the paddock of its own accord; all the rest I planted myself. Now, sir, this is neither myrtle nor sweet-grass; but it is good to smell at; and in token that my extreme hurry to

drive you out of my father's house proceeded from no ill will, but from true benevolence, and as much friendship as one can feel at a week's notice, I present you this same odoriferous plant, and advise you to make a medicine of it. It is said to be a fine tonic and cordial; and, I warrant me, Elsie will know all about it."

"I shall apply it to a better use," said the painter, gaily. "You know, it is fern-seed which enables man to walk invisible.—Now, as a knight of romance, I may have need of such a magical auxiliary."

"Oh, if you laugh at me for that," said Catherine, "I see there is peace between us."

"You could have added but one more injunction," said Herman, "to make the gift agreeable. Had you told me to follow its example—you know it came into the paddock of its own accord!—I should have"——

"Thought me immensely witty," said Catherine. "Certainly, Mr. Hunter, I will expect you to call upon my father if you remain in the valley; and certainly, if he do not fetch you to the Folly to-morrow, I shall be vastly astonished. But pray, sir," she added, observing that the gentleman looked mortified, and abashed, "do not consider such an invitation necessary. A visiter at Gilbert's Folly is too much of a Phoenix—a *rara avis*, I think you scholars call it,—to be turned lightly away. I wish you, sincerely, a happy and speedy recovery.—Good day, sir—I commit you to Richard's keeping."

With these words she turned from the gate, plucked another branch from the fern-bush, and then, with Phoebe, pursued her way back to the house. The painter received her valediction with much less satisfaction than had been produced by the fragrant present. He saw her return to the bush, and then, looking once back, and waving her hand, resume her steps, walking on towards the mansion; and he was himself astonished at the feeling of melancholy that instantly came over his spirit. "What is there in her," he muttered within the recesses of his bosom, "that should interest me so strongly? Why should I be gladdened by the wave of her hand? why darkened at once by the turning away of her face?—She is unhappy after all, whatever skill she may have to conceal it; and, by heaven, it is a piteous thing to ponder on. Well, well.—Such an admirable creature! so gentle, and

yet so firm! so frank, yet so modest! so merry, yet so dignified! so natural in manners, yet so refined! so sensitive, yet sensible! so kind,—nay,—openly affectionate of disposition, yet so womanly in all!—sure I shall never more see her equal!"

Thus the young man mused, remaining so long with his eyes following the retreating figure of the young lady, that Richard, the venerable coachman so often mentioned before, thought fit to presume upon the arguments of his age and standing, as a faithful and highly-prized servant, and interrupt the meditations of his charge. He first scraped his feet over the gravelly road, then coughed, then hemmed, and at last opened his lips, and spoke:

"A-well-a, massa Hunta," he said, "werry bad practice this here, 'sposing broken bones in the open air, 'specially when a gemman are sickish-like. No offence, massa,—but why we no go down to Missus Elsie's?"

"Right, Richard, let us go," said Hunter, walking down the hill, but ever and anon casting his eye over his shoulder, as long as Miss Loring was visible, or a single flutter of her garment could be detected among the green shades of the avenue. "How long have you lived with Captain Loring, Richard?"

"Ebber since he wa' born.—Wa' a mighty fine boy, Massa John Loring!"

"Oh, then you were in the family long before Miss Catherine was born?"

"Lorra-golly, yes!" said the negro, with a triumphant grin; "Massa no s'pose young missus born afo' her fader: Lorra-massy, yaugh!"

"An excellent, lovely young mistress!" said the painter.

"Lorra, massa, yes; a lubly young missus; and makes lubly fine hoe-cake, if massa Cap'n would let her.—Old Nance taught her, when she wa' no bigga naw my foot. Massa must know, old Nance wa' *my* wife Nancy. So't o' nuss'd young missus Katy, for all what missus Aunt Rachel say; always liked old Nance betta, 'case how? Why old Nance larned her all she knew, make hoe-cake, corn-cake, johnny-cake, short-cake, hominy, pie, pone, and cream-cheese."

"Well Richard, and so you are to marry her off, and see her no more?"

"Golly, massa, yes; what for she young lady, if no?"

"And when's the wedding to be, Richard? Merry times you'll have!"

"Lorra, massa, don't know. Some says one day, some anoder. Wa' to been married soon, but faw the white nlgga Gilbert, what cut the Colonel's throat!"

"What, so soon?" said Herman, feeling a sudden thrill run through his frame. "Why, Richard, they were in a hurry, for such young folks. Miss Catherine is only seventeen—a very great hurry!"

"No, massa; long standing 'fair that; and put off, put off, Lorra knows how long; 'case young missus says she too young. Lorra-golly! old Nance wa' but fo'teen o' so; and I reckon there's more naw all that. An old nigga man, what's brought up a gemman, knows what's what!"

"Eh, Richard! you don't say so? You have the secret then? Come now, my old boy, here's a dollar. Come, put it in your pocket."

"Saddy, massa; God blessa massa!"

"Well now, Richard, what's the reason the marriage has been put off?"

"Golly! massa gib me the dolla' to tell?" cried Richard, looking alarmed.

"Certainly, Richard.—It's not a long secret, I hope?"

"Lorra, massa, can't do dat. Gib back a dolla', if massa call him back; but no tell on young missus. Brought up a gemman, massa; and no tell secrets out of the house."

"Oh, well, never mind, Richard; keep the money; I did not want to bribe you to tell any thing improper on your mistress; and I am glad to see you are so honest. It makes no difference: but what's the reason your young mistress does not like the Colonel's son?"

"Not like Massa Harry?" cried the coachman, in great dismay. "Sure old fool Dick no tell massa dat?"

"Oh, no; you kept the secret very well. But it is quite odd the young lady should not like so fine a young man?"

"Yes, massa, wery strange; but women's women, massa. Massa Harry werry fine young man."

"Well!" muttered the painter to himself, "I am playing an honest gentleman's part with this old ass, truly! I'll befool him no more. It is true, then!—even this dolt can tell that his mistress is sacrificed. So young, so fair, so good!—I would I had never seen her."

With such reflections as these, and many others of a painful nature, the young man continued his path; and, finally, having come within a short distance of the hovel, he discharged his attendant, and bade him return to the mansion. He then pursued his way alone, and reaching the solitary cottage, took possession of his former quarters with a sigh, a saddened brow, and a spirit no longer composed and mirthful. The bunch of fern he placed betwixt two leaves of paper, with as much care as became the first tribute to an herbarium.

CHAPTER XII.

Oh, now I see where your ambition points.—
Take heed you steer your vessel right, my son:
This calm of heaven, this mermaid's melody,
Into an unseen whirlpool draws you fast,
And, in a moment, sinks you.

DRYDEN—*The Spanish Fryar.*

The summer had just set in, when the painter returned to the Traveller's Rest, with the prospect, so rapid was his convalescence, of being able to leave the valley within the space of a fortnight. But week came after week, June exchanged her green cloak for the golden mantle of July, the laurels bloomed on the hills, and the fire-flies twinkled in the evening grass, and still he lingered among the pleasant solitudes of Hawk-Hollow, as if unable to tear himself away. This faintness of purpose, for weekly, at least, he vowed he would depart, he excused to himself, by pleading the strong necessity he was under of delighting Captain Loring's heart with a picture, which he could not begin until his arm was released, not only from the wooden bonds of splints, but from the weakness resulting from the fracture. Until that happy period arrived, he was a frequent and indeed a welcome visiter at the mansion, his society being not less agreeable to Catherine than it was absolutely indispensable to her father. Young as she was, and with a spirit so gay and frank, there was much good sense in all Miss Loring's actions; and this had been doubtless sharpened by the necessity, imposed upon her so early, of playing the matron in her father's household, and guarding against the consequences of his many eccentricities. It was this good sense which taught her the propriety of getting rid of the stranger guest, as soon as humanity would sanction his expulsion; and this she had, in part, indirectly confessed to the party herself, with her usual good-humoured openness. This being accomplished, and Herman now assuming

his proper station at a distance, and visiting the house as an avowed favourite of her father, she felt herself delivered from restraint, and received him without reserve. His manners and conversation were at all times those of a gentleman; and this is always enough, in America, to entitle a stranger, of whom no evil is known or suspected, to hospitality and respectful consideration, especially at a distance from the larger cities. That curiosity, which travellers have chosen to saddle upon Americans as a national characteristic, along with the two or three forms of speech that have belonged to the mother-land since the days of Chaucer, is in no country less really intrusive than in America. If it be irksome, and, at times, ludicrously impertinent, it is easily satisfied. It springs, indeed, not from a suspicious, so much as an inquisitive, disposition; and is the result of a certain openness of character, such as arises under every democratic government, and is well known to have prevailed to an extraordinary extent among the old Greek republics, notwithstanding the proverbial craftiness of individual character. With this curiosity is associated an equal quantity of credulity; and Americans are very content to receive the stranger, whose deportment is at all prepossessing, entirely upon his own self-recommendations. No jealousy accompanies an introduction made only by accident; and the same generous confidence is reposed in the new acquaintance, which the bestower will expect, under similar circumstances, to have lavished upon himself.

It did not, therefore, enter into the thoughts of Miss Loring to question Hunter's claims to such friendly courtesies as were accorded to him; and if any doubts of the propriety of continuing his acquaintance had occurred, they must have been dispelled by a remembrance of the circumstances under which he was introduced. Her happy instrumentality in rescuing him from a dreadful peril, had given her a right to be interested in his behalf; and the great pleasure the young man's society afforded her father, was an additional argument to banish reserve. The visits of Herman were therefore received and encouraged; the young lady's spirits, animated by such companionship, became more elastic and joyous; and Captain Loring rejoiced in the painter's acquaintance as much on her account as his own. "Adzooks, Kate," he was used to exclaim, "the young dog is as good company for you as cousin Harry,"—so he often called Miss Falconer, as well as her brother,—"and the lord knows how much *better* for me! And

then the picture, Kate, adzooks, is'n't it a charmer! that is to say, it *will be*; but the young dog won't show it to me."

The picture,—'the grand picture of the Battle of Brandywine, and Tom Loring dying,'—had been at last begun, or rather a drawing in water colours, meant to represent that double calamity; and from the few samples of proficiency in his art which Herman had already shown, the expectations of the daughter were almost as agreeably kindled as those of the parent. The painter had presented Catherine with a few little sketches from his portfolio,—landscapes, representing views of Southern scenery, which to her appeared highly spirited, while to the Captain they seemed sublime,—only that *he* had a perverse facility at seeing rocks and stumps of trees in groups of kine on the meadows; and in distant flocks of sheep, nothing better than so many rambling killdeers on the barren upland. Notwithstanding these unlucky mistakes, he conceived so high an opinion of the artist's ability, that he strenuously urged him to begin the Battle of Brandywine upon a scale of magnitude commensurate with the grandeur of the subject; 'He would have it,' he said, 'done magnificently. He would go down to the village, and buy Ephraim Gall, the tavern-keeper's, big sign, that had the great Black Bear on it; or he would have another made just like it; and, he had no doubt, his young dog Haman,'—for the Captain could never fall upon his protégé's true name,—'would beat John Smith, the sign-painter, hollow,'—a flight of panegyric that somewhat nettled the artist, but vastly diverted Miss Loring.

But the greatest accession to his reputation was obtained when Herman, as the only means of securing a likeness of the Captain's deceased son, prevailed upon Catherine to sit to him for hers, and the radiant features beamed at last from the ivory. The delight with which the Captain seized upon this happy effort of art, was not merely boisterous; it was obstreperous,—nay, uproarious; and Catherine, laughing and weeping together, acknowledged that, in thus enrapturing her father's heart, the painter had made her his friend for ever.

"Now, Captain," said Hunter, with a beaming eye, "now, all I have to do, is to take that sketch home"——

"Shan't let it go out of my hands!" cried Captain Loring. "Why, it's my Kate herself! Give up my heart's blood first."

"You shall have it again, Captain; I promise you that. It is only to copy it, you know—that is, to paint the likeness of your son from it."

"Shall do no such thing—must do another," cried Captain Loring; and it required all the arguments of the painter, backed by those of Catherine, to prevail upon the obstinate old man to surrender the sketch, that it might be devoted to the purpose for which it was executed.

Thus passed the time of the painter in an employment, which, as much as his conversation, recommended him to the friendship of two isolated beings, simple-hearted, guileless, and unsuspicious of any coming ill. Thus he passed his time, confiding and confided in—the gayest, the merriest, and perhaps the happiest visiter who had ever been admitted to the privileges of Avondale; yet, all the time, whether rambling with the frank maiden in search of summer flowers to transfer to her garden, whether listening to the gay music of her conversation, or gazing, in the exercise of his art, upon her beautiful features, drinking in a poison which he felt and feared, yet without knowing the deep hold it was taking upon his spirit, until the sudden crash of coming events made him dreadfully aware of its influence. He was neither too young nor too short-sighted to be ignorant of the impression made on his feelings by each daily interview with a maiden so bewitching; nor did he attempt to repress the humiliating consciousness, that, in thus giving his heart to the affianced bride of another, he was preparing for himself a retribution of pain and penitence, and perhaps of shame. From the moment in which he discovered himself treasuring away with such jealous care, the gift of withering fern,—a bagatelle of compliment, which, he well knew, was only given by Catherine to remove a mortification she had inflicted,—he saw that he was sporting upon the brink of a precipice—trifling upon some such slippery bridge as that of fatal memory over the streamlet, from which his folly might at any moment hurl him. With this consciousness before him, he perceived the necessity of flight, yet fled not, deeming that the power of escape at the right moment could not be denied him—of taking some antidote with the poison, but took none, resolving it should be swallowed thereafter; and, in fine, while still thinking that he resisted, or was prepared to resist, when the peril should become urgent, he gave himself up to the intoxication of the new passion, and, in reality, sought every means to augment it.

'When the flame of love is kindled first,
'Tis the fire-fly's light at even,'—

the flash of an insect, which one can admire, without fearing its power to create a conflagration. A vague impression that Catherine's want of affection for the licensed lover would prevent the completion of the marriage contract, gave a sort of encouragement and hope to his selfishness, which he interpreted into the more generous sympathy of one who lamented her hard fate, and desired only to shield and protect her. In this delusive thought, in this romantic willingness to watch over the safety of another, he lingered around the vortex of fate, until the ripple became a current, and the current an impetuous tide, from which there was no escape, except by exerting his remaining strength to the utmost. At the very period when the exertion should have been made, he bore to his solitary chamber the idol lately completed by his own hands, and as he gazed upon it, felt that the moment of salvation had passed by.

"Yes, it is now too late," he muttered, apostrophising the miniature; "I have fooled myself a second time into the whirlpool; and who, Catherine, will play thy part with me again, and again save me? It *is* too late; it is too late to retreat, and now therefore I must go on—yet with what hope go on? With none. She heeds me not, she dreams not of my folly, she cares not. Friendship is the grave of love; and in her friendship my love is entombed, before it has breathed twice in existence. I will speak to her, and be derided!—I will confess myself, and be driven from her presence! And this is honourable of me too! to take advantage of her unsuspecting frankness, her anxious desire to gratify her father, and steal a portrait from her! I saw she doubted the propriety of sitting; and yet I, by base dissimulation and affected indifference, cajoled her to consent. Well, if I can copy, I can destroy; and if this fool—this slave—this Falconer wed her, why, then good-by to the knavery and the folly together! I will tarry, at least, until I see the privileged woer; and then, if she like him not, if she recoil—nay, if she shed but a tear of repugnance, may heaven forsake me if I do not—Well, what? Kill him!—There has been enough of that among us already."

Thus murmuring to himself, and expressing invectives against his folly, with the usual arguments for continuing to indulge it, he sat down before a table, and despite his convictions of the impropriety, if not the meanness of the act, began to copy the miniature. He laboured assiduously until he had completed the outline, and then exclaimed, with a species of reproachful triumph,

"Now, foolish father of the best and loveliest! though you rob me of my labour, yet have I secured its counterpart. Send me a thousand leagues away, and within this dim outline shall my hand reproduce the image of your sacrifice.—But here come the fools again! Now for a smooth face, a merry voice, and a frolic with my jolterhead admirers."

The vow which the painter had made, when the doctor and his two friends passed by the widow's cottage, and smiled at his choice of lodgings, that he would make them fonder of the Traveller's Rest than their own village quarters, he had in part fulfilled. Whatever was his secret and growing care, it was yet confined to his own bosom; and he was altogether of too joyous a temperament, had he even desired to nourish his melancholy, to bear a sad spirit in company. He was one of those who suffer most, and suffer longest, by grieving only at intervals, and enjoying themselves heartily among friends. The idea of a continuous grief, of any duration, at least, is preposterous. The body can live upon the rack only a few hours, or days; and the spirit's powers of endurance are not much greater.

His gay and agreeable manners had strongly recommended him to the trio; and the two lawyers, having nothing better to do, were wont to mount their horses, and accompany the doctor on his professional visitations, which he continued for some time after the patient had taken refuge within the Traveller's Rest; and even after he insisted upon being cured, they wasted their tediousness upon him at least twice or thrice a week, in the way of friendly calls; and he was wont to entertain them as well as he could. Of the doctor he had made a conquest by asking for his bill, and paying it in good English guineas, a handful of which coin gave doctor Merribody more sensible delight than could the bushel of paper with which he expected to fill his saddle-bags; the amount charged against the unlucky amateur being some few thousands of dollars,—Continental currency.

One of the doctor's friends, whom he usually addressed by the familiar title of Jingleum, but whose real name was Jackson, or Johnson, or some such unhappy dissyllable, was the poet of the village, and a bard of renown for at least ten miles round. Him the painter won by praising his verses, and what was still more captivating, by singing them, and what was yet more enslaving, by requesting permission to cull all the stanzas of a *cantabile* nature from the long blue-covered log-books, in which Mr. Jingleum had carefully recorded his labours. Seeing what a congenial soul he had found in the painter, Jingleum freely supplied his wants, and wrote divers madrigals at his suggestion, with which Herman charmed the ears of Miss Loring. The poet soon became his intense admirer and perpetual visiter; they grew fast friends, and soon came to regard each other, the one as the divinest poet, the other as the most finished singer, under the moon. It would have been an interesting sight, could one have invaded the sanctity of the painter's apartment, on such occasions, to see them together, industriously fixing a tune to each affecting ditty,—a labour that was sometimes none of the lightest; and sometimes, when the genius of the bard, as it often did, chose to disdain the base bonds of metre and rhythm, and none of the thousand melodies in their service could be forced or wheedled into nuptials with his independent verse, they were fain to betake themselves to their own resources, and finish the business with such a *quodlibet* as they could manufacture between them. It was a divine enjoyment to the poet, when they had at last succeeded with any refractory song, to hear his lines breathed out from the mellow lips of his friend; for then his poetry seemed as celestial as his pleasure. His bliss, however, was not complete, until he lighted by accident, one day, in the village, upon a battered guitar,—an instrument of such venerable antiquity, that there was not a soul therein who was able to pronounce for what unheard-of purpose such an extraordinary engine had been framed, until Herman Hunter, swearing it could discourse most eloquent music, and was *not* a banjo, managed, by dint of much exertion, to fit it up with fiddle-strings and the savings of some demolished harpsichord, and set its dumb tongues twangling: it was not until he heard his rhymes trolled forth to the clatter of this romantic instrument, that the joy of the poet mounted to the heaven of ecstasy. He would sit distilling with delight, while the lips of his friend warbled over the seraphic lines, and while his fingers hopped over the amaranthine strings; and then, sometimes, with a sudden feeling of

inspiration, he would snatch the lyre, as he poetically called it, into his own hands, doubtless expecting an overflow of ineffable harmony from the mere fulness of his spirit, until warned by the dreadful dissonance of his touches, and the remonstrances of his admirer, he found, however extraordinary it seemed, that the drum and the jewsharp were the only instruments the playing of which came by nature.

This peculiar friendship betwixt the bard and the singer it is perhaps necessary here to mention, in order that it should be understood to whom should be given the credit of those canzonets sung by the painter, which seem to have any peculiar reference to his own condition. He did not carry his affection so far as to bestow any of his private confidence on the bard; nor did the latter ever suspect that any call, however urgent, for a ballad especially sad and amatory, was to be understood as indicating a passion deeper than that of the mere songster. There was little suspiciousness in the poet's frame, and no scandal-mongers in the neighbourhood. It was indeed the golden age of that part of the world; although the country was somewhat overflowed with paper-money.

It was one result of this generous spirit, doubtless, that caused the story of the resuscitation of a Hawk of Hawk-Hollow to be so soon forgotten. The account of the outrage upon Colonel Falconer, as having been perpetrated by Oran Gilbert, did indeed at first create a considerable sensation; and many excitable individuals, hearing of the chase after the fugitive Nehemiah, mounted their horses, and resumed the trail, the next day, with the resolution of sifting the mystery to the bottom. But the trail ended where Lieutenant Brooks had left it; the raw-boned white horse had passed through divers hands, and was, in course of time, supposed to have been recovered by the rightful owner; but the rider had vanished as if swallowed up by the earth, or melted into the air, and was never more heard of. The story died away, or was remembered only as a jest, which finally expired in the vapour of its own silliness. The reasonable men laughed at their late fears, and forgot them.

About the present time, however, there arose a rumour, no one knew how or why, which created a new sensation among the credulous and foreboding. It was whispered that a band of tories was secretly forming among the hills;

but where, or for what purpose, no one pretended to say. It was a vague and mysterious apprehension, that spread from person to person, by virtue, perhaps, of its enigmatic character; for no inquiry could detect a better reason for its prevalence. As it carried its contagion further and further, men began again to talk of the Hawks of Hawk-Hollow; the refugees, in imagination, rose again from their tombs, and the scalp-hunter stole anew through the forests. The rumour had reached the Traveller's Rest; but it made little impression on the spirit of the painter.

He laid aside his drawing in haste, so soon as he heard that clatter of hoofs in the oaken yard, which, he thought, betokened the coming of his friends; and having secured it beyond the reach of any prying eye, he descended to meet them.

CHAPTER XIII.

"Unto you," quod I, "with all my whole assent,
I will tell trouthe, and you will not bewraye
Unto none other my matter and entent."
"Nay, nay," quod he, "you shall not see that daye:
Your whole affiaunce and trust well ye may
Into me put; for I shall not vary,
But kepe your counsell as a secretary."

HAWES—*Pastime of Plesure.*

Instead of the bard or the physician, Hunter discovered that the clatter which had interrupted his secret labours, was caused by the arrival of a personage entirely unknown, and, as he soon began to believe, unworthy his notice. He was a stout but ill-looking man, with a soldier's coat and hat, both worn and shabby, and Herman inferred at once, that he was some private from a disbanded regiment, returning to the life of industry and

obscurity he had left for the wars. As he reached the porch, Herman saw that Dancy, the farmer, who happened to be about the house, was showing the new guest the way to the stable; and, however unprepossessing his appearance, he soon perceived that he had already struck up a friendship with Dancy, who talked and laughed, as they jogged together round the crag, as if with an old acquaintance. This set the painter's heart at rest; and he soon afterwards discovered that the man, being as humble in his desires as prospects, had visited the Traveller's Rest less in search of entertainment than employment, and had agreed with the widow, or rather with Dancy, who assumed the privilege of striking the bargain, to remain and assist the hireling in the labours of the approaching harvest, in consideration of receiving free quarters and forage during that period.

In the conversation of such a man it is not to be supposed the painter could have looked for any source of interest; and, accordingly, he merely gave him a glance as he strode away with Dancy, leading a sorry gelding in his hand, and then took a seat on the porch by Elsie, whose wheel, as usual, was droning out its monotonous hum near the door. Though hand and foot plied their accustomed task with accuracy and effect, it was evident that the poor widow's thoughts were not with her employment; on the contrary, she was engaged in profound and sorrowful contemplation; and, indeed, for a sennight past, Herman had observed that her fits of abstraction were unusually deep and frequent.

He sat down at her side, and addressed some few questions to her in relation to the stranger, but received such vague and irrelevant answers as convinced him her meditations were too engrossing to be easily broken. He proceeded therefore without delay to seek some other means of amusing his mind; and casting his eyes towards the distant hall, he was, in a few moments, plunged in reflections as absorbing, or even more so than her own. Indeed, his interrogatories, though they did not immediately rouse the old woman from her lethargy, served the purpose of interrupting and distracting her thoughts a little; so that she, by and by, woke up, and recovered herself so far as to look round her, and perceive she was not alone on the porch. She surveyed the young man very earnestly, until, at last, tears gathered in her eyes, and her wheel stood still. The sudden ceasing of the sound at once broke the spell that enchained the painter's spirit; and looking up to Elsie, he

displayed a countenance on which the turn of some darker thought had imprinted a character of sternness, and even fierceness.

Elsie rose up, and stepping towards him, laid her palsied hand upon his shoulder, saying, in tones both solemn and impressively appealing,

"Drive these thoughts from your bosom, and now depart. Why should you rest longer in this place? Your limb is sound, your strength is restored; and now begone, ere the calls of others, and the anger of your own heart, shall drive you into acts of blood, which, if you die not among them, you will live only to repent."

"Fear me not, mother," said the youth, with a faint smile. "On this subject, I have told you my resolution before. I am, at the least, as good an American as yourself; and whatever may have been my original loyal and subjugating propensities, I have now not a wish, nay, not a thought, of playing the enslaver. Nothing on earth shall draw me into the matter you think of."

"Ay, but revenge though!" said the widow, warningly. "You are dreaming of him whom you think you should hate, and thirsting perhaps for an opportunity to shed his blood?"

"You are deceived, Elsie. I will never lift my hand against him, unless in self-defence. God is the avenger, and, one day, he *will* avenge. I hate, Elsie, but I will not shed blood."

"And why then do you remain? If *he*, whom neither knife nor bullet can destroy, looks upon you again, as surely he will, and that perhaps sooner than you dream of, he will entice you into his bloody schemes; and though he escape, yet will you perish."

"Into his schemes I will not be enticed," said Herman; "and I rather hope, by argument and persuasion, to draw him from them."

"Argument and persuasion! and these to be tried on *him*?" muttered Elsie, looking around her as if in dread. "When you can argue the wolf from the neck of the dying deer,—when you can persuade the rattle-snake not to strike the naked foot that is trampling his back, then may you think of

turning him from his purpose, or changing his wild and dreadful nature. He will have revenge, and I know that he will obtain it. Years have passed by, —(how many and how bitter!)—the gray hair has joined with the black, the smooth brow has turned to the furrowed, but the purpose of his heart has not grown old and faded; all is now as it was, and so will be till the end. Think not of drawing him to your opinions; but be certain he will draw you to his. Go not near him, avoid him, let him not see you, or speak with you."

"Fear me not, Elsie"——

"I *do* fear you. Alas, young man, trust not yourself in his power; if he touches you with his hand, you will fall. God forbid you should be joined with him in the matter that is coming! I had rather you were struck down by lightning where you stand;—better were it for you, had you slept under the Fall of the Grave."

"Sure, Elsie," said the young man, "there is nothing so criminal and horrid in the enterprise, after all. The rescue of a poor captive,—a boy, too, of nineteen years, and the only son of a doting and noble mother, condemned to death unjustly and perfidiously, (that is a harsh word, Elsie!) to expiate a crime committed by another,—sure, this is an enterprise of humanity rather than iniquity."

"And do you think this is all?" cried Elsie. "A darker project is in his mind, and a darker deed will be soon accomplished. Why then do you stay? Have you not seen enough, and mourned enough? I tell you, when the marriage-day comes, the wronger will come, and after him the avenger; and who knows what dreadful deeds will be done, before all is over?"

"If it be a marriage of blood," said the youth, "why so let it be. They are, I firmly believe, leading Catherine Loring like a sheep to the shambles. If they mean to wed her to young Falconer against her will, why then, though there should be no other man in the world to befriend her, I will stand by her myself;——I will, Elsie," he exclaimed, impetuously; "and, if Falconer do not at once surrender his claims, I will compel him!"

"What!" cried the widow, starting from him in dismay: "What is this I hear? What! you,—have *you* looked at Catherine Loring, then, as a creature to be

loved! Have *you* dared"——

"Nonsense!" cried the young man, with a visage of flame; "I am enslaved to her by gratitude, and I wish to do her a service. I owe her a life, Elsie; and I will yield it up ten times over, before she shall be driven into a marriage she abhors, and which, I believe, is breaking her heart."

"Miserable, insane, cruel young man!" cried the widow, with unexpected energy,— "and it has come to this, then? You have repaid her humanity and kindness, by stealing away her affections from her betrothed husband, and so making a lot, sorrowful enough before, still more wretched! You have"——

"Hold, Elsie," exclaimed Herman; "it is you who are insane. You told me yourself, she was averse to the match.—And, as to stealing her affections, I have done no such thing—they are not so lightly come by. If they were, Elsie,—nay, if they were really mine, Elsie, why should I not make my claim to them, as well as another? I am neither poor nor humble, neither degraded nor corrupted; in all things of worldly good, I am young Falconer's equal, and perhaps, in some, his superior."

"Ay!" cried the widow, with increasing vehemence, "and if she smiled, and if that would win her, you would shoot Harry Falconer through the brain! Is it not so? This is dreadful! Oh, young man, begone; remain not a moment longer in the valley. You will commit a crime worse than self-destruction, and one more hard to pardon!"

"I will commit no crime, Elsie; and none have I yet committed. Your anxiety is absurd; and so is your suspicion. That I have the most friendly regard for Miss Loring, the most ardent friendship, is true; but as to loving her, Elsie, that—why that is all nonsense."

"Perhaps it is," cried the widow, "and Heaven grant it may prove so. But go not near her again, do not expose yourself to the intoxication of her society. If not a wrong to yourself, it is an unkindness to her. If you talk to her of escaping from the marriage she hates, and she finds she has a friend left in the world to aid her—ah, that would ruin her! The desire of escape may madden the wisest."

"Fiddlesticks!" cried the youth; "I have no such coarse and meddling ways of testifying my regard; and a presumption of that kind would banish me from her presence for ever. But, Elsie, I tell you, I cannot bear the thought of her being married against her will."

"And how can you prevent it? By wedding her yourself? That cannot be. By breaking her heart? Yes, there you may succeed—it is breaking already; and when you have added one more pang to it, it will soon cease to suffer. Harken, young man; if you persist in this thing, you will be a villain. Go up to the grove—get you to Jessie's sleeping place; and consider how fast you are treading in the steps of him who slew her."

"I, Elsie! This is extraordinary!"

"It is true. Both of you were carried, sick and dying, into the house of a stranger; both of you were received by guileless and open hearts; and, when you have gone a little farther in your folly, it can be perhaps said, that both left sorrow and death behind them."

"Elsie, this is shocking? Do you think me such a villain as that man?"

"I do not," said Elsie; "if I did,—if I thought you were now, like him before you, plotting, even in conceit, a wrong to that noble girl,—if I thought this," she added, with singular asperity, "I would put hemlock into your food, though you were the child of my own sister, and you should die before morning!"

"I commend your zeal in the lady's cause, and will myself endeavour to imitate it. But there, an end, Elsie; we will talk of this no more. Your fears are even more groundless than injurious. I will leave the valley soon—perhaps very soon; and I will murder no one, while I remain in it."

So saying, to end a discussion which was becoming disagreeable, he left the house, resolved to make his way to the scene of his late disaster. In this resolution he continued, until he reached the park-gate; when, suddenly observing the flutter of a white garment under the trees near to the mansion, he turned from his path, and again found himself in the presence of the Captain's daughter.

And thus it happened with him on the next day, the next, and again the next; until the little thread that tangled his spirit had become a web from which there was no escape, unless by rending away some of the vital limbs it encircled. He sang and painted as before; nay, he assailed the Battle of Brandywine with zeal and industry, and had advanced so far with the work, before the occurrence of unlooked-for events chilled his enthusiasm and palsied his hand, that he was able to carry it to the mansion, and exhibit it to the father and daughter, that he might derive all the advantage of their remarks on the most difficult feature of his subject,—that is to say, the figure of the Captain's deceased son.

In the meanwhile, he confirmed the good impression he had long since made on his two friends, and was indeed admitted to such intimacy with both, as marked, not only their sense of his merits, but their own simplicity of character. In the case of the Captain, he certainly began to fill up the gap made in his affections by the death of his son; and as for Catherine, she soon appreciated the value of a friendship based upon grateful recollections, and, what seemed to her, a delicate and purely disinterested regard for her weal and happiness.

The situation of this unhappy girl,—for such, in truth, she was,—was of a nature to engage her feelings warmly in favour of any one approaching her with real friendship, as it was also to touch the sympathies of the discerning and compassionate.

"Naught is there under heaven's wide hollownesse,
That moves more dear compassion of mind,
Than beautie brought t' unworthie wretchednesse,
Through envie's snares, or fortune's freaks unkind."

She was still very young, yet old enough to feel the desolation of her father's house and fortunes, and to be willing to sacrifice her own happiness to secure that of her parent. At the very moment when her father became a beggar,—an outcast from the home of her nativity,—her charms had won the heart of the young Falconer,——'A lad,' as Captain Loring was wont to say, 'after a man's heart, and a woman's too;' and the enamoured youth, with his father's fullest approbation, and indeed warm encouragement, claimed permission to throw himself at her feet, and received it. Perhaps the

consideration of her father's misfortunes had greater weight with Catherine than the temptation of wealth and splendour; and perhaps the indifference of a young and wholly unoccupied heart had also its share of influence in determining her decision. It is certain, if she did not consent with alacrity, she did not refuse so earnestly as to make the Captain believe the proposal was otherwise than vastly agreeable to her; and, in truth, it was some considerable time before she began to lament her easy consent, and to feel that there was merit, because pain, in the sacrifice. The great youth of the pair (for at the time of betrothal, the lover was yet in his minority,) had caused the nuptials to be deferred until the close of the spring of the present year, but a short time previous to which the attempt was made on the life of Colonel Falconer; and that occurrence had necessarily produced another postponement. In the meanwhile, the maiden had grown older and reflected more deeply; and the regrets that began to wake in her spirit, though, at first, she scarce knew why, became more frequent and painful, as fame, or scandal, brought to her ears stories of wild frolic and dissipation on the part of her absent lover. These reports, to be sure, were combated by Miss Falconer, and the excesses they proclaimed made to appear, as they always are in the case of the rich and happy, only the natural outbreakings of a joyous and generous spirit. But Harriet's skill could not prevent her friend discovering that the young soldier had little beside a comely face and a merry temper to recommend him to her favour; and perhaps no circumstance will sooner prejudice a woman against a lover, not previously adored, than the discovery that his mind is inferior to her own. The *passion* of love is a material instinct; the *sentiment* is a particle of the divinity, and can only exist when called into action by the breath of spirit. Woman's love is only deserving the name when it is purely a sentiment, and based upon reverence for the idol of her affections. In a word, Catherine found she was to be wedded to a man she could never hope to love; and it required her constantly to keep before her eyes the situation of her father, himself wholly incapable of retrieving, as he had been of preserving, his fortunes, to prevent her openly repining. To him, therefore, she could not look as a friend, in her difficulty; his affection could be indeed counted upon, but it could be exercised in her favour only at the price of his ruin. As for Miss Falconer, though she loved her well, she knew that *her* spirit was entirely with her brother, and that she encouraged, and did all she could to promote, the match, for his especial benefit, as a means of weaning him from a gay

and dissolute career, which threatened, if not speedily checked, to terminate in confirmed profligacy.

With feelings of this kind constantly weighing upon her breast—a consciousness ever present, that in the death of an only and beloved brother, she had lost a friend to whom she might have unbosomed herself in grief, and from whom she might have expected sympathy and relief,—it is not extraordinary that the kindness even of a stranger, expressed ever with delicacy and gentleness, and uttered not so much in words as actions, should make a strong and enduring impression upon her feelings, and that she should bestow upon him the frankest evidences of regard.

"Ne evil thing she fear'd, ne evil thing she meant."

A circumstance—and it was the only one—which seemed at first to threaten a speedy interruption of their good understanding, served in the end even to strengthen her confidence and friendship. In an unguarded moment, and while under a strong impulse, the young man alluded to the approaching nuptials, and that in a manner so plainly indicative of his knowledge of Catherine's feelings, and of the sacrifice she was to be compelled to make, that she was justly alarmed and offended. She felt as a woman, that this was an indecorum and presumption of the most unpardonable nature; and the reproof it brought upon the offender's head, was the stronger for being mingled with the tears of humiliation. But even this was forgiven, when several days elapsed without bringing the youth back to the mansion, and she reflected how much his offensive intermeddling must have been caused by the sympathy she was ever so glad to possess. She was really rejoiced, when her father, astounded and concerned, and finally enraged, at the unaccountable absence of his favourite, sought him out, and dragged him, almost by force of arms, to the mansion, and she heard his footsteps once more sounding on the porch; and Herman soon perceived that she had discharged from her mind all anger, if not all remembrance of his ungoverned zeal, and was disposed to treat him with as much confidence as before. In truth, she was one of the few we meet in the world, and perhaps as seldom even in woman as man, of that angelic quality of spirit, which mingles inaptness to take offence with the greatest readiness to forgive it; and as all he had said was made offensive not so much by its nature as by

the position of the offender himself, and would have been proper in the case of a near kinsman or old and familiar friend, she easily persuaded herself that the very rudeness was an evidence of regard, which she did wrong to punish with severity. She never perhaps afterwards smiled with the same gayety, or conversed with the same unreserved freedom; but she treated him with much confidence; one proof of which, from its singular nature, and the important, though secret, influence it had upon the young man's conduct, it is necessary to mention. She took occasion one afternoon, when her father was sleeping, and her female companions were occupied afar-off in various domestic duties, to call his attention to the subject of the outrage on Colonel Falconer, with which, as an intimate at Gilbert's Folly, he was, of course familiar. 'She had,' she said 'a letter from Miss Falconer in relation to the unhappy and mysterious affair, and to certain steps that lady was taking in consequence of it. These,' she added, 'though of a singular nature and questionable propriety, she would not perhaps have presumed to communicate to another, as they were in a degree confidential, were they not accompanied by a call upon herself for co-operation, under circumstances so perplexing and embarrassing, that she felt herself at liberty to ask Mr. Hunter's assistance and advice,—the former for her friend, the latter for herself. She judged, from many expressions he had let fall, that Mrs. Bell had made him acquainted, in part at least, with the history of the Hawks of Hawk-Hollow; for which reason, he would be able to understand the letter without comments from her. He had seen one individual who figured prominently in the letter; and his opinion and recollections of *him* would undoubtedly be acceptable to Miss Falconer. On the whole, she was persuaded he could assist her in what she felt to be a difficulty; and perhaps he might be able to suggest something for the benefit of her friend.'

With this preliminary explanation, she proceeded to read Miss Falconer's letter, not stopping at those parts which alluded to the painter himself, and of which she made diverting use, though here and there for obvious reasons, altering some of the expressions, and apologizing for others in a humorous way. It may be supposed, and with justice, that she carefully abstained from reading all those passages in which she was herself spoken of, in connexion with her affianced lord; and, indeed, the occurrence of these always caused

her lip to quiver, and her finger, tracing the lines as they occurred, to hasten onward to the next fitting paragraph.

The letter was to the following effect:

"And so Monsieur Red-Jacket is alive and well, and handsome, and paints, and has a good singing voice, and is altogether a genteel young personage! Well now, though I detest his very memory, and never see a scarlet waistcoat, without thinking of two galloping fools, and another standing on a porch grinning, I am quite glad you fished him out of the river, since you have thereby got such a conformable well-behaved young man to keep you company, for lack of a better,—the doctor and the rest of those village noddies being all insufferable, as I always agreed. If he can really succeed in obtaining your likeness, retain him in the Hollow by all means, even if you have to break an arm for him over again. We must have at least two copies, one of which will set our beloved Harry frantic, and the other I will keep myself. The man may fix his own price; and, besides, I'll patronise him, though I *do* detest him. Harry shall sit to him, I assure you; and perhaps I also—just as I happen to like him—that is his painting, not himself. Do you remember, as we sat at the sycamore tree, I wished him 'a harder sleep that night than he ever had before?' There's something odd in the coincidence; a hard night he had of it, from your own account, poor rogue. I only thought of an old bed and damp sheets, such as I supposed it likely enough he would find at that old witch's. I will wish bad luck no more, believing I have some magical power that way, which might, sooner or later, lead me to commit murder. However, I have more important matter for discoursing on.

"Papa is recovering fast; indeed, he was pronounced out of danger before I reached him; and he already talks of banishing me again to the green fields. To tell the truth, I have grown more inquisitive than ever; and it is plain, he is tired of me. That story, Kate, has set my brain spinning; but blessed be thou for telling it! There will such good come of my knowledge as will perhaps astound you, and him too.—But you shall hear.

"The assassin is wrapped round about with mystery,—a most singular doubt. My father is, or rather *was*, (for he never pronounced the wretch's name, except in the first moment of confusion and terror,) positive that the blow was struck by the Hawk of the Hollow; and who should know better? Yet, I can tell you, there are circumstances pointing so strongly at another man, that every body pronounces him guilty, except myself and, I suppose, papa; and these they are. There was (I speak of the man as if he were dead, for he seems to have killed and buried himself,) a certain vagabond in our town, called Sterling, or Starling,—a man of much shrewdness, some talent, and possessing a degree of rough humour and wit which made him a favourite with many of our citizens, some of them quite respectable, and delegates in Congress. Nobody exactly knew how the man lived; though it was generally supposed by gambling. An accident of no great importance in itself, revealed the fellow's true character and occupation to my father, who forthwith acted as honour and patriotism commanded him to do. This Sterling was a spy,—a pensioned spy, whose duty was to reside at our Congressional head-quarters, and by cultivating acquaintances among the honourables, pick up as much intelligence in relation to secret legislation as he could; and there is no doubt, the villain has laboured so well in his vocation, that the British commander-in-chief has been often apprised of our intentions as early as our own leader. It is said that Sterling was once an actor; they say, he has strong comic talents, but has a mad conceit he was made to shine in tragedy. He once got up a sort of company in our town, with the expectation of establishing a theatre. However, his friends all turned upon him the first night, the piece being tragedy, and laughed and ridiculed, and finally carried the matter so far as to hiss the poor wretch off the stage. They say, my brother Harry (I believe it was before he entered the army,) was a ringleader among the hard-hearted censors.—An exemplary youth, he! He was ever a most incorrigible mischief and plague, notwithstanding his excellent heart; and the duel he fought with his captain last winter, (a warm friend of his now,) was caused by one of his freaks of humour.—But marriage cures all that, you know.—However, I must speak of Mr. Sterling.

"My father obtained such proofs of the treason of the lord of the buskin as might have brought him to the gallows, and he was thrown into prison; from which, however, he escaped as soon as was convenient. I think, it happened eleven days before the outrage was attempted; and long before that, he was supposed to have succeeded, by verifying Shakspeare's words, (that is, by esteeming the world at large the boards of a theatre, and playing many parts thereon,) in passing the lines of the army, and reaching New York in safety. Indeed, he was, in a week's time, almost forgotten. But now comes the marvel.

"My father had entered the pavilion, (as I wrote you before,) to get certain papers. They were the very documents in relation to this man's case,—the proofs of his treasonable practices, &c., which were put into papa's hands, when he volunteered to conduct the prosecution. The man was really such a favourite, that all others were quite cool in the matter, and rather disposed to let him off, than push matters to extremity, especially as hostilities were almost over: even Harry interceded for him. Papa, however, was determined to bring him to justice; and therefore volunteered in the case. He had these very documents in his hands, when the assassin, (whoever he was,) who had previously concealed himself in the pavilion, or stole into it after him, suddenly assailed him; and, what is curious, it was found, when they came to examine afterwards, that these papers had all vanished, together with my father's purse, and a small-sword which he always kept hanging up in the study.

"The next thing discovered was, that a certain horse, the property of this Sterling at the time of his arrest, but which some one had seized upon and sold, to satisfy some claim or other, had disappeared from a neighbouring farm, where it was at pasture. The animal being traced, it was found that he had ambled up the river, supporting the weight of an individual, who, although assuming to be a fanatical parson, had so many points of resemblance to the original owner of the horse, that it was immediately affirmed, he could be no other than Sterling himself, playing off a character of which he was notoriously fond;—a ranting, canting parson, as Harry says, being one of the impersonations with which he was wont to set the table in a roar. You know the rest of this

man's story; his sudden appearance at Elsie Bell's, at the very moment when we were discoursing of the Hawks under the sycamore;—his flight over the river, and his sudden disappearance. I suppose, he assumed some new disguise that deceived the pursuers.

"These things favour the opinion of the mass, who will believe nothing less than that the murder was attempted by Sterling, in revenge of my father's zeal in bringing his villany to light. But now remember, that papa was the only one who *saw* the assassin; that he knew the faces of both parties; and that he affirmed the villain to be Oran Gilbert, without so much as mentioning Sterling's name. Can there be any striking resemblance between the two traitors? Might not a course of extraordinary coincidences have assisted the Hawk in adopting (even without knowing it himself) the appearance and manner of Sterling in disguise? Nothing should be thought too incredible in such a case, for the whole matter is a wonder.

"I have not space to mention all I wish, or all I have learned, that confirms my father's words. This, however, is certain: Oran Gilbert *is not dead*, but alive, and is engaged *somewhere* upon *some* villany; but where and what—ay, there's the rub. I have received intelligence not to be doubted a moment, that he was in New York, and that he left that city, about two months since, on some secret enterprise.

"Now, Kate, I have little more to tell you, except that I have turned thief-taker; that I am convinced Oran Gilbert was the midnight assassin, and is, at this moment, lying in wait in a certain place, with the expectation of renewing the attack on my father's life; and that I, weak woman as I am, have laid a trap for the cruel and remorseless villain, which may bring the doom he is projecting for another upon his own head. Don't stare; and don't say any thing of the matter. You cannot comprehend the spirit that now inspires me; I am playing the part of a man, but in a very ladylike way, and all to guard my father from the knife that is still outstretched against him. You shall know all in good time—sooner perhaps than you imagine. It is necessary to my purpose that I should have a minute description of Gilbert, his height, figure, eyes, hair, nose, mouth, his age, &c.: get it of Elsie Bell, and

don't let her suspect you have any object beyond mere simple curiosity. If we could make the old creature speak, I warrant me she could tell us enough of the villain. I entrust this matter to you. Don't scruple: you *can* deceive as well as any body, when the spirit of woman seizes you; and the end we have now in view will excuse a mountain of duplicity. You can also make inquiries (but, mark you, *not of her*—don't let her suspect suspicion,) in relation to the appearance of the preacher Poke. Your bonny Red-Jacket, the dauber, can doubtless answer satisfactorily on this point, painters being commonly good observers. As for your father, I interdict all counselling with him; for, first, his memory is not to be relied upon, being somewhat dependent upon his imagination, you know; and secondly, because we must take no more confidants into the confederacy than we can help. Every thing depends upon secrecy. I long to tell you the whole matter, but dare not *yet*—no, not even so much as the names of my counsellors, auxiliaries, agents, &c. By the way, did you observe Lieutenant Brooks? He is very genteel and agreeable, I assure you—and the shrewdest, boldest-witted brain for his youth I have ever seen. He will attend upon Harry, and you will adore him.—But my third sheet is out, and so I must conclude.

"As for your fourth of July jollification that you talk of so sentimentally, I hate all such merry-makings. What do I care about Jingleum, and his orations? Could they find no more reasonable Demosthenes? And then the folly of dragging up drums, and cannons, and militia companies, dogs, horses, and women in their Sunday clothes, to the sacred solitudes of Hawk-Hollow! Sure, you are all gone crazy: it is profanation. I should not wonder if the martial din of the jubilee should bring a regiment or two from the lines upon you. We shall see what will come of it.

"*Addio*——Do my bidding, and keep my counsel.

"*Mem.* It is very odd, I forgot the postscript."

The contents of this epistle, as Catherine saw, greatly surprised, and indeed confounded the painter; and it was some moments before he could shake off his embarrassment so far as to comment upon it. 'He esteemed it very singular,' he said, 'and very improper, that Miss Falconer should engage in

an enterprise such as she so significantly hinted at; and he thought she was impelled by a species of frenzy. Her suspicions, that the assault upon her father had been committed by a Gilbert, were ludicrously absurd. How was it possible her father should, in a single glance, and almost in darkness, recognise a countenance he had not seen for more than twenty years? How could it be believed that such a man, a refugee captain, long since formally outlawed, should force his way into the very strong-holds of his enemy, commit a crime of unexampled daring, and then, with audacity still more astonishing, direct his steps towards the district where he was so well known? How incredible, that a man of his wild and stubborn habits could adopt a disguise so outré as that of Nehemiah! How much more incredible, having taken such pains to shed a foeman's blood, that he should have done his work so bunglingly! The idea was preposterous. Every thing went to show that Sterling was the assassin; and it was quite probable, nay, it was almost certain, that Nehemiah and Sterling were one and the same person. He could not pretend to say, or to know, or to be very certain, of course; but he was sure Nehemiah was an impostor, much more familiar with tags from play-books than scraps from the Bible, and so he had told the man himself, though not in direct words; the consequence of which was, that he instantly took the alarm, crossed the river, and escaped. As to the request made of Miss Loring in relation to the information she was expected to obtain of Mrs. Bell, that was as unworthy of Miss Falconer as compliance would be on the part of Miss Loring. It was quite proper, indeed, she should ask Elsie for information, but not without apprizing her of the object in view. But even this was needless; *he* had heard Elsie speak of Oran Gilbert's appearance, and he could assure Miss Loring that no two persons could be more unlike than he and the ranting Nehemiah, the one being a man of middle size, the other a giant. He would advise Miss Falconer to adopt two measures, which would go farther to effect her objects, (which, he supposed, were, to protect her father from future danger, and to punish his enemy,) than all the witty and masculine stratagems in the world. If Oran Gilbert were really alive, and within the American lines, then let her persuade her father to remain in the city, afar from his dreaded vengeance; *there* he most certainly was safe. To punish the assassin, application should be made to the British commander-in-chief at New York; and as the atrocity was purely of a civil nature—a case of malicious, inexcusable violence—it was highly probable he would be at once brought to justice.'

With remarks of this kind, which appeared to her to be founded in good sense, he satisfied Catherine that her confidence had not been misplaced or unprofitable; and the time waxed on, without causing any abatement of her good opinion, or any interruption of an intercourse highly agreeable to her own feelings.

CHAPTER XIV.

I called on Vengeance; at the word
She came.

SIR EUSTACE GREY.

The letter of Miss Falconer contained an allusion to an approaching festival, which she characterized as a '4th of July jollification.' This day was already rendered sacred in the affections of Americans; and the prospect of a speedy and successful close to the battle of independence had disposed them, throughout the whole confederacy, to signalize its recurrence with all the pomp and glory of observance. The spirit had awakened even in the precincts of Hawk-Hollow; and the villagers, taking advantage of the patriotic offers of Captain Loring, had made extensive preparations to celebrate it among the solitudes of that lovely valley. They assembled in public meeting, appointed committees of arrangement, purveyors, marshals, and masters of ceremonies; and that the occasion might not pass without a due share of national glorification, they selected an orator, who, it was universally supposed by all his friends, would electrify the souls of his auditory by a display of impassioned and heaven-inspired eloquence. It happened, however, that the appointment of Mr. Jingleum to this honour had disgusted the adherents of another candidate; and the consequence was, that, in the end, there were two different celebrations, held at different places, one in the village itself, which being more convenient to the mass of citizens, was much more numerously attended than the rival jubilee in the

Hollow. Indeed, the spirit of faction running very high, there were found so many arguments against holding the convocation at the latter place, that the current of public opinion soon set decidedly against it, and it promised to be quite a failure. It was indeed but thinly attended; although circumstances arose to give it an *éclat* entirely wanting at the other.

The gentlemen of the committee, finding how matters were going, redoubled their exertions, and by adding preparations for a *fête champêtre* to those for the more public object, succeeded in awakening an interest on the side of the female portion of the community; so that, as the day drew nigh, they began to hold up their heads and boast aloud, that, go the day as it might, the beauty of the country would be found displayed only in the valley. The scene of festivity determined upon was the little promontory at the mouth of Hawk-Hollow Run, and the river-bank at its base, where were such green plots as might have enticed fairies, as well as mortal women, into the joys of the dance. A small piece of ordnance was dragged upon the promontory; the venerable habitation of the fishing-hawks was tumbled about their ears, and the tall and naked trunk that supported it, converted into a gigantic flag-staff, from which the striped banner was seen waving as early as the afternoon of the 3d. A scaffold some five or six feet in height was also erected around the trunk, and a tribune, or orator's desk, with seats behind it, constructed thereon; the whole forming a rostrum suitable to the occasion, which the good taste of the supervisors caused to be canopied and adorned with branches of laurel, that were also wreathed around the tree almost to its top. The whole of the day preceding the celebration was occupied with these and other preparations, in most of which the painter contributed his personal assistance with great zeal. He had consented, after first flatly refusing the honour, tendered him at the instance of his friend the poet, to accept the appointment of reader of the Declaration, with the pronouncing of which sacred instrument the exercises of such a celebration are always begun; and although, on many occasions, when his auxiliaries were all as busily occupied as himself, he betrayed a strong disposition to desert, and betake himself to the distant mansion, there was no one, when all were assembled together under its roof, sharing the hospitality of the Captain and the smiles of his daughter, who exhibited a more disinterested anxiety to hurry all back again to their duties.

The evening came, and the preparations having been completed, the bustling Committee-men mounted their horses, and retreated to the village, leaving Gilbert's Folly to solitude; for not even Herman returned to it that evening. But an unexpected guest made her appearance, an hour after night-fall. As Catherine sat musing on the porch, perhaps moralizing, as she watched the spark of the fire-fly, now struggling in the moist grass, now flitting among the oak-boughs, and traced the resemblance it seemed to figure forth to the life of man,—a tissue of linked light and darkness,—a bolder beam flashed along the park, the roll of wheels was heard on the gravelled avenue, and before she had time to wonder or surmise, a carriage stopped at the door, and in a moment she was clasped in the arms of Miss Falconer.

"Brava for my dear self!" cried the lady; "my generalship is complete—I take even my friend by surprise! Wo therefore to my enemies! for this is a part of my practice. *Eureka! Eureka*, Kate! as the old philosopher said, when he discovered what the little fishes knew before him: I have discovered the enemy, and to-morrow I will take him! Never trust me if Congress do not order me a vote of thanks for my doughty services.—Where's your father?"

"Sleeping in his arm-chair," replied Catherine, confounded by the vivacity of her friend's expressions; "tired with entertaining so many people, and being so much on foot; and I believe he would have gone to bed, except for Mr.—that is to say, Monsieur Red-Jacket."

"Hang Monsieur Red-Jacket!" cried Harriet, quickly: "If he is here, get rid of him,—I've a thousand things to tell you.—Not here, then? but coming? Shut up the house, and fasten the doors—no admission to any superfluities to-night. And pa's sleepy, too? Pack him off to bed, dear Kate; tell him 'tis ten o'clock; or wait till we get the carriage away, and all quiet, and don't let him know of my arrival; we'll surprise him in the morning. I tell you, you unconscionable girl, I have such a secret to relate!—a secret so big and mighty, that I have been more than half dead with keeping it already!"

Ardent as were the lady's desires to escape the welcome of the return for that night, she was doomed to a disappointment. The bustle of arrival broke the Captain's slumbers, and he rushed into the porch, after a host of

domestics bearing lights, expressing his rapture that 'his dear Harry' had arrived at such a lucky time; "For," said he, "we've laid in two hundred and fifty charges for the six-pounder, and we'll have such a roaring racket as has never been heard this ten years; and there's Tom Terry, the trumpeter,—was regularly brought up in the troop school, and blasts a charge to make your blood boil! and there's the drums and fifes! and there's my boy Haman to read the Declaration! and, by the lord, now I think of it, there's the Battle of Brandywine and Tom Loring dying! There never was such likenesses painted by mortal man."

The Captain yawned fearfully while he spoke; but his enthusiasm was fast dispelling his drowsiness. Miss Falconer groaned in spirit; but woman's wit came to her assistance. She imitated his example, opened her lovely mouth, with an expressiveness his own could not resist, exclaimed, "Oh, how tired I am!" and concluded by vowing she could not keep her eyes open, but must retire to rest forthwith. In this manner, she succeeded in escaping to Catherine's chamber, whence she immediately expelled both Phoebe and her mother, charging the latter, as the Captain had also signified his disposition to retire, to lock up the house, and admit no visitors to disturb her or her companion.

As soon as these instructions were given, she turned to Catherine, and cried, with extraordinary eagerness,

"The man with the red hat! that fellow that helped the painter out of the brook,—what has become of him?"

"I know not," replied Catherine, surprised at the question.

"What! has he never been seen in Hawk-Hollow again?"

"Really, I know not—I have never heard: I suppose not."

"Oh, you poor owls! blind birds that you are!" exclaimed Harriet, laughing, yet preserving an earnest air: "I believe, if Beelzebub himself came riding into the valley, nobody would suspect him to be a bad Christian, provided he kept his tail in his coat-pocket. As for the cloven hoof, he might wear

that naked; no one would think of looking at it. And Gilbert, the Hawk of the Hollow? have you heard of him no more?"

"Oh, there is some idle rumour among the people, but I think it foolish. But, Harriet, you got my letter, with the advice I gave you? You must know, I had that from a sensible person I was obliged to take into the secret"——

"Good Heaven!" cried Harriet, in alarm, "you have not told any one? Catherine, how could you? This may ruin all."

"I do not know what it is to ruin, Hal; but it will not ruin by betrayal of the secret. Mr. Hunter is"——

"Mr. Hunter!" exclaimed Harriet, in as much wonder as dismay. "What! Red-Jacket? a stranger, a vagabond dauber, to be made the repository of such confidence! Really, Kate, you will drive me mad. How could you be so insane?"

"These are severe rebukes, Harriet," said Miss Loring, "and perhaps, in my case, they are just and well deserved; but you will not be so harsh with Mr. Hunter, when you know him better. He is a gentleman, Harriet,—in every particular, a high-minded, honourable man. On his good will and friendly co-operation, I knew I could rely; he was shrewd, sensible, and had seen one individual you inquired after; I had no other person to look to for advice. I acted with my best discretion, Harriet, and for your sake."

"Well, don't pout now," cried Miss Falconer, throwing her arms round her neck. "Soldiers—that is, generals,—as Harry vows, are ever pestilent scolds; and you must lay my shrewishness to the door of military impulses. The thing can't be helped; I don't blame you; if Red-Jacket be really a sensible fellow, why there is no harm done; and, as I said before, I'll patronise him; and if the matter be not blown already, in good truth, he will not have time left him to do mischief. But now for my story—and know, Catherine, in the first place, you are surrounded by cut-throat tories,—by skulking refugees,—by the Hawks of Hawk-Hollow!"

"Sure, Harriet, you are raving!" cried the Captain's daughter, in affright.

"It is as true as that the stars are shining above us," said Miss Falconer, her eyes flashing with a soldier-like fire; "and to-morrow, when you look only for mirth and merry-making, you will perhaps see—ay, Kate, *see* them fight their last battle. It is well you had me to watch over you, you poor cowardly mouse; or you might have been scalped and murdered, a week before your wedding-day. But all's safe, Kate; so leave trembling, and put yourself under my protection. To think we had that blood-stained demon so near to us, when we were talking about him! Nay, to think we had him in the house here, and my brother and myself standing hard by! Truly, Kate, had I known him, and could have laid my hand on a pistol, I should have fired it at the audacious monster—though I have no doubt, I should have hit some one else. That vagabond, malignant-mouthed villain with the red hat—who would have dreamed that blood-coloured covering was on the head of Oran Gilbert?"

"Impossible, Harriet! Remember, that he was in the house here nearly an hour,—that Green, the Indian trader; and at that very moment, the party was chasing the true murderer beyond the river."

"Nonsense!" cried Miss Falconer,—"*nonsense and ignorance together. Listen to my story, and talk no more of impossibilities.*"

She then proceeded to relate, that, having recovered from the shock and confusion of mind produced by the sudden intelligence of her father's mishap, she began at once to gather all the information she could in relation to the outrage, and rack her ingenuity to penetrate the mysteries that attended and followed it. The information communicated by Lieutenant Brooks in relation to the fugitive of the white horse, though it added to the perplexities of others, threw a gleam of light upon her active imagination. It has been mentioned that this young officer, while in full pursuit of Nehemiah, had lighted upon a certain pedler who had, but a few hours or moments before, exchanged horses with the parson,—a piece of traffic which the trader was then bitterly lamenting; for though he confessed he had received a reasonable 'boot,' or consideration, he declared he was never more cheated in his life, the horse being knocked up and almost wholly worthless, as any one, he said, might see; he had been thrown off his guard by the holy character of Nehemiah; "for who," said he, "would think of

being cheated by a parson?" He was very desirous, so great was his rage at the imposition, to guide the party himself after the cheat; but his horse being incapable of keeping up with the others, they were fain to receive his instructions, and leave him behind.

Two suspicions instantly entered Miss Falconer's brain; first, that in the indignant pedler, the pursuers had found and suffered to escape, the very rogue they were seeking; or, (and the second conjecture seemed to her the more rational,) that they had lighted on some agent he had despatched across the river for the purpose of misleading the avengers, he himself assuming a new disguise, and boldly remaining in the Hollow, until the hue and cry were over. She could give no particular reasons for turning her suspicions upon the Indian trader, save that his fierce countenance and savage bearing had made a strong impression on her imagination; and as she did not for a moment dream that the assassin could be any other than Oran Gilbert, she was as ready to discover his identity in the person of Green as in that of Nehemiah. In all this there was evidently, as Catherine in fact perceived, a degree of confusion and hallucination in Miss Falconer's mind. The idea had seized upon her, and it was impossible to shake her faith in the conception. It was in vain that Catherine urged the impossibility of merging the gigantic bulk of Nehemiah in the more moderate proportions of the trader. Her mind was made up; on that persuasion she had governed all her actions; and the result satisfied her that she was right, as the events of the morrow would show to the whole world.

She went on to relate, that, having communicated her suspicions to Lieutenant Brooks, as well as her belief that the bold outlaw would soon gather about him all the disaffected of the country, and strike some unexpected blow, that he instantly declared his readiness to sift the matter to the bottom, and at once devised a scheme that had already satisfied himself and his superiors of the justice of her monitions. A certain private of his own company, a man of bad character, but of the most crafty and daring spirit, had been selected as a fitting instrument; and, after a singular course of duplicity, which she related at length, had not only discovered that a band of refugees was already formed in those deserted solitudes, but had intruded himself among them. He had managed to communicate with his officers through *her*; he had discovered that the band, which was scattered in squads

through the country, was actually commanded by Oran Gilbert; and though he had never yet set eyes on this redoubtable chief, he had heard and communicated enough to prove that he and John Green the trader were one and the same person. He had discovered, also, that one object of the rising was to be the rescue of young Asgill, the British guardsman, then under peril of suffering, by the mere law of retaliation, for the execution of Captain Huddy, mentioned in a previous chapter; after which was accomplished, (and until then no danger was to be apprehended,) he did not doubt they would begin to burn and murder, according to the usual system of tory tactics. One effort had been already made by the desperate partisan, single-handed, to rescue the young prisoner, while riding out on parole; and this was only defeated by Asgill's firm refusal to dishonour the pledge he had given his enemies. It was designed therefore to carry him away by force, which might easily have been done, so much license being allowed him in riding out for exercise, had not the communications of Parker (for such was the bold agent's name,) put the keepers on their guard. By the same hands, she had been informed of one haunt of the outlaws, at which Parker was himself posted, and where he pledged his soul to yield up the tory captain on the day of the approaching festival, provided the instructions he gave should be implicitly followed by his officers.

She then drew, from among divers other mystic-looking documents, a scrap of dirty and crumpled paper, which she declared, with a laugh, was the last epistle she had received from her new and highly esteemed correspondent, which was as extraordinary in style of writing as in appearance, being obviously the production of a rude and illiterate soldier, making unusual efforts at composition on account of the dignity of the correspondence and the character of the correspondent. It began by styling Miss Falconer 'Honourable madam to command,' and ended, after a postscript, in which he showed a discreet regard for his own safety, by cautioning the lady to 'let all the boys on duty remember the two rabbit-tails he was to wear in his hat,'—'as a sign for to be known by, and not shot at by accident; for, these vagabond refugees being uncommon crusty cut-throats, there was no use in being banged at on both sides,'—and by 'hoping, as before, that her honourable madam was well, and begging her pardon for singing a soldier's song,—

'God bless George Washington, God d——n the King!'

and was dated on the '29th June, if I reckon right, in the year of our Lord, Anno Domini, 1782.'

It was stated in this precious epistle, that the different squads were to meet on the 4th July, at a general rendezvous within seven miles of Elsie Bell's tavern; but for what purpose he could not divine; they were, however, to meet their captain there. The place he could not describe; but as he was ordered, with six others, to take post in it two or three days before the 4th, he promised, on the night of the 3d, to deposite a letter containing a full description of the place, together with his final instructions, at a certain spot near the park-gate, which he described with a soldier's precision. There was much other matter in the scrawl, which Catherine only read so far as to satisfy herself that this bold traitor had laid a scheme for surrounding the whole lurking party; and Harriet assured her, that his advice had been followed to a letter, that, at that very hour, a strong force was marching thitherward from the army, and would be, by sunrise, perhaps earlier, in command of all the escapes from Hawk-Hollow.

"Besides this," she cried with triumph, "you will see some visitors among the feasters you have not dreamed of,—Harry himself, Mr. Brooks, and Captain Caliver, at least,—to receive the instructions of the last letter. *That*, Kate, we will seek at the dawn of day: see how methodically my martial swain discourses of the place of deposit:<p>

"'It's a spot you can't miss,—but to be certain, you should start from the middle of the gate, facing right towards the house,—march nineteen steps, then halt, face to the left, dress, and fetch five steps and a half more, which fetches you to a bush that has a sweet smell, with long leaves, notched like a saw,'"——

"My bush of sweet fern, as I live!" cried Catherine, in whom the revealments of her friend had produced an agitation bordering on terror.

"Do you know it, then? Good luck to my trusty Parker, knave though he be. I have promised him a hundred guineas for his services; and, o' my word, I'll make papa double them. Can't you lead me to the bush to-night? But no

—he may not yet have sought it out, and the sight of persons stirring in the park might frighten him away. Come, Kate, out with the light; we must sleep fast, and be up early: I will rouse you at the first gray streak of the dawning, I warrant me; for I shall be dreaming of the matter all night. Oh, that letter! that letter! if a maiden adoring looks for the billets of her swain with more anxious impatience than I do for honest Parker's greasy hieroglyphics, sure am I, I should myself soon die of expectation, so soon as I got me a wooer. Oh, lack-a-day, Kate, kiss me, and good night; for I think we have talked evening into midnight."

Anxious as was the lady's desire to fall instantly asleep, she was doomed to a disappointment. Scarce had she murmured out the last good night in the arms of her friend, when a sudden strain of music woke in the outer air, mingling the jangling of strings with the hum of a thousand nocturnal insects, flitting among the trees. Surprised, nay, almost startled at the sound of a guitar (for such her practised ear instantly knew the instrument to be,) in a region so remote and unsentimental, she raised her head from the pillow, and had soon the satisfaction of hearing an agreeable voice, manly yet capable of much tenderness of expression, added to the instrument.

"Oho, Kate," said she, "do you hear that? Now suppose my mad confederates should have stolen a march upon me, and, in their zeal, made the dawn of the 4th out of the midnight of the 3d? They say, Mr. Brooks sings well and plays—but, foh! I never heard that voice before—I was dreaming. Listen!"

She held her peace, and hearkening with no little curiosity, was able to distinguish (a window of the chamber having been left open to admit the balmy night-air,) the words of the following little serenade.

THE WHIPPOORWILL.

I.

Sleep, sleep! be thine the sleep that throws
Elysium o'er the soul's repose,
Without a dream, save such as wind,

Like midnight angels, through the mind;
While I am watching on the hill,
I, and the wailing whippoorwill.
Oh whippoorwill, oh whippoorwill.

II.

Sleep, sleep! and once again I'll tell
The oft-pronounced, yet vain, farewell:
Such should his word, oh maiden, be,
Who lifts the fated eye to thee;
Such should it be, before the chain
That wraps his spirit, binds his brain.
Oh whippoorwill, oh whippoorwill.

III.

Sleep, sleep! the ship has left the shore,
The steed awaits his lord no more;
His lord still madly lingers by
The fatal maid he cannot fly,
And thrids the wood, and climbs the hill,
He and the wailing whippoorwill.
Oh whippoorwill, oh whippoorwill.

IV.

Sleep, sleep! the morrow hastens on;
Then shall the wailing slave be gone,
Flitting the hill-top far, for fear
The sounds of joy may reach his ear;
The sounds of joy!—the hollow knell
Pealed from the mocking chapel-bell.
Oh whippoorwill, oh whippoorwill.

"Mighty well!" exclaimed Miss Falconer, so soon as the roundelay was finished. "That is one of Jingleum's madrigals, I dare be sworn; for there's the 'ship' and the 'steed' in it; and I never yet saw or heard of one of his compositions that had not a touch of salt water and the saddle. And so the dear ape has got to singing, has he? and he mourns the merry marriage-bell, the goose-cap! Really, I had no idea the youth had so good a voice."

"You are mistaken," said Catherine, who, Miss Falconer almost suspected, was asleep, for she did not lift her head from the pillow, and rather muttered out the words than spoke,—*"it is the young gentleman,—Mr. Hunter."*

"Hah, indeed!" cried Harriet, quickly: "And *he* has got to chains and chapel-bells, too? But, pho, I forgot you told me about his singing. This serenading, though, is somewhat presumptuous. Well now, good youth, get you gone, and let us to our slumbers. I'll rouse you, Kate, I warrant me.—Why, good heaven, what is the matter? Crying again, Catherine! Sure, if I spoke roughly to you, Kate, I did not mean to offend you; and you must remember, it was on my father's account I became so suspicious, and averse to strange advisers and confidants."

She did not doubt that Catherine was brooding over her former hasty and reproachful expressions; and she knew her too well to be surprised, when the maiden replied to her apology only by flinging her arms round her neck, and sobbing on her bosom. Before she could attempt to soothe her, the serenader again struck his instrument, and began chanting a melody of extreme sadness, but to words of such mystical purport, that they instantly engaged her whole attention, in an eager desire to penetrate their meaning.

Shall I speak it to the night-wind?

Shall I breathe it to the sky?

It is spoken in a whisper,

It is uttered in a sigh:

And the sigh shall be the saddest,

And the whisper shall be low,

Like the sound of hidden runlets,

In their melancholy flow.

There's a sigh comes on the west wind—

Hark! it rustles through the leaves,
Like the moan——

But here the artist abruptly ceased singing; his voice and the sound of the instrument were as suddenly hushed as if annihilation had on the instant rapt him into the world of spirits. Miss Falconer sprang from bed, and ran to the window, hoping to discover the cause of so extraordinary an interruption, but without any success. A sable cloud, gradually stealing up from the west, and at intervals glimmering with faint flashes of lightning, had invested the heavens, and all was darkness, especially under the lime-trees near the window, from which the music proceeded. She thought, at first, that she heard the murmuring of voices, as if the singer had been arrested in his task by the coming of a second individual; but they were low, and so mingled with the rustling of leaves, that she doubted if her ears had not deceived her. She peered through the curtains and the vines that encircled the window, into the darkness, without being able to detect any thing like a moving figure; and she listened with as little effect for the sound of voices or footsteps. Whatever had brought the serenade to so abrupt a close, it was certain that it was over, and that the singer had departed.

"Perhaps," she said, as she again threw herself into the couch, "the tender youth is afraid of the rain; and in truth, there was a drop fell upon my hand. So much for spoiling a lady's rest, good Red Jacket! I hope he may get a ducking before he reaches the hovel. This is rather an odd sort of a man for a painter. Good night, Kate—now we will sleep in comfort and quiet."

CHAPTER XV.

"I do not like thee, Doctor Fell;
The reason why I cannot tell,
But I don't like thee, Doctor Fell."

Anxiety, expectation, and perhaps an unusual degree of restlessness on the part of her friend, who soon fell asleep, kept Miss Falconer awake until a very late hour; and when she opened her eyes, after a short and uneasy slumber, she found a streak of sunshine playing on the window curtains. She started up hastily, yet so softly as not to discompose the Captain's daughter, with regard to whom she seemed to have altered all her resolutions. She arrayed herself with such celerity and silence as indicated a desire to escape while Catherine yet slumbered; and indeed it appeared, that, so far as the sleeping maiden was concerned, Miss Falconer had changed her feelings, as well as designs. She eyed Catherine occasionally with a countenance on which suspicion seemed struggling with anger; and when she had completed her toilet, she stole up to the bedside, and surveyed her with a look of anger, which was the more extraordinary as Catherine, at that moment, presented an appearance of the most attractive and, in fact, seraphic beauty. Her hands were clasped together under her chin, as if some thought of rapture were shining through her spirit; a smile of such delight as can only come from a heart both guileless and happy, beamed from her visage; her lips moved, as if breathing the accents of joy, though no sound came from them; and the tears that stole from beneath the closed eyelids, were evidently shed in pleasure, not sorrow. Miss Falconer's countenance darkened, as she gazed; but she gazed only for a moment; and soon stealing from the bedside, she crept out of the chamber.

The rattling of the latch, as the door closed, dispelled the dream of delight, and Catherine instantly arose, and prepared to follow her friend, whom she had in vain called after to return. Miss Falconer had already left the house, and long before Catherine reached her, she saw that she had found her way to the memorable bush of fern. She saw also, without explanation from her friend, that some singular accident had defeated, at the very moment of its accomplishment, the plan so subtly laid and so zealously pursued. No letter or scrap of any kind was found in the appointed place; yet it was evident the bush had been visited by at least one, perhaps by two persons, in the course of the night. It was deranged and torn; two flat stones were found lying at its roots, which Miss Falconer did not doubt had been designed to protect the paper from the dews of the night, as well as the eyes of passers-by; and

there were foot-prints in the grass, some of which were very distinct, having been left since a light rain, that had fallen during the night.

The chagrin and dismay of Miss Falconer at this unlooked for termination of her hopes, entirely drove from her mind the recollection of her late displeasure, together with its secret cause. She wondered and lamented, and devised a thousand suppositions for explaining the phenomenon, but without satisfying herself. Was it possible the treachery of her agent could have been discovered by his comrades, at the very moment of its consummation? Could such a discovery have been made by accident, and in the dead of the night? What now was she to do? how supply the information of which she had been robbed? how act upon that already received? how avert the ridicule of the coadjutors she had drawn into her schemes? how propitiate her brother?—For sure he had not ceased laughing at her, from the hour he was let into the secret, and would make it the theme of raillery to his dying day.

To the latter questions Miss Loring could frame no answers; but in regard to the former and more important, she expressed her doubts whether the agent had really visited the appointed place at all. It was *not* probable he could himself have found his way to the bush at night, or that another should have followed him to it. The marks of footsteps were, in all likelihood, left by some of the patrons of the jubilee, collecting shrubs and flowers to adorn the rostrum—her garden had been thrown open to them for the purpose, and, she doubted not, they had already despoiled it. What was more probable than that some of those persons, returning from the house to the promontory, should have nosed the sweet-smelling shrub, as they passed by, and appropriated its leafy honours, along with those of other plants discovered on the way? Parker might yet come, and deliver his communication in person; or perhaps he found it impossible to escape the vigilance of his wild comrades, now rendered doubly watchful by the gathering of so many people in their neighbourhood. It was plain that Harriet must now give up the prosecution of the scrutiny into the hands of more fitting agents. If there were refugees in the land, a single word could convert the assembled revellers into soldiers, who would instantly scour the hills in every direction, and rid their peaceful solitude of such dangerous intruders; and if the companies and officers Miss Falconer had spoken of,

had taken position in the woods, a general rising of the people must result in the capture of perhaps the whole gang. It was plain, at least, that the wisest plan to be followed was, to remain in tranquillity, until her military friends arrived; when it would remain for them to determine what further steps were to be taken.

The frustration of her sanguine hopes threw a shadow over Miss Falconer's spirits, and plunged her besides into a fit of peevishness, which she, before long, indulged to an extent that both surprised and pained her friend. Thus, her father making his appearance the moment they returned to the house, and, so soon as he had expressed his joy at seeing her, declaring she should see 'his excellent young dog, Hunter, the painter, the greatest genius and most capital fine scoundrel in the whole world,' she let fall certain expressions of scorn that might have stirred the Captain's choler, had his mind not been wholly occupied with 'the grand picture,' which it was now in his power to exhibit. The painter had laboured with much zeal, and, three or four days before, had brought his sketch to the mansion, to receive the father's and daughter's criticism on what had been done, as well as to introduce the Captain's figure; and he was easily prevailed upon to accept his patron's invitation, and continue his labours, until the sketch should be completed, on the spot.

Notwithstanding her dissatisfaction of mind, Miss Falconer could not deny, that, so far as he had gone, the artist had exhibited no little skill in the design and execution of his piece. It represented the young hero lying across the knees of his father, while Catherine knelt at his side, her hands clasped between those of her dying brother. A dead horse, a young oak-tree, shivered by a cannon-ball, a broken gun-carriage, and two or three other characteristic objects, made up, with this group, the fore-ground of the picture; while the back-ground, to which little had been yet done, was sketched over with hills and trees, and a confused medley of contention—broken columns of men, flying horses, and wreaths of smoke. With the three portraits Miss Falconer was very much struck; she had the vehement testimony of Captain Loring, and the melancholy assent of his daughter, in regard to the likeness of the expiring youth; and she could see with her own eyes, how well the painter had succeeded with both the others; though, as Captain Loring averred, 'he did not like so much red on his nose;' "and as

for the tears that the young fellow has put into my eyes," he exclaimed, blubbering as he spoke, "why that's all nonsense, for I never shed a tear in my life—adzooks, I didn't!"

As there was a violation of the unity of place in the introduction of Catherine upon the battleground, so also there was an evident anachronism, which the painter had been guilty of, in depicting her, not as a little girl, as she was at the period of her brother's death, but a woman, such as she now appeared. The fault, such as it was, was easily pardoned, since it perhaps allowed a wider scope for expression; and on this visage, it was obvious, the artist had exhausted his skill. Independent of its beauty, it had such an air of deep grief as almost conveyed the history of the after life and feelings of the subject—secret sorrow, and a sense of lone, unfriended destitution, never to be banished a moment from her bosom.

While the three were engaged surveying the sketch, the painter himself entered the apartment. Piercing, almost fierce and menacing, was the look with which Miss Falconer regarded him; and her recognition of his salutation was haughty in the extreme. She observed, too, with high displeasure, with what frank and almost eager haste Catherine extended him her hand, and how her voice trembled in the uttered welcome, as if it were bestowed upon one endeared by long years of friendship; and she turned upon Catherine a look that almost frightened her from her propriety, when the latter, leading Hunter up, to present him with a more ceremonious form than her father had thought fit to use, said, as if to bespeak her good will at once,

"This, Miss Falconer, is my good and valued friend and *confidant*," (she strove to pronounce the word archly,) "Mr. Hunter."

"It is very well," said Harriet, turning coldly away, and fixing her eye upon the picture. "I am admiring his work, and striving to understand it."

"I do not pretend to be very perspicuous," said the painter, disregarding the mortifying reception and the perhaps equally ungrateful sarcasm. "Mystery is said to be an ingredient in the sublime; and as that is my aim, *of course*, (it belongs to the aspirations of all youthful candidates for immortality,) I always contrive to be as full of mystery as possible."

To this speech, which was uttered with an air of pleasantry, Miss Falconer only replied by a second penetrating stare; and then fixed her eye again upon the sketch. The painter, determined not to find offence where it was palpably meant, resumed his discourse, saying,

"I am afraid that my foolish music, last night, may have disturbed Miss Falconer. I forgot she had a right to be fatigued after her journey, until the plash of a rain-drop in my eye, as I lifted it romantically to heaven, brought me to my senses, and, ludicrously enough, in the very middle of one of Mr. Jingleum's best pieces."

"You knew, then, that I——Oh, certainly! the carriage rattled by Elsie's door. I am sensible of the compliment, sir, and return you my thanks."

These expressions Miss Falconer uttered with much vivacity, and began the question which she ceased so abruptly, in a voice of eagerness. Indeed, she felt that she had been almost thrown off her guard; and she therefore, without any purpose, except to divert the attention of those present to another subject, and certainly with no definite object in view, said, laying her finger at the same time on the sketch,

"I do not well understand this tree, sir. What kind do you call it?"

"Oh," said Hunter, with a smile, "that is a palm."

"A *palm*!" cried Miss Falconer, eyeing him with surprise; "and pray, sir, how came a palm on the hills of the Brandywine?"

The question threw the painter into confusion, which was increased by the keen and searching glances of the critic, over whom this third violation of propriety seemed to produce as strong an effect as the detection of it did on the unlucky artist.

"A palm! good heavens," he stammered, with a laugh; "and I did not myself discover the incongruity before? Ah, Miss Falconer, you are the very princess of censors; and I am glad you saw the fault, before it might have been too late to remedy it. But 'use doth breed a habit in a man,' as the great poet says; and painters are only flesh and blood, after all. This comes of

taking my first lessons in painting, among the lagoons of Carolina. I must look close: I warrant me, I have stuck a live-oak into the picture also."

"Really, sir," said Miss Falconer, whom the opportunity of playing the critic seemed to have put into a better humour, "I must beg pardon for my ignorance. I thought that in Carolina we had no palms, except cabbage-trees; and this has a marvellous soaring, long-leaved, cocoa-nut appearance, judging from the prints I have seen of that tree, for of the tree itself I am quite ignorant."

"You are right, madam," said the painter; "the cocoa-nut is, in every way, a much finer palm than the cabbage-tree; and for that reason, I have always been accustomed to take a painter's license with the latter, to make it as graceful and stately as possible. Painting, you know, is a sort of palpable poetry; and one must not be tied down too closely to nature."

"The cocoa-nut has an immensely long leaf, has it not?" demanded Miss Falconer.

"Full fifteen feet," said the painter, warming into enthusiasm; "and each one so much shaped like a great waving feather, that you might deem it a plume plucked from the wing of Lucifer, or some other colossus of demons. One can never forget its majestic appearance, who has once looked upon the tree."

"You have been, then, in the Islands?"

"Certainly, madam, yes;—that is to say, in my early youth, when the tree made a great impression on my mind. You may judge, therefore, how natural it is that I should amend our inferior palms by adding somewhat of the beauty of those that belong to the tropics."

"Oh, very natural," said Harriet; "but it is quite droll you should put one upon the Brandywine."

And with this indifferent remark she closed a conversation that seemed, even to the unsuspecting Catherine, to be somewhat embarrassing to the

painter, though she was glad to find how quickly it dispelled her friend's peevish humour.

They were soon summoned to the breakfast table, to partake a hasty repast, previous to visiting the scene of celebration, towards which several merry-makers were seen directing their way, even at this early hour. Miss Falconer appeared surprised that the young man did not instantly take his leave; but she soon discovered he was there for the purpose of attending her kinswoman to the promontory, that duty having been expressly delegated to him by the Captain, who had accepted the honourable and highly responsible command of the six-pounder, and the three or four vagabonds who were to serve it, and had therefore duties of his own to look after. He soon deserted the table, saying he left his young painter 'to look after her and his Kate; his rogues were coming after the powder, and he knew they would shoot off some of their legs or arms, adzooks, unless he accompanied them back to the hill.'

In the meanwhile, Miss Falconer, discharging her hauteur and petulance altogether, talked freely with the Captain's guest, and appeared much interested in his conversation, and many obvious good qualities. But it was observable, that as her ease and frankness increased, those of Hunter proportionately fell, until he became visibly reserved, and almost silent. This mood, however, did not last long; and by the time the little party was on its way to the scene of festivity, he was as gay and spirited as ever.

CHAPTER XVI.

Then came the felon on his sable steed.

THEODORE AND HONORIA.

The festival, so far as events allowed it to proceed, was rather a pic-nic, of a somewhat patriotic character, than a true national celebration; and such indeed it might have been esteemed, had it not been for the occasional roar of the six-pounder, and the ambitious din kept up by the muskets, and the drum and fife of a small company of volunteers, the only portion of the county military who could be induced to honour Hawk-Hollow with their attendance. Few, however, as were the persons present, they claimed to form in themselves the flower of the district; and rather rejoicing in than regretting the absence of the great multitude, they proceeded with zeal to despatch what was esteemed the business of the day, in order that they might the sooner advance to its pleasures. In fact, all interest in the proper business of celebration was soon found to be confined to Captain Loring, the officers of the day, and their immediate adherents and partisans; the greater number of revellers, both male and female, preferring to ramble about in groups along the river shore, rather than to sit in solemn expectation on the promontory, awaiting the beginning of the proceedings. There were more attractive charms to the mass in the grassy glades below, where attendants were busily occupied in preparing for the feast and the dance, some arraying stores of napkins and platters along the course of the brook, and others matting together bushes and branches of trees, so as to form temporary canopies. In some places might be seen a knot of Sabbath-clad bumpkins, moving among the horses that were tied under the trees, and discoursing learnedly upon their good and bad points; in others, were collected divers rural beauties, admiring one another's bonnets, or exchanging, like merchants at a fair, their little stock of innocent scandals—the peculiar products of their respective neighbourhoods; and in one place, an amalgamation of the two interests was already effected, and a romping country-dance begun upon the green sward. Some idlers, incapable of any other exercise of their faculties, had begged pins of their cousins and sweethearts, converted them into minnow-hooks, and were already angling from the rocks; some, more gallant, were paddling their favourites about in canoes; some were singing; some rejoicing in the felicity of a jest; and in two different places afar off, was heard the screaming plaint of flutes, sounded by as many youthful followers of the Musagetes, who had stolen to their solitudes alone.

In the meanwhile, those who were most zealous in the cause which had brought them together, remained on the top of the promontory, whiling the time in conversation, until the moment should arrive fixed on for opening the rites of the day. The prospect from this elevation was extensive, and, at one spot, it comprehended a view of a horse-path sloping down the hills on the further bank of the river, which, in seasons of drought, like the present, was there fordable. It looked besides over a part of the valley, and afforded a clear glimpse of the public highway at a place near to the park-gate, where it ran over a hill. Both these roads possessed, on the present occasion, a peculiar interest in the mind of Miss Falconer, and she had chosen her resting place, with the view of keeping them always in her eye. She was followed to it by a select group, consisting, besides the Captain's daughter, of the painter, the orator of the day, Dr. Merribody, and a few of that immediate coterie. Her vivacity on this occasion was remarkable; but it was observed by many that there was a degree of restlessness and even uneasiness in her deportment, which were displayed in her frequent changes of conversation, and the piercing looks she occasionally bent on all present, as if in some sudden and short-lived fit of abstraction, that rendered her unconscious of them herself. These glances she bestowed more frequently upon her friend Catherine than any other person present; though some supposed they proceeded from solicitude; for it was now remarked that the Captain's daughter was thinner and paler than of old, as if suffering from some hidden or not yet fully developed, indisposition. There was an air of lassitude in her countenance and movements; and the bursts of merry humour that once marked her conversation, were now few and far between.

The individual who shared her piercing looks in the second degree, was undoubtedly the painter, with whom she carried on a conversation frequently very animated, and distinguished by a kind of malicious ambition, no one knew why, unless it proceeded from sheer good will, to betray him into inconsistencies and contradictions. She took occasion to recur to the subject of the serenade, and requested him, with many compliments, to resume 'the pretty little ditty of the Sigh and the Whisper,' as she called it, which had been so abruptly terminated on the preceding night by the rain-cloud, and the request being backed by that of others, he very good-naturedly consented to sing, objecting however to the lay in question, that being entirely of a serenading character, and therefore unfit

for chanting by day-light. "Instead of that," said he, "I will sing you the song of *River, O River*, which always brings back the dear Pedee to my recollections." And so saying, with but little of that hemming and coughing, which we have good authority for esteeming the 'prelude to a bad voice,' he immediately sang the following little roundelay, turning his eyes the while, with a mournful earnestness, upon the Delaware, as if *that*, by a turn of prosopopoeia, was made to supply the place of the Southern river.

I.

River, O River of light! whereon
The eyes of my youth were cast,
And many an idle hour and day
In mirth and joy were past;
Still bright and quiet thou flowest on,
As flow'd my earlier years,
Without a ripple, save those that rise
Beneath my dropping tears.

II.

River, O River! the trees still shake
Their leaves in thy passing tide;
And the nodding flowers the glass'd flowers see,
That mock them as they glide.
'Twas thus, even thus, in ages gone;
But others,—alas, all flown!—
Were wont to sit on thy gray old rocks,
Where now I rest alone.

III.

River, O River! thy charm is gone,
For those that gave it are fled;
And the thoughts thou wakest are dark and sad,—
The thoughts of the distant dead.

None of them rest where they should rest,
By the waters they loved to see;
And thy green banks a grave shall yield
To none, unless to me.

IV.

River, O River! my lady yet
Walks on thy verdant shore;
But though she smiles on thy bright blue waves,
She smiles on me no more.
I will not look on thy happy tide,
Nor list to thy breeze's stir,
When knowing, however she sighs by thee,
Another sighs with her.

A deep sigh came from the breast of Jingleum; but before it had reached any ear but his own, Miss Falconer fixed her eyes on the singer, and asked him, with much inquisitorial emphasis,

"Pray, sir, how came those 'gray old rocks' into the Pedee?"

"*How!*" echoed Herman; "Truly, I know not; that is a question for a geologist."

"Really, sir," said the lady, maliciously, "I am surprised they should be found in the Pedee, which, I have heard, rolls through a quagmire."

"You are right, Miss Falconer. The Pedee *proper* is without rocks; but the Yadkin, which is the upper portion of it, and mountainous, has as rugged a bed as any other river. But allow me to say,"—this he uttered with a smile of triumph, as if aware of her desire to catch him tripping,—"you appear to suppose the song commemorative of my native river; whereas, if I can believe the poet, my friend Mr. Jingleum, it relates entirely to the Delaware before us."

"Ah! I forgot—I thought you were speaking of the Pedee; and I longed to show my knowledge of geography," said the lady. "But, hark, sir; there is the roll of the drum; the volunteers are cocking their pieces, the Captain is just priming the artillery, and now we shall have the signal for beginning the ceremonies.—I hope, sir, you have well studied the Declaration?"

"I have, madam," said the youth, who seemed to discover something offensive in the bantering question; "and, however incompetent to the task of pronouncing it with eloquence, or even effect, I believe there is no one present who has given it more thought than my own unworthy self."

At the signal thus indicated, the various truants on the river-bank were seen thronging hastily up the hill, and the orator, reader, and officers of the day, immediately ascended the rostrum. Before the preliminaries were all completed, an exclamation from Captain Loring, who had mounted with them, drew the eyes of all across the river.

"Soldiers, by the lord! adzooks, soldiers!" he cried, and the patriots beheld three horsemen, in military attire, riding down the horse-path on the opposite bank of the river. "Look, Harry, my dear, look!" continued the Captain, eagerly; "'tis our brother Harry, I'll be sworn! Could tell him among ten thousand. Sits his horse like a general; and a wonderful handsome dog—and, see, he is waving his handkerchief!"

But Miss Falconer was at this moment staring at another object in a contrary direction, of more attraction even than her brother. She beheld a single horseman, riding slowly along the road by the park-gate, wending his way towards the cottage of Elsie Bell, and apparently too much wrapped up in his own reflections to bestow a glance, or even a thought, upon the scene of commotion presented by the promontory. The distance of the road was at least a mile; but it was easy to perceive, first, that the man was mounted upon a white horse, and, secondly, that his head-gear was of a flaming red colour,—two circumstances that filled both the eyes and the heart of the gazer with fire. She turned her face to the rostrum, on which Hunter was already displaying the record of a nation's enfranchisement; but interrupted his proceedings without ceremony, crying eagerly,

"You have a painter's eyes, Mr. Hunter—do you know that man on the road yonder? A red hat, I think?—a rawboned horse?—An acquaintance of yours, Mr. Hunter?"

"An acquaintance?" echoed the painter, with a look of surprise. "At this distance, it is impossible"——

"Mr. Jingleum, what say you?" cried Harriet, hastily; "or you, Mr. Pepperel?"

"The midnight oil, Miss Falconer," murmured the modest bard; but was interrupted by the lawyer, saying,

"It is necessary, before arriving at a conclusion, to examine into the premises; and before deciding upon this matter, I should like to have, not only the evidence of my own eyes, but the evidence of the eyes of other persons,"——when he was, in turn, silenced by the sudden exclamation of Dr. Merribody.

"I know the fellow, as well as I know my own patients," he cried, pursing his eye-brows together; "'tis that scoundrelly quack fellow, John Green, the Indian trader; and I hope he may come here before night, that somebody may get drunk and trounce him."

"Bravo!" cried Miss Falconer; and turning towards the river, she waved her handkerchief, as if to hasten the advance of her martial friends.

"Nonsense!" cried Hunter, eagerly, but manifesting some little agitation. "What! Green, the good fellow that pulled me from the brook? Nonsense, doctor; that man is twice as tall; and besides, he rides quite a different horse."

"I'll stand up to it," said the doctor, with dignity. "As for his horse, why these traders are always buying and stealing; and there's his red hat, as clear as a bunch of sumach, the red-headed villain! But never mind any such vagabonds: read away, Hunter, my boy, and let Jingleum begin; for I am as hungry as a horse-leech, and I long to be at something more substantial than all your confounded orations."

"Hang the reading," cried the painter, petulantly; "let us see what's in the wind first.—We should at least be civil to the army officers: you see, they are regulars; and, there, they have given up their horses to old Richard, the coachman, and are running up the hill, like three hounds after breakfast.—Rogues, you will be sorted! and fair Britomart, you shall this time wave the lance of cunning in vain!" The last expressions were muttered within the recesses of his own heart.

In the meanwhile, the three officers, ascending the hill quickly, were met by Miss Falconer, who flew to meet them, crying, "To horse, gentlemen, to horse! the game is riding into your very arms."

These words were heard even at the rostrum, and filled all present with surprise; which was not much allayed, when the youngest of the three martialists, seizing upon Miss Falconer's hand, exclaimed, with a laugh,

"Egad, sister Hal, we have resolved to convert you into Prince Hal, and make you Tory-taker General. Here's my friend, captain Caliver, who admires your abilities at strategy immensely; as for Brooks, why, gad's my life, he is your Grand-Vizier. But where's our dog Parker? and what news of those vagabond Hawks of the Hollow? Where's the thief, Joram, or Oram, or what d'ye call it? Ah, Captain Loring, my excellent friend! Ah, Miss Loring! ah, Miss"——

"Brother," cried Harriet, with an energy that startled all present, "you have no time for compliments. Accident has repaired the injuries of accident, and fate has thrust him you seek into your very hands. Mount, gentlemen, mount!—Mount, all who have horses, and ride up the ravine to the witch's cottage: the volunteers, and all our friends here who are on foot, can run across the fields, and secure the road, so as to prevent retreat. The man in the red hat, and with a white horse,—the canting Poke, or the sour-mouthed Green—all is one for that; seize him, and you seize the most audacious of traitors, the most ferocious of assassins!"

"Adzooks!" cried Captain Loring, "what's all this?"

"It means, Captain, egad," said young Falconer, grinning with pure delight, "that Hal here has been hunting your famous Hawks, till she has found

them; and now, egad, if we can believe her, she is about to nab them. As for the road, sister, we have that safe enough, with twenty foot, and ten picked horse, coming down from the Gap; there are two companies, also, ordered to the village; and if you want more force, why we must e'en call upon the volunteers. The end of all this, gentlemen," continued the delighted lieutenant, "is, that you have a gang of refugees among you; and that their leader, Oram or Joram Gilbert, or whatever you call him,—captain Gilbert, they call him,—a very bold, murdering fellow, has just ridden by, as Miss Falconer says, and in a red hat, egad, and on a white horse, and with some dozen names or two; and so, gentlemen, we'll mount horse, and take him."

Had a thunderbolt darted from the blue sky among the group assembled on the hill, it could not have produced a more sudden terror, than did the name of the renowned refugee, with the announcement of his proximity to the scene of celebration. The name of the outlaw was familiar to all, as an omen of fear and blood; and while many of the young men re-echoed it after the lieutenant with open dismay, it produced such a general scream from the women as made the rocks resound, and added but little to the courage of their protectors. As for the lieutenant himself, he seemed to be vastly diverted by the general explosion of fright; though he instantly waved his hand to his friends, calling upon captain Caliver to mount, and waggishly directing his brother lieutenant to 'form the women and volunteers, and march them to the scene of action;' when Hunter, leaping down from the rostrum, exclaimed,—

"This is a mistake, an absurdity; I can assure Miss Falconer that the man who rode by is no more a Hawk of the Hollow than I am; at least, I am certain he is not Green, the trader, whom I will avouch to be an honest man."

"Let Mr. Hunter first avouch that for himself," said Miss Falconer, with a glance of fire; "the question will soon be asked him.—Quick, brother, quick! haste, gentlemen, haste! and all who can do nothing better, follow me up to the road-side."

Perhaps the singular sarcasm the young lady thought fit to fling at the painter, was unheard by him,—for finding that, despite his remonstrance, the officers were running down the hill towards their horses, he uttered a

sudden shout, and immediately imitated their example, bounding along at such a pace that he soon outstripped the fleetest.

In a moment, the assembly was broken up, and the revellers flying in all possible directions. Here were seen women running to conceal themselves among rocks and bushes; and there one or two prudent gentlemen, who declared themselves 'men of peace, and no fighters,' paddling across the river, to get out of harm's way, with but little regard to the beauties they left screaming after them on the shore. But the torrent of fugation, though it sent off so many irregular rills, was seen dividing into two chief currents, one of which, consisting principally of mounted men, went, like the back-water of a flood, rolling up the ravine leading to the Traveller's Rest, while the other, consisting of such volunteers as had not already broken and followed after the officers, and such worthy celebrators as had the courage to imitate the example of Miss Falconer and Captain Loring, made its way on foot towards the public road.

CHAPTER XVII.

Thorough brake, thorough brier,
Thorough muck, thorough mier,
Thorough water, thorough fier,
And thus goes Puck about it.

DRAYTON—*Nymphidia*.

It has been seen, that if the painter made an effort to restrain the enthusiasm of the multitude, he instantly proved that he was not without the virtue himself, so soon as he found it was really determined to pursue the suspected person. The horses of the officers had been led round the hill to the covert where the others were tied; and towards this place he directed his

steps, crying out all the time, with encouraging alacrity, "Quick, gentlemen, quick!"

But the strongest proof of his zeal he gave, the moment he had reached the horses, by vaulting upon the back of the nearest, (and, in his estimation, the best,) which happened, at that moment, to be in the hands of the venerable coachman, Richard, who was leading the animal round with a degree of solicitude and attention, that were testimonials enough of its value. Herman's lodgings being so nigh at hand, he had thought it wholly superfluous to trouble himself with his own roan charger; and the present emergency was of a nature so peculiar, he did not stop a moment to consider the lawfulness of the seizure. He leaped therefore into the saddle, jerked the reins out of Richard's hand; and the wrath of the owner, who was no other than lieutenant Falconer himself, was extreme, when he beheld the audacious stranger, his own loud calls to the contrary notwithstanding, bestride the captured steed with the air of an emperor, and instantly put him to his speed.

"Harkee, halt! stop! you've mistaken your horse," cried the lieutenant. "*Who* is that impudent scoundrel? My horse, you rogue! Give me a pistol, Caliver, and I'll shoot him off."

But the anger of the soldier was unavailing; the painter swept out of sight, and while Falconer was calling on his friend Caliver, (a gentleman of a weather beaten face, very lantern-jawed, and with a red nose,) he also darted forward and vanished. Nothing remained for him but to follow the example set him by Hunter; and accordingly, he seized upon the best charger he could find, and with his brother officer and others, galloped after the two leaders.

The reader may remember that the Traveller's Rest was described as lying at the upper termination of a ravine, which swept down to the river, and just before it debouched thereon, received the waters of Hawk-Hollow Run. From the promontory so often spoken of, the cottage was plainly visible, and approachable along the bed of the river, even by horsemen, provided they were of the steeple-chase order, or were moved by any occasion so stirring as the present. The obstructions and difficulties, nevertheless, were of a nature, to call for great circumspection on the part of the riders; and

accordingly the greater number of pursuers began to exercise their discretion so soon almost as they had well set out. The two leaders, however, dashed onwards with fiery zeal, and performed feats of horsemanship that gained them the applause of the laggards. It was fortunate for Herman that his spirit and address soon won him the good will of the cavalry officer, (for such was captain Caliver) at his heels. He had remarked the seizure of his friend's charger, and at first meditated a wrathful reprimand. He succeeded in coming within speaking distance, as Hunter toiled up an ascent of unusual ruggedness, and instantly hailed him:

"Harkee, my friend," said he, "you ride like a gentleman, and a little training would fit you for the army: but do you know you have mistaken your horse?"

"Faith, there is no mistake about it," cried the painter, "for my horse was not on the ground. In such an emergency, sir—but enough. Are you armed, captain? are you armed?"

"Surely my holsters are at my saddle-bow," quoth the cavalry officer, spurring up, as he reached a more level ground, on which he could display all the qualities of his charger; "and as surely you will find Harry Falconer's at his, if you know how to use them. Harkee, my friend, I will not make so bold as to consider you in a fright; but you are quite white about the lips."

"Ay, true," said the painter, clapping his hand to the holsters, and drawing forth a weapon, but taking no particular notice of the soldier's insinuation: "Captain, had you not better draw up, and wait for some of the company, while I push on, and secure the road?"

"I vow to heaven," said captain Caliver, "I would knock you off your horse, did I not know you spoke in the ignorant innocence of your heart. Draw up, and wait for company? It is not in my nature to call any man an ass, except a private; and you are here, I think, as a volunteer. So, Mr. Gentleman-volunteer, be pleased to look upon me as commander-in-chief, and attend to my instructions.—Do you know that Oran Gilbert, when you see him?"

"How should I? The Indian trader, to be sure, I know; and you will soon find, that this fellow of the white horse is no more like him than I am."

"Very well—Fall behind, Mr. Gentleman-volunteer, and"——

"I will do no such thing," said the youth, stoutly; "I will ride, fight, and kill refugees with any man in the county; and if you show me one, I'll engage to shoot him at sixty paces,—that is, with a good pistol,—I will, by the lord!"

And so saying, the volunteer brandished his pistol with such ardour that it suddenly went off in his hand, with a report that set the whole ravine roaring, and materially expedited the march of their followers, who responded with an instant cheer.

The captain of cavalry stretched forth his hand, seized Hunter's bridle, and was about to express certain rough suspicions which this untimely explosion created in his mind, when the painter cried out, with as much apparent innocence as confusion,

"Egad, I believe 'twas a hair-trigger!"

"Spur up, and no more firing," cried the soldier; "or by the eternal Jupiter, I'll knock you off your horse. You have alarmed the wigwam; see what a hubbub you have raised in the van, as well as on the rear! the tavern is in commotion. Hah! by the eternal Jupiter, there goes Red-hat! Spur up, gentleman volunteer; or by the eternal Jupiter, the fellow will escape!"

The report of the pistol had indeed reached the Traveller's Rest, and drawn forth its two or three inmates; who could now easily behold the whole train of horsemen dashing furiously up the ravine; and the quick eye of captain Caliver was not slow in detecting a person on horseback, with a red hat, pricking hastily away from the cottage.

"The game is sprung,—the rabbit is up!" he cried, while the fire that burned on his thin nose, seemed to have raised a kindred flash in his dark gray eyes. "Gentleman-volunteer, do you see? Now you shall behold the doings of Sky-scraper, the best horse for a long race on short fodder, that was ever galled by saddle. Up the bank here, and after!"

"You are wrong, captain, you are wrong," cried the painter, eagerly. "'Tis a white horse, you know; and this is a roan, or sorrel."

There could be no truth more incontestible than this; yet captain Caliver was of too sagacious a spirit, or perhaps was warming with too much fire, to be led from his purpose by an argument not of his own devising.

"I will be uncivil to no man but a private," he cried, fixing his eye upon the fugitive, (who was for a moment's space plainly visible, as he galloped up the road,) compressing his lips, till they actually seemed to have vanished, and, at the same time, driving his spurs deep into his steed; "I say, I will be rough-spoken to none but privates, for it does not hurt their feelings; but, by the eternal Jupiter, there goes our man!—or what does he mean by wearing a red hat? and, lastly, what does he mean by beating a retreat in such a fashion? Harkee, Mr. Gentleman-volunteer, I am glad now you fired that pistol. Had we come upon the dog silently, why then I should have picked him up, rolled up in a ball, like an opossum; which is a job for a black man, and not a captain of cavalry. I say," he continued, with increasing animation, "I am glad you have roused him, and shown him a fair field; for, by the eternal Jupiter, I have not seen a race worthy to speak of for two weeks; and, by the eternal Jupiter, you shall see such a one now as will make your blood run; and, by the eternal Jupiter, I hope his horse is blooded, for, by the eternal Jupiter, I will run him, or any other respectable tory gentleman, from time temporal to time eternal, from post to pillar, from Sunday to Saturday, and from life and the dinner-table to death and"——. And here the captain of horse, who was something of a horse himself when his blood was up, ended climacterically with a most soldier-like word, which, although it may be found in any English dictionary with which the public is acquainted, will nevertheless read more agreeably in a dictionary than any where else. He added, indeed, three more words; for turning his horse's head towards the steep bank that bounded the ravine on the right hand, he twisted a lock of the charger's mane round his finger, and uttered the cabalistic ejaculation,—

"Go it, Sky-scraper!"

The words had an immediate effect; no sooner did they reach his ear than Sky-scraper, with a plunge that carried him half a length ahead of the painter, darted to the brow of the acclivity; and Herman following, he beheld the Indian trader, (for it was this identical individual they were now

pursuing,) some five or six hundred paces in advance, travelling at a very unusual pace up the highway. As Hunter reached the road, he cast his eye backwards to the hovel, and beheld, riding into the oak yard, a man whom he knew at once to be the person that had first attracted Miss Falconer's notice. He rode a white horse, and there was a red covering to his head; but this latter phenomenon, as it appeared, was owing entirely to the presence of a red handkerchief drawn over the horseman's hat, doubtless to shield his eyes from the sun-beams, or from the dazzling rays reverberated from a dusty road. There was nothing at all warlike in the appearance of this individual; on the contrary, he seemed, from his dress, to belong to the community of Friends; and he paused at the entrance of the yard, looking back on the chase he had left behind, with much innocent curiosity and wonder.

"Captain," cried the painter, at the top of his voice, "wheel about. You are leaving the true man: here he is, full in view, behind us!"

The captain answered only by repeating the charm that had already nerved the limbs, and fired the spirit of his steed; and Herman, urged by feelings and inducements of his own, followed after him; and in a few moments, the fugitive and his two pursuers were alike buried in a cloud of dust, raised by the fleet chargers.

When the two leaders so suddenly left the ravine, they were beyond the sight of those who brought up the rear; and these, not doubting they had continued their original route, galloped on themselves until they reached the little inn; where the first person they saw was a tall, middle-aged, gawky quaker, the same that had been seen by Herman, sitting astride his horse, and staring on them with gaping astonishment.

"Surrender, you villain!" cried Harry Falconer, with a whoop of victory; "surrender, you bloody Hawk, or I'll blow your brains out,—or I'll make Brooks do it, that scoundrel having run away with my pistols.—Hillo-ah-ho, Caliver!—What has become of the captain?—Down, you dog, and we'll tie you!"

"Nan!" cried the astounded Friend: "What does thee mean, young person?"

"Death and Beelzebub!" cried Brooks, "What have we here? Why, old father Broadbrim, who the devil are you? Sure, I know this horse!"

"Sure thee may, and sure thee may not," replied Broadbrim, looking wrathfully upon his captors, who were evidently nonplussed at sight of him. "He is an honest man's horse, friend foul-mouth and sauce-box with the coat of the slayer on thee back!"

"The spot's on the wrong leg!" cried Brooks, who had been inspecting the stranger's horse with a curious eye. "Hah! d'ye see the dust on the hill? Some of you guard father Broadbrim; he's suspicious: we'll examine him directly. Hillo-ho, Falconer! I'll have you! oho! oho! oho!" and away darted the young officer after his brother lieutenant, who had galloped off so soon as he discovered the course pursued by the leaders.

By this time, all the young men present had grown warm with exercise, and were now waxing valiant, as they began to understand the little danger there was in chasing, so many of them together, a single refugee, who, although desperate and dangerous enough, had shown so little inclination to face them. They began to be apprized, too, of the nature of the service in which they were rather co-operating than compulsorily engaged; and all seemed to know, that the farther they rode up the highway, the nearer they would be to an armed force, marched into the county for the express purpose of ferreting out and destroying the band of outlaws. This being the state of their feelings, there were few of them willing to accept the ignoble trust of guarding the body of the Quaker prisoner; though, having had it urged upon them by the cautious lieutenant, they were loath to discharge him without authority. It was proposed by some to lock him up in the Traveller's Rest, and entrust the ward entirely in the hands of Elsie and her little negress; while others pointed to Gilbert's Folly as a safer prison-house; and some even talked of carrying him to the woods, and tying him to a tree, until the chase they were so anxious to share in, was over. The dilemma, such as it was, was already proceeding to altercation, when Broadbrim, having understood that they were in chase of a famous tory, proposed to ride with them in pursuit; adding with a zeal that delighted, as much as it astonished them,—

"A man of war am I not, neither a slayer nor a fastener of bonds, neither a firer of pistols nor a brandisher of swords and spears; yet, friend younker whom they call Andrews, if thee is the man to show me a tory who hath broken the law, then verily am I the man that will hold him hard and fast, till the law hath spoken with him; yea, verily, I am. Ride on, therefore, with whip and with spur; only swear not, and be not awroth; and do thou, friend Andrews, ride at my side; for my horse is a horse of peace and not a horse of war, sure-footed but slow, and peradventure I may be left behind. It doth not become me to say, I hate a tory, for a tory is a man, and hate belongeth not to a fellow creature;—but, verily, I have heard of the man called Oran Gilbert, the Hawk of the Hollow; and, verily, I should not like to be summoned on the jury to try him for his manifold crimes; for, verily, it would be against my principles to judge him to death, and verily it would be against my heart and conscience to let him off with aught less than hanging. So let me detain none from the good deed of catching the wicked man; and peradventure, if this animal beneath me hath any vigour left in his legs and reins, I may stretch forth my hand afar, and take the sinner by the nape of the neck."

The manifestation of such spirit on the part of Broadbrim, who seemed well prepared, so far as strength of arm and resolution of heart were concerned, to take even a huger man than the Indian trader betwixt his finger and thumb, determined the course of his sentinels at once. They gave a loud shout, and bidding him follow, rode after the officers as hard as they could; and it was worthy of remark, that the white horse, notwithstanding the hint the prisoner had given of his slowness, began gradually to warm into mettle and fleetness, so that before the race had extended many miles, he bade fair to outstrip his attendants altogether.

CHAPTER XVIII.

If you think I come hither as a lion, it were pity of my life: no, I am no such thing; I am a man as other men are:—And there, indeed, let him name his name; and tell them plainly, he is Snug the joiner.

MIDSUMMER NIGHT'S DREAM.

Meanwhile, the party of footmen, consisting of some dozen or more of the volunteers, and such revellers as were brave enough for the exploit,—followed, or rather led by the valiant Harriet, who displayed the energy of a Penthesilea, and by Captain Loring, who forgot his lameness in the ardour of the moment,—succeeded in gaining the highway just in time to catch the most favourable view of the fugitive, as he thundered up the hill upon which they were themselves rushing. Indeed, they came upon him so suddenly, that when his ears, which as well as his eyes, seemed to be fully occupied in tracing the signs of pursuit, were surprised by the sudden shout they set up, the jerk which he instinctively made at the reins, brought his steed (a goodly roan charger, which was afterwards discovered to be the property of the painter) upon his hams, and had well nigh tumbled him in the dust. At that moment, the volunteers, in an ecstasy of excitement, raised their muskets, and fired together upon horse and man; so that, had there been any better ammunition in the deadly tubes than blank-cartridges, both must have been blown to atoms.

The appearance of the trader, as he rose up in his saddle, and looked upon the throng around him, apparently as much astonished at his escape from death as he was infuriated by such a display of mortal opposition, was wild and terrific; the broad red hat had fallen back from his forehead, disclosing his whole countenance; the eye with which he glared upon his opposers, had a certain ghastliness mingled with its fury, that was infinitely appalling; the retracted lips, exposing the set teeth, seemed widened into a grin that might have become the visage of a nether imp; and his hand, with which he had snatched up, and now brandished, a huge horse-pistol, could not have appeared more dreadful, had it been dripping with fresh blood. When it is remembered, that the whole throng were now impressed with the conviction, (a conviction which their reason had no time to question,) that, in this man, they beheld the most renowned and dreaded of the Hawks of Hawk-Hollow, and perceived that he had the life of at least one individual in his power, it is not to be wondered at that their courage gave way, so soon as they perceived him unharmed by the volley. In truth, they began to shout and fly; and even the volunteers waited no longer than to see the pistol aimed towards them, before they took to their heels as hastily as the

others. It was in vain that Miss Falconer cried out, "Now is the time, gentlemen! seize him!" The only individual who thought fit to obey the mandate, was Captain Loring, who, having just hobbled up to the road, sprang from a bank, and before the rover had fired, or even raised up his steed, snatched vigorously at the bridle, roaring out,

"I've nabbed you, adzooks, you rascal!—Surrender!"

To this bold summons the demi-barbarian answered by turning his weapon from the flying assailants, and clapping it instantly to the Captain's ear; when a shriek from Catherine startled, or conjured, him out of his bloody intention; and instead of shooting the veteran dead on the spot, he struck him a blow with the heavy barrel, that brought him to the earth. He then uttered a yell like the whoop of an Indian; and the roan horse, leaping over the Captain's body, bounded beyond the crest of the hill, and was in an instant concealed from view.

The next moment, and almost before the terrified rustics had plucked the unlucky veteran from the road, the thunder of hoofs again shook the hill, and the captain of cavalry, looking almost as grim and terrific as the fugitive, was seen to shoot by, pronouncing his magical war-word, "Go it, Sky-scraper!" Then, at his heels, came Herman, the painter, who, without seeming very sensible of the presence of any earthly spectators, gave forth, as he passed, a bold and stirring hurrah, that almost made Miss Falconer reject as improbable certain wild suspicions that had already crept into her brain. Then came the lieutenants and their long train of volunteer followers, bestowing as little notice upon the individuals on the road-side as the others had done; and these defeated worthies were left to themselves, busied in restoring the Captain to his senses,—a desideratum, that, to the delight of all, was soon effected; for indeed the Captain's cocked hat had done him the service his gray hairs had not; and it was soon found, that, except his being thrown into a violent passion, he was none the worse for his misfortune.

"I'll have the villain's blood!" he cried, starting up in a fury, which he expended upon all around him without much discrimination. "What are you blubbering about, Kate, you jade? Adzooks, but I'll have the blood of the rascal! Hark ye, Mr. Doctor Merribody, and you Mr. Orator Jingleum, and the rest of you, and especially *you*, you confounded cowardly volunteers!

what did you mean by not rushing in upon the dog, when I had him, you puppies? Adzooks, you white-feathered hen-bantams, I had sooner trust to a regiment of sutler's wives, in a bayonet-charge, than to any such poltroonery rascals, even in the small matter of taking a tory by the ears. Adzooks, you gallimaufry what-d'ye-call-'ems, is this the way you keep the Fourth of July?"

While the veteran thus poured forth his indignant rebukes, which he continued until his daughter succeeded in pacifying him, the captain of cavalry, followed at but a little distance by Herman, still pursued the chase with untiring ardour, now catching view of the fugitive as he flashed over the brow of a hill, but oftener losing sight of him altogether, so winding and broken was the road, and so deeply embowered by forest-trees. Caliver marvelled greatly at the excellence of the roan steed bestridden by his quarry, upon whom, after riding several miles, he did not seem to have gained an inch; but, in truth, the horse was of approved speed and bottom, the rider was himself a master of the art of horsemanship, and was besides, at least, a stone and a half lighter than his pursuer. He continued, however, to follow, cheering himself with the reflection, that, by and by, the appearance of the infantry, already posted on the road, must bring the fugitive to a stand. "And then," quoth he to himself, with a grim chuckle, "he must e'en turn about; and then, by the eternal Jupiter, I will shave off the top of his poll with my sabre, or shoot him through the gizzard with my pistol, according to circumstances. Go it, Sky-scraper; and don't let it be said of you, you were ever beaten, in a fair race, by a rascally refugee!"

As for the painter, he possessed but little of the unflagging spirit of his leader; and seeing there was small prospect of gaining on the trader, he soon became tired of pursuing, and began to devise in what manner he might, without loss of honour, discontinue the pursuit. First, then, having reached a wild hollow, where a little runlet crossed the road, and was immediately lost amid a labyrinth of great rocks, trees, and brambles, he gradually slackened his pace, until the cavalry officer vanished among the windings of the road. As soon as he had lost sight of him, he came to a full halt, greatly to the dissatisfaction of his borrowed steed, whose heart was already warmed for battle. Here the painter listened a moment, as if to gather some tokens of the approach of others. A few straggling shouts came to his ear from a vast

distance behind. He hesitated an instant; the cries of pursuit came nearer. He then dismounted, reversed the saddle on the horse's body, gave him a lash and a shout, and away went the liberated animal, leaving his rider standing in the middle of the highway. Here, however, he did not long remain. Another chorus of shouts, coming still nearer, reverberated through the woodland; and without waiting for a fourth, the young artist instantly deserted the road, and plunged into the wildest and deepest part of the hollow.

And now appeared the two lieutenants, rushing vociferously on, with some two or three young men who were better mounted than others, close at their heels. Then, strange to be said, came the zealous Broadbrim, the spirit of whose lank steed seemed to grow with his exertions, and who had left the rest far behind. It was the destiny of this worthy personage, like the painter, here to end the labours of the day; but with this important difference, that, whereas the painter had relinquished the pursuit, because it was his will to do so, the quaker, on the other hand, terminated his career, because it was the will of his horse he should do so. In other words, this highly republican animal, having debated in his body (for, being a horse, he had no mind,) the absurdity of the burthen being all on one side, and reflecting, that, as he himself could not ride, there was no reason why he should be ridden, now began to broach his rebellious principles in the most expressive language he could make use of,—that is, in sundry curvets and escapades; the result of which was, somewhat to the astonishment of honest Broadbrim, that the magnanimous insurgent suddenly broke his base bonds, and fled away, whinnying with the delight of freedom, while his oppressor, after admiring the print his back had made in a spot by no means dusty, now sat down pensively on the road-side, and began to ponder his misfortunes.

"The devil damn thee black, thou cream-faced loon!" were the first words he uttered; and he uttered them with much sincerity of indignation. "Had the gallows been close by, thou ungrateful beast, I believe thou wouldst have been just as malicious. Wilt thou never be done thy tricks, White Surrey? Out upon thee, thou ass of a horse! I have helped thee out of all manner of difficulties, and, in return, thou never missest an opportunity of flinging me into one. 'A horse, a horse, my kingdom for a horse!' Now am I in a quandary, like a fish in a net.—And suppose some one of these

malapert blue-jackets should look into my saddle-bags, and pull out, one after another, first Tom Hunting-shirt, then long-tailed Nehemiah, then Will Tapes, the pedler, and then—and then, and then?—Hillo, you vagabond Hawk! you skulking tories, that have fern-seed, and walk invisible! where are ye? Now am I like a rat between six cats.—Come to me, and ye shall hear the words of grace, the comfortable and fructifying words, ye men of Belial, that hide your faces in woods and in desert places!—Hearken to me, friend Gilbert, whom men call the Hawk of the Hollow: does thee not perceive I am in great straits, and that I am thy friend in the spirit, and will hold thine enemies very fast and hard, and will peradventure strike one of them under the fifth rib, so that he die?—Out, you inhuman rascal! you captain Gilbert! come to my assistance, or,—'*paucas palabras*,'—I shall be hanged."

As the mysterious quaker proceeded in his musings, which he occasionally vented aloud, his looks, fixed mournfully on the ground, fell by chance upon a shrub-leaf close to the earth, the under surface of which was turned up, looking white and glistening among the green fronds. This he, at first, regarded with great indifference; but having observed it a second time, a thought entered his brain, which caused him to rise and advance towards it, to examine whether it had been deranged by the winds, by the foot of a beast, or by some more important agency. Its foot-stalk was broken; and divers decaying leaves beneath it were crushed into the ground. These appearances induced him to look about him with much care; and the search terminated in the discovery of several foot-marks in the damp soil, evidently impressed by a pair of moccasined feet, and that very recently. This discovery infused singular animation into his spirit, which was quickened by a sudden shout from the road behind. He sprang behind a bush, until the comer, one of his late sentinels, dashed by: then resuming the search, he found himself following a human trail, that led him into such a labyrinth of bog and bramble, as might have made him repent his presumption, had he possessed the grace to repent any thing. He persisted however with much resolution, and still made his way by the tracks, until the sudden appearance of a huge rattlesnake, bruited under his nose, startled him out of his propriety and the path together. In a word, he soon proved himself to be no woodman; and, in the course of five or ten minutes'

walk, was so completely lost and mazed among the depths of a wild swamp, as to have lost even the power of extricating himself.

"Ay, now," said he, with a groan, "I am in Arden; the more fool I; when I was at home, I was in a better place; but travellers must be content."

Then looking about him disconsolately, he perceived, through the trees, a little eminence, where he could rest himself, and whence, he thought, he might discover some path out of the wilderness. He proceeded towards it forthwith. It was a swell of land, on the summit very rocky, covered with beech and maple trees, and with an undergrowth of spice-wood and its fragrant sister, the sassafras. Among these he thought he heard the babbling of a little water-course; and this sound he hailed with satisfaction, for he was already tormented with thirst. As he passed up the hill, he stepped into a little nook, not above a dozen paces in circuit, enclosed by rocks and bushes, and so overshadowed by beeches as to form a thick-roofed grotto, on the floor of which sparkled a meager rill, flowing from a spring at the bottom of a rock.

An abrupt turn round a mass of protruding stone brought the wandering man of peace unexpectedly upon this scene; but before he had time to survey it, he was suddenly seized upon by an arm of iron, and hurled upon the ground. The next moment, a strong hand was at his throat, a heavy knee on his chest, and a long, bright knife gleamed like a flash of lightning before his eyes.

CHAPTER XIX.

That you are rogues,
And infamous base rascals, (there's the point now,)
I take it, is confess'd.—
May a poor huntsman, with a merry heart,

A voice shall make the forest ring about him,
Get leave to live amongst ye?—true as steel, boys!
BEGGARS' BUSH.

"Speak—who and what are you? and what seek you here?" said the harsh voice of the conqueror.

The intruder looked up in his face with some wonder, and beheld the features of a man of middle age, very dark and fierce of aspect, with long black locks of hair hanging from his temples, wild, Indian-looking eyes, and a mouth expressive of as much inherent ferocity as was ever betrayed by the visage even of a red-man.

"Speak," repeated the apparition, impatiently, "or never speak more!"

To this the prisoner replied with less confusion of mind than difficulty of articulation,—

"Hark ye, Mr. Green, or Gray, or Black,—for a deuced black face you have!—or, if you like that better, Mr. Hawk-of-the-Hollow Gilbert, 'what is the reason that you use me thus?' 'I would be friends with you, and have your love;'—but not while I am on my back, to be sure. 'Call you this backing of your friends?' 'Slife, sir, take away your fingers, and let me up: I am Iago, the 'honest, honest' man. At any rate, be so civil as to consider, that, though your knee may find its cushion agreeable enough, my lungs do not."

"And what will they think of a knife in them?" cried the fierce captor, without relaxing his hold. "You were among the hounds that were hunting me!"

"Ay; and had they caught you, I should have been among the hunters that were hanging you,—provided they had not tucked me up first. Hark ye, friend Hawk, I should have known you better, had you stuck to the gray whig; I remember you of old, Mr. Green, the trader. I am an honest man; ask Sir Guy Carleton else; if he don't know Ephraim Patch, who is just as honest as myself, why then ask him about one Leonidas Sterling, an old

friend and correspondent of his worship at Philadelphia. 'Slife, sir, I tell you I am a true man."

"Give me some proof, and I will release you. Trifle with me, and you are a dead man."

"Put your hand into the right pocket of my vest," cried the prostrate sufferer, "and you will find it."

The conqueror did as directed, and drew forth a guinea.

"You asked for proof," said the other, with a grin, "and there you have it! Were I a rebel, you would have found naught but a roll of beggarly continentals; had there been more, I should have been an honest quaker, and neither rebel nor tory. Are you satisfied? I came here to seek you, and save my neck, which is in danger. There are men among the rebel officers that know me; and to be known, sir,—'by these pickers and stealers,' 'tis true! —'twere as good as a word to Jack Ketch, under the sign and seal of a State governor! Captain Gilbert, I come to volunteer my services under your command; and the sooner you introduce me to your rascals the better."

"Rise, and behold them!" said the refugee, leaping to his feet; and friend Ephraim Patch, or Mr. Leonidas Sterling, as he had called himself, looking up, beheld to his extreme surprise, for he knew not how they got there, two men standing hard by, in green hunting shirts, with each a hatchet in his hand, as if ready to use them, and countenances grimly forbidding.

"The earth hath bubbles, as the water has!" he cried,—"'Peas-blossom! Cobweb! Moth! and Mustard-seed!' 'I cry your worships' mercy!' Your hands, gentlemen: I am as honest a scoundrel as any of you, though somewhat more unfortunate."

"Honest or false," said the refugee, giving a sign with his hand, on which the two instantly stepped from the den, and were concealed among the bushes, "it signifies but little to me. You are among friends, if you speak true; otherwise, among hangmen.—Your name is Poke?"

"'That's he that was Othello'—a poor servant of the word, an expounder of the book, a sower of good seed on the way-side," said the Proteus, in the tones of the quondam Nehemiah.

"You are Tapes, the pedler, caught stealing through the American lines at Morristown, and in good hopes of dying on an oak-tree?"

"True for you, captain Gilbert!" cried the other, with a stare; "but where did you learn that? Hah! I see! the roguish refugee that assailed young Asgill's guards, while he was riding out on parole, and would have plucked him out of the bonds of Egypt, had not the fool gripped tight to his honour, very much as a drowning man hugs a ship's anchor, at the bottom of a river, and so remained in captivity.—What, captain! was that one of *your* clap-traps?"

"You are the impudent scoundrel who has been cutting throats, and laying them at honest men's doors? cried the other, without regarding the question.

"Softly, captain—a mere matter of accident."

"And, moreover," said the refugee, sternly, "you are the masking, blundering meddler, who has twice drawn the hue and cry after myself?"

"Verily, so it appears," cried Sterling; "but now that we have met at last, we shall play no longer at cross-purposes."

"What seek you here? Why have you returned to a place where your life is in danger?"

"Zounds, sir!" cried Sterling, stoutly, "you ask questions enough to puzzle a regiment. But here is my whole story,—the history of my deeds, dangers, and desires. I am a gentlemanly scoundrel and unfortunate man, like others that shall be nameless; and after seeking my fortune in divers parts of the world, and making a grand sensation on the boards of the regimental theatre among Howe's officers at Philadelphia, I e'en consented to take service under the King, and therefore staid behind, when he ran away, and have been ever since a particular confidential correspondent of the royal generals at New York."

"That is to say, a spy?"

"Why, if you like the word better, e'en use it; the more elegant word is, correspondent. I am told, you have an excellent friend in Congress, a certain Colonel Richard Falconer"——The refugee's brow grew as black as midnight——"Well, sir, this gentleman is e'en an excellent friend of mine also; and having somewhat of the cunning of the devil in him, became busy, one morning, and entirely ruined my fortune and reputation together; in other words, he discovered and denounced me, threw me into prison, and volunteered to help me to paradise. I broke jail, concealed myself for a time; until, one night, accident drove me into his presence. I found the good-natured gray-beard alone, studying my case as hard as he could, and out of my own papers! I am quite a peaceable man, captain, 'yet have I in me something dangerous;' I became choleric, and finding a sword hanging up just at my hand, I took the liberty of thrusting it into his gizzard."

"Fool!" said the refugee, grasping him by the arm, "the throat is the only true place!—But, hark ye," he added, abating the wolfish sneer that accompanied his words, "you robbed as well as murdered?"

"Ay, 'by St. Paul,' I did," said Sterling, with infinite composure; "having declared war, I made free with the spoils of victory; and the Colonel's purse has lasted very well, all circumstances considered; though, wo's me, that say it! besides the guinea in my waistcoat pocket, there are but two more remaining, and they on the back of White Surrey. Concerning White Surrey, you must know, he is a devil born, like yourself,—I mean to say, myself; fleet of foot, untiring of spirit, and nothing against him but his ugliness and starved appearance, and, by the lord, some touch of the Marplot, especially in times of trouble. I could not think of leaving him behind me; and I was on my way to the rogue he called master, with a whole theatrical property-room on my back, when I stumbled in the dark on my friend Falconer. You must know, I had a woodman's dress on"——

"Hah!" muttered the refugee: "it was not all conscience, then?" Then changing his tone, he continued, "You have said enough. You have sought to escape, and find yourself unable?"

"Ay; and hearing the Hawks of Hawk-Hollow were out again, I even took counsel from despair, painted White Surrey's legs over again, and came hither to throw myself among them. Faith, I knew Hawk-Hollow would be the fairest place to seek them in. I volunteer, captain, I volunteer; but I hope you have a stronger force than Moth and Mustard-seed? I volunteer, and, by the lord, I am ready to go into action as soon as you order. But would to the lord I could catch White Surrey.—Harkee, captain, can you hide a man, at a moment's warning, out of the sight of a gallows?"

"Ay: there are dens hereabout deep and dark enough for a royal refugee to take his rest in."

"Hark ye, captain; give me a carbine, and I'll do you a service. I have heard," he added, with a shrug meant to be significant and confidential, "of that matter betwixt Falconer and your black-eyed"——

"Villain!" cried the refugee, seizing him by the arm, and giving him a look that curdled his blood, "you are venturing upon a subject that will bring the knife to your throat! Pho, you are a fool;" he added, checking his impetuosity, and grinning,

'A strange, uncomely, jawbone smile;'

"we are Christians here, and we forgive our enemies."

"Forgive?" cried Sterling, "come now, captain Gilbert, that's slippery. I know you better; and I know you have been wronged."

"You are deceived," said Oran Gilbert, laying his hand, with another ominous smile, on the volunteer's shoulder, "I am not an Indian, but a white man, and as you may have seen, forbearing and forgiving. They have told you, (for they have told the same to *me*,) that I am a wolf's whelp, an eater of men's flesh, and a drinker of blood; and that I never pardoned an injury, though I had grown gray thinking of it. Lies, lies all! I can walk by my father's house, and see the sons of his destroyer sitting in the doors; and yet carry myself like the best Christian of them all: I can be told, too, even by a foul-mouthed dolt like yourself, how shame and sorrow, came into the house, and afterwards death,—and yet feel no hotter for vengeance. All this

I can do, because I have a bad memory for matters twenty years old, or more.—Look you," he continued, dropping his tone of irony, and adopting that of menace; "I can forgive treachery as old as that; but I remember a nave's trick a full year. If there be any deceit in you, look well to yourself during that time. You were better to have been hanged as a spy, than to come to me as one.—You shall see!"

"Slife, sir!" cried Sterling, "you have no consideration for a man's honour!"

But while he spoke, the refugee had raised his finger to his lips, and drawn forth a low whistle; which was almost immediately answered by the appearance of the two individuals who had been in the covert before.

"Bring up the prisoner, and let the men follow," said Gilbert; and they immediately retired.

"Prisoner!" cried Sterling, in surprise, "Male or female?"

"You have volunteered your services among the royal refugees," said Gilbert, turning again to Sterling, and displaying a sardonic grin: "you shall be put on duty forthwith.—Have you ever killed a man?"

"Dozens of 'em!" replied the other, promptly; when seeing the tory stare in surprise, he fell into a laugh, saying, "That is, not in your barbarous, blood-thirsty way; but in the heroic, poetic, dramatic manner: in which mode I have also fought divers battles, from Bosworth Field to Dunsinane. No, captain, as to the real red-paint, as we call it on the boards, I have shed no more than a lamb, save in the matter of my friend, Colonel Falconer; but I am in the mood to learn: I have had a great appetite for war and glory come on me of a sudden. Hark ye, captain: my friend Falconer's son was one of the chasing party, and by and by he will be returning to the Hollow."

"Ay!" said the refugee; "what then?"

"I like that doctrine of the savages," said Sterling, with an amiable smile, "which teaches one who has a wrong to revenge, how unnecessary it is to be particular as to the individual he is to retaliate on. Now the son, I take it, is a good substitute for the father; and to my mind, it would be a pretty

thing to lie behind a bush on the road-side, with a musket or pistol, as he passed by, and then,

'Like a rat without a tail,
To do, to do, to do!'

Now, supposing, as my commander, you should order me to such a service, why,—'sessa, let the world slide,'—I should obey; that is, provided you stood by, to help me to one of those dens deep and dark enough for a refugee to take his rest in."

"If the young ape has done you a wrong," said Gilbert, coolly, "shoot him the first opportunity. You will have a chance by and by. You say, your horse is good and swift?"

"The best, were it not for his deviltry, ever bestridden by a gentleman in trouble. And then, captain, the ungrateful scoundrel (sure I might have escaped a dozen times, had it not been for my concern for him!) has all my munitions of war upon his back,—some six or seven coats and wigs of approved manufacture, a pair of pistols and a stage-dagger, a gold sword-hilt and two new tragedies in manuscript, a pair of green spectacles, and a horn pair uncoloured, a bottle of good brandy, a bible, a copy of Shakspeare, a fiddle, and my friend Falconer's two guineas."

"You must recover him," said the tory captain: "but now for duty. You shall see how treachery is rewarded by the royal refugees!"

As he spoke, there came into the den eight men attired like the two first, who were included in the number, all of them with green stuff shirts, edged and furbelowed with wolf, raccoon, and other skins, leather leggings and moccasins, and fur caps with hawks' feathers sticking in them. Each bore a thick rifle in his hand, and had a long knife in his pouch-belt, as well as a light axe suspended, quiver-wise, over his shoulder. They were dark, fierce-looking men, and perhaps an unusual degree of sternness was communicated to their features by the fearful duty they had now in hand. They led with them, or rather carried, for he was bound hand and foot, a ninth man, dressed in many respects like themselves, though he wore an old military hat, and was without leggings or moccasins. His countenance was

as rude as those of the others; but instead of exhibiting the same cold and stern resolution, betrayed a look of dogged sullenness, mingled with anxiety.

As soon as he was brought into the little inclosure, he was tossed, with but little ceremony, at the feet of the tory captain, the band forming a circle around,—each, as if by previous concert, drawing the tomahawk from his back, and resting his left hand upon his rifle.

"Oho!" said Sterling, looking into the prisoner's face, "whom have we here? 'By this light, a most perfidious and drunken monster!' 'Most reverend seignior, do you know my voice?' 'Oho, my sprightly Scot of Scots, Douglas, that run'st o' horseback up a hill perpendicular!' Why this rascal was he, one John Parker, a soldier on the lines, that nabbed me, being too drunk to understand the claims of my coat to better treatment. Oh, you vagabond, I knew you would come to the gallows!"

"Raise him on his feet," said the tory leader; then turning to the volunteer, he drew from his bosom a soiled and crumpled paper, which he put into Sterling's hands, saying, with a sternness that was perhaps assumed to cover the shame he felt at his own ignorance,—

"Read it.—Our merry men here can make nothing of such pothooks. Read it aloud; and then we'll proceed to judgment."

The volunteer obeyed, and succeeded in deciphering a scrawl, of a style of composition and penmanship so similar to that Miss Falconer had shown the Captain's daughter, that, had he ever seen the latter, he could have been at no loss to identify the correspondent. It was brief, and clear, and to the following effect:

"Honourable Madam to command—

"This here is the letter what I promised to put under the bush; and I put it this night, the 3d of July, in the year of our Lord, Anno Domini as before. The rendezvous is a place called the Tarrapin Hole, a swamp on the east of the road, six or eight miles above Captain Loring's. You turn off from the road at a place where a fresh blazed beech tree grows

by a rock; but the path is astonishing twistified, and not fit for horse, but can be surrounded. I had some thoughts of deserting, for I reckon some of these dogs is suspicious; but that might throw them into a panic, and so drive them to the hills, where the devil himself (begging pardon for swearing) could not find them. They say the captain (that's the Hawk) is in the village, or to be there to-morrow, when it would be easy to take him—(remember the red hat; as for the horse, there is no depending on that, for he has 'em scattered all about in depots;) and then the rest is nothing, seeing as how they are in some of a panic already, as not knowing what is to turn up. Howsomever nevertheless, there's one thing I've found out quite astonishing; and that is, that our lieutenant, a most impudent chap as ever you saw, walks about openly, and lives at the old widow Bell's, and"——

"Hah! enough!" cried the leader, suddenly snatching the epistle out of the volunteer's hands. "Have we more traitors than one among us? Who has forgotten orders, and told secrets to new men?"

"I, captain," said one of the men, breaking silence. "This here John Parker and myself were boys together in Monmouth; and so, for old companion's sake, I was more free about the lieutenant, and other matters, than stood in orders, not thinking there could any harm come of it. But I knock under to punishment, seeing the man has been betraying us all, and am ready to do justice on him with knife, rope, hatchet, or rifle-butt; though it goes ag'in' my conscience to take a man that's tied up like a shambled ewe."

"Cut the thongs from his legs," said Oran Gilbert, "or slack them a little. John Parker, I give you three minutes to pray. What, Tom Staples, have you never a rope here that might serve the traitor's turn?"

"I have been twisting one all the morning," said the man who had spoken, displaying a sort of cable constructed of the shreds of a blanket; "for I hoped it might be *that*, rather than knifing."

"Good Lord!" cried Sterling, shocked by the sudden preparation for such a catastrophe, "you don't mean to hang the poor devil?"

The sound of a friendly and interceding voice seemed to thrill the baffled traitor out of his apathy. He stared at the pseudo-quaker, and at once displayed the reckless hardihood of his character, though his old friend Staples was at that very moment forming a noose in the rope, by laughing and saying,

"Well done, old Tapes, is that *you*? You're no Johnny Raw, I see; but you'll come to the acorns yet! Don't go for to make a fuss about the hanging; for, you see, it's according to law, and hanging's the word; and these here raggamuffin refugees must have their way; and so let 'em hang and be d——d! that's my notion. But look ye, Mr. Captain Gilbert, and all you tories, and you Tom Staples into the bargain, here's a notion of mine: you see, you're come to the hanging too late, for all the good it is to do; for the thing's done up so cleverly already, you're just as good as dead men, you are, damme; for I've fixed you in a hole you can't creep out of without my assistance, you can't, damme. Now, captain, here's a bargain I'll make: you'll just spare my life, and drum me out of camp in an honourable, soldierly way; and, in return, I'll show you the way out of the trap; for, damme, comrades, you're surrounded: and so we'll square matters betwixt us, and say nothing more about it."

"Peace, rogue," said Oran Gilbert; "were the whole army round us, you should have your dues. String him up to the oak tree."

"Well now, captain," said Parker, "that's what I call being unreasonable. But some of you give me a drink at a canteen, for there's no use being strung up thirsty: and, Tom Staples, give me your cuffers, in token there's no ill-will between us; and let's have a quid of tobacco to chaw on.—Hark! there captain! do you hear? The road's in a swarm, I tell you! That, I reckon, was the squeak of captain Caliver; you can hear him a mile, of a clear day; and, you may depend on it, he'll have some of you, afore I've done kicking. Won't you hear to reason?"

The coolness of the man was, to Sterling at least, astonishing. They were fitting the halter round his neck, when a faint shout from the road was heard, but whether from a new batch of pursuers, or from the old ones now returning, could not be determined. He took the opportunity afforded by the

sudden surprise to beg Staples 'to be in no such fool's hurry with his blanket, and slack it off a little, for a word with the captain.'

"Harkee, captain," said he, "it's the last offer I can make. Now let's argue the case."

"Up with the babbling fool!" cried Gilbert, who had been hearkening attentively to the sounds.

"You won't?" cried the hardened desperado—"why then here's my service to you, and the devil take us all to supper together.—Hillo-ah-ho! Murder! Refugees!—in the swamp here, quick!"

He elevated his voice to a yell that caused the very leaves to shake above him; and would undoubtedly have given the alarm he intended to those on the road, had not the refugee captain snatched an axe from the nearest hand, and instantly felled him to the earth. Then, giving his orders anew, the wretch, before he had recovered his consciousness, shot up among the leaves of an oak tree; and Sterling, who watched the whole proceeding with mingled admiration and alarm, could not trace a single writhing or quivering of limb afterwards.

"Slife!" said he, "you killed the fellow with the hatchet! But, captain, concerning that surrounding; I don't like that"——

"Peace!" said the tory; "the first duty you are to learn is, to hold your tongue—the next, to obey." He gave the wild band a signal, and they instantly betook themselves to the bushes, or to hiding-places of which Sterling was ignorant. "This man came to me as a deserter, and was therefore trusted by one who should have been wiser: he has met his fate. You I can trust, because I know you are a doomed man like myself. You must recover your horse."

"Ay, faith; but how?—'Slife! what's the matter now?" he cried, observing his companion start suddenly at what seemed to him the whistle of a wood-robin, and look eagerly from the covert. The sound was repeated once, and once again; and then the refugee, turning to him, said,—

"You must claim him. Get you quickly to the wood-side, and follow on after the others, so as to recover him before they open your saddle-bags."

"Death and the devil! you are joking! What! run my head into the lion's jaws? and just to recover a vagabond horse, that flings me whenever the humour seizes him?"

"If you lose your horse, you lose yourself. We can be burthened by no footmen."

"Footmen? why I see no horses!"

"Ay: but away with you. Seek the men you came with, and return with them to Elsie Bell's."

"God bless my soul!" said Sterling, in alarm; "that young knave Falconer will smoke me in a moment."

"Knock him on the head then."

"And then the other lieutenant, that was so curious with the spots of White Surrey's legs! a marvellous shrewd fellow, I assure you."

"Why, do the same with him then; and stay not here babbling like a helpless boy. Protect yourself. Fear not: your present coat suits you better than the parson's. Return to Elsie Bell's, secure your horse and other property, and see that you feed him well; by midnight you will be called for, and placed in safety. Keep a firm countenance, as I think you can, and you are in no danger."

"Ay; but what excuse shall I make for leaving the road, and diving into these damnable abodes of refugees and rattlesnakes?"

"Tell them any lie you will,—your horse ran away with you into the woods, and then——Or stay," he added, looking grimly up to the body of the spy; "tell them you were seized by the Hawks of Hawk-Hollow, and that you saw them hang their tool. Bring them to the spot, and let them bury the carrion: it is good they should know what value we set on traitors. And,

hark ye, tell them we mustered at least a hundred strong, and that we stole off across the road, swearing vengeance upon the village. Mind you, the village: make them believe we are marching to surprise it by night. Now, get you gone—off with you. Set your face to the west—there; walk onwards five hundred paces, without looking to the right or the left, and you will find yourself on the road. Begone, and look not behind you."

The volunteer perceiving that remonstrance with such a commander might prove as dangerous as it was really unavailing, turned to depart, but not before he had seen the refugee clap his fingers to his lips, and draw forth a whistle similar to that which had attracted his own attention. There was one injunction, however, which the retreating Sterling thought it entirely superfluous to obey. He had no sooner reached a spot proper for such a proceeding, than he came to a stand, and cast his eye backward towards the den. He beheld a light figure ascending the knoll among the bushes and under the embowering trees; and just before it vanished into the greater gloom of the grot, a sunbeam, peeping through the branches, fell brightly over it, revealing to his somewhat astonished eyes the person of that identical youth whose mysterious hints had been of such service in awaking the fears and stimulating the energies of the hard-beset Nehemiah.

"Zounds!" he cried, "have we any such gentlemanly fellows in the confederacy! Oho! I recollect now," he added, conning over the words of the letter,—"'our lieutenant, a most impudent chap as ever you saw, walks about openly, lives at the Traveller's Rest, and,'—ay, faith, there was something about that old fool, Captain Loring, and a girl. Very well, young one, you will be hanged like the rest of us!"

So saying, and murmuring other expressions of a similar nature, he made his way to the roadside, almost at the very spot where a '*blazed*' beech-tree flung its silver limbs over a rock.

CHAPTER XX.

If thou long'st
To have the story of thy infamous fortunes
Serve for discourse in ordinaries and taverns,
Thou art in the way; or to confound thy name,
Keep on, thou canst not miss it;
Keep the left hand still, it will bring thee to it.

The Roaring Girl, or Moll Cut-purse.

With a better fortune than had awaited the volunteer, Herman Hunter stepped into the grot; but with much less display of heroism; for he no sooner found himself in presence of the renowned Hawk of the Hollow than he bent his eyes upon the ground, and stood silent before him.

"You are come at last!" said the refugee, giving him a piercing look, and with a voice none the less expressive of indignation for being subdued to the lowest tones, as if he feared a witness even in the dead malefactor; "you are come at last; and the son of my father comes with my enemies and hunters!"

"So I come," said the painter, raising his eyes, and speaking firmly; "I come as the friend, who, having saved you from one danger, desires to rescue you from another yet greater. I warned you last night,—nay, I sent you word long since, that you were watched: I betrayed a confidence reposed in me by one it was a double duplicity to deceive, in order that you might escape the net that was secretly closing around you. Nay, I discovered the presence and machinations of the daring spy, who but this morning was selling you into the hands of your enemies; I found his letter, and left it where you were sure to obtain it."——

"Ay; while you were yourself playing the fool among the Independents, and leaving me to the care of a stupid ploughman and a dotish old woman!"

"It was all I could," said Herman: "I knew it was better I should be on the ground, when the officers came. Had I not been there, to join the first of the

hunters, as you call them, and to fire an alarm in the hollow, neither your own cunning nor the fleetness of the roan horse could have saved you from capture."

"It was bravely done," said the refugee, with a softer voice, "and it will excuse what is passed. Where found you this dog's paper? and how?"

"Near the park-gate, under a bush, where I saw the man hide it, as I approached the place by accident. This fellow knows all your haunts: will he not bring the troops to this very spot?"

The refugee laughed, and at that moment Herman heard a noise on the bough of the oak tree, as of some animal rending away the bark; and looking up, he beheld what he had not before seen in the gloom,—the body of the dead traitor swinging with a sort of jerking, convulsive motion, as if still alive. The rope had slipped a little along the bough, and though soon arrested by some knot or other roughness, it was some moments before the motion entirely ceased. The dreadful and unexpected spectacle of a man, who, it was evident, the painter thought, had made his escape, thus hanging dead before him, filled him with horror, and he exclaimed at once,

"Oh, Oran! Oran! it is this dreadful cruelty of spirit which has made you what you are,—which has made us all what we are! For God's sake, let us cut him down, and see if he be yet alive."

"He was stiff before the rope touched his neck," said Oran, grimly; "I never struck *twice* with the hatchet. Let him hang: he died the death of a spy and betrayer. I have invited the county to his death-bed!"

"Daring, as well as cruel! Why do you linger here? It is plain, you are surrounded: before the sun sets the whole county will be out; and, to-morrow, there will not be a den of the woods, or a hollow of the hills, left unvisited."

"Why, this is what I want!" cried the fierce outlaw; "the general has tied my hands to act only on the defensive; and here are forty devils with heads of iron and fingers of fire, that are lying asleep in the woods like winter bears, for want of something to warm the blood in them. I am ready."

"Ready to die!" said Herman, solemnly; "ready to throw away your life at the bidding of a master, or the prompting of an insane passion. Fly, while you yet may: the attempt to rescue young Asgill must be now fruitless, as it is needless—even the Americans say, his life is in no danger. Fly, then, Oran, and give up your bloody designs in this fatal Hollow. Hearken to me, Oran,"——

"Hearken to *me*," said the outcast, sternly. "Has your blood turned to milk, and your heart to water? Are your wounds healed, your bones knit, your strength restored, and do you talk of leaving Hawk-Hollow at this moment? What is this they say of you? You were among the foremost of the rejoicing fools at the Hawks' Nest—have you turned American?"

"I was born upon these hills; but I will not strike the friends and countrymen of my father."

"Will you strike his foes?"

"They are in the grave with him," said the youth, sorrowfully; "and he has forgiven them."

"They are upon the earth, and his spirit is not satisfied!" cried Oran, with the wild energy, and almost in the favourite language, of an Indian orator. "Have you rested under his roof? have you sat in his flower-garden? have you walked on his path by the Run-side? have you spoken with the people that drove him in his old age from his fireside? Hyland Gilbert! they broke his heart, and then trampled him to death. Will you not do him right and vengeance?"

"Oran!"——

"Changeling!" cried the refugee, with a scowl of savage contempt; "if you have not the feelings of a man, you have at least the gewgaw brain of a boy. Look!" he continued, drawing from his bosom, and displaying with a sneering grin, a roll of written parchment, decorated with the due pomp of martialness; "you begged for the toy that would make you a servant of the king; and here it is. Take it; and for the sake of a red coat and feather, do what you would not for the name and honour of your father."

Hyland—for the assumed name of the young Gilbert must now be dropped—recoiled from the emblem of distinction as much as from the frowning eyes of the speaker, but answered firmly,—

"When I was in the Islands, it is true, I desired the king's commission; and, it is also true, I left them to obtain it; and had I reached the royal army at my first landing, no doubt I should have accepted it. But it was my fate to be cast ashore far in the south; and I esteem it no bad fortune that I obeyed a whim of adventure, and made my way through my rebel countrymen (they are *ours*, Oran,) to this spot. I have thus been made acquainted with some of the principles on which this war is contested; whereby, I thank heaven, I have been spared the shedding of innocent blood in an unjust cause."

"Do you say this to me?" cried the refugee, with a wild laugh.

"Oran!" said the young man earnestly, "your heart is not with the side you have espoused; and fierce and cruel as may be your acts, they are, they must be, at variance with your conscience. A moment of fury drove you into a cause you abhor; and if you give the bloodiest proofs of your fidelity, you are impelled to them only by remorse and despair."

"You are a philosopher!" said the renegade, with another bitter laugh; "but we will play the fool no longer. Will you have the commission? See, it has the royal mark upon it!"

"Oran," said Hyland, mournfully, "after yourself, I am the last of my father's house. You ask me to do what has brought the others to their graves—to early and ignominious graves; and what, though you have been spared, has left you the prey of shame and sorrow. Why should I strike those men, who, besides fighting against tyrannous oppression, (such it was, Oran,) are also the children of the same soil—our countrymen and brothers?"

"You are the last of the seven," said the refugee, taking both the young man's hands into his, and looking at him with mingled affection and anger; "four of your brothers were slain—one of them hanged upon a gibbet—and all by 'our countrymen and brothers!' The fifth—look you, Hyland, the fifth—the second-born and the beloved, whose name was given you, that you

might never forget him, fell in battle, saving the life of one of these—my countryman and my brother!"

The face of the outcast blackened, and Hyland trembled in his glance; he stepped out of the nook, and leading the young man along, conducted him up the hill to a place where a vista through the trees, looking over the green swamp, disclosed a glimpse of the blue ridgy cliffs of the Kittatinny, to which he pointed.

"Come with me to that mountain," he said, "and when you stand upon the summit, gazing to the right and to the left, you will look upon two graves. One of them lies in the desert, among the hills: I planted a pine tree on it, and you can see its blue head afar off. Do you remember who sleeps in it?"

"I do," said Hyland, with emotion; "it is my brother."

"And do you bethink you what laid him there?"

"His humanity and his noble heart."

"He died," said Oran Gilbert—"he died that a villain might live; and you call that villain 'my countryman and brother!'"

"No," said Hyland, with some of his wild brother's spirit; "I except *him*."

"Then look to the left," continued Oran, with a glance of painful humiliation: "on the brook, and in a little bower, there is a second grave."

"It is the grave of my poor wronged sister!" cried Hyland, impetuously.

"Of your sister, and of ——. Ha, ha! Is not this a merry subject for two brothers to talk on! 'My countryman and brother' destroyed her and fled."

"May heaven pardon him," cried Hyland; "but I cannot."

"We buried her in secret, and in night, that none might look upon her shame, or upon ours," said the refugee; "and that night came into the world her brother, whom we called Hyland, that we might better remember her destroyer."

"Oran! Oran!"

"Your mother," continued the elder brother, with a cruel pertinacity, "loved the girl well, and died of sorrow for her. My 'countrymen and brothers' pointed at our shame; they visited the sins of the children upon the father, and drove him forth in his old age, a childless and ruined man."

"They did," said the youth; "he came to the island, and he died in my arms."

"My 'countrymen and brothers,'" added Oran, with a ferocious sneer, "have left the oldest and youngest to weep for the others.—Here is the commission——We will avenge them!"

For a moment Hyland seemed to share the fire of the outcast; for a moment he grasped the parchment which the other had put into his hand. His face flushed,—then turned pale; he hesitated,—faltered; the badge of honour fell to the earth; and clasping his hands together, he looked at Oran imploringly, and said,

"My father died in my arms, and charged me, with his last breath, to forget that he had been wronged."

"It was the weakness of his death-hour," said Oran.

"He bade me," continued the youth, "leave his enemies to God, and the destroyer of his peace to his fate."

"Look at his fate!" cried the refugee: "wealth surrounds him, and he is envied for his happiness; while you are ashamed of your father's name, and I am poor, and abhorred, and miserable."

"We will go to the island, and forget"——

"Will you have the commission?" said Oran, abruptly. "You have youth, talents, education and fortune,—and will rise. This commission is to serve among the royal refugees; but if you carry it bravely at the first bout, I have the General's word you shall be transferred to the line, with a fair field for promotion."

"Look, Oran," said the youth, manfully, "I will not take the commission, nor will I trust your commander's promises. You have served him from the beginning; and none have served him better. How has he rewarded you?—You are still a captain of refugees!"

A shadow of humiliation passed over the face of the renegade; but he answered without emotion.

"I sought nothing better, nor am I fit for promotion. My station is where my habits and inclinations put me,—among the free rangers. But you have learning, youth, ambition; and are capable of training into discipline."

"I will not take the commission," said Hyland, with increasing resolution. "I have been enough with our people,—with the Americans,—to know that their cause is just, and holy, and is prevailing. Nay, you must know, that, at this moment, commissioners are deliberating over the preliminaries of negotiation, and that peace must soon be concluded."

"It is false," said the refugee, fiercely; "a trick of the ministers,—a common stratagem."

"True, or false, then, yet am I resolved to shed no blood in the quarrel; and, certainly, I will take no commission to distress the people of this neighbourhood. Oran, I am resolved; I will not fight; and I adjure you by the last wish of our poor father, and by your own hopes of future quiet, that you give up your schemes of blood, and leave this fatal valley for ever. Disband your followers; and take heed you be not suddenly deserted by your employers."

"Boy!" said the outlaw, "you are not white-livered, or you would not say these things to me! Look you, I know your folly: it is not for me,—not because you love liberty and peace,—not because you have laid to heart the dotish words of a half crazed father,—that you are so cold and shameless; but because you have set your eyes on the baby face of a girl, who will laugh at you, when the last fit of your folly is over. Hark you,—read me this knavish letter, and see what is already said of you."

"I have read it," said the young man, faltering.

"Ay, but read it again: let me know how far your madness has been talked of." And Hyland, summoning courage, took the letter and read it, though his embarrassment increased at the paragraph concerning himself, which had caused Oran to snatch it so suddenly from the hands of the volunteer. This paragraph, couched in the coarsest terms, expressed a knowledge of his affections, which had alarmed him at first excessively, though, it was probable, it was nothing more than the shrewd guess of a keen observer; and it concluded by showing how easily he might be 'nabbed, while at his gallivanting.'

"And this, then," cried the refugee, "it is that makes you so tame, so spiritless! Poor fool, could you look on none but the betrothed of a Falconer? Look you, boy, you are in a bear-trap, and the log will soon be on your back: with this baby fancy, shameful and dishonourable, you are gulling yourself into perdition."

"Oran," cried the young man, throwing himself upon the wild man's mercy, "this poor girl is betrothed against her will; and if no friend stands by her, there will be another broken heart laid by the side of Jessie. Do not scoff at me, or reproach me: she saved my life, she has treated me with a sister's kindness and trust; and if she will suffer me to aid her, I will rescue her from her misery, though I die for it."

"Do what you will," said Oran, with a gloomy frown: "though you had her heart and love, what will she say to you, when this cunning daughter of a villain, that sent yonder Parker to the rope, ferrets out your secret, and shows you to be a son of the Gilberts? Nay, what will others say to you? It is better to die as a soldier, than a spy!"

"I am no spy," said Hyland; "and when the time comes for disclosure, I will not fear to acknowledge my name."

"It will soon come," said the refugee. "Go," he added, sternly; "you are rushing upon destruction. Save yourself as you can, till midnight; and then take the commission, or be lost. Begone from this place; it will be soon full of soldiers—I have sent for them; and already they are coming.—Brother," he said, relenting, as the young man turned to depart: he strode after him and took him by the hand: "What have you or I to do with the love of

woman? This is but a folly.—You have no friend or kinsman left to advise or help you.—Well, if the girl be willing to fly, why, put her upon a fleet horse, and to-morrow she shall be beyond the reach of a Falconer. It shall not be said, I deserted you, even in your folly."

How much further the wild and flinty outlaw might have been softened by the distress he saw pictured on his brother's face, cannot be told. The gentler feeling of affection beginning to yearn in his bosom, was chased away by a sudden sound like the flourish of a distant trumpet, which came trembling over the forest-leaves.

"Away," he cried hastily; "the curs are coming, and the troop with them. Dive into the swamp, and meet them on the road. To-night you shall see me."

So saying, he bounded down the hill with the activity of a mountain-buck, and was almost instantly lost to sight. The brother, crossing the swamp and brook, made his way to the road, some distance above the spot where he had dismounted.

END OF VOL. I.

THE HAWKS OF HAWK-HOLLOW.

A

TRADITION OF PENNSYLVANIA.

BY THE AUTHOR OF "CALAVAR," AND "THE INFIDEL."

Where dwellest thou?——

Under the canopy,—i' the city of kites and crows.

Coriolanus.

IN TWO VOLUMES.

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THE

HAWKS OF HAWK-HOLLOW.

CHAPTER I.

I will discover such a horrid treason,
As, when you hear't, and understand how long
You've been abused, will run you mad with fury.

BEAUMONT AND FLETCHER—*The Prophetess.*

It has been seen how the rejoicings at the promontory were interrupted in their very beginning, by the sudden discovery of the refugee, so

Drad for his derring-doe and bloody deed,

that his mere name had thrown all present into confusion. The crowning climax was put to the general panic, when some of the late pursuers were seen returning, early in the afternoon, whipping and spurring with all the zeal of fear, and scattering such intelligence along the way as put to flight the last resolution of the jubilants. The news immediately spread, that Oran Gilbert had burst into existence, not alone, but with a countless host of armed men at his heels; that he had attacked and routed the pursuers, hanging all whom he took alive, especially the soldiers; and that he was now, in the frenzy of triumph, marching against the devoted Hillborough, with the resolution of burning it to the ground. Such dreadful intelligence was enough to complete the terror of the revellers; they fled amain—and long before night, the flag waved, and the little piece of ordnance frowned in utter solitude on the top of the deserted head-land. It is true that there came, by and by, couriers with happier news, but too late to arrest the fugitives; and as these riders made their way towards the village, expressing

some anxiety lest it should be attacked, they rather confirmed than dispelled the fears of the few inhabitants of the valley. From one of the coolest and boldest, Captain Loring, who fastened on him at the park-gate, learned that there had been no action indeed, and that the fugitive had made his escape; but, on the other hand, it appeared that there *were* refugees in the land,—that they had hanged a soldier named Parker, and made good their retreat from the place of execution—that the greatest doubt existed among the pursuers in relation to the route they had taken and the objects they had in view, some believing, on the evidence of a certain quaker, who had been their prisoner, that they were marching by secret paths against the village, while others insisted that this was a feint designed only to throw the hunters off the scent, and to secure their escape,—that, in consequence, the party had divided, pursuing the search in all directions, in the hope of discovering their route,—and, finally, that it was now certain, the band, whose number was supposed to be very considerable, was really commanded by the notorious Oran Gilbert. From this man also, Captain Loring learned a few vague particulars in relation to the two greatest objects of his interest, namely Henry Falconer and the young painter, who had fallen into a quarrel in consequence of some misunderstanding about their horses, the officer having used harsh language not only in regard to the unceremonious seizure by Herman of his own steed, but in reference to a similar liberty the refugee had previously taken with the painter's, which, Falconer averred, was an evidence of intimacy and intercourse betwixt Mr. Hunter and the outlaw it behooved the former to explain, before thrusting himself into the company of honest men and gentlemen. This quarrel, it seemed, had been allayed by the interference of Falconer's brother officers; and the informant had heard something said of a proposal to drown the feud in a bowl. As for the man of peace, Ephraim, it appeared, that his spirited assistance during the chase, and especially his success in exposing the secret haunt of the tories in the Terrapin Hole, the scene of Parker's execution, had not only removed all suspicion in relation to his character, but had highly recommended him to the favour of his late captors.

With such news, the Captain strode back to his mansion, and awaited, with his daughter and kinswoman, the return of the officers to the Hollow, and their appearance at the hall, which he doubted not, they would instantly make, after returning. He waited, however, for a long time, in vain; and by

falling sound asleep, as he watched the sun creeping beneath the western hills, escaped the intelligence, which was soon after brought to the house, that the officers had returned to the Hollow, and instead of reporting themselves forthwith under his hospitable roof, had made their way to the widow's inn, where they were carousing with a zeal commensurate with the spirit they had exhibited during the troubles of the day.

This unexpected termination of a day of heroism—a termination that surprised and irritated Miss Falconer as much as it perhaps secretly pleased the Captain's daughter—was a consequence of the late quarrel, or rather a mode of burying it in oblivion, devised by captain Caliver, who had contracted an esteem for the painter, and preferred 'his ease in his inn' to all the delights and blandishments that might be expected in the society of Gilbert's Folly. As the superior officer, he had taken the command into his own hands, and besides arranging his forces so as to watch all the approaches to the valley, and despatching lieutenant Brooks to the village, to communicate with the authorities there, he declared his resolution to erect his head-quarters in the Hollow, at a place like the Traveller's Rest, where, while still commanding the road, he would be near enough to protect the females and non-combatants in the Captain's house. "And besides," he added facetiously, while riding up to the little inn, "as we men of the sword are protectors of widows as well as orphans, we will thus protect a forlorn old woman from mischief, and put a penny into her pocket, and drink our wine at our ease—for you remember, Falconer, my young brother, you swore by all the gods you would have some of the wherewithal smuggled up to this identical old woman's whiskey-house!"

"I swore it 'by the eternal Jupiter,'" said Falconer, with a grin; "and, by the eternal Jupiter, I am as ready for a blow-up now as another time; only that we must blow fast, so as to run up to Hal, to be scolded before bed-time, as soon as Brooks comes: and as for Mr. Hunter here, why he and I can blow out one another's brains in the morning."

"If thee talks in this evil-minded, blood-thirsty manner," said Ephraim Patch, indignantly, "I give thee warning, I will have nothing to do with thy wholesome wines and thy goodly brandies, whereof thee has spoken, and whereof much good may be said, in regard of them that are faint and weary.

If thee will eat, drink, and be merry, all in a civil, Christian way, without drawing any weapons more dreadful than corks, pulling only at the bottle instead of the pistol, and neither swearing profanely nor drinking foolish irreligious healths, thee shall have me in company to give thee good counsel, whereof thee has considerable much need, as well as thy long-nosed friend here, (not meaning any offence,) which thee calls captain, and the youth also, friend Hunter. Verily, I am both hungry and thirsty, and will sooner enjoy the creature comforts in this quiet hovel, than even the satisfaction of bringing the breaker of laws into the hands of justice. Verily, the thought of these goodly wines doth make my mouth water; and I shall rejoice, even to the bottom of my spirit, if they have already reached the house of the widow."

We do not design to relate the joys of the banquet shared by the four worthies, and some two or three young men of the county, who had shown themselves men of spirit, and remained bravely by the side of the officers, resolved, as they said, to contribute their aid to the defence of the Hollow. It is only worthy of remark, first, that the ill blood between young Falconer and the painter gradually wore away, and was succeeded, on the part of the former, by a sudden friendship, which bade fair to ripen into fondness, and on that of Hyland, by what was at least a show of reciprocity; secondly, that honest Ephraim, gradually displayed as much spirit in the feast as he had before manifested in the fray, and became, to the surprise of all, the soul of mirth and drollery, so that young Falconer, clapping him on the back, swore, with the favourite oath of his friend Caliver, he 'had never seen a jollier old broad-brim;' and thirdly, that this capricious young gentleman grew so enamoured of his company, that he ceased to talk, as he did at first, of the necessity he was under of paying his sister and friends a visit at the Folly, until he was roused to recollection by the sudden retreat of his new friend from the cottage. The painter was detected in the very act of stealing, or as they chose to call it, sneaking from the apartment; and Mr. Falconer, uttering a loud 'Hillo! halt, deserter!' volunteered to bring him back to the punishment immediately ordered by the captain of cavalry, of a glass of salt and water. He rushed from the room, and plainly beheld the youth, in the light that flashed from the window, spring from the porch, and dive into the midnight shadows of the oak trees—for it was now completely dark. As he retreated, he stumbled over some obstruction in the path; but instantly

recovering himself, he leaped over the little brook, and was soon out of sight.

"Hillo, Hunter, my boy!" cried the lieutenant. "Why zounds! there he goes up the road like a light-horseman! Why, gad, here the fool has dropped his handkerchief;—no, gad's my life, 'tis a paper. Hillo, painter! you've dropped something! A letter, as I'm alive!—Ehem—hiccup!—a very handsome constellation that Great Bear! never saw the Pointers shine so brightly in my life.—Gad's my life, and adzooks, as Captain Loring says, 'tis the lights in the Folly, after all! and here am I, carousing like an ass, instead of playing off the Romeo to Catherine by starlight. Now Hal will scold like twenty housekeepers, Catherine will look sulky, and as for the Captain, why I suppose he will fall into one of his patriarchal rages. Gad, but I feel rather warmish and particular; but this cool night air is a good thing for settling one's nerves. I warrant me, that rascal Hunter has gone up there before me. A very handsome, well behaved dog, and I like him immensely!"

With such expressions as these, the young man, whose brain, never one of the strongest, was at present whirling in confusion, began to make his way towards the Folly, without troubling himself to think what amazement or affliction his absence might cause his friends. Indeed, he was fast verging towards that happy state in which man shows his loftiest contempt of the world and the world's ways, and his disregard of all those restraints and encumbrances which society has imposed upon the free-born lord of creation. He had left the hovel without his hat; but what cared he for such a superfluity, of a fine summer night, even although beginning a walk over hill and hollow, of full a mile in extent? Had he left it even without his boots, it is questionable whether he would have noticed the deficiency, until recalled to his senses by the roughness of the road. In a word, the wine he had already swallowed, had made serious inroads upon a brain that was always 'very poor and unhappy for drinking;' and, as it frequently happens in such cases, the exercise of walking more than counteracted the effects of the cooling air; so that, by the time he had trudged half the distance towards the paddock, the young gentleman was in the happiest spirits imaginable, wholly insensible of his condition, and almost unconscious of the purpose that had drawn him so far. He even began to sing along the road, and by the time he had reached the gate, was trolling a song, of a character ludicrous

enough to come from his lips, but which, perhaps caught originally from those of some wag or philosopher of the camp, was now suggested by the spirit of happy indifference it breathed to all sublunary concerns, and was therefore in excellent harmony with his own feelings. It was the song of *Poor Joe*, and was sung with wondrous emphasis and gusto.

I.

Poor Joe! I've no wealth but content at command,
I am otherwise poor as a rat;
But while the world covets one's houses and land,
I'm sure 'twill not rob me of that,
Poor Joe!
I'm sure 'twill not rob me of that.

II.

I've no money, no money to squander in wine,
To aid me in soft'ning my lot:
But then, if the shame of a poor man be mine,
The shame of a scoundrel shall not,
Poor Joe!
The shame of a scoundrel shall not.

III.

No sweetheart to flatter, no wife to applaud,—
Poor Joe! he may house him or roam;
But, sure, if he meets with no angel abroad,
He'll hap on no devil at home,
Poor Joe!
He'll hap on no devil at home.

IV.

Poor Joe! I've no friends, as, if richer, I might,
But for that I'll not bitterly grieve;
If there's none, with the gabble of love, to delight,
Why then there are none to deceive,
Poor Joe!
Why then there are none to deceive.

V.

Poor Joe! I am ragged, my hat is grown old,
My elbows peep out to the storm;
But why should I fear for the wet and the cold,
When content and a blanket can warm,
Poor Joe!
When content and a blanket can warm!

Apparently, he found the madrigal just one stanza too short, at least for his present mood; for which reason, so soon as he had finished the last of all, he began to repeat it, with even more expression than before, and had just reached the second line,—

"My elbows peep out to the storm,"—

when one of his own elbows was suddenly seized upon, and a voice, bitterly reproachful, muttered in his ear,

"Are you mad? Are you mad, brother? are you mad?"

"What! Hal? sister? is that you? Gad's my life, I knew you would scold me; but if you would only consider——But, now I think of it, egad, what brings you out here of a dark night, singing Poor Joe, like an old soldier? Adzooks, as the Captain says, I am quite astonished!"

"Brother, you are——Oh, that you should be so insensible to interest, if not to shame!" cried Miss Falconer, with deep feeling. "Brother, brother, you"——

"If I have, may I be shot!" cried the young officer, hastily, as if the instinct of long habit had taught him what his sister intended to say; "that is, Harry, my dear, nothing to speak of; and it is all on account of Caliver, who, betwixt you and me, is so deuced soft-headed,—he is, egad,—one must always sit by, to take care of him. As for me, Hal, why I can drink a hogshead of any such wishwashy stuff as these French wines; I can, by the eternal Jupiter, as Caliver says; and at the present moment I am"——

"Ruined, irretrievably ruined!" cried his sister; "and by your own folly—by your own miserable, infatuated dissipation. You have lost Catherine Loring."

"Lost Catherine Loring? *my* Catherine Loring?" cried the young man, in alarm. "Have the Hawks carried her off?"

"What if I say *yes*?" replied Harriet; and then added, with a tone that brought the youth still farther to his senses, "and I must add, that even a base and renegade Gilbert is worthier of her than *you*,—my brother,—the son of Richard Falconer! Oh, shame upon you, brother! shame upon you!"

"Harry, you are joking with me!" cried Falconer, with a voice somewhat quavering and querulous. "We've driven the dogs the lord knows whither; and as for that story of the village, why that's all a fib: so as to carrying Catherine off, I don't believe a word of it."

"And yet you have lost her,—lost her, perhaps, beyond all redemption. Oh Harry, brother Harry, were you but enough in your senses to understand me!"

"I am, sister, I am," cried Falconer; and indeed the devil, drunkenness, was fast giving place to the devil, fear: "*I have* been drinking; but I swear to heaven."

"Swear no more: you have done so a dozen times already."

"I have done so, sister; but I swear again, and I call heaven to witness, that if you have spoken the truth, and Catherine be really lost, I will never drink more till I have recovered or revenged her. But for pity's sake, speak; what

is the matter?—I am sober now. What has brought you out here in the dark? Where is Catherine? What is the matter?"

"You shall hear," cried Miss Falconer, hurriedly: "perhaps it is not yet too late. You have a rival, brother, a dangerous rival!"

"Oh, gad now, sister! lord, is that all?" exclaimed the young man, bursting into a laugh: "why, you don't think I shall go jealous, because I have a rival? Gad, Harry, you're the most absurd sister in the world.—I wonder what the deuce has become of my hat?—A rival, Hal? One of these village clotpolls! A dozen of 'em, if you like: the more the merrier. I'll invite 'em all to my wedding."

"You are mad!" cried Harriet. "Wedding, indeed! Perhaps you will never be married. What think you of a rival that has her heart?"

"Her heart? Catherine's heart?" exclaimed the gay-brained soldier; "why, it has been mine these two years!"

"And now," said Harriet, "it is another's.—Brother! rouse from your dream of confidence and security. It is as true as that the stars are above us: Catherine Loring loves another."

"Harriet!"——

"It is true—she confessed it with her own lips."

"Confessed it, sister!" said the young man; and then added, with a spirit that surprised her, "If that be so, why then good luck to her: she shall have her freedom. I don't think I shall break my heart; and, certainly, I shan't force her to marry me. But, Hal,—look you, sister Hal,—I did not think she would cozen me. She confessed it, did she? Why, that's enough. I'm an honourable man; but after being cheated and jilted, I don't care much—— But if I don't kill the scoundrel, Hal!—I say if I don't kill him, you may have leave to call me a fool and chicken twice over!—Confess it!"

If this display of spirit surprised Miss Falconer, the manifest distress with which her brother spoke, incredible as it may seem, greatly gratified her.

His greatest fault in her eyes,—that is, aside from his dissipated habits,—was that easy indifference of disposition, or indolence of feeling, which kept him reckless and passive when she would have had him ardent and energetic. She knew him to be insensible of the full value of that prize it was her ambition to secure him; and had he been any but her brother, she would have hated him for what seemed the feebleness of his affection, as indicated by the little pains he took to secure that of Catherine. It was obvious, from this homely burst, in which magnanimity, pride, indignation, anger, and distress, were all so characteristically jumbled together, that the young gentleman had really feeling enough at bottom, and that, in a great measure, of the right kind; and the discovery brought a ray of hope into her mind.

"Brother," said she, "if you really love Catherine, you may yet save her."

"What! after confessing she loves another?" cried he, sulkily. "Now, Hal, for all your wisdom, you don't know me—I won't have her. Confess, indeed!"

"No—she did not confess—I will explain. Perhaps 'twas only a dream;—it was in her sleep."

"In her sleep!" cried Falconer, and then burst again into a roar of laughter. "In her sleep!" he ejaculated, giving way to a second peal. "Well! you have scared me with a vengeance!—But I forgive you—you have brought me to. Of all the cunning doctors in the world, give me yourself, Harry; you are infallible. And so she confessed in her sleep, poor soul, did she? Oh, Hal! Hal! Hal!" And here the capricious youth gave full swing to his merriment.

"Thus it is," said his sister, impatiently; "one extreme or the other, ever. Listen, brother; for I am serious. Your wild habits have greatly weakened Catherine's affections. Another comes, in the meanwhile, with attractions, I will not say superior to your own, but perhaps every way equal, who ceases not, neither by day nor by night, to influence her imagination and engage her heart. Judge of his success, when you know that she has admitted him to intimacy, nay, to confidence; judge, when I tell you that she trembles at the sound of his voice, turns pale at the echo of his footsteps, blushes when he speaks, looks glad when he is by her, and weeps when he is absent,—and,

finally, who hides the secret from her own waking thoughts, yet babbles his name over in her dreams, and sheds tears, and smiles with her tears, when she murmurs it. Is not such a man,—the object of such emotions, himself so passionately enamoured, that his visage betrays the thought of his bosom, even when he knows he is suspected and watched,—is not such a man a dangerous rival?"

"Sister, you know better than myself," said Falconer, uneasily; "if *you* think so"——

"I do, brother; I believe, that, this moment, without knowing it herself, Catherine's mind is dwelling upon your rival; and if he be not driven away, you will lose her."

"Point him out to me, sister Harriet, and then, by"——

"No fighting! no fighting, brother!" cried Harriet, in some alarm, and speaking with eagerness. "Not a hair of the young man's head must be harmed; we have done him injury enough among us, perhaps, already. We must frighten him away: if I know him, we can legally expel him from the valley. Arrest, imprison him, banish him;—do any thing; but harm him not—that is, do him no harm with your own hands. If he have forfeited his life to the law, let the law take it. Now, brother, know your rival—it is the youngest brother of this dreadful Oran Gilbert."

"Saints and devils!" cried Falconer, with vivacity, "a Hawk of the Hollow! and dare to love Catherine Loring?"

"I could be sworn to it," said Harriet. "The circumstances that pointed out the assassin of my father, were but clews of thistle-down to the chains of evidence that led me to the knowledge of this skulking raven's character. The first circumstance was as strong as the last; an idle, thoughtless, nay, an accidental, pencil mark on a drawing opened my eyes in an instant; and heaven's light immediately streamed through them. But think him not the coarse cut-throat his name would indicate; he has had a gentleman's breeding, and such is his bearing. I doubt not that he is a confederate of his brother, perhaps even a spy; and, I am persuaded, it was he who counteracted our scheme of seizing the reprobates, and brought the poor

soldier, Parker, to the gibbet. He must be arrested and examined. He knows he is suspected—he knows that I suspect him; but will, in his audacity, remain, in the assurance that no real proof can be brought against him.—That man, that painter, brother,—that Hunter? where did you leave him?"

"Leave him?" cried Falconer: "why, is he not here? Sure, he led the way hither; and sure I followed after him. A rare fellow, sister! I was going to blow his brains out; but, egad, I know him better, and, gad, I am coming on fast to adore him. Adzooks, as the Captain says, I picked up his letter, and"——

"His letter?" cried Harriet, eagerly; "where is it?"

"Here," said the lieutenant, drawing it from his pocket, wherein he had safely bestowed it.

"To the light! to the light!" cried the maiden, snatching it out of his hands, and running with the speed of a frightened deer towards the mansion, followed by her bewildered brother. A candle blazed in one of the windows that opened on the porch, and in the chamber it lighted, had she been disposed to look, Miss Falconer might have seen the gallant Captain Loring sitting upright in his arm-chair, but fast asleep, and filling half the house with the melody of his nostrils. To this window ran Miss Falconer, and hither she was followed by her brother; who, to his amazement and indignation, found her devouring the contents of the paper with the avidity of a malefactor poring over his own respite from a death of ignominy.

"Gad's my life, sister Hal!" cried the incensed soldier, "you have disgraced me for ever! What, reading the young fellow's letter?"

"Reading *my* letter!" cried Harriet, turning upon him a look inexpressibly fierce and triumphant. "Was not this suspicion as prophetic as the other? The dead Parker speaks to me, and from his grave affords me proof even stronger than I sought. Oh, villain! villain! audacious, inconceivably audacious, villain! Their lieutenant? His intimacy with, his designs upon Catherine Loring, revealed even to his ribald companions? and made their theme of speech! their jest! Oh, what a rival have you suffered to approach your betrothed wife, Harry Falconer! *This* convicts, doubly convicts him.—

What ho, uncle! Captain Loring, awake! Where is Catherine? Uncle! uncle!"

"Devils!" cried Falconer, "do you mean to say that Hunter is the man? Why he's a gentleman!"—

"Adzooks, and adsbobs, what's the matter? Send out scouts to beat the bushes: tree 'em, my boys, tree 'em; never show an inch of Adam's leather to an Indian.—Adzooks, is that you, Harry my dear?" were the words of Captain Loring, roused as suddenly from his slumbers as he had often been in his early woodland campaigns. "What's the matter? Have you caught that scoundrel Oran, or any of his gang?"

The answer to this question astounded the old soldier; and while Miss Falconer poured into his ears the story of the transformation of his beloved Herman the painter into Hyland Gilbert, a brother and leader among the Hawks of Hawk-Hollow, he seemed for a moment, like the devotee, rapt in a holier passion, to have

Forgot himself to marble.

In the meanwhile the unlucky author of this commotion had brought his destinies to a crisis in another quarter, and with another individual.

CHAPTER II.

"Not all the wealth of Eastern kings;" said she,
"Has power to part my plighted love and me."

DRYDEN.

The painter had long since made his way to Gilbert's Folly. As he hurried through the park, he discerned the figure of Miss Falconer; and

notwithstanding the obscurity of the hour, he knew her at once, and avoided her. There was a moon in the sky, but new, and low in the west; and, besides, it was struggling with clouds that robbed it of half its lustre; yet it cast ever and anon light enough to enable a good eye to distinguish objects on the more open portions of the lawn.

Not a little pleased at the prospect, thus offered, of enjoying a *tête à tête* with the Captain's daughter, though it might be only for a moment, he entered the house and the little saloon in which he had spent so many happy moments. It was empty, but the door leading to the garden was open, and the broad gravel-walk, fringed with low shrubs and roses, was lighted by the taper in the apartment. As he stepped out, his eye fell upon Catherine Loring, who was that moment approaching from the garden, her step hurried, and her countenance displaying agitation, which was increased the moment she beheld him.

"Oh, Mr. Hunter!" she cried, running eagerly towards him, "I am very glad to see you, and I am glad we are alone. We are all going mad here at the Folly, and it is right you should know it. You have—I am ashamed to say it, for I know you have not deserved her dislike—made an enemy of my cousin Harriet; the strangest suspicions have entered her head; and she may offend you, unless you are put on your guard. You must forgive her: by and by, you will laugh at her folly, and so will she; but at present she seems half-distracted by the events of the day, the disasters of her father, and her fears for the future. Did you not meet her? Alas, she will be here in a moment!"

"Fear not," said the young man, in hurried and altered tones, but with an effort to be jocose; "she is down by the park-gate, studying the stars, and reading my own foolish history among them. Miss Catherine,—Miss Loring,—I am aware of your friend's dislike. I am not surprised—she will tolerate your having no friend less interested than herself."

"You must not speak thus, Mr. Hunter," cried Catherine, but in too much hurry of spirits to rebuke. "I did wrong to show you her letter: *that*, I fear, is the chief cause of her anger; and your being a stranger, and so great a favourite with my father—oh, and a thousand reasons more she has found,

or fancied, for supposing you are—that is, that you have deceived us, and that"——

"That I am—an impostor," said Hyland, hesitating an instant at the word, but pronouncing it at last firmly.

"Such is indeed her strange aberration," cried Catherine, apparently overjoyed that the idea so repugnant to herself, had been conceived by the suspected person, and without distress or anger; "and,—and—but this is the maddest and most insulting suspicion of all, (yet you must not be offended:)—she thinks, you—really, I could laugh, but that she has frightened me half out of my wits—she thinks, you are even a tory in disguise!—a refugee,—(ah, now I have said it!)—a comrade of these wild and lawless men, come to spy upon us, and murder us—(is it not too ludicrous?)—a spy, an enemy, a traitor—nay, even a Gilbert—a Hawk of the Hollow! I *can* laugh, now that I have said it. And now, too, I am sure you will not be offended, the suspicion is so very ridiculous: yes, I am sure you will forgive her."

"I do," said the young man, sadly and falteringly, "for her suspicion is just,—at least, it is just in part—I *am* an impostor."

"Heavens!" cried Catherine, "what do you tell me?"

"That I have deceived and imposed upon you—at least in name. I am neither spy nor refugee, indeed, neither cut-throat nor betrayer,—but I am Hyland Gilbert, a son of him who built this house, and a brother of those whose name fills it with horror. Miss Loring, Miss Loring!" he cried, impetuously, seeing that Catherine recoiled from him with terror, "is the name so dreadful even to you? In nothing else am I criminal—do you think I would do you a hurt?"

"Surely not, surely not," cried Catherine, gasping almost for breath, and speaking she scarce knew what: "I do not think you would hurt me. No, oh no! I have done you no harm, and my father has been good to you."

"For God's sake, Miss Loring—Catherine—compose yourself," cried the young man, both amazed and shocked at the impression his words had

produced on a mind almost unhinged by long and brooding sorrow. "What, I harm you? I would die to protect you from the least evil."

"And you are a Gilbert, then? a foe to the land of your birth, a disguised enemy, an associate of thieves and murderers?" cried the maiden, with sudden energy, and in a passion of tears; "oh, Mr. Hunter, I thought better of you!"

"Think better of me yet," he exclaimed, catching her by the hand, "for as there is a heaven above us, I have done nothing to deserve your hatred. All that I have done—and it is nothing but concealment—was to do you service, and to obtain your friendship."

"Go—stay no longer here—you must come no more," cried Catherine, weeping bitterly; "and would you had never come, for I thought you were my friend—my friend, and my poor father's. I don't believe you are a bad man, or that you will do a wrong to any one; but you must go. Yes, go," she added, wildly, "for you are in danger. They will arrest you; and then what will become of you? It was Harriet's talking of this,—of arresting you,—that made me tell you, that you might show her how much she was deceived. Go, go! and never return more. A moment, and the officers will be here: Harriet has sent for them. Go, Mr. Hunter, go!"

"I will not, Catherine," cried the youth, giving way to the most vehement emotion: "I know that they are sacrificing you; and I will remain till you are rescued, come what will. You hate this young Falconer; you do, Catherine,—you cannot conceal it: he is unworthy of you—he shall never marry you."

"You will drive me mad! For heaven's sake, Mr. Hunter—is this the way to show your friendship?"

"My love, Catherine, call it my love. I love you, Catherine Loring, and I will save you, even against your will. Say that you hate Henry Falconer, the wretched son of a still more wretched father—say that—nay, place but your hand on mine, and you shall"——

"Never!" cried Catherine, wildly; "I love you not—I hate you! Release me. Is this the way you repay my father's good deeds? Go, Mr. Hunter: you have

made me more unhappy than before."

"I will make you happy, Catherine. I have wealth—nay, and reputation, Gilbert though I be. I will go to your father, I will demand you at his hands"——

"Kill me, first—kill me, rather than speak to me thus!" cried the unhappy maiden, in unspeakable agitation. "Is this the way to talk to me? You should know better, for I am to be given to another. Oh, that you had never come to our house! Go—I forgive you—I will tell nobody. If they find you, they will kill you: Harriet has shown me they can take your life. Hark! they are coming! I hear their voices! I hear my father's! I forgive you, Mr. Hunter; yes, I forgive you—but I will never see you more! no, never!"

"Catherine!"——

"Never! I swear it—never, never! I am vowed and betrothed. If you stay longer, I shall die! Oh, have pity on me, and go: have pity on me, for my father's sake,—pity, pity!"

These wild and hysterical expressions were concluded by a shriek; for at that moment the ill-fated girl, who had been all the while struggling, though feebly, to make her way into the little saloon, beheld Miss Falconer, followed by her father and the young lieutenant, rush into it. As she screamed, she burst from the grasp of the impassioned lover, and, running forwards, threw herself into the Captain's arms.

"Oh, the hound! the villain!" cried the veteran; "he has been killing her! Shoot him down, run him through, knock him on the head! Here, you Aunt Rachel! Phoebe! Daphne! Dick! Soph! and the squad of you! Oh lord, Harry, my dear, the dog has murdered her!"

"No, father, no, no, no!" cried the maiden, clinging, almost in convulsions, to his neck; "I am very well, father,—a bat flew in my face,—a snake came into the garden, and I don't know what! But it is very foolish, father,—I am always very foolish!" And with these incoherent expressions, in which even the whirl and tumult of a suffering heart could not repress an instinctive effort to distract notice from the young man in the garden, she fell into a

state of pitiable prostration, which engaged the whole attention of her father and kinswoman.

CHAPTER III.

Will you walk out, sir?
And if I do not beat thee presently
Into as sound belief as sense can give thee,
Brick me into the wall there for a chimney-piece,
And say,—I was one o' th' Cæsars, done by a seal-cutter.

RULE A WIFE AND HAVE A WIFE.

In the meanwhile, Herman,—or Hyland Gilbert, as he must now be called,—(so soon as he beheld the maiden, wooed so wildly and vainly, fly to her parent for refuge,) turned from the illuminated path, and taking advantage of his previous knowledge of the garden, soon succeeded in making his way out of it, and, as he thought, without being observed. He hurried through the park, torn by a tempest of passions, and had almost reached the gate, when he was suddenly roused by a tap on the shoulder, which brought him to a stand. The moon had set, and the light of the stars, breaking through ragged clouds, was not sufficient to make him acquainted with the visage of the intruder; but the first word of the salutation that accompanied the touch, told him he was now confronted with his rival.

"An excellent good night to you, my fine hail-fellow-well-met!" cried Harry Falconer; "you'll be jogging, will you? A word in your ear: there's star-light enough to be civil by, soft moist grass for sleeping on, and, gad's my life, as good barren clay at your feet as ever gentleman rotted under. Now you may be surprised to hear it, but I have the prettiest pair of pistols in my pocket that were ever made for a lady's finger; somewhat dwarfish, to be sure—but, egad, as good, at six paces, for blowing one's brains out, as a battering

piece at point-blank distance. So douse kit, as the cobbler says, and let's begin.—Harkee, sir, no skulking! Don't put me to the painful necessity of calling hard names. No sneaking!"

"You are a fool," said Hyland, sternly. "If you will renew your quarrel, come to me in the morning."

"By your leave, no," said the lieutenant, laying hand on his collar. "As to being a fool, adzooks, as the Captain says, I am, or *was*, for supposing you an honest, respectable sort of a vagabond young man; whereas, on the contrary"——

"Remove your hand, or——Well, sir," cried the young Gilbert, "what will you have? Must I cut your throat? Trust me, my fingers have been itching to do it all day; and, at this moment, they are hotter than ever. Begone, therefore, while you may, and while the devil is yet behind me. This is no time nor place for quarrelling."

"The best in the world," said the officer; "and to end your scruples at once, know that I give you choice only of two alternatives. Being a cursed Hawk-Hollow Gilbert"——

"Hah!"

"You have a certain claim to the gallows; but being also an exceedingly well-behaved, genteel, handsome young dog, who have done me the honour to court my sweetheart, you have an equal claim to die in a gentlemanly way. So take your choice—a pistol, six paces, and a shot at *one-two-three*; or yield yourself a prisoner, and die by a drum-head court-martial."

"What if I say,—Neither?" replied Gilbert. "Away, molest me not." And he turned again to depart, but was again arrested by the hot soldier.

"Oh, gad," cried this worthy, "one thing you *must* say."

"Look you, Mr. Henry Falconer," said Hyland, with a trembling voice, "I have never yet harmed a human creature, and I would not willingly hurt

even you, though I have a double cause to wish you ill. Provoke me no farther. You have been drinking, and are now beside yourself."

"Never think it," said the lieutenant, dropping his tone of bagatelle, but speaking with characteristic impetuosity. "You have presumed to be impertinent to a certain lady, who shall be nameless; for which reason I will forget that you are a low and contemptible scoundrel, worthy only"——

"Give me the pistol," said Hyland, "and your blood be on your own head. I will abide no more from the son of your father."

"Spoken like a man," cried Falconer, instantly stepping off six paces on the grass, and counting them aloud as he stepped. Then turning, he added, with a furious voice, as if giving way to his passions, "Now, you rascal, prepare to fire as soon as you hear me count three; and if I don't teach you manners, you gallows dog, may I never more smell gunpowder. Ready, you rogue! fire! One,—two,—three!"

The instant the last word escaped his lips, he fired his own pistol, and Hyland staggered backwards, as if the shot had taken effect. Immediately recovering himself, however, he cried, with an agitated voice, "Let that satisfy you—I will not hurt you," and threw his own undischarged weapon away. The act of generosity was not appreciated by his rival, who, inflamed by a rage to which he seemed now to have given himself up, uttered an oath, and whipping out the sword he always carried at his side, rushed upon him, crying, "Villain, you don't escape me so easily!"

Thus attacked, and with a fury that seemed to aim at nothing short of his life, Hyland, who was entirely without arms, avoided the lunge aimed at his heart, and immediately closing with his adversary, they fell together to the ground.

In the meanwhile, the pistol-shot had reached the ears of the captain of cavalry, and one or two of the late banqueters, who were, at that moment, making their way to Gilbert's Folly, in obedience to a summons from Miss Falconer, which, although meant only for her brother, the domestic entrusted with it, had communicated, in his absence, to captain Caliver. It found that worthy gentleman, as well as all others present, somewhat

incapable of understanding it; but as it related to the Hawks of the Hollow, and seemed to require the presence of the lieutenant or his friends at the mansion, it was obeyed by all, not even excepting the gallant Ephraim; although, as it afterwards appeared, this mysterious individual had, after setting out, separated from the party, which was now but three in number.

"By the eternal Jupiter!" cried Caliver, toiling and stumbling up an ascent that led to the park-gate, as the sudden explosion, followed immediately after by angry voices, broke the solemn silence of the night,— "by the eternal Jupiter, halt!—there's the tories! They're beating up the old cock's quarters!"

"Let us retreat," cried one of his attendants, "and get our horses."

"Halt—hark!" exclaimed the soldier, "there's Harry Falconer's voice! the dogs are murdering him! Prepare to charge, and hold your tongues.—Now follow me, and I'll have a whole regiment on them.—Halloo!" he cried at the top of his voice, as if really calling upon a competent force of both horse and foot; "Make bayonet work of it, you light-infantry dogs! Horsemen, over the fence, and surround the vagabonds!—No quarter!—Double quick-step, march! Charge the villains!" And with this valiant stratagem, the officer ran boldly up the hill, followed by his two companions,—though not until they had heard behind them, or fancied they heard, the clatter as of a party of horsemen descending the hill they had already left.

As Caliver rushed into the park, he again heard the voice of his friend, and rushing up, beheld, to his great amazement, the band of tories dwindled into a single individual, lying across Falconer's breast, and in the very act of transfixing him with his own weapon.

"By the eternal Jupiter! what means all this?" he cried, dragging Hyland off his prey. "What! my jolly gentleman-volunteer, hah! What means this, you absurd young cut-throats?"

"It means," cried Falconer, rising and darting at his foe with unexampled fury, "that I've nabbed a tory lieutenant, and I'll have his blood!"

He took his adversary at a disadvantage, for Hyland was still held by the captain; and before this bewildered peace-maker could interfere, the combatants were again rolling together upon the ground, only that their positions were reversed, for Falconer was now uppermost, and armed with Caliver's sword, which he had snatched out of the captain's hand, not knowing, nor indeed caring, what had become of his own.

At this juncture, a new feature was given to the battle-field. "Enemies!" cried Caliver's two attendants; and the cry was echoed by a fierce yell, like the war-whoop of a savage, coming from the gate, through which galloped they knew not how many dusky figures, looking to the eyes of the revellers like the fiends of darkness themselves. The astounded captain, deserted in a moment by his attendants, looked up, and beheld with still greater amazement, the apparition, as it seemed, of Ephraim Patch astride his gallant gray; only that this impression was put to flight by the spectre urging the steed right upon him, crying at the same time in a voice of thunder, "Down with the rebel dogs! trample them to death!" and the next moment, the unlucky officer was struck to the ground by the blow of a hoof, and there lay insensible.

"Victory!" cried the valiant rider, springing from his steed, and cheering his companion (for he had but one,) who was at that moment dashing after the two volunteers. "Victory!" he exclaimed, rushing towards the original combatants, and immediately proceeding to knock young Falconer on the head with the butt of a pistol, crying at the same time to Hyland, whom he assisted to rise, "Up, brother actor and Hawk of the Hollow,—'my name is Harry Percy!' 'The trumpet sounds retreat, the day is ours!'"

"Good God!" cried young Gilbert, bending over his adversary, "you have killed him!"

"Quarter!" murmured the lieutenant, faintly, "quarter, if you be Christian men!"

"Hell and furies!" cried Ephraim, thrusting the pistol into his face, "you die, were you the king's son!" and he would have killed the unlucky youth on the spot, had it not been for Hyland, who dashed the weapon out of his hand, exclaiming, "Touch him not, on your peril!—What! can you stand?"

he added, addressing Falconer: "Away—you are safe. You would have taken my life—I give you yours. But, remember, Henry Falconer," he whispered in his ear, as he led him a little way, "remember *this*: you are seeking Catherine Loring against her will. If you persist, it were better for you had you never been born. Away with you, ere those come who will not be so merciful."

The young officer, confused by the blow he had received, and perhaps terrified by the appearance of enemies so unexpected and of a character so incomprehensible, stole away and concealed himself among some neighbouring bushes. He heard the crash of hoofs over the avenue, as if he who had chased away the volunteers, were now returning to his unknown companions, then a murmur of voices, and finally a renewed sound of horses' feet, whereby he perceived that the midnight assailants had left the paddock. He then crept from his concealment, and made his way towards the mansion, to which, as was evident from the flashing of lights in the windows and on the porch, the alarm had been already communicated.

CHAPTER IV.

And I remember the chief, said the king of woody Morven: I met him, one day, on the hill; his cheek was pale; his eye was dark; the sigh was frequent in his breast; his steps were towards the desert.

CARRIC-THURA.

A month swept over the valley, and found it restored to its pristine quiet and loneliness. The confusion resulting from the developements of the eventful 4th had subsided, and men began to remember the occurrences of that day almost as a dream. Had the refugees really been in the Hollow? The discovery of Parker's body,—the recovery of his last letter, which had

remained in Hyland's hands in the hurry of separation from his brother, to be, by a natural fatality, converted into testimony against himself,—the nocturnal scuffle in the park, from which captain Caliver and the junior officer had come off with injuries, though not serious ones,—and, finally, the sudden disappearance of the painter and the eccentric Ephraim,—were the only evidence to establish the truth of such a visitation. No outrage had been perpetrated either upon life or property; nor could the keenest search of the county volunteers, assisted by several detachments from the lines, sent to scour the whole country, detect a single vestige of the audacious outlaws. That they had fled was manifest enough, but how and whither no man could tell. It appeared from the letters of Parker, that the chief object of Gilbert's return to his native valley was the rescue of young captain Asgill, of whom we have before spoken, out of the hands of his jailers; and it is now well known, that, among the devices to secure the life of this unfortunate captive, 'a plan was, in case of the worst, arranged for his escape,' and secretly persisted in, until it became evident that the humanity of the American Commander-in-chief was his truest safeguard. There remained, therefore, no longer occasion for the services of Oran Gilbert, to whom an exploit of this nature, requiring a man of crafty and daring spirit, had been so properly entrusted; and it was at first hoped, and then confidently believed, that he had withdrawn entirely from the neighbourhood, and, after disbanding his followers, returned, in spite of the vigilance of his foes, to New York; and, indeed, certain secret intelligence was received from that city, that he had been long since ordered to return, the project of rescue being now as unnecessary as it was hopeless of success. That he had committed no outrage upon the unprotected inhabitants of the county was supposed to be owing not more to the necessity of avoiding all acts that might give the alarm, and so draw attention towards him, than the positive commands of the British Commander, whose course in the present conjuncture of affairs, was to the full as forbearing as that of his enemy.

These considerations restored confidence to the county; and nothing remained for the good citizens but to weave the chain of mysterious circumstances attending the visitation into a web of wonderful history, and to speculate upon the character and fate of the painter and honest Ephraim. As for the latter, ingenuity was for a long time at fault, until the story of Mr.

Leonidas Sterling became generally known; when an opinion, hazarded at first almost in jest, grew into a settled belief,—namely, that these twain were one and the same person, and that he who had deceived so well as the ranting preacher, had deceived still better in the semblance of the zealous quaker. The successful *fourberies* of this modern Scapin obtained for him a higher degree of credit than he had ever won, while contracting his genius into the representation of the kings of fiction; and he was remembered and spoken of with a degree of good humour, that perhaps explained the unwillingness of his city friends to proceed rigorously against him, when his treasonable practices were discovered.

As for the young Hunter, or Gilbert, as he was now universally called, he was remembered with no such favour. To be a scion of the tory family, was enough to condemn him, even although (as had been the case) he might have passed his days afar from the contamination of his brothers' example, and shared neither in their acts nor their hostile spirit. But to be an associate,—an officer of the very gang commanded by Oran,—was a sin of inexpressible die, to which a double blackness was given by his dissimulation and audacity. He had resided among them as a friend and brother, and yet was all the time playing the part of a spy and betrayer; and he had capped the climax of effrontery by taking part in the jubilee of liberty, and even profaning with hypocritical lips the sacred manifesto of Independence,—or so, at least, he would have done, but for the interruption caused by Oran's appearance. This seemed to them little short of impiety, a sacrilegious mockery, indicative as much of his contemptuous disregard of the holy instrument as of his daring character. In this spirit of indignation they proceeded to canvass his whole history, raking up every little act that could be remembered, and perverting each into a manifestation of villany; the worst of which was his attempt to carry off Captain Loring's daughter,—for so much they made of his parting interview with the young lady,—and then, being baffled in the base attempt, waylaying and attempting to murder her affianced husband. In a word, he was proved to be a monster of treason, perfidy, and ingratitude; and few had the courage, fewer still the disposition, to say a word in his defence. It must be confessed that Dr. Merribody once, in a fit of unusual generosity, declared to a whole throng of raging villagers, 'that the scoundrel was an honest man and a gentleman after all, for he had faithfully paid his bill, and even asked for it, before it

was presented;' but this impulse of magnanimous friendship vanished when he came to remember how much he had been imposed upon in relation to the youth's true character, by some deception Elsie Bell thought fit to play upon him, under colour of admitting him to the secret. The poet also, who, in the loss of Hyland, wept that of his warmest admirer, contended 'that he sang better, and had a more refined literary taste, than any body he ever knew.' Nay, even Captain Loring, who had begun to esteem him as the apple of his eye, was converted into a furious foe, which was owing, in a great measure, to the discovery of the young man's political inclinings, though his anger was sharpened and augmented by Miss Falconer, who took occasion, for a purpose of her own, to reveal what the Captain had never dreamed of himself. She gave him to understand, what was indeed nothing more than true, that his ungrateful protégé had endeavoured to detach Catherine's affections from her brother, and divert them upon himself,—an assurance that infuriated the old soldier, whose wrath was not much mollified when Miss Falconer succeeded in making him aware how much his own extravagant patronage of the impostor might have been construed into almost positive encouragement of his presumption. But bitter as was the worthy veteran's anger, it was as capricious as his love had been. Whenever he laid his eyes upon the unfinished painting, which he commonly did a dozen times a day, he would begin to bewail and admire together, and swear 'that his young Haman What-did-ye-call-it, for all of his roguery, was the finest painter that was ever known; and, adzooks, he thought there must be some mistake about his being a tory and a Gilbert.'

The occurrence of these incidents had naturally made the poor widow an object of suspicion, as having connived at the presence, and aided in the concealment and flight, of the outlaws; and she was even threatened with the vengeance of the law, until Harry Falconer, to the surprise of every body, stepped forward as her champion, and made such interest for her as left her again in her lonely and quiet desolation. Whether this display of generosity was prompted by his own erratic feelings, or was derived from the secret influence of the Captain's daughter, Elsie knew not. Catherine visited her no more; and within a week after the explosion of the 4th, she left Hawk-Hollow with her friend Harriet, and was absent for a considerable period. Elsie saw her, as the carriage rolled by; her face was very pale and haggard, as if she had been suffering from sickness. When

she returned, young Falconer and a brother officer, both mounted, pranced along at her side. She looked from the carriage as she passed, and kissed her hand to the widow, while her eye sparkled as with its former fire. But Elsie beheld her not; as she looked up, her eye caught the outlines of a dark and stern countenance behind that of Catherine, on which were the traces of age and broken health.

She started from her seat, and gazed eagerly after the rolling vehicle, but it was soon swept out of sight. She remained upon her feet, until she had seen it enter the park, and draw up before Captain Loring's door, when she again sunk upon her chair, muttering to herself:

"I saw him last a black-eyed boy, with a cheek like the rose-leaf, and hair like the wing of a crow; and now he comes with a cheek as withered even as mine, and locks frosted still whiter. So let it be with the villain; honour may fall on the snowy head, but what lies in the bosom? And can he walk over the knolls where Jessie walked, and smile on those around him? There is thunder yet in heaven, and a long reckoning yet to settle. Ah well, ah well, we shall see what we shall see, and I shall live to see it; for she cursed him in her death-gasp; and I cursed too, and I prayed God I might live to see the two curses light upon him together; and together they will light, and I alive to see it!" And muttering thus in one of those occasional moods of darkness which had, perhaps more than any thing else, served to fix the stigma of the sibyl upon her, Elsie gathered up her wheel and spindle, and retreated from her favourite seat on the porch, to which she returned no more during the day.

The person upon whom she invoked this malediction was the father of Miss Falconer, who, with Catherine and himself, made up the contents of the carriage. As he stepped upon the porch of Gilbert's Folly, from the vehicle, and received the rough welcome of Captain Loring, it was with a firmer bearing than would have been expected from his apparent age and infirm health. He was of tall stature, and, although greatly wasted, preserved an erect military bearing. His countenance, though hollow, withered, and of the sallowest hue, was, even yet, strikingly handsome, and his eye was of remarkable brilliancy, though of a stern and saturnine expression. His brow was very lofty, though not ample, and his mouth singularly well sculptured,

and indicative of decision. On the whole, his appearance was at once commanding and venerable; and even those who were freest to whisper the tale of early profligacy and maturer corruption, could not deny him the deference due to his gentlemanly air and deportment. A close inspection of his countenance would have revealed no traces of the workings of an unquiet spirit. The first glance showed him to be of a temper thoughtful, reserved—nay, severe and moody; but the second could discover no more. A perfect self-command, a mastery not merely of his countenance, but of his spirit, lifted him above the ken of petty scrutiny; and if he wore a mask in his commerce with men, it was like that iron one of the Bastile, which when put on, was put on for life, and was, at the same time, of iron. He was a man upon whom even his children looked with fear,—not that fear indeed which lives in constant expectation of the outbreaking of a violent spirit, but the awe that is begotten by a consciousness of the inflexible resolution of the spirit that rules us. This inflexibility is power, and power is ever an object of secret dread, even with those who love its possessor.

The austerity of his mind was not accompanied by rigid manners, nor even coldness of feeling. No one could be more courteous, and, at times, even agreeable, than Colonel Falconer. He received the welcomes of his kinsman with much apparent pleasure, and himself assisted Catherine from the carriage, and conducted her into the mansion, congratulating her, with gentleness and kindness, upon her return. "Yet you must grant," he added, "that even the smoke of a city can sometimes renew the health, when the air of the country fails. I would I might profit by these mountain breezes, as I know you will, when you have once recovered from your fatigue. But let me see you but happy with my graceless Harry, I shall not complain of my own infirmities."—

On the third day after the arrival of Colonel Falconer, the solitude of Hawk-Hollow began to be broken by the appearance of divers carriages, filled with gay and well dressed people, the destination of all whom appeared to be Gilbert's Folly. A few individuals, the more favoured of the villagers, were seen mingling their equipages occasionally with the others; but it was plain that the majority of visitors were strangers, and had come from a distance.

The object of such an unusual convocation of guests at Gilbert's Folly, could not long remain a mystery; and indeed it was known, several days before, that it was to do honour to the nuptials of Henry Falconer with the daughter of Captain Loring. The wealth and standing of the bridegroom's father were sufficient to secure him the means of giving *éclat* to the ceremony, at a day when that ceremony was always one of festivity; and accordingly there appeared guests enough, and of sufficient figure, long before night, at the mansion, to convince those who took note of such circumstances, that it would be such a wedding as had never before been known in all that county.—And such indeed it proved; though not even the most imaginative could have foreseen from what unusual circumstances it was to owe its claim to be remembered.

Upon that day, while all others were laughing and smiling, a deep and moody dejection seized upon the spirits of the bridegroom's father; and although he displayed his wonted courtesy in receiving his guests, (they should be considered *his*, for the bride was without kinsfolk, and her father had invited none to partake of his joy, save a few villagers,) the task of continuing to trifle with them during the entire day became intolerably irksome, and perhaps the more so that his habits had for so many years accustomed him to solitude and privacy. Worn out at last, he exchanged the noisy apartments of the mansion for the shaded garden-walks; until, finally, driven from these by an increase of his melancholy and the presence of a bevy of maidens, seeking flowers to decorate their fair persons, or perhaps that of the bride, he fled from them to the more unfrequented walks in the park.

"Why should *I* mingle with this mockery?" he muttered to himself, "and on this unhappy spot? Let me look upon those scenes I have not beheld for twenty-four years, and see if they have yet power to move me.—There are none here to miss me; and they will feel the freer and gayer, when frightened no more by my death's-head countenance.—I would the silly Captain had spared the poplar-row: and yet I know not,—the old white-oak, where——Faugh! that should be forgotten. There is something *new* at least in the forest. The shrubs have become maple-trees and beeches, the old oaks and sycamores have rotted in their places, and nothing is the same save the

rocks and the water.—Why should I fear, then, to revisit scenes that have changed like myself? I shall never look on them again, after this day."

He composed his countenance into its ordinary expression of severe and frowning calm, and directing his steps through the grounds, as one familiarly acquainted with their most hidden retreats, made his way towards the Run, until he had reached the path along its rocky borders, previously trodden by Catherine and his daughter. He even sat down under the sycamore, where Catherine had begun the story of the wild Gilberts, and his own early adventures; and here, as if there were something in the spot to conjure up such memories, he mused long and painfully on the same dark subjects. Perhaps, also, as he looked upon the turbulent water rushing at his feet, he pictured to himself the resemblance it bore to the course of his own life,—a current, which, although now sunk into the composure of a river just losing itself in the vast ocean, had dashed so long in a channel full of rocks and caverns.

'Are not thy waters sweeping, dark, and strong?
Such as my feelings were, and are, thou art;
And such as thou art were my passions long.'

The current of his early life had been indeed as wild, as tortuous, as tumultuous, as that before him; and as he looked backwards upon its broken course, he saw that the freshes of passion had left as many ruins around it as now deformed the margin of the streamlet.

When he rose from his meditations, it was with a brow indicative of a deeply suffering mind; and as he strode onwards, still pursuing the course of the brook, a spectator looking at him from a concealment, might have detected on his visage the workings even of an agonized spirit, though it was observable, that, even in this solitude, where there seemed to be so little fear of observation, he still struggled to preserve an air of serenity. The roar of the waterfall fell upon his ear, and perhaps as the voice of an old acquaintance; it did not rouse him from his dream of pain, but seemed, although he essayed to approach it, to plunge him deeper in gloom; and he would perhaps have crossed the rustic bridge without being conscious of the act, had not his footsteps been suddenly arrested by a figure that started suddenly in the path, and recalled him to his senses. He looked up, and

beheld a young man, in a hunting suit and leather hat, with the rifle and other equipments of a woodman, standing before him. The texture of his garments was coarse, and there was nothing in them to indicate any superiority in the wearer above the young rustics of the country; but he wore them with an air of ease, a *savoir s'habiller*, by no means common to the class. His figure was light and handsome, and so was his face, though the latter was miserably pale and thin, and marked with the traces of grief, and the former considerably emaciated. As he stepped into the path, he dropped the butt of his rifle upon the earth, as if for the purpose of arousing the abstracted comer by the clash; and when the Colonel looked up it was not without some alarm at opposition so unexpected.

"Fear not," said the young man, eyeing him with a mournful, yet steadfast gaze, "I design you no hurt."

"And why should you?" cried Colonel Falconer, returning his gaze, with one that seemed meant to rend him through. As he looked, however, he faltered, turned pale, and thrust his hand into his bosom, as if to grasp at a concealed pistol. The act was observed by the stranger, and he instantly repeated his words,—

"Fear nothing,—at least fear nothing from *me*: I desire to serve you, not injure.—Accident, or Providence, has given me the means. You are Colonel Falconer?"

"And you?" cried the gentleman, with an agitated voice.

"I—what matters it what *I* am?" said the youth; "I am neither footpad nor assassin,—let that satisfy you. What do you in this place? Cannot even conscience make you wiser? Methinks, there is not a rock or a bush in this dark den,—there should not be a rustle of the leaf or a clash of the waters, but should tell you what you should expect, when treading the soil of a Gilbert."

"If you meditate violence, young man," cried Falconer, whose agitation visibly increased, the more he regarded the figure before him, and who now spoke with an emotion amounting almost to terror, "heaven forgive you.

But heaven will *not*—there is no pardon in store for the young man who assails the gray hairs of the old."

"False, Colonel, false!" cried the youth, with a laugh of singular bitterness, "or surely you had never lived to tell me so. There was a man of gray hairs, Colonel Falconer, who once lived among these woods, and very happily, too; but a young man struck him, and struck him to the heart, Colonel; and the young man lived to have a head as white and reverend as he whom he slew! Yet fear not; again I say, fear not: I came to save, not to kill. Hear me, and then away. Begone from this place, and begone with such speed as becomes a man flying from a loosed panther. Mount your horse and away,—away instantly; and in return for the good deed of one who has perhaps saved your life, speak not a word to any human being of what you have heard and seen in this place."

"Stay," cried Colonel Falconer, recovering from his terror, yet speaking with a choking voice, "I owe this caution to a"——

"To an enemy," cried the other, turning from him.

"Stay, I charge you,—I command you,"—and as the Colonel spoke, in a sudden revulsion of feeling, he grasped the arm of the youth, who had already placed his foot upon the fallen sycamore, for the purpose of crossing the stream. To the surprise of Colonel Falconer, he discovered that even the strength of his aged arm was superior to that of the young man, who seemed to have been enfeebled by long sickness. He struggled to release himself, but not succeeding, he turned upon his captor, and shedding tears, said,

"If you will seize me, I have no strength to resist, nor any means of defence but this—and I will not use it." As he spoke, he cast his rifle to the earth. "You have but to will it, to complete the ruin you have begun."

"Alas, young man, unhappy young man," said Colonel Falconer, "I know you, and would recompense your humanity, if such it really be. *You* should not, at least, perish like the rest of your mad and infatuated brothers, and yet you are rushing upon the same destruction; you have not been gently nurtured, to live the life of a bravo and outcast. I have heard of you, of your

generous acts—of at least one,—nay, two; for Henry Falconer confessed you had both spared and saved his life. I can save you, young man,—I can and will;—and,—think of me as you please,—I will do it for your father's sake. You were not meant for this dreadful life, on which you are embarking."

"Such as it is," said Hyland Gilbert, picking up his rifle, for the Colonel had withdrawn his hand, "I am driven to it by you and yours. Now, Colonel Falconer," he added, leaping on the tree, "mock me no more with a sympathy I despise as much as I hate him who offers it. I am not your prisoner, and I will not be. I am weak and almost helpless—thank your son for that, and the skill that was exercised at the expense of one who had scarce ever fired a pistol in his life—I am weak, but I am armed and desperate. Follow me no further, for I trust you not. Follow me not, or be it at your peril."

He made his way across the bridge, but slowly and painfully; and Colonel Falconer observed more clearly than he had done before, that all his motions were laborious and feeble, and that, notwithstanding the arms he carried, he was entirely at the mercy of any one who chose to assail him. A thousand different feelings took possession of his breast, and among them pity for the unhappy condition of one, who, if he had inherited a deep hatred for himself, was not without a claim upon his feelings, and feelings deeper even than gratitude. He had been, of course, made acquainted with the extraordinary developements effected by the cunning, or perhaps the good fortune, of his daughter; and he was especially interested in the account of the discovery of the youngest Gilbert in the person of a young man, who, until that discovery was made, had so recommended himself even to strangers by the gentleness of his manners, and the apparent blamelessness of his life. Partaking little in the suspiciousness of his daughter, he judged the actions and character of the youth with more leniency and justice than others, though he kept his inferences locked up in his own breast; and, happily perhaps for Hyland, Miss Falconer had not thought fit to apprize him of what she deemed the presumption of the youth in becoming the rival of her brother. He saw in him, therefore, a young man in no wise resembling his fierce brothers, from whom he had been separated in early infancy, and one whom perhaps a mere desire to revisit the scenes

of his childhood had drawn to Hawk-Hollow; and he thought, with justice, that nothing but the revealment of a name universally detested, by exposing him to sudden danger, had driven the young man to seek refuge among men of blood, whom he would otherwise have avoided. The confession of Henry Falconer, (whose jealousy was rather wrath at the presumption of his rival than any unworthy suspicion of his mistress,) that he had fought a duel with the 'confounded tory lieutenant,' as he always called him,—that his antagonist had endured his fire, and although hurt, as he believed, had refused to return it,—and, finally, that he had very generously interfered to save him from one of the gang, who was on the point of blowing his brains out,—was additional proof to Colonel Falconer that this orphan son of a man he had deeply injured was not by choice among the refugees, but forced among them by the ill will and violence of his own children. The wrong he had done to one member of Gilbert's family had, indirectly at least, produced the destruction of all but this one; and *he* was now on the point of sinking into the abyss which had swallowed the rest, though worthy of a better destiny, unless a hand were stretched forth to save him.

These considerations,—a memory of the wrongs he had done and the reparation he should make, together with the present prospect of the poor youth in a state that might make him the prey of any enemy who might meet him, and some sense of the generosity of the warning he had just given—excited Colonel Falconer's feelings, and moved him with an impulse, which caused him at once to cross the brook, pursuing the fugitive, and intreating him to stay. Whether it was that his motive was misunderstood, and that the young man, in the agitation of his spirits, supposed that he was followed merely for the purpose of being arrested, or whether it was because he found himself in a spot peculiarly calculated to arouse his most vengeful feelings, it is certain that he became excited to anger by a pursuit designed only in kindness. He clambered up to the little enclosure of the grave, and was about making his way through the narrow passage betwixt the two rocks; when, hearing the pursuer close at his heels, he turned round, displaying a countenance so fierce and intimidating, that it instantly brought the Colonel to a stand.

"Villain!" he cried, throwing aside his rifle, and drawing his knife, "God has sent you to your fate—you are treading on Jessie Gilbert's grave!"

If the words had been thunder-bolts, they could not have sooner unmanned his pursuer. He started, shivering from head to foot, and looking down, beheld the dreary hollow, from which some pious hand, perhaps that of Hyland himself, had plucked away the weeds, leaving the stalk of the rose-bush flourishing alone at its head.

"Oh, holy Heaven!" cried Colonel Falconer, dropping upon his knees, and wringing his hands, while he gazed with an eye of horror upon the couch of his victim, "the grave of Jessie Gilbert!"

"Of the mother and the babe!" cried the young man, advancing towards him, with looks of vindictive fury; "and here, gray-headed though you be, you deserve to die. To this place of shame, man of ingratitude! you consigned the victim of your villany; and here it is fitting she should have her revenge."

But if Hyland Gilbert was a moment disposed to play the part of the avenger, it was only for a moment. His wrath was instantly disarmed by a burst of grief from the wronger, so overpowering, so agonizing, that he at once forgot his dreadful purpose, and felt himself melting with commiseration.

"She has had—she has had her revenge," cried the wretched man; "death had been too cheap a retribution, and therefore it has been ordained in a life of misery,—and *such* misery, oh heaven! Would to God I had died in her place, though it had been with a world hooting me to the scaffold. Yes, Jessie, I *am* a villain, and thou knowest, how much greater and viler than ever was thought, even by thee. But thou shalt have justice," he added, beating his breast, "yes, thou and thy murdered babe, though I give up my children to be sacrificed to thy memory."

"My father was right," muttered Hyland, as the foe of his family poured forth the wild expressions of a remorseful spirit; "he charged me to leave the destroyer of his peace to God and his fate; and God has made his fate an existence of retribution.—Arise, Colonel Falconer," he added, sternly; "profane this holy resting-place no longer with the mockery of repentance. Fly, and secure your wretched life for further remorse; for here it is in a danger of which you do not dream. Begone, and remember what I charged

you——Hah! do you hear?" he cried, as a whistle as of a bird came from the forest behind and below the rocks. "Up for God's sake!" he cried, seizing the penitent by the arm, as if fear had supplied him with new strength, and hurrying him across the brook. "Begone, or you are a dead man. To the bushes, quick—to your horse, too, or your carriage. Dally not a moment, but begone. Say nothing of what you have seen or heard; and fear not for your children or friends—no harm is designed any of them. Away—save your own life, for no other is in danger."

With these charges, pronounced in the greatest haste, he took his leave, recrossing the brook, while Colonel Falconer, torn now as much by fear as he had been a moment before by anguish, fled through the wood, and over the hill, until he had reached the mansion. Here calling for his servant, and ordering a horse to be saddled instantly for himself, and another for the attendant, he prepared to leave the house, which he did in a few moments, and almost without being observed, the wedding-guests having retreated to the garden and the pleasant walks behind it.

CHAPTER V.

The bridegroom's doors are open'd wide,
And I am next of kin;
The guests are met, the feast is set,
May'st hear the merry din!

COLERIDGE—*Ancient Mariner.*

The Colonel galloped through the park and down the hill, until he had approached nigh enough to Elsie's cottage to see that its porch was darkened by the bodies of several men, moving about in what seemed to him extraordinary commotion. He grew pale, and finally, drawing up his horse, beckoned to his servant, a young and active mulatto, with an exceedingly bold and free visage, to approach:

"Give me the larger pistols, Reuben," he cried, "and do you take the smaller holsters——'Pshaw, they are fiddling and dancing! It is nothing.—Follow."

He resumed his course, and drawing nigher to the little inn, saw that the group, which he at first eyed with trepidation, consisted of his own son, and two or three young gentlemen of the bridal party, with a man of strange and even ludicrous appearance, from whom they appeared to be extracting no little diversion. He was a tall man, with a French military coat of white cloth, faced with green, and on his head a chapeau-de-bras, which was, at that time, though the common cap of the Gallic auxiliaries, esteemed quite a curiosity in the confederacy. Instead of a white underdress, however, he had on breeches of broad blue and white stripes, which, being very tight, gave a pair of legs more remarkable for brawn than beauty, an appearance quite comical, and the more especially that they were decked off at the extremities with rose-coloured shoes, and were kept moving about as briskly as those of a house-fly or a monkey. In the particular of shoes, as

well his silver-fringed rich waistcoat, and a cane with a head half as big as his own, he bore no little resemblance to the valet-messenger of a French field-officer,—a sort of humble aid, whose business was to fetch and carry written orders in a review, but who was sometimes mistaken by our simple-minded ancestors for a general-in-chief, in consequence of the splendour and gravity of his appearance; and such a menial Colonel Falconer supposed him to be, discarded by his late master, or driven from service by that sudden spirit of independence so apt to appear in foreign servants, when brought to the land of liberty. Besides his cane, he had a fiddle and bow in his hand; and from these, as well as the prodigious grace, restlessness, and activity of his motions, it was judged that he had betaken himself, in his distresses, to that honourable profession, to which three-fourths of the wanderers of the Grande Nation seem to have been born,—in other words, to that of the dancing-master. It did not seem, however, that he had yet profited much by the change of profession, for his attire was in somewhat a dilapidated condition, and his cheeks pinched and hollow. Such as he was, however, he seemed to be the happiest creature in existence; and as Colonel Falconer drew nigh, he saw that he was one while engaged flourishing his bow, the next his leg, and ever and anon his tongue,—the last with intense volubility,—as if in spirits irrepressibly buoyant and exuberant. The unruly member was hard at work, as the Colonel approached, and had it not been for the clatter of his horse's feet, he might have heard him deliver the following highly flattering account of himself:

"Yes, Missare Ou-at-you-call-it, and gentlemen, I am a man of figure in mine own land; and you laughs, *par de deb'l!* I come invite myself to de marriage, *néanmoins*, juste like Ménélas in l'Iliade d'Homère, *mort de diable, parce qu'il était* gentleman. You are soldiare! *Et moi*, by mine *honneur*, and so am I; for *autre fois, jadis*, (ou-at de deb'l you call him?) I use de sword for de violon, ride de horse, chargé *sur mon ennemi*, in ou-at you' Shakaspeare call de 'war glorieuse.'—

'Ah! cruel souvenir de ma gloire passée!

O'Euvre de tant de jours en un jour effacée!'

Yes, missares, I am gentleman-soldiare, ou-id fiddle. How de deb'l you make mariage wi'sout de fiddle, *l'aimable violon, l'instrument des amours?*

Ecoutez! you s'all hear. How de ladies and jentlemans s'all dance when dey hears, '*Qu'elle est grande, qu'elle est belle!*'"—And, in a rapture, he forthwith began sawing his instrument, and singing, with a voice exceedingly cracked and enthusiastic, the words of the old chorus of shepherds,

'Ah! qu'elle douce nouvelle!
Qu'elle est grande! qu'elle est belle!
Que de plaisirs! que de ris! que de jeux!'

nor did he cease, even when the merriment of his auditors became as uproarious as his own harmony.

In the midst of the chorus and the laughter, young Falconer looked up, and beheld his father, who had suddenly checked his horse at the entrance of the little oak-yard, and was looking towards him. He was struck with the unusual agitation of his parent's countenance, and ran towards him; but before he could speak, the Colonel demanded quickly, as if with an effort to change the current of his own thoughts,

"What do you here, Henry! Is this a place, is this a sport for a bridegroom?"

"Pon my soul, pa," said the hopeful son, "I find it more agreeable than up among the tabbies. This fellow, this Monsieur Tiqueraque, as he calls himself, is decidedly the most agreeable person I have seen to-day,—a gentleman fiddler, who swears by all the gods of a Frenchman, he has trudged twenty miles on foot, to have the honour of dancing at my funeral—that is, my wedding; but the lord knows, pa, you look as solemn as if to-day was to be the end of me. Pray, sir, what is the matter? I hope you are not offended? Egad, sir, I am acting under orders,—under Harry's, who has taken as much command of me as if she were my wife, instead of my sister. She ordered me away, to be out of Catherine's sight,—the lord knows why, but women are all mad, and I think Catherine is growing as whimsical and absurd as the rest."

"Get you back to her, notwithstanding," said the father; "a maiden is privileged to be capricious on her wedding-day. Get you back; your absence is improper. And hark you, Henry, my son—delay not the ceremony on my

account: the clergyman must be now on the way, and will soon arrive. Wait not a moment for me. A sudden affair, not to be deferred even to the nuptial rite, calls me to Hillborough:—Say thus much to Captain Loring and the rest; say that I will be back within a few hours; and add, that I charge them not to delay the ceremony a moment for me. God bless you, my son—I must away."

So saying, he put spurs to his horse, and followed by Reuben, was soon out of sight.

"Well done, dad!" cried the young soldier, staring after him; "I wonder what's in the wind now? He has seen one of his spectres, I warrant me.—Adzooks, as the Captain says, if one were to believe that Reuben and black Joe, they are thicker in our house, about two in the morning, than is comfortable,—especially in dad's chamber. Won't stay to the wedding? why that's comical, egad! But that's his way. Well, now for that mad fool, Tiqueraque: he shall have his will, were it only on account of his striped breeches; he shall go among the fiddlers, though, gad's my life, he saws like a knife-grinder. I never saw two such legs before: egad, I beg my pardon, I *did*! 'List, list, oh list!' Such legs in Hamlet! Well God bless us, and by the eternal Jupiter, as Caliver says, I had no idea it was so stupid a thing to be married. *Eh bien, monsieur*," he added, turning to M. Tiqueraque, "I have no doubt you are a gentleman born and bred; so, gad's my life, you shall fiddle at the wedding, and get drunk into the bargain; but, by the eternal Jupiter, you must not be in a hurry!"

"*Si fait, monsieur*," cried the wanderer, drawing a note of indignation from his instrument; "*Mort de ma vie*, dronk! I s'all do no such sing. But I s'all see de leddees?" he added, in a transport that quite dispelled his temporary wrath. "Ah, Missare Ou-at-you-call-him, I s'all be very happy now! I love de leddees, *particulièrement* de leddees of figure, and not the contree *pauvrettes*, wis big feet and te'es like de old horse.—*Ah ça*, I s'all be very happy, and I s'all sharge only two dollare."

"Bring him along Tom, fiddle and all," cried the bridegroom,—"*and*, you Ned Cascable-nose, if you love me, gad, steal somebody's horse, ride down the road, and see what the deuce has become of the parson. We can get married very well without dad; but, adzooks, as the Captain says, a parson

is quite essential. I swear, gad's my life, 'tis a very ludicrous thing, one's wedding-day."

And thus, as the party bent their steps towards the mansion, rattled the bridegroom, a youth of the lightest heart and emptiest head in all Pennsylvania, of a mind entirely too contracted for eccentricity, yet full of those foibles of character which commonly pass for such,—incapable of any stretch of sentiment or elevated emotion, and indeed rude, boisterous, and unreasonable of manners,—yet with a certain native good-humour and spirit prevailing through all his acts and conversation, that recommended him to the favour of such as were not choice in their friendships, and preserved him the affection of those whom the ties of relationship compelled to love. Such was the man whom Colonel Falconer, or rather his daughter, (for she was the guiding and ruling spirit throughout the whole attempt to unite such adverse elements together,) had chosen as the husband of Catherine Loring; and the inhumanity of the choice was rendered excusable only by the natural desire she had to contribute to his happiness, and the undue importance she attached to those good qualities he really possessed. Still the attempt was cruel, for it set at naught the disinclination of one whom feebleness of character, a sense of destitution, operating, however, only through the person of a bereaved parent, a knowledge of *his* desires, and a consciousness perhaps that it was too late for escape, had put into her power. It is not to be supposed that Miss Falconer saw, that in effecting her brother's happiness she was destroying that of her friend; or that seeing it, she would have persisted in her object. On the contrary she was sincerely attached to Catherine, and fully believed she was consulting her welfare, though at the price of some temporary pain. It was her peculiar disposition to pursue every object with an avidity and resolution that became the stronger for every interposing obstacle; and she willingly blinded her eyes to such difficulties as she was not forced to see. She turned her looks, therefore, from her friend's distresses, and soon ceased to believe that they existed. But the match was one not made in heaven, nor destined to be accomplished; and fate, in frustrating the whole ill-advised scheme, was preparing a heavy retribution for all who had laboured to promote it.

CHAPTER VI.

I come not for your welcome, I expect none;
I bring no joys to bless the bed withal,
Nor songs, nor masques, to glorify the nuptials.

BEAUMONT AND FLETCHER—*The Elder Brother.*

It was late in the afternoon when Colonel Falconer rode by the Traveller's Rest; and his disappearance, though accounted for in the apology he had commissioned his son to deliver, was considered the more remarkable, as within an hour's time the presence of the clergyman was expected, for whom captain Caliver and lieutenant Brooks, as two of the principal attendants on the bridegroom, had gone in great state. There were many conjectures secretly hazarded as to the true cause of the Colonel's desertion, when the delay of an hour might have enabled him to discharge his duties to his son and destined daughter; and had Captain Loring been favoured with any jealous kinsmen, alive to the honour of his family, or been himself of a suspicious and cavilling mood, it is quite possible a defection so extraordinary might have caused some unpleasant feelings, and even an interruption of the ceremonies in hand. But such was not the case, and the matter was left to be canvassed by the friends and connexions of the bridegroom alone; who, after satisfying themselves that the Colonel had been summoned away by no sudden messenger, and that, if a necessity had really existed for his departure, it must have existed long enough previously to allow him time to make his own explanations in person, agreed to attribute the proceeding to one of those fits of moody eccentricity, by which, it appeared, he was often affected.

By the time this subject of wonder was exhausted there arose another, which produced, in the end, still greater surprise and discussion than the other. This was the non-appearance of the clergyman at the appointed hour; and indeed the sun set, before any tidings were had either of him or of the officers, and then not until messengers had been sent off with led horses, on

the vague presumption that some accident might have happened to the carriage on the way.

Another subject of discussion was the conduct of the youthful bride, who, although during the greater part of the day exhibiting uncommon spirits, and running over the grounds with other frolicsome maidens, herself the most frolicsome of all, yet displayed, on one or two occasions, a disposition to wander by herself, and even stray into the woods; and once, when she had strayed further than usual, and was pursued and arrested, she shed tears, though none could tell for what reason. As the time drew nigh when the clergyman was expected, she manifested a great unwillingness to be withdrawn by her bridesmaids, according to custom, but insisted she would walk in the garden, and that so obstinately, that it required all the influence Miss Falconer had over her to induce her to retire to her chamber; and here she wept so bitterly as to amaze and even alarm her youthful attendants. Her parent, however, being summoned to the chamber, she embraced him, dried her eyes, smiled, laughed, suffered a garland of snowy rose-bays, the latest of the season, to be fastened in her hair, and, so long as he remained in her sight, betrayed no other symptom of distress or agitation; for which reason her late tears were remembered without surprise, as being natural to the occasion.

It was not until after nightfall that the clergyman made his appearance, with the officers. Accidents of a common nature, but unusual in number and fatality, had detained them on the way. First, they had broken down, before reaching the village, in consequence of the loss of a linchpin, or some other essential atom in the economy of the coach; then, after attempting to return, it was discovered that a horse had lost a shoe, and that some portion of the harness had given way. In short, their difficulties were of such a nature, that they were on the point of abandoning the carriage altogether, to seek some other conveyance among the neighbouring farms, when 'a very excellent, contriving blockhead,' as lieutenant Brooks called him, came to their assistance, and inspired them with new hopes of accomplishing their journey. This was no less a personage than honest Dancy, of the Traveller's Rest, who chanced to be returning from the village on foot, and was glad to offer his services, on condition of being allowed to ride home on the box with the venerable Richard. Nay, not content with again setting the vehicle

in motion, he even volunteered, in the warmth of his gratitude, to divide with Richard the labour of driving,—a proposal highly acceptable to the latter, who had much of his master's affection for an afternoon nap, and could take it as well upon a coach box as in the chimney corner. The only ill consequence of this exchange was, that, before they had proceeded a mile further, the zealous Jehu interrupted an exceedingly interesting account captain Caliver was giving the clergyman of his midnight encounter with the Hawks of the Hollow, by suddenly overturning the coach into a gully, whence all thought themselves fortunate in escaping without broken bones. But now arose a greater difficulty, or rather a series of difficulties, than before; for, first, it was questionable whether their force was sufficient to raise the unlucky vehicle, or whether, being raised, it was in a condition to carry them further; and, secondly, the reverend functionary, frightened and resolved to trust his neck no longer to a structure so ill-fated, declared, that, whatever might be the event, he would enter it no more, but would rather finish the remaining four or five miles on foot. In a word, they were reduced to the necessity of applying at a neighbouring farm-house for assistance; and getting horses and saddles as they could, they continued, and at last concluded, the journey, but in such plight as caused no little surprise and merriment among the expectant guests.

In the meanwhile, the tedium that might have been produced by these unforeseen circumstances, was put to flight by the appearance and activity of the French dancing-master, who, although carried to the house only for a whim, was soon found to be the most efficient adversary of ennui that could have been found. He was no sooner in the house than he snuffed his way, with the unerring accuracy of a setter-dog, to the kitchen, where he fell upon the ruins of the dinner table with the zeal of the hungriest of that species; and then, having succeeded in first gaining possession of a flagon of wine, or some stronger liquor, he threw aside his cane, clapped his hat under his arm, and seizing upon his fiddle, bounded with a hop and a skip first into one apartment, then another, and finally into the porch, in all of which were gathered some of the guests, and in all, as he entered, drawing a savage note from his instrument, and exclaiming,—

"*Attendez*, gentlemen and ladies! now we shall dance; or-y for no we no dance? Now for de Contre-danse and de Menuet!—Each gentlemen and his

leddee—Mon Dieu! de jentlemans and leddees will be very well content. *Attendez*; I am de *maître de bal*, and I know ou-at is de *matières de mode*, begar, ou-at you calls fashionable."

The appearance of the man was itself diverting, but was rendered still more so by his sudden assumption of the character and authority of master of ceremonies, to which he seemed to consider he had the best right in the world, and which he was, in the end, suffered to exercise, for no better reason than that there was no other person appointed to such an honour. He evidently held, that the chief ceremony and pleasure of a wedding lay in the practice of his own art; and he addressed himself to the task of marshalling and animating the dancers with such zeal and enthusiasm, that several forgot they were beginning the ball at the wrong end, seized upon partners as forgetful, or as waggish, as themselves, and set Monsieur Tiqueraque's heart in a blaze of rapture, by dancing outright. What was begun in jest, came at last to be practised in earnest; and when the clergyman with the military groomsmen rode up to the door, they had some reason to fear lest their ill fate had deprived them of the most impressive portion of the ceremony.

Their appearance was hailed with the greatest joy, and the more especially when they declared they had met Colonel Falconer, and received from him the same charges he had delivered to his son,—namely, that the rites and rejoicings should not be delayed on his account, even for a minute. They retired for a little space to refit their disordered attire, and a few moments afterwards reappeared, conducting, with the other attendants, the youthful pair whose destinies were now to be united. The bride was very pale, her eyes red with weeping, and her brows contracted into that expression of imploring distress so frequent on her countenance; her lips quivered incessantly; and ever and anon her frame was agitated by that shuddering sob which remains as the last convulsion of tears. Yet she walked into the room without faltering, and suffered herself to be placed beside the lover, and surrounded by the guests, without betraying any agitation sufficient to excite remark. All that was observed was, that she kept rolling her eyes about her a little wildly, as if in part bewildered by the sudden transition from her quiet chamber to an apartment full of lights and human beings. At last, her eyes fell upon the clergyman, and she surveyed him with a gaze so

fixed, so peculiar, so strongly indicative, as he thought, of a troubled and unhappy spirit, that his own feelings became disturbed, and he began the rites with an agitated voice.

In the meanwhile, the wedding guests pressed closer around, and the domestics, thronging at the doors of the apartment, began to steal reverentially in; and among them, it was noticed that there were several strange faces not before observed. One of these, however, was recognised by Captain Loring as belonging to a young farmer residing near the valley, and he did not doubt that the other intruders were people of the same class, who had stolen softly into his house, attracted by the opportunity of witnessing a ceremony so much more splendid than any ever before seen in the neighbourhood of Hawk-Hollow. Such intrusions are indeed not unusual in certain sequestered parts of the country.

With her eyes still fastened upon the clergyman, Catherine listened to the words of the ceremony, until the usual demand was made, "Dost thou take this man to be thy husband?" She opened her lips to reply, but, though they moved as if in speech, and every sound was hushed as in the silence of death, not a word, not even the whisper of an accent, came from them. The demand was repeated, and with as little effect; she spoke not a word, but she rolled her eyes around the circle with double wildness; and Miss Falconer, throwing an arm around her waist, murmured, in hurried tones,

"She is ill—the ceremony cannot go on."

"Kate, my dear, adzooks!" cried Captain Loring, "what's the matter? Are you ill, my girl? What, can't you speak? can't you say *Yes* to the parson? Ah, adzooks, that's a girl! that's my Kate Loring! You hear her, parson? She says, yes!"

"Patience, sir," said the clergyman, surveying the bride, who at the sound of her father's voice, seemed to recall her powers, and opened her lips, as if to speak. "Be not precipitate, young lady," he added, directing his discourse to Catherine, and speaking with a kindly voice: "this is a question too solemn to be answered lightly,—a profession embracing too much of the sacrament of an oath to be made except with deliberation. Take, therefore, your own

time, and answer according to your heart and your reason——'Dost thou take this man to be thy husband?'"

The words of reply were almost upon Catherine's lip, when a whistle, sounding loudly from an open window, and startling the whole company, was echoed by a sudden cry from the room itself; and at the same moment, the bridesmaids starting away in affright, a young man, pallid in visage, and roughly clad, rushed into the circle, and displayed to the eyes of the bride the features of the younger Gilbert. She uttered a scream, and to the confusion of every body present, flung herself immediately into his arms, crying with tones as wild and imploring as his own, "Oh, Herman, save me!" and fell into a swoon.

"Death and furies!" cried the bridegroom, recognising his rival at a glance, and springing at him like a tiger.

"Kill the villain!" exclaimed his sister, in a transport of indignation, endeavouring to tear her friend from the embraces of the intruder. But the efforts of the brother and sister were counteracted by a new and unexpected enemy. The French dancing-master, who, notwithstanding the violent enthusiasm with which he entered into his proper duties of fiddling and animating the guests, had yet wisdom enough to conduct himself with proper decorum, the moment his reverend colleague appeared, and had been for the last few moments entirely lost sight of, now darted with a hop and a pirouette to the bridegroom's side, and roaring with a voice loud enough to add to the terror, "*Sacre!* ou-at! marry a leddie against her ou-ill!" he struck his violin over young Falconer's head with an energy of application that brought him to the floor, and dashed his instrument into a thousand pieces. "*Sacre!*" he continued, triumphantly—"I s'all help myself to the most beaut'ful leddee here!" And, as he spoke, he snatched up the astounded Harriet, and vanished from the apartment.

In the meanwhile, the outrage, of a character so extraordinary, had not been confined to the persons of the wedding pair and the bridegroom's sister. At the very moment when Hyland Gilbert darted into the circle, many of the guests, hearing the whistle that seemed to have conjured up the spectre, turned to the window, and beheld three or four savage-looking men spring through it into the room, while as many others, remaining in the open air,

thrust long carbines and rifles among the guests, as if upon the point of firing on them. At the same time, others made their appearance at the door, armed in the same way; and, to crown all, the little six-pounder, which had remained in the Hollow ever since the eventful 4th of July, and stood upon the lawn near the house, charged by Captain Loring's own hand, and ready to be fired the moment the ceremony was over, was suddenly let off by some unknown hand, rattling the glass in the windows, and shaking the house to its foundation. These circumstances were enough to inspire all with dread; which was still further increased when the assailants, singling out the few military officers present, rushed upon them before they could betake themselves to their arms, and beat them all to the floor, with the exception of the captain of cavalry, who sprang from a window on the opposite side of the apartment, uttering a single ejaculation of surprise,—that is to say, 'By the eternal Jupiter!'—and was seen no more until the assault was over, and the actors in the outrage had vanished. The whole scene, though one of unexampled confusion and terror, was over in a few moments; and such was the panic, that scarce a being present remembered, or indeed conceived, the true nature, or had noted all the circumstances attending the assault. That wild men with arms in their hands, had been among them,—had struck down several persons present, then rushed over the whole house, as if in search of some object of prey whom they expected, but found not, among the guests below, and then had betaken themselves to flight, without doing further mischief—was all that was at first known; and it was not until a distant yell at the park-gate, followed by the faint sound of hoofs, proclaimed the departure of the enemy, that the gentlemen present were able to tear themselves from the grasp of the frightened women, and examine into the effects of such a visitation. It was soon found that the officers, who had endured the brunt of the attack, had owed this distinction less to the animosity than the fears of the assailants, who, seeming to apprehend resistance from no others, had made it a point to seize them, before adventuring upon the main objects of the outrage. They were but little hurt, the assailants having studiously avoided all bloodshed; and even the bridegroom, though stunned and a little disfigured by the blow so heartily bestowed upon him by Monsieur Tiqueraque, soon recovered his wits, and joined the rest in eager search after the bride. She had vanished, as well as his sister; and by and by, when the distraction caused by such a

discovery, and the ravings and lamentations of Captain Loring, had a little subsided, it was found that the girl Phoebe had also disappeared.

CHAPTER VII.

"She is won! we are gone, over bank, bush, and scaur;
They'll have fleet steeds that follow," quoth young Lochinvar.

MARMION.

In the meanwhile, and almost before her disappearance had been noticed by a single person, so great was the confusion at the moment the outlaws burst into the room, Hyland Gilbert had borne the insensible Catherine into the porch, and strove to carry her from the house. His strength was scarce fitted to sustain such an exertion; for, in truth, although none of the dwellers of Hawk-Hollow were apprised of his mishap, until he revealed the secret to Colonel Falconer a few hours before, the bullet of his rival, in their encounter on the night of the fourth, had taken effect, and he was yet labouring under the effects of an unhealed wound. He was now, however, animated by a new feeling; for as he clasped the burthen to his heart, he remembered that the outrage had been sanctioned not merely by passive acquiescence on Catherine's part, but had been preceded by a direct appeal, as it seemed, to his affection, though wrung almost by frenzy from the unhappy girl, in the moment of her greatest need. "Heaven be thanked!" he muttered to himself—"I am not a villain; and this deed of violence has preserved her happiness, as well as my own miserable life."

"What! brother?" cried a harsh voice in his ear, as he attempted to stagger forward, and found himself arrested by the hand of Oran: "What, man, am I not both doctor and brother?—a good doctor, too? You shall look up now, and be healed in a day—heart-whole, body-whole! I knew what it was was killing you."

Fierce and abrupt were the accents of the refugee; but there was mingled with them a tone singularly expressive of affection.—"And were you not a fool to doubt," he added, "when you had the love of the maiden? But come, Hyland; this duty is not for you—give her here to Staples"—

"Never, Oran, never!"

"Foolish boy, you are sinking under her weight. You must ride unburthened, or be captured. When the fresh air opens her eyes, and she can sit a horse herself, you shall ride at her side. Quick! and get you after her to the horses."

With these words, and without regarding the opposition of the feeble lover, he drew the lady from his arms, and putting her into charge of another, bade him 'see to her, and the rest,' and then immediately darted back to the house.

"Perhaps it is better," muttered Hyland, conscious of his inability much longer to support his precious freight, yet resolved she should not be long sustained in the arms of another. "I have saved her,—I have saved myself; ay, and I have prevented murder, too. Go, Oran; the victim is beyond your reach. Ah! Catherine, thou hadst been dearly purchased, had it been with blood,—even with the blood of a Falconer!"

He was still pursuing after his mistress, and had nearly reached the park-gate, when his ear was saluted by a piercing scream from behind, and the voice of Miss Falconer, which he instantly recognised, calling for help. He ran back, and discovered her struggling in the arms of Monsieur Tiqueraque, who was bearing her along at a great pace, and all the time uttering, with a volubility not a little inflamed by his frequent visits to the bottle, in which he had quite distinguished himself, a thousand exhortations to the lady to be pacified, with as many eccentric commendations of her beauty and his own good qualities.

"*Tuchou! taisez vous, ou-at de deb'l! mon ange, ma petite, ma maîtresse, avec les yeux noirs d'un diabolotin!*" he heard him cry, "ou-y for you fear? *comment diantre*, ou-y for you squeak? You are the mos' fine leddee of all, and I am the mos' excellent jentlemans, and I s'all love you, begar, mos' extremely. *Fi donc!* you mus' know, I am jentlemans in disguise, and have

you love 'is sis mon's, and s'all make you very good lovare. O ciel, begar, I do so sink you ver' beaut'ful, and I s'all give you on' douzaine kiss extreme fine, *mon dieu*, if you s'all no squeak no more."

"What, Sterling, are you mad!" cried Hyland, seizing this incorrigible adventurer and exemplary wooer by the arm. "Release the lady instantly—you have made a mistake."

"*Diablezot!* none in the world," said the man of many coats, changing character with the facility of an 'old stager.'—The sudden transformation operated even more effectually than the voice of the detested Gilbert, in frightening Miss Falconer into silence. "And harkee, Mr. Lieutenant Hawk," he went on, with great equanimity, "stick to your own prizes,—follow your own Blowselinda."

"Rogue, do you resist me?—Come, sir, you have been drinking!"

"Drinking in your teeth!" said Sterling, in whom 'the good familiar creature' had the effect of rather sharpening than changing any of his characteristics. "'Back and syde, go bare, go bare,'" as old Gummer Gurton says:

'Now let them drynke till they nod and winke,
Even as good felowes shoulde doe;
They shall not mysse to have the blisse
Good ale doth bringe men to.'

"But 'this is my right hand, and this is my left'; what more would you have? Do you think I am to be kept on your cursed Adam's ale of the mountains for ever? 'Dost thou think, because thou art virtuous, there shall be no more cakes and ale?' And finally, Mr. Lieutenant Chicken-hawk, dost thou opine thou shalt have thy bottle and thy wench, and I"——

"In a word, scoundrel," said Hyland, clapping a pistol to his head, and thus bringing the madman to his senses, "unhand the lady, or I will blow your brains out."

"Zounds, sir,"——

"No words, sir. Get you to the horses; and thank your stars I do not report your villanous conduct to the Captain."

The volunteer, who had indeed made freer with one item of the bridal cheer than became a man, who, as he had hinted, had been confined to a beverage of the mountain brook, since his association with the band, grumbled a drunken oath or two betwixt his teeth, and immediately slunk away, leaving his captive to be disposed of by the subaltern.

"You are free, Miss Falconer," said the young man, speaking with a smothered voice. "The evil you have done me I forgive you; the cruelty you meditated and practised against another, I leave to be judged by heaven and your own conscience.—False friend! treacherous kinswoman! your victim is beyond the reach of your inhumanity."

"You are a villain, sir!" cried Harriet, exasperated out of her fear,— "the worst of villains,—an ungrateful one!"—

What more she might have said and done, on the impulse which restored her all her native energy, it is impossible to say; but just at that moment her ears were struck by the wailing of a female voice; and looking round, she saw, obscurely, for the night was very dark with clouds, though a new moon was in the sky, a horseman ride by, bearing a woman across his saddle-bow, and apparently greatly embarrassed by her struggles. Her first idea was that she beheld her unlucky friend, not yet snatched beyond her reach; and accordingly she darted forward, and with extraordinary intrepidity, seized the bridle-rein with one hand, while with the other she grasped at the captive's garments, bidding her leap down, and crying out loudly for help.

"You are insane, Miss Falconer!" said Hyland, endeavouring to draw her aside; "Catherine is safe, and this is but Phoebe, who follows her."

"Oh! Miss Harriet!" cried the serving-maid, with a piteous voice, "don't let 'em murder me; and oh! Mr. Hunter Gilbert! sure you won't be so barbarous! and sure I never did you any harm in my life, and sure"—

But her words were cut short by her ravisher suddenly spurring his horse, as Harriet, in surprise and disappointment, let go her hold, and immediately

darting out of the park.

By this time there was a great flashing of lights on the porch, as if the wedding-guests were recovering from their confusion, and preparing to avenge the outrage, before it was yet too late. This Harriet saw, and she observed besides that the dusky figures which had, ever and anon, for the last few moments, been flitting by, towards the road, one or two of them being on horseback, and who, she doubted not, belonged to the refugee band, had ceased passing, as if the last had already left the park. It was at this moment that she felt the touch of Hyland Gilbert's hand on her arm, as he endeavoured to draw her from Phoebe; and as she jerked away, she became sensible how feeble was the grasp of this detested foe. An idea, worthy of an Amazon, entered her mind; and forgetting the act of generosity which had but an instant before relieved her own person from the clutches of a drunken and lawless desperado, she laid hands upon her deliverer, thinking only on vengeance. As she seized him, she screamed loudly for assistance, calling upon her brother, Mr. Brooks, and others, by name; and had they made their appearance, or any one of them, it is certain she would have secured her prisoner. He was confounded by an exhibition of spirit so unexpected; and not knowing how to release himself, unless by such an exertion of his remaining strength as he could scarce think of exercising at the expense of a woman, he was reduced to extremity; when a horseman, coming from the house, suddenly galloped up, stretched out his hand, and with a single effort, jerked her from the ground to his saddle-bow.

"Quick," he cried to Hyland; "why do you tarry? To your horse, and away."

So saying he spurred onwards himself. The voice, breathing out the harsh accents of the trader,—the refugee, the man to capture whom she had launched so boldly among the billows of stratagem, and almost of war,—froze the blood of the maiden, and the sight of his grim features, revealed in the glare of distant lamps, completed the overthrow of a courage which had supported her in a struggle with one so little to be feared as Hyland. Her brain whirled, her senses became bewildered, as she felt the steed bounding beneath her, and knew that every leap, while it separated her still further from her friends, placed her yet more completely in the power of the refugee. But it formed no part of his schemes to add her to the number of

his captives. He checked his steed at the park-gate, dropped her gently on the grass, and uttering a yell, to draw the attention of another horseman, approaching from the house, galloped through the gate and was soon buried in the darkness. The second horseman, who was no other than the captain of cavalry, rode up to the spot, dismounted, and uttering many ejaculations of surprise, took the lady in his arms, and with her returned to the mansion. He found its inmates still in extreme agitation, the women weeping and screaming, the men swearing, and bustling, and vociferating for arms and horses, with which they designed to do they knew not what, and Captain Loring roaring like a bedlamite.

"Mount horses, gentlemen," he cried, "and by the eternal Jupiter, we'll recover the prisoners. A rum one, that Mr. Gentleman-volunteer! Come, mount, mount, and keep the chase warm, till a better force can follow us. There's a regiment of foot billeted in the village below—let some one gallop down for a reinforcement; the rest follow me. If we can't fight the vagabonds, why, by the eternal Jupiter, we can dog them."

The proposal of captain Caliver was responded to by such as could think without alarm of following the fierce marauders, by midnight, into their native forests; and in a surprisingly short space of time, they set out, six in number, to pursue on the course of the fugitives, and keep them within striking distance, until assistance should arrive. A messenger was immediately despatched to the village, and some two or three of those gaping supernumeraries, whose intrusion into the house has been already mentioned, volunteered to carry the alarm among the neighbouring settlements, and thus rouse the whole country to pursuit and vengeance.

The little party of six, headed by young Falconer and Caliver, issuing from the park, began the chase by galloping up the road, already made familiar to the leaders by the memorable adventure of the 4th. Assistance was nearer at hand than they thought; and almost before the trampling of their horses had died on the ear, a large party of mounted men, with Colonel Falconer at their head, halted at the gate. In obeying the counsel of the young refugee to leave Hawk-Hollow without delay, this individual had not been governed alone by fears for his personal safety. The appearance of Hyland Gilbert so near to the scene of festivity, convinced him, as strongly as did his urgent

exhortations to fly, that the ferocious band of Hawks, though supposed long since to have effected its escape, was yet lying concealed in the neighbourhood, meditating some deed of violence, though what that was, unless to burn Gilbert's Folly to the earth, as the only way of wreaking vengeance upon him, he could not pretend to divine. It was enough, however, that such an enemy was at hand; and, accordingly, when he rode to the village, it was with the purpose of summoning such a force to the valley as should protect its inhabitants, if it did not effect the still better object of ridding it from such visitants for ever. He sought the commander of the regiment already spoken of; and his representations, added to the weight of his character, were enough to cause that officer to take instant measures for the protection of Hawk-Hollow. A party of sixty picked men, mounted for the occasion, was put under his disposal; while several other companies were ordered to follow on foot. While on the road, he was met by the messenger sent by the captain of cavalry, with the stunning intelligence of the outrage, as it has been already related. Inflamed by the news, the party put spurs to their horses, and were soon in the Hollow. They paused at the park-gate, just long enough to communicate with the house, and ascertain that the pursuit was already begun by the bridegroom; and then resuming their route, they were in a few moments beyond the swelling ridge that shut in the Hollow to the north.

CHAPTER VIII.

Thought he, 'This is the lucky hour;
Wine works, when vines are in the flower.
This crisis, then, I'll set my rest on,
And put her boldly to the question.'

BUTLER.

You saw the mistress, I beheld the maid:

You loved, I loved.

MERCHANT OF VENICE.

The outlaws were, in the meanwhile, proceeding on their course with a celerity that left them little to dread from pursuit; and, indeed, all their measures indicated that their plan had been laid with as much forethought as audacity. The captive maidens, after being borne for the space of a mile or more, in the arms of their captors, were placed upon horses previously in waiting; and then, supported by an athletic attendant on each hand, were hurried forward with even greater rapidity than before. Before this arrangement was effected, and while they were yet in the neighbourhood of Hawk-Hollow, a change came over the spirit of one of the prizes, not more advantageous to herself than it was agreeable to the wild band who were somewhat weary of her lamentations. This was Phoebe, whose terrors, instead of abating, grew more clamorous, with every bound of the steed that bore her; and which, having begun with sobs and piteous ejaculations, increased to something like positive outcries; until, at last, the man who carried her, losing all patience, and unlocking lips that seemed previously made of stone, muttered, or rather whispered in her ear, but in no very amiable accents,

"Consarn the woman! what are you squalling a'ter? Hold your foolish tongue, Phoebe Jones, or"—

But the sound of a threatening voice was by no means fitted to allay the damsel's fear, or paralyze the member it had set so vigorously in motion. She interrupted the menace with a still louder shriek, adding, "Oh lord, good gentleman, pray don't murder me!"

"Gentleman!" cried the other with a kind of snort, evidently designed for a laugh: "Well, I reckon, I am a sort of, as well as another. But what's the contraction? Who's talking of murdering? I'm an honest feller, Phoebe Jones, and you know it; and these here refugees are all honest fellers, too, as ever you'd wish to see. Now, Phoebe, just scratch your nose, and be quiet; for you know I won't hurt you."

"Lord!" said Phoebe, in surprise, "don't I know that voice?"

"Why, I reckon," replied the other, with a more strongly marked chuckle than before; "but, mind you, no talking above breath; for that's agin orders, and captain Gilbert's a screamer."

"Captain Gilbert!" said Phoebe, in mortal terror. "Oh Dancy Parkins, don't let him kill me, and I'll never abuse you no more!"

As he spoke, she banished so much of her fear as to fling an arm around the horseman's neck, as if to insure the protection she entreated; and the action, as well as the appeal, went so effectually to his heart, that he answered forthwith, "Well I won't,—I won't let him hurt you, I won't, consarn me!—You see, Phoebe Jones," he added, with the same giggle which had marked the manly assurance of protection, "I'm the man for you, a'ter all: I told you, you'd be coming round, some day or other, for all your saying you despised me."

"But an't I to be murdered, Dancy?" demanded the wench, dolefully: "Oh! that ever I should be among the bloody Hawks! They say, they scalp women and children, as if they were no more than great Indians!"

"They're not half such fellers as people say," replied Dancy: "the only murdering I ever knowed of among them, was that of Andy Parker; and that I uphold to be salt for gruel,—fair grist for cheating the miller. He chalked me down like a fool, me and Tom Staples, being all old friends, or sort of; and so hanging was good for him. But I tell you what, Phoebe—give us a buss, and we'll be married, as well as our betters."

"I won't do no such thing," said the damsel, stoutly. "I don't like you no better than I ever did; for I don't see you're any better-to-do in the world than you was; and, besides, I won't have no tory."

"I reckon," said Dancy Parkins, "I'm no more a tory than the lieutenant—that's him you used to suppose was Mr. Hunter, and a poor painter; and there's your betters, the Captain's daughter, jumps at him."

"She don't!" said Phoebe, with indignation; "and don't you go to say, Miss Kitty Loring will have any such vagabondy, poor fellow."

"Poor!" cried Dancy; "why he's as rich as a king, and a mighty fine gentleman, too, for all he's consorting just now with these here refugees. He's got a grand plantation, as big as all Hawk-Hollow, with a thousand niggurs, where he raises sugar by the ship-load, and molasses beyond all reckoning, and, as I hear, good Jamaiky spirits. He's to make me a sort of I-dunna-what-you-call-it; but I'm to manage the niggurs, and make a fortun'. They say, no man ever sets foot on a sugar plantation, without making a fortun' out of it,—that is, excepting the niggurs. So, Phoebe Jones, there's no great use in despising me. It's a fine country, that island of Jamaiky; and consarn the bit of a hard winter they ever hear of there. So now, Phoebe, don't be a fool and refuse me no more; for I'm mighty well-to-do in the world."

And thus the enamoured Dancy pursued his claims to the love of his prisoner, who had been hard-hearted enough to frown upon him of old, while a labourer on Captain Loring's estate, and before the Captain's daughter had, by rewards and promises of further favour, prevailed upon him to take charge of the meaner fields of the widow. There was some presumption, at least Phoebe thought so, in his daring to raise eyes to *her*; for besides being without any personal attractions whatever, he was, to all intents, a gawky and stupid clod-hopper, with but little prospect of ever rising beyond the condition of a mere hireling, or, at best, a peasant of the lowest class; and accordingly, the damsel repelled him with extreme scorn, as a person unworthy to brush the dust from her shoes.

But the case was now altered, or seemed to be. In the first place, the scornful beauty was in his hands, and had wit enough, though by no means overcharged with that brilliant commodity, to perceive that his friendship was better than his enmity; and, in the second, his appointment to the important and lucrative office of He-did-not-know-what-to-call-it, on a sugar plantation, where they raised molasses by the ship-load, and good Jamaica spirits, was a circumstance to elevate him vastly in her consideration; for her affections not being of a romantic or sentimental turn, she ever held herself ready to bestow them upon any body who, in her own favourite phrase, 'was well enough to-do in the world to make a lady of her.' She listened, therefore, with complacency to his arguments, which he pressed with as much ardour as he was capable of; and by the time they

reached the place where she was to exchange a litter in his arms for a seat on a side-saddle, she had so far recovered from her fears, that she might have told him in the words, and with more than the sincerity, of Juliet,

"Well, thou hast comforted me marvellous much."

In the course of his communications, for he became wondrous frank and confiding, as he perceived her grow more favourable to his suit, he made her acquainted with some of the mysterious causes that led to the outrage, and the extent of his own agency in it.

When the young Gilbert fled from Hawk-Hollow, it was with a sorrowing spirit and a bleeding frame. The wound was, it is true, neither dangerous, nor, in fact, very severe; but he was left to endure it among woods and rocks, afar from assistance, except such as could be rendered by his wild associates, who were themselves reduced to extremities, so keen and fierce was the spirit with which they were hunted, though unsuccessfully, during the first week after their flight.

The sufferings of the young man were, in consequence, neither light nor few; and they were aggravated by anguish of spirit, which became a withering despair, when Dancy Parkins, the only individual with whom he could communicate in the valley, brought him intelligence that Catherine had been taken away, and, as was currently believed, for the purpose of being united to her affianced lover, afar from the reach of danger or opposition. His condition became such that it was no longer possible to remove him from the concealment where he lay, even when the abatement of all pursuit opened a path of escape to his companions, and when they looked daily for orders to proceed, or disband,—the removal of the chief object for which they were sent to the district, and the commands imposed upon them to commit no outrages, leaving no argument for remaining longer.

While he lay in this dangerous condition, the fierce Oran, whose bosom yearned over him as the youngest, and, after himself, the last of his father's children, read the secrets of his spirit; and, seeing no other means of saving his life, he formed, so soon as the sudden return of Catherine to the valley appeared to render the scheme feasible, the bold resolution of carrying her

off, and thus defeating the only scruples in the way of Hyland's happiness. His own heart was a rock, and he smiled grimly as he thought of the affection of woman; but he had learned to love his brother, and knew that the passion he derided was consuming his spirit within him. "I will give him his gew-gaw puppet," he muttered, as he sat one night watching by Hyland's couch—it was a bed of fern spread on a rock, on the naked hills, with only a thatch of hemlock boughs to shelter him from winds and dews, and a fire in the open air to light the wretched den;) "I will give him his wish.—He mutters her name in his sleep, and he sobs as he speaks it. Poor fool! he said true—he is unfit for this life of the desert, and his heart is warm to all God's creatures. Why should I seek to make it as fierce and bitter as my own? Let him to the island again, and the girl with him—it will be better: he was made to be happy."

When he first announced his scheme to Hyland, the youth, to his surprise, strongly and vehemently opposed it, as being a violence and wrong not only to Catherine, but to himself: but when the news was brought him that the wedding-day was fixed and nigh at hand, and he saw that he must act now or never, his resolution and feelings experienced a sudden change. He thought over again and again all the evidences he had traced of Catherine's aversion to the union, and he added the few and precious revealments of her regard for himself: he remembered her wild and broken expressions at that hour of parting which had made her acquainted with the depth of his love, and perhaps taught her more than she had dreamed before of the condition of her own: he pictured her in his imagination, the fair, the beautiful and the good, driven into the arms of one as incapable of appreciating her worth as he was undeserving her love: he thought of his peaceful island-home, and the paradise it would become, when she whom he adored should sit with him under its arbours of palms, or walk over its shelly beaches: he thought these things, and persuaded himself that fate called for, and heaven would sanction, the violence,—that he acted not so much for himself as for her,—and that she would forgive the friendly audacity that brought her release and happiness together.

He rose from his leafy couch, and in secret and by night crept back to the valley. The presence of Colonel Falconer filled him with affright and horror; for that had been concealed from him, and he knew by the devil of

malice that glittered in Oran's eye, that his father's hall was designed to be stained with the blood of his father's foe. Accident gave him the means of preventing this dreadful catastrophe, while wandering over those scenes which reminded him of Catherine, and debating in fear and anguish of mind, whether even she was worthy to be purchased at the price of murder. This obstacle removed, there still remained another. Fear and disaffection, resulting in a measure from inactivity, had thinned his brother's band; and they refused to strike a blow so bold and dangerous by daylight, when the smallness of their number could be seen at a glance, and their retreat as easily intercepted as followed. An effort was made to delay the ceremony until night, by throwing difficulties in the path of the clergyman; and this duty had been committed to Dancy, who succeeded beyond the expectations and even the hopes of his employers; while men were stationed in different parts of the grounds, to take advantage of any accident which might carry the bride afar from her attendants. At the very moment when Catherine wandered farther than usual from her friends, and wept at being hindered and recalled, she had approached the concealment of one of the party, and would have been seized on the spot, had not the man's heart failed him. It seemed as if destiny were driving her towards a path of escape, of which she had an instinctive perception, just at the moment when it was closed against her footsteps.

These particulars,—or at least the leading outlines,—Dancy communicated to the object of his own fervent but unromantic affections; and Phoebe was astounded with the discovery of her mistress's private attachment, if such it was, and still more so when Dancy, taking *that* for granted, assured her of his belief that Catherine was privy to the whole design. However, she did not trouble herself to pursue Catherine's story much farther. She heard enough to satisfy her that Mr. Hunter Hiram Gilbert, as she called him, 'who painted such lovely fine pictures, and had a thousand niggurs to raise sugar, and molasses, and Jamaica spirits, was as good a husband as one might meet of a summer's day; and for her part, she did not know, she could not say, she would not pretend to be certain,—but she was quite sure she never meant to say, that Dancy Parkins was altogether despicable.'

CHAPTER IX.

Beshrew me but I love her heartily;
For she is wise, if I can judge of her;
And fair she is, if that mine eyes be true;
And true she is, as she has proved herself;
And therefore, like herself, wise, fair and true,
Shall she be placed in my constant soul.

MERCHANT OF VENICE.

When Catherine recovered her consciousness, or rather woke from utter insensibility, (for it was long before her mind regained its full tone,) she was mounted upon a horse on which she was supported by two men, one riding on each side, who sustained her on the saddle, and directed the steps of her palfrey. She began to speak, but her words were wails, low and faint, and half lost amid the sough of the breeze, and the crash of pebbles under the horses' feet; and, indeed, it was soon apparent that she had exchanged a state of dreamless lethargy only for one of partial delirium. To this condition she had been fast verging for several days, during all which time, both asleep and awake, her mind had been in a state of constant tension, enduring jar after jar, and blow after blow, until its fraying fibres were one by one giving way, and a few narrow threads alone were all that kept it from the snap that ends in madness. Sleeplessness is a disease, which sometimes is prolonged, until insanity or death puts a close to the scene. The mind does not always slumber with the body: and in such instances, the spirit consumes amid the visions and dreams of night, as fast as amid the torments of day, until it lapses into the oblivion of dissolution or mental derangement. Such had been the case with the Captain's daughter: even slumber had brought no release to her spirit; and the last shock, combining in effect with a long train of benumbing influences, had reduced it to a condition in which it hovered between imbecility and distraction.

Though retaining an impression of the scene in which she had lately played so chief a part, it was faint, vague, and broken by other recollections of other scenes; and though some of her accents betrayed a childish joy at feeling herself in motion through the open air, she was apparently incapable of forming any but the most imperfect and bewildered conception of where she was, whither going, and for what purpose. Occasionally, she murmured words that seemed those of grief and entreaty; and, at such times, her father's name was on her lips, as if she implored those riding at her side to carry her to him. By and by, however, her words became fainter and fewer; then she uttered sobs, and those only at intervals; and at last, these ceasing also, she sank again into unconsciousness, and was maintained on her seat only with the greatest difficulty.

In consequence of this unexpected impediment, the speed of the fugitives became gradually less and less; but as they were already at a considerable distance from the valley, and had no reason to apprehend immediate pursuit, this circumstance created no alarm, and was, in fact, a cause of no little private satisfaction to many, the road being exceedingly rugged, and the night waxing darker and darker as the moon sunk lower in the west. Suddenly, however, as the headmost of the party toiled slowly over the crest of a hill, the wind swept from the rear a sound of voices, followed almost instantly by the explosion of fire-arms, and these again by loud shouts.

"Sessa! let the world slide!" cried the voice of Sterling, "whose cow's dead now? So much for not killing the men, and carrying off the women!"

"Peace, parrot!" said Oran Gilbert, lifting Catherine from her horse, (for he was one of those who supported her,) and flinging her into the volunteer's arms. "Bear her to the top of the hill,—nay, gallop on till you strike the river, and"——

"Figs and furies!" cried Sterling, with drunken astonishment; "do you make me a chamber-maid?"

"Away, fool! follow the other,—follow Dancy."

And with that, the refugee, turning his horse, galloped down the hill towards the scene of conflict, leaving Sterling, not yet completely sobered,

to make his way after Dancy Parkins and Phoebe, who were in full flight, as well as he could, cumbered by the weight of Catherine, and perplexed by certain indications which White Surrey gave of misliking the additional burthen imposed upon him.

"'Sessa, let the world slide!'" he exclaimed, "here's a coil with a wench, dead or half-witted! Ha! she stirs!

'Arise, fair sun, and kill the envious moon,
Who is already sick and pale with grief.'

Shame on thee, White Surrey! hast thou no more respect for the ladies? Now were not this the lieutenant's white-faced Rosalind——Oons! they are at it! Well, the better part of valour shall prevail; and so, fair soul, we'll be jogging. But where's that bottle of brown Sherry I clapped into Tiqueraque's pocket? *Paucas palabras!* I will have mercy upon thee—'thou shall taste of my bottle; if thou hast never drunk wine afore, it will go near to remove thy fit.' 'Slife, I will be merciful, and medicinate thy lips a little. Marry, I am 'a brave god, and bear celestial liquor.' Now, White Surrey, my brother, handle thy legs peaceably, or I will knock thee over the mazzard.—Fight, Hawks! and sing, Leonidas!"

The worthy volunteer, with these words, after having taken a bountiful draught from a flagon which was the first thing he laid hands on in the moment of assault, and sprinkling, doubtless with a humane and generous motive, some of its contents upon the face and lips of the maiden, gave spurs to his horse, and was soon beyond the reach of bullets and the sound of shouts.

The commotion, such as it was, was soon over. The party of Caliver and Falconer, urging their horses to the utmost, had suddenly, and unexpectedly to themselves, found themselves in contact with the stragglers of the tory band; and as these fled the moment they observed the pursuers, the gallant officers fired their pistols and rushed forward with renewed ardour, until checked by the opposition of the main body. They were met with fury, and, being overpowered, were almost instantly put to flight; after which the retreat of the outlaws was resumed.

In the meanwhile, the shots and yells with which the contest began, the change of position, or perhaps the wine which had been sprinkled on her lips, woke Catherine from her torpor; and slowly collecting her senses, she became at last sensible of her situation. Her recollection of the events of the evening was still confused; but she remembered enough of the bridal, and its violent termination, to know that she was afar from her father's roof, and that each moment saw her carried still further. She felt, too, that she was grasped in the arms of some powerful horseman, whose character might be imagined from the heartless, or drunken, nonchalance with which, while supporting a fainting and almost lifeless female, and hearing the uproar of mortal conflict just behind him, he yet trolled to the night-air some further stanzas of that quaint, joyous, and uproarious old ballad, of which he had given a specimen before in the paddock.

'Back and side go bare, go bare,'—

he sang,—

'Both foot and hand go cold;
But, belly, God send thee good ale enough,
Whether it be new or old.
I cannot eat but little meat,
My stomach is not good;
But sure I think that I can drink
With him that wears a hood.
Though I go bare, take ye no care,
I am nothing a-cold,—
I stuff my skin so full within
Of jolly good ale and old.
Back and side go bare,' &c.

'Now let them drink till they nod and wink,
Even as good fellows should do;
They shall not miss to have the bliss
Good ale doth bring men to:
And all poor souls that have scoured bowls,
Or have them lustily troll'd,

God save the lives of them and their wives,
Whether they be young or old!
Back and side go bare,' &c

"Oh my father, my father!" cried Catherine, in sudden terror, "for what dreadful fate have I given up thy love and protection?"

Her accents, feeble as they were, reached the ears of Sterling; and ceasing his song, he looked down upon her face, saying, with a ludicrous assumption of gravity,

"How now, fair Titania, queen of moonshine, do you speak? 'Oh, speak again, bright angel!' So much for twenty drops of brown Sherry! these asses did nothing but talk about cold water."

"What are you, sir? and why—why do you thus hold me?"

"Egad, for no very good reason I know, seeing that I could not hold my own prisoner, and am but a milk-livered loon to hold the game of young Sparrow-Hawk. Thousand devils! knew I but where to turn White Surrey's snout, I should *exit* by side door, and so vanish, wench and all, were it only to give him a Roland for his Oliver."

"I know not what you mean," said Catherine, her terror restoring her to full consciousness—"I know not what you mean," she repeated, with increasing alarm, as the moon, peeping side-long through a rent in the clouds, threw a level and ghastly ray on the countenance of her supporter, revealing features which her fears converted into those of an evil being;—"but, oh sir! I conjure you to free me. Do me no harm,—suffer me to escape,—let me dismount, though it should be but to die on the way-side."

Unfortunately,—not for her prayer, for no idea of granting that could have ever entered the volunteer's brain,—but unfortunately for the maiden herself, the same ray which revealed his visage to her gaze fell brightly upon her own, which, although pallid as death, yet displayed a pair of eyes to which the excitement of terror gave unusual lustre, and which instantly converted the drunken indifference of Sterling into admiration. He stared at her for a moment, and then burst out, in the words of Romeo, and with an

emphasis that preserved, along with his usual dramatic extravagance of fervour, some little touch of natural approbation,—

"Two of the fairest stars in all the heaven,
Having some business, do entreat her eyes
To twinkle in their spheres, till they return!"

Oho, Master Brook, sweet young Hawk! never trust me if I do not take thy minion in fair exchange for my own:—

'Follow your function, go!
And batten on cold bits.'—

Sweet and beautiful, and thrice beautiful and as many times angelical, fair soul!" he added, addressing himself to Catherine, "that I have so long remained insensible to thy charms, trust me, it was in part owing to the stupidity which I find growing upon me among the 'ruthless, vast and gloomy woods,' and in part also to the great grief of mind with which I have been mourning the loss of another very tenderly beloved damsel; but chiefly because thine eyes refused their light, and yonder moon in like manner. But now, 'by yonder blessed moon I swear,' I perceive you are ten times handsomer than the other, ass that I was to suppose the contrary; but, however, I was then thinking of the lieutenant and sour grapes.—Sweet, angelical soul, you said something about escaping, and doing you harm, and so on? Now, as to the harm, rest easy; but look as frightened as you please,—for what's so pretty in a maid as pretty fear? But as to escaping,—you would escape, then? go free from these villanous, green-coated, axe-handed, ox-headed, timber-tongued Hawks of the Hollow, eh? You would give them the slip, eh?"

"Assist me but to escape,—nay, only permit me to fly; heaven will bless you for ever, and my father—oh, my father!—he will never think he has sufficiently rewarded you."

Such were Catherine's eager expressions,—for although frightened at the strange, and, to her, inexplicable apologies and commendations of the man, she caught at his closing words as at those of a friend. What, therefore, was her terror, when the drunken ruffian, exclaiming, "Why then, 'Sessa, let the

world slide!" we will give Monsieur the Hawk Junior the go-by, and roam the world together," added other words to make yet more plain the sudden design he had formed of carrying her off for his own exclusive benefit, and concluded by attempting to draw his arms more closely around her.

"Yes, thou adorable, delectable creature!" he cried, overflowing with affection, "I am tired of these rude vagabonds, who give one nothing to drink but brook-water, with which trout, eels, sunfish, terrapins, and other vermin, have been making free the lord knows how long; and beds of leaves on a rock, where one may feel snakes creeping under him all night long. Wherefore I will decamp, and thou shalt decamp with me, and be my love; and I will love thee to thy heart's content; and we shall lead the merriest, drollest moonlight life of it under a bush, that was ever dreamed of in romance or enacted in tragedy. We will laugh and play, and drink and dance —

'Nor will we miss to have the bliss
Good ale doth bring men to'—

and will be the most loving turtles that ever cooed in a greenwood."

As he spoke, he again attempted (for White Surrey, charmed with the melody of his master's tongue, and knowing well, when it was running, he might take such a liberty, had changed a jog-trot into a contemplative walk,) to cast his arms round the maid, who, now awake to the wretchedness of her situation, uttered a shriek, and making a sudden effort, succeeded in throwing herself to the ground; after which, she fled away with all her speed. The object of her terror was not slow to follow; he uttered an oath and a laugh, and leaping down, pursued her with such vigour that he was soon at her side; for the ground was rough with rocks and bushes, and her strength almost immediately failed her.

It is not certain that the wretch meditated any purpose beyond the mere recovery of his prize; for, however rude and familiar his new-born admiration, he had hitherto betrayed no inclination to carry it to the point of absolute rudeness. On the contrary, he seemed rather to be enacting a part, according to his constant custom, only that the wine he had drunk rendered him in all things more extravagant than usual.

But harmless or not as his intentions might have been, it is certain that the fear of them drove the unhappy Catherine to desperation, and filled another, now fast approaching, with the most dreadful alarm. This was Hyland Gilbert, who, hearing her cries from afar, came rushing up in time to see her, in the dull light of the moon, drop on her knees before the volunteer, beseeching him, in tones that might have melted a heart of stone, to have pity on her.

"Villain! you die!" cried Hyland; and leaping from his horse, and rushing forward, he clapped a pistol to his ear, and drew the trigger. It flashed in the pan; but before Sterling could take advantage of the failure, the young man dashed it in his face, and drew another.

"Hell and darkness!" cried Sterling, furiously, "young malapert, I will twist your neck." And seizing him by the throat, he cast him violently to the earth. Of a joyous, and even good-humoured temperament, there was yet a spice of devilish vindictiveness in the man's breast; and while boiling under the indignity of the blow, and smarting with rage at such high-handed interference in his humours by a pragmatic boy, he did not fail to remember that this was not the first time he had been baffled by him during the night. Besides, he was inflamed with liquor, which was enough of itself to goad him into any act of vengeance.

But he was not destined, that night, to shed the blood of Hyland Gilbert. The shrieks of Catherine had been heard by others as well as her unhappy lover, and the flash of the pistol hastened them to the spot, where he lay struggling in the grasp of Sterling. A hand more mighty than his own was soon laid upon Sterling's neck, and as he was lifted aloft, and then tossed among the flints, like some mean but vicious beast, which the hunter disdains to kill with a weapon, he heard the voice of the tory captain exclaim,

"What, you dog! touch your officer, and a sick man!—What means all this, Hyland? What! has he harmed the girl? If he have but touched her with a finger—Paugh!—Away with you, men! why stand you here gaping? On, and quickly."

The party rode on, leaving, however, besides the group already in front, one man who led the horse on which Catherine had been mounted before. The refugee cast a look to the maiden,—she was sobbing in the arms of his brother. He strode to Sterling and assisted him to rise, not however without saying, with the sternest accents of a voice always savage,

"But that heaven, or some other power, has made me to-night cold to blood, I should strike you, villain, where you stand!"

"You may do it," said the other, with great tranquillity. "Take your fill to-night; we will run up the reckoning at another time."

"How, drunken fool! do you threaten me!"

"Faith, not I. Henceforth, I am a man of peace—that is, when we have played the play out. You're a hard manager—but, now I remember, we are not on the boards! We will forget and forgive."

"Forgive, rogue! you struck him that was feebler than a child; and you—— By heaven! if you have touched that girl but rudely, you were better fling you into the river, than await the thanks in store for you."

"A pest upon girls, and the devil take the whole sex!" said Sterling, devoutly.

"Peace! and get you to your horse."

"Ay, presently," replied Sterling; and as Oran leaped on his own black steed, Catherine having been already lifted to the saddle, he pulled a pistol from his bosom, and aimed it at the unsuspecting outlaw. Oran Gilbert bounded forward, and Sterling lowered his hand.

"A miss were certain death," he muttered, "and the shadow was on the moon. 'Sessa, let the world slide'—to-morrow comes after to-day, and the longer we fast the richer the feast.

'Nor shall we miss to have the bliss
Good ale'——

Good ale? good devils!——

'Nor shall we miss to have the bliss
Good *blood* doth bring men to!'—

Now were White Surrey but visible, I should know what to do: but the beast lifted up his heels, and was gone a-larking the moment I dismounted.—— And these dogs have left me to shift for myself, without even a horse to help me! Wisdom is at as low an ebb among them as gratitude. Necessity and vengeance harp on the same string. Fare thee well, Oran the Hawk; but fly as high and as wildly as thou wilt, I see the little bee-bird that shall bring thee to the ground, bleeding."

With these words, he sat down upon a stone, and there remained until the tramp of the retreating horsemen was no longer brought to his ear.

CHAPTER X.

If you have ears that will be pierced, or eyes
That can be open'd, a heart that may be touch'd,
Or any part that yet sounds man about you;
If you have touch of holy saints or heaven,
Do me the grace to let me 'scape: If not,
Be bountiful, and kill me. You do know,
I am a creature hither ill betray'd
By one whose shame I would forget it were.

BEN JONSON—*Volpone, or the Fox.*

Catherine was now so far recovered as to be able to comprehend her situation in full; and although Hyland Gilbert rode at her side, thus assuring her of protection from all further rudeness, her terrors increased, and were

mingled with the most insupportable anguish of spirit. It was in vain that he conjured her to be composed, and vainer yet when he sought to pacify her by expressions indicative of affection and tenderness.

"Take me to my father, Herman," she cried, clasping her hands, and even endeavouring to grasp his own. "Oh, take me but back, and I will forgive you—I will forgive all!"

"Be composed, Catherine, I entreat you"—— But her only answer was, "My father! my poor father!"

"You shall see him, Catherine. I take you not from him, but from Henry Falconer."

"I will never marry him," cried the unhappy girl: "take me but back and I will tell them all, and it shall go no further. Take me but back, and I will forget all,—I will forgive all. Take me but back, and let me die."

In this manner, her mind overcome by but one thought and one feeling, she murmured prayer after prayer, and adjuration after adjuration, until her entreaties became almost frenzied, and Hyland, alarmed and shocked, half repented the act which had brought her to such a pass. Her agitation was not diminished, when Oran, who rode at the other side, and had for a long time maintained a stern silence, and apparent disregard of what passed between them, at last uttered an interjection of impatience, and bade Hyland ride away, and leave her to him.

"The folly but grows upon her in your presence," he said: "it must be checked."

"Leave me not, Herman!" she cried, starting so wildly from the rude Oran, that, had he not arrested the effort, she would have leaped from the horse, in the effort to reach him whom she felt to be her truest protector: "leave me not, Herman, for the sake of the mother who bore you!—leave me not in the hands of any of these rude men!"

"Fear not," said Hyland, and he conjured Oran himself to depart. "Let the girl come to her," he added; "perhaps Phoebe's appearance may relieve her."

But even the presence of Phoebe, now quite content with captivity, (so successful had been the arguments of her wooer,) failed to banish her agitation; and at last, bewildered and in despair, incapable of devising any other means to give her comfort, Hyland checked his horse and hers, and assisted her to dismount.

"Do with me what you will, Catherine Loring," he said—"I am a fool, a wretch, perhaps a villain."

"Oh no, no!" said the maiden; "only take me back, and all will again be well—all will be forgotten."

"Nothing again will be well with me," said the young man, "and nothing, I fear me, with you. Catherine, there is but a moment to decide. In snatching you from the altar, I did the only thing in my power to secure happiness to both,—or at least, to secure us from the misery that was falling on us like a mountain. You hated Henry Falconer"——

"I did—No, no! not *hate*; it was not hate," murmured the Captain's daughter.

"You hated him, Catherine, and—why should I fear to speak it?—you loved another—you loved *me*, Catherine—By heaven, it is true! I felt it, and I knew it; else how could I have done this thing? It is true—and hide it not from yourself, since your own weal, as well as mine, depends upon your resolution this moment."

"Speak not to me so, oh, for heaven's sake do not," cried Catherine, weeping—"I never gave you cause. Take me only to my father."

"To wed with Henry Falconer, and pronounce a vow your heart forswears?"

"I will never marry him—never, never!" said Catherine, with vehemence: "I would have told him so, only that my father stood by, and I knew it would kill him."

"Catherine, hear me—I am neither traitor nor outlaw, and though associated with such for a moment, it is for your sake only.—I have wealth, Catherine,

—substance enough and a fair name. Share these with me."—

"No, no! oh speak not so," said Catherine; "speak to me only of my father, and take me to him. He loved you well, Mr. Hunter, and you have not well repaid him."

"Choose, Catherine," said Hyland, gloomily; "if you will return to him, it shall be so:—I am not the ruffian to force you a step further against your will."

"Heaven for ever bless you!" cried the maiden. "Oh be quick, lest it be too late—Take me back, take me back!"

"Yes, take us back, take us back!" cried Phoebe, whose weak mind, yielding with facility to the contagion of Catherine's example, was now as full of terror as before.

"Think once more, Catherine," said the young Gilbert, with a faltering voice—"Of myself I speak not—I will not think what your return may cause me; but think of what wretchedness it must inevitably bring to you.—Catherine, there is sunshine for us in the island.—Say but the word—you will fly with me!"

"Never!—Oh my father! take me, Herman, to my father!"

"It is well," said the youth, sullenly; but motioning as if to assist her to the saddle, "you shall return to him."

"What fool's play is this? and why do you loiter?" cried Oran Gilbert, riding back to the group, who had been left by their sudden pause far behind: "To horse and to the river!"

"It cannot be," said Hyland: "we have erred,—we have done a great wrong, and must repair it. Brother, this maiden must be returned to her friends."

"Madman! what do you say? Have her silly, girlish whimsies so frightened you? Away with you to the front, and I will fetch her!"

"I have said it, Oran," rejoined Hyland, in a firm, though deeply dejected voice. "I have agreed to take her back, and I will do so. If you will allow me a guard, I will not delay the band a moment; and will answer for the lives of those entrusted to me."

"Fool and madman!" exclaimed the brother, in a fury, "must I force you to your senses? What ho, there, Hawks! two of you return; and Dancy Parkins, lift that girl to the saddle, and bear her off."

"Fear not," said Hyland to Catherine, who, with woman's inconsistency, threw herself into his arms, the moment she heard the dreaded order.—"You but frighten her, brother!—Make me not more wretched than I am, by forcing me to shed the blood of any of your people.—I will shoot any one who touches her."—

"Myself, boy?" cried his savage brother, leaping from his horse. Then pausing, for at his approach, Hyland lowered the weapon he had raised to make good his words, he said sternly,

"Choose for yourself.—Bear her along, and be rewarded by smiles in the morning; take her back and die, like a mad wolf, in the trap that has before maimed you. Mount horse, Dancy Parkins, and begone; and you, Hyland Gilbert, mount and follow, or stay where you are and perish.—Will you on?" he added, with inexpressible fierceness.

"When I have put this lady in safety, but not before," replied Hyland.

"Die then for a fool, or help yourself as you may," said the elder brother; and mounting his horse, he instantly galloped out of sight.

None now remained with Hyland save the two maidens; for even Dancy, awed by the voice of the refugee, had deserted the once-willing Phoebe. He turned his eyes towards the retreating figures, as if doubting whether they could wholly desert him; but he heard the tramp of the steeds ring farther and fainter each moment, and it was plain that the incensed Oran had abandoned him to his fate. He assisted Catherine to mount, and Phoebe likewise; then taking Catherine's bridle in his hand, he turned the horse's head, and began to retrace his steps without uttering a word. A moody

silence possessed him, and even Catherine's voice, now sobbing out her broken gratitude, failed to draw from him more than a few sullen monosyllables.

"It shall be as you will," he said; "but let us speak no more.—What matters it now to utter vain words?"

The dejection, nay the despair, of spirit conveyed by every tone, smote Catherine to the heart; and had he possessed the art, or the will, to take advantage of the feeling which his evident desolation produced in her bosom, he might yet have won her to his purpose, and borne her afar from parent and friend. But he had neither; he heard her trembling attempts at kindly utterance, (for it was now her part to play the soother,) with apparent indifference; and even when she turned her weeping face towards him, and, in the impulse of real affection, laid her hand upon his, he drew away as with scorn or anger.

Their flight had carried them almost to the base of the mountain; and, obscure as was the night, it was plainly distinguishable at that spot where the convulsions of chaotic ages have riven it from the summit to the base, thus hollowing a pathway for a broad river under the shade of its majestic crags. As they turned from it, a pale light glistened among the pines and oaks of the eastern hill, but so faint and dim that one could scarce pronounce it the peep of day-spring. Such, however, it was; fast as had been the flight, it had been over a road where absolute rapidity is, even at this day, rather to be desired than expected; and, had she continued with the wild band, Catherine would have seen the sun steal into the sky, ere they had buried her in the savage recesses where they found their own cities of refuge.

As the day dawned, however, and long before the sun was yet seen, wreaths of mist began to curl along the mountain top, and even to creep over the river; and before they had ridden much more than a mile, it was seen rolling along these lesser uplands that give such beauty to the whole district, and settling upon the moist woodlands.

This was a circumstance which one in Hyland's situation might have deemed providential, if desirous of avoiding observation. But it is

questionable whether, while brooding over his melancholy thoughts, he gave much reflection to the peril that might attend his return to the haunts of men. Peril should, at least, have been anticipated; for whatever had been the check given by the band of outlaws to the first pursuers, it was not a moment to be doubted, from the audacity of the pursuit, as well as the greatness of the outrage, that the chase would be resumed the moment the pursuers could add to their numbers. But dejected as was his spirit, he was not yet reduced to such a state of stupor as to be wholly unmindful of his safety; and of this he gave proof by suddenly halting upon a naked hill, strown over with rocks, and wholly desolate, though breathing into the mist a world of rich odour. It was, in fact, covered with a growth of sweet-fern, —a shrub around which the early thoughts of affection had shed an interest not to be attached even to the rose or violet, though henceforth that interest was to be of a melancholy and painful character. It was the hill on whose summit he had, scarce an hour before, preserved her from the grasp of a villain; though this she knew not, for the mists concealed objects from the eye, and it was not yet sunrise.

As he paused, he bent forward to listen, and drew a pistol from his saddle-bow, but instantly returned it, muttering, "It is no matter—if they take me, let it be without bloodshed."

"Herman,—Mr. Hunter, what is it?" cried Catherine. "You will not pause now?"

"Now I must, or never," he said. "You are safe,—your friends are at the bottom of the hill; and unless you would have them murder me in your sight, I must begone. Farewell, Catherine Loring: if you can be happy, God grant that you may be so. I have done you a great wrong; but I bear that in my bosom which will avenge you. Farewell, Catherine,—farewell, and for ever."

"Herman, Herman!" murmured the maiden, turning upon him a countenance of death, and gasping for utterance.

"Farewell, Catherine," he said, wringing her hand; "they are upon us. God bless you—farewell."

He rode away—it was but a step: the trample of a body of horse was now plainly heard—he looked back upon her—his countenance was bathed in tears. She stretched forth her arms, and murmuring, in a broken voice, "I will go with you—take me, Herman, take me!"—was in a moment locked in his own embrace. He snatched her from the saddle, and, as she clung to his neck, dashed the spurs into his good roan steed. Had the words been pronounced a moment earlier, nay, but an instant, he might have made his escape, and borne her off in safety. But the decision was as late as it proved to be fatal. Phoebe had already heard the trampling of the approaching horsemen, and Hyland had called them friends. She could scarce repress a cry of delight; but when, catching Catherine's last words, she looked round and beheld her, as she thought, in the act of being again snatched away, she raised her voice in a scream that was heard by the most distant of the approaching party, and was echoed by a shout coming from fifty voices.

Again Hyland struck the spurs into his horse, and the fire sparkled from his hoofs as he dashed down the hill; but fire flashed immediately after from the hoofs of twenty others, fresher and perhaps fleeter.

"Shoot not, or you will kill the lady!" roared a voice in his ear.

"Surrender, dog, or die!" shouted another, who was indeed no other than Henry Falconer; and almost in the same instant, as three or four closed upon the unfortunate fugitive, a strong arm snatched the fainting Catherine from his grasp, and a pistol, held by Falconer, was thrust into his face.

The young Gilbert was weak with wounds and sickness, and worn out with toil, watching, and grief; his native spirit was thus in a manner crushed and prostrated; and he would perhaps have yielded himself passively up, if not too bitterly goaded by the taunts and violence of his captors. Such was the opinion of two of them, who, supposing he had already yielded, withdrew their hands, that they might give assistance to the fainting Catherine, whom captain Caliver had so fortunately redeemed from the midst of the fray. But Gilbert had not yet rendered himself. The sight of his rival, exulting in his capture, and menacing him with voice and weapon, inflamed his dying passions. He turned with sudden fierceness, checked and spurred his steed at the same time, and thus caused him to vault into the air with a violence which would have speedily released him from Falconer's grasp, had not his

purpose been rather to attack than fly. As he executed this feat, he presented his own pistol, and drew the trigger. The explosion of two pistols at once was followed by the rush of a dozen men to separate the combatants; and the next moment both were seen rolling upon the ground, Falconer lying clear of the *melée*, and Hyland in the hands of the vengeful Sterling, whose horse, White Surrey, had overthrown the youth, together with his roan steed.

"Sessa! let the world slide!" cried the renegade, with a voice of thunder, but a countenance ashy pale. "Here's work for the hangman—I have him fast enough. *Victoria!*"——

But at this moment, a sudden alarm was sounded, and all who could starting up, they heard a wild yell sound from the base of the hill to the north, and the words, pronounced by a voice strong and clear as a trumpet, "Royal Refugees! charge! and bear them to the ground!"

"Huzza!" shouted the captain of cavalry, "here's the rat running at the lion! Now open your mouths and swallow 'em! By the eternal Jupiter, we are five to their one; and more fools they for not knowing it. Sweep them from the earth! charge them! on!"

The refugee had relented; the sound of the pistols had quickened his steps; but he dreamed not of the force now arrayed betwixt him and his abandoned brother. A sheet of fire from twenty pistols blazed through the mist, as twice as many enemies rushed against his little band. They broke at the first fire, and the sounds of pursuit, both hot and fierce, were soon lost in the distance.—It was not until many hours had elapsed that the result of the contest, although it could be easily imagined, was fully known. Two of the refugees had been killed, and one was taken prisoner; while the others, abandoning their horses, which were worn out, and hence easily captured, succeeded in making their escape to the woods.

In the meanwhile, those who remained upon the hill busied themselves in securing the unfortunate Hyland, who was unhurt save by the fall of his horse, aiding the maidens, and raising young Falconer from the earth. This unlucky youth muttered a few words as they lifted him, but, to their horror, almost instantly expired. A pistol bullet had penetrated his throat, dividing

the great jugular, and even shattering the spine. His battles were fought, and his dream of folly over.

In the recovery of Catherine and the serving-maid, the company of pursuers had effected the chief object of the expedition; but it was still felt to be a matter of great importance to destroy the relics of the refugee band which had haunted the county so long. The greater number of the pursuers, accordingly, devoted themselves to this object, while enough remained on the hill to take charge of the rescued females, the prisoners, and the dead.

The life of Hyland Gilbert, whom his captors, exasperated by the murder, as they called it, of Falconer, were at one time on the point of tearing to pieces, was saved through the firmness of lieutenant Brooks; but he was treated with much indignity, and even cruelty, being straightway bound both hand and foot to his horse, and thus carried away like the meanest and most desperate of felons. A pair of rude litters were hastily constructed, in one of which was carried the Captain's daughter, while the other supported the clayey corpse of the bridegroom.

These things effected, and the honest Mr. Sterling assuming the station assigned him in the centre of the party, where, although enjoying all appearance of liberty, he was yet esteemed a kind of honourable—or, as the phrase should be, dishonourable—prisoner, the melancholy cavalcade pursued its way back to Hawk-Hollow, within a few miles of which, its leaders stumbled upon Captain Loring and a party of footmen, over whom he had assumed the command. It consisted of no less, indeed, than that identical company of volunteers who had won such immortal distinction on the fourth of July, by their valiant attack, with empty muskets, upon the flying Oran. The reappearance of their enemy was enough to recall them to the field of battle, though they came somewhat of the latest; and uniting themselves with a party of countrymen and domestics whom Captain Loring had previously assembled, and whom he was now gallantly leading to the field of honour, they yielded to his energy the obedience he seemed to consider a matter of right, and thus constituted him commander-in-chief, without much regard to the claims of their own elected officers.

The morning was still misty, so that lieutenant Brooks and his party stumbled upon this formidable detachment without seeing it, or suspecting

its existence; and had it not been for the sharpness of his ears in detecting the tones of Captain Loring's voice upon a hill he was just ascending, it is highly probable the magnanimous volunteers would have wiped out the disgrace of their flight before a single enemy, by pouring a warm and well-directed fire into a superior body of friends.

He paused a little,—for he rode at some distance in front of his party,—and distinctly heard Captain Loring's voice giving the following orders to his volunteers:—

"Hark!" said the veteran; "adzooks, you may hear their horse now as plain as the cocking of a sentinel's musket at midnight. Halt, ye vagabonds, and prepare for action. When I say *prepare*, I mean, adzooks, be ready to swinge 'em. You, Dan Potts, John Small, and Peter Dobbs, detach yourselves to the right, six rods from the road, and lay by to flank 'em: Dick Sturgem, Sam King, and Absalom Short, wheel to the left, and do the same thing—and mind you, you scoundrels, don't any of you be frightened; for, adzooks, I despise a coward above all created things. And harkee, you scoundrels, no gabbling; hold your tongues like soldiers, and talk with your muskets: that's what old general Spitfire used to tell us—'Sons,' said he, 'a soldier should always keep his tongue in his musket.' So be off, and stand fast, flanks; and bang away as soon as you see any thing to bang at. Centre, attend: as soon as you hear the flanks at it, you are to crack away, and give no quarter—no quarter, you scoundrels, do you hear!"

At any other moment, the young lieutenant would have been amused at the enthusiasm and tactics of the veteran of the Indian wars; but this was not a moment for jest. He rode forward, hailing the Captain by name; and the old soldier soon forgot his rage and his followers together, to weep in the arms of his recovered child.

CHAPTER XI.

2d Clown. But is this law?

1st Clown. Ay, marry is 't; crowner's-quest law.

HAMLET.

We draw a curtain over the scene of distress displayed in Gilbert's Folly, when the body of Henry Falconer, late the gayest of its inmates, was laid at the feet of his father and sister; and pass to that which followed, when a justice of the peace, acting in the place of a coroner, assembled a jury of inquest around the bloody couch, to determine from the melancholy story of the dead, the fatal responsibility of the living. The official was a personage who exercised, along with the duties of a magistrate, the equally dignified functions of mine host of the Green Tree Tavern; and was, indeed, no less a man than that rival of Elsie Bell, whose formidable opposition, many years before, had completed the downfall of the Traveller's Rest. He was now a man of substance, portly in person, and inflated by the dignity of office into a certain dignity of manner; his step was like the roll of a ship, and when he breathed, it was with a forcible and majestic expiration of breath, like the snort of a war-horse. He had been noticed, as he advanced in the world, for the independence,—or, to speak more strictly, the tyranny with which he conducted himself among his guests; not, indeed, that he ever beat, or even committed them, as, in virtue of his office, he might have done; but because, as he said, he heartily 'despised peing pottered mit 'em.' He was not austere or quarrelsome of disposition, but he was a lover of his ease in his inn; and his despotism was shown less in violent opposition than in contemptuous indifference of all humours save his own. He abhorred all fault-finding, but as he equally detested the trouble of reprehending it, he devised a scheme by which discontent was either nipped in the bud, or severely reproved as soon as made manifest, and all without any labour on his own part. He caused to be painted on his sign-board, having daubed off the green tree to make room for it, the following cabalistic legend,—

Der ist glücklich, welcher zufrieden ist.

which he was accustomed to translate, *viva voce*, to all incapable of understanding it, in a quaternion as remarkable for its expressive simplicity

as for its philosophic comprehensiveness:

He vich is vise
Neffe grumples nor cries;
He vich is neither vise nor ciffil
May go to the diffil.

This,—that is to say, the original morceau,—as he justly conceived, contained a standing answer for all grumblers, and by being in such a conspicuous situation, served as a warning to them beforehand; while, at the same time, if a guest chanced to forget its existence, it only needed the philosophic Schlachtenschlager (for that was the dignitary's name,) to point to it with his finger, and demand, 'Fat does that mean?' to bring him to reason. At all events, his translation was always at hand, in case of extremity, and was of such supreme efficacy in laying all evil spirits by the heels, that he used to declare with triumph, 'It fas neffer needs to say it twice.'

Such was the functionary who now introduced his assistants into the chamber of death, exulting in his own importance and his success in completing the number against all the difficulties resulting from the confusion into which the county had been thrown by the second appearance of the refugees.

"I do afer, on my faith, gentlemen," he said, wiping his brows, as he entered, "I had more trouple making you up than is goodt for nothing. As for that Jake Sheeps fat run afay, I fill commit him, the fillain."

"Ay, Squire, when you catch him," said one of the party, who, although as coarse in appearance as the others, (all being, save himself, ordinary farmers and ignoramuses, such as could be picked up in a hurry,) but who soon proved himself possessed of more brain than all the others together,—"when you catch him, Squire. But harkee, Schlachtenschlager; concerning this forcing *me* on a jury of inquest,—'tis a sort of a breach of privilege. As an attorney at law, I should be considered exempt; for if there's no statute for exemption, why there's custom, my old boy, and I'll mulct you in damages. Botheration, Squire, you should know enough law to steer clear of a lawyer."

"T'at for your law!" said the magistrate, "and your lawyer too: I knows my pusiness. And if you grumples and calls me 'old poy,' it vill pe vorse for you; for old poy means the tyfel, and if you calls me tyfel, mine friend Affidavy"——

"Tush," said the lawyer, "it means no such thing. But as you have nabbed me, why make haste with this stupid business, and be done. Look at the body, guess your guess out, and let me be gone."

"He vich is vise,"—

muttered the justice; but was interrupted by Mr. Affidavy crying, bluffly,

"The devil take your verses. Come, let's to business. Now, Squire, you 'know your business,'—you never, I reckon, held an inquest before in your life;—how do you begin?"

"How do I pegin?" said the official, scratching his head; "fy, I reckons, ve must have a talk apout it, and then say, the man vas murdtered."

"The deuce you must? Why that's prejudging the case altogether. How do you know the man was murdered? where's your witnesses?"

"Vitnesses!" said Schlachtenschlager; "fy, I reckons the case is clear enough mitout 'em."

"Ah, I thought you'd say so," cried the other; "but that won't do. Where's the murderer?"

"Vy, I committed him."

"Where's the prisoner, Dancy Parkins?"

"Vy, I committed him along mit the other."

"Where's the informant, that vagabond—(I reckon, he'll be a witness for the Commonwealth)—that stripe-coat fellow, Stirk—Stick,—no,—Sterling's his name?"

"Vy, I committed him, too."

"The devil you did? Well, where are the officers, the soldiers, the volunteers, and all the rest that were present?"

"Vy, chasing the refugees, to pe sure."

"Well, so I thought. Now, I'll tell you what you'll have to do: just send off as fast as you can for that fellow Sterling, and Dancy, and half a dozen others, and adjourn till they come; which will give me time to run down to the Traveller's Rest, and administer on old Elsie Bell's estate, or see what there is to administer on."

"Administer on old Elsie? fat the tyfel! is the old fitch teadt?"

"As dead as a herring," said Affidavy; "and there's another job for you. They say, some one told her, the defunct here, Colonel Falconer's son, was shot by young Gilbert; and the harridan screeched, and fell dead with fright."

"Mine soul!" said the justice, "they're all tying. There's the Captain's daughter here,—they say she's tying too. I vant to take her teposition; but Dr. Muller says she can n'ither speak nor hear."

"Well," said the attorney, "you see there's nothing to be done here at present. So, adjourn's the word, and down to hold an inquest on old Elsie. She has been looking up in the world lately, and they say she'll leave something. I intend therefore to administer, or see about it—and by the way, Squire, we may discover something there in relation to the murderer. He lived in her house; and, there's no doubt, the tories made it a place of rendezvous. We can come up here and finish afterwards."

"Fell, I don't know," said Schlachtenschlager; "it's all vone, except for the trouple of going and coming. But fere's Jake Musser?" he added, in sudden alarm; "I declare ve're not all here!—Fy, Jake, fere have you peen?" he continued, as the individual, whose absence he had just discovered, entered the apartment.

"Vy, at Elsie Pell's;—I stopped a moment to get a trink; but old Elsie vas sick, and the plack girl vas in a fear, and"——

"Sick!" cried Affidavy, "a'n't the old goose dead? 'Pshaw! why then we'll go on with the inquest, and say no more about it. I thought there was a job there for somebody; but, it seems, it is only for the doctor. Well, Squire, are you ready?"

"Yes," said the official; "but now, Mr. Affidavy, fat shall we do for witnesses?"

"Tush," said the man of law, "that's neither here nor there."

"Fy, you said, it wouldn't do mitout 'em!"

"Oh, that's according to circumstances, and here we have circumstances enough to hang the whole county."

"Fell, then," said the magistrate, "we'll pring it in a case of murder. Are you all agreedt? Fat says you, Peter Pork?"

"Why, I dunna," said Peter, "but I reckon so."

"Fat says you, Thomas Pork?"

"Why, I dunna; but I go with Peter."

"Fat says you, Jacob Musser?"

"Fy, the same: but I reckon the Captain mought send us up something to dtrink.—It's a very pretty pody."

"Never mind the pody, Jacob. Fat says you, Jack Darpy?"

"Why, I'm no so clear in the matter;—I'm ag'in' all hanging."

"Fy, that's none on your pusiness," said the magistrate, assuming an air of dignity; "for you see, John, the coroner's jury is not the hanging jury."

"Well, Squire," said the nonconformist, "I reckon I know that as well as any body. But, you see, I've had a talk with the quakers on this matter, and I'm coming to think it's ag'in' the law of scriptur' to bring a man to the gallows. And you see, the matter all rests on our shoulders; for if we say murder for our 'quest, why then the grand jury sings the same song for their indictment, and the petty jury just follows suit. It's just like sticking three bricks on an end; if you kick one, why down goes the second, and clack goes t'other. And moresomover, what Squire Affidavy says I stick to: I don't know the man's murdered, not an iota, without some one to swear on black and white."

"Fy, take a look at him, John," said the Squire in a heat; "he's deadt, a'n't he? and he has a pig hole in his neck, ha'n't he? and fat more fould you haff? You're always preeding trouble, John Darpy!"

"Well, I dunna," said John; "the man mought ha' shot himself; for they say he was a peeler at the bottle, for such a young un; and when folks drinks, there's no saying what'll come of it: it's just as much as saying, 'Clear the course, here goes for the devil!—Squire Affidavy, what do you say to that?"

"Hem"—replied the man of law, looking at his elbows, which were somewhat of the whitest, with an attempt at humour, that faded in a moment before a look of sullenness and anger, "I say, that you're a fool, though you stumble upon wisdom now and then by accident. But none of your sly winks and blinks: we all know you have not brain enough for drinking. But stop; we've carried this joke far enough, and the fun is over. Send down stairs for the girl Phoebe Jones: she was on the ground when the shot was fired, and we must take her testimony."

"Fy, now I remember, so she fas," muttered the magistrate; but added, with a sigh like the sough of north-wester, "Put it is a great trouple to swear a voman."

The testimony of Phoebe was, however, by no means so satisfactory as was expected. It is true, she professed herself able to swear that Mr. Hunter Hiram Gilbert shot Mr. Falconer; but it soon appeared she was as ready to swear he had shot herself, and some dozen other unfortunate persons into the bargain. In truth, the dreadful conclusion of an adventure which she had been brought, at one moment, almost to consider an innocent and agreeable

frolic,—the condition of her mistress, from whose bed-side she had been summoned,—and the spectacle of the ghastly corse of the bridegroom before her eyes, more than half turned her brain. She answered therefore by yea and nay, and just as the question indicated the reply; until Mr. Affidavy, a man of some little tact in his profession, although low and debauched habits had ruined his prospects and reputation together, thought fit to interfere, and by a little management, made it obvious, even to the dull brain of Schlachtenschlager, that the girl, although an actor in the tragedy, knew no more of its details from her own observation, than they themselves.

They were relieved from their dilemma, however, by the sudden appearance of lieutenant Brooks, who delivered a brief and clear account of the catastrophe, as far as he had witnessed it himself; and his testimony left it no longer to be doubted that the unfortunate defunct had fallen in consequence of a pistol-shot fired from a weapon in the hands of Hyland Gilbert. He produced the instrument, which, as well as the pistol discharged by the deceased, he had picked from the ground, and now delivered, along with their fellows, and a pair taken from Sterling, to the magistrate, averring that they were in the condition in which he had found them.

"A very pretty pistol," said the official; "but how is this Mr. Lieutenant? did the young fellow fire them all?"

The soldier stared his honour in the face, and smiled; but his eye fell on the body of his friend, and the flash of humour faded into clouds.

"This weapon," said he, touching one, "I presume to be that by which Mr. Falconer was slain. It was picked from the ground by Mr. Gilbert's side; the fellow to it, was found in the holsters attached to Gilbert's saddle. This," he added, pointing to another, "belonged to my unfortunate friend, and was that with which he shot at the prisoner."

"Fat!" cried the official, "did *he* shoot, too?"

"Undoubtedly: I plainly distinguished two explosions, the one immediately after the other."

"Fy then, mine Gott!" said Schlachtenschlager, looking round upon his assistants with an air of unutterable sagacity, "this, mine friends, does ferry much alter the case. It vas not murder, but a fight. Who fires the pistol first?"

"Sir, that is impossible to say. But allow me to suggest a doubt whether that is necessary to be inquired into. With deference, I should suppose the object of this inquest would be simply to determine who shot the pistol that killed the deceased; leaving all other questions to be determined by other tribunals."

"Pshaw!" said Affidavy, who seemed to derive no little private amusement from the ignorance of the magistrate, when suffered to run its own course; "you have spoiled the sport. The young gentleman is, however, right, Squire, and"—

"Holdt your tongue, Mr. Affidafy, and let me mindt mine own pusiness," said the magistrate, in some wrath; "sure I know fat I am about! And hark ye, Mr. Witness, you are a very goodt young man, and an officer, and a gentleman; put you must not tell me fat I am to do, nor fat I am not to do."

"Surely not," replied the witness; "I will not be so presumptuous."

"Right; you are a very goodt young man, and an officer, and a gentleman; and you have very goodt sense.—Fat do you think I must say in this case? for, mine Gott, it puzzles me! Mine own opinion is, that somepody shot this young man."

"It cannot be doubted, sir."

"And that that somepody fas him fat shot the pistol fat fas *not* shot by the young man fat fas shot."

"Very true, sir."

"Ferry fell, sir," continued the official, with dignity; "now show me the man, and you shall hear fat I have to say for mine inquest in no time."

"The man you speak of is by this time lodged in the county prison under a warrant issued by yourself. There were two pistols discharged, one by the deceased, the other, as I can swear to the best of my belief, by the prisoner; and I can bear witness in like manner, that my unfortunate friend owes his death to the pistol discharged by the prisoner."

"Fy then, the case is clear enough, and I vonder you couldn't say so much before. Do you swear to all this?"

"I do."

"Fell now, come;—fat fas the reason of all this running afay, and murdering?"

"That, I beg leave to suggest, is a question entirely irrelevant."

"Is it? Fell then, fy don't you answer it?"

"Pshaw!" mumbled Affidavy, who was perhaps wearying of a sport he did not himself direct. "Squire, you may discharge the witness: we have laid our heads together and agreed upon a finding."

"Fat! mitout me?"

"Certainly. You don't think *you* are to make the verdict?—The witness will be pleased to retire," he added, and the lieutenant, looking once more on the dead, immediately withdrew.

"We find, Squire," the attorney went on, "that the deceased came to his death in consequence of a pistol-bullet shot into his neck by Hyland Gilbert, otherwise called Herman Hunter. If you want to be learned about jugulars, carotids, parotids, and so on, we will call in Dr. Muller, and have him examine the wound."

"Fy, I don't know any thing about them things; put I don't see that you say any thing apout murder?"

"Not a word: as you said yourself to Jack Darby here, the coroner's jury is not the hanging jury."

"Fell now, the matter's finished, and I am ferry glad. I suppose it is all right?"

"Entirely—the young Hawk is as dead as a chicken."

"It is a clear case then, Mr. Affidavy," said the dignitary, with a long and tempestuous breath, indicating the satisfaction he felt at being released from labours so overpowering, "they fill hang the young fillain?"

"Why that depends upon circumstances, Squire."

"Oh the tyfel! it is all 'upon circumstances' mit a lawyer?"

"It is a good case on either side," said Affidavy; "and not so bad on the prisoner's as might be supposed,—that is, if he had but money to make it an object to take up his cause."

"Mine Gott, he has money! There fas his fatch; 'twas goldt, and worth forty pound."

"Eh! indeed? has he a gold watch?"

"And there fas a purse of guineas"——

"Of guineas!"

"And there fas a—fat you call it?—a pill of exchange on New York, and a letter of credit,—mine Gott, it fas mitout limit, except time; put I toubt me, it fas not goodt."

"Botheration!" cried the man of law, in a fervour, "who'll lend me a horse to ride to town? I remember now, there was a story that the youngest son of the Gilberts had a rich aunt in Jamaica."

"Fell, if he had?"

"Why then, I'll certainly volunteer him the aid of my professional skill; and, murder or no murder, I'll bring him off."

"You don't say so, Mr. Affidavy?"

"Botheration, I do. A letter of credit without limit? Who has it? did you save it?"

"No; I gave it pack to him; put I took an inventory of all in his pockets."

"Well, Squire, you're an honour to the profession. Lend me a horse."

"Fy, if I had you put down to the Creen Tree, and you fould promise to keep soper"——

"Tush, I will. But let's be off, and in a hurry. You are a merciful man, Squire Schlachtenschlager—It is a pity this poor friendless young fellow should be hanged for nothing."

"That is, mitout paying nothing to the lawyer? Ho, ho!——Put it toesn't do to laugh by a teadt pody, fen his fader, and moder, and all his friends is feeeping and crying. Fat is to pe done mit these Hawks? Can't nopody catch pig Oran? I fill give one pound of mine own money for refard; for, I do afer, he toes give me much trouple. Fell, gentlemen, all is right. Now fill ve all go to the Creen Tree, and ve shall have some prandy to dtrink. Fere is some pody to light mine pipe? A fery padt piece of pusiness, and fery pottersome. I vonder fere they fill pury the young man? Fell, gentlemen, let us pegone."

CHAPTER XII.

Your mountain Sack, your Frontignac,
Tokay, and twenty more, sir,
Your Sherry and Perry, that make men merry,
Are deities I adore, sir;
And well may Port
Our praise extort,

When from his palace forth he comes,
And glucks and gurgles, fumes and foams.
Gluck, gluck,
Hickup, gurgle and gluck.

OLD SONG.

If one were to judge the traits of the vulgar from the indulgence they exhibit towards certain vices, or certain instances of their occurrence, it would be easy to show that man is, at bottom, a good-natured animal. It is certain that he betrays an extraordinary leniency in the case of a vice which all unite, in the abstract, to condemn; and that many men derive an importance from the sacrifice of reputation and mind to the Imp of the Bottle, which they might have failed to purchase by a life of wisdom and sobriety. It is not uncommon to find, in some rural districts, men of gross and degraded habits, whom a rational creature would spurn from him with contempt, and who are indeed the butts of ridicule or objects of commiseration, even among their own immediate neighbours; but who, strange to say, are regarded with a species of admiration, growing directly out of their profligacy. Such, we are sorry to say, are some of the rustic professors of law and physic, who, possessing a little talent, but no industry, prefer whiling the period of probationary idleness at the door, or in the bar-room, of the village tavern, to devoting it in the closet to that labour which is the only stepping-stone to distinction and fortune; and thus contracting a love for something more than idleness, and slipping, little by little, towards the bottom of the hill, are seen at last, downdraughts, with swollen visages and seedy garments, mingling among the coarse and base, themselves perhaps the coarsest and basest. You will see such a man giped and laughed at by the lowest of his companions, as something that even they can despise; for whatever may be the hatred with which the humble regard the more lofty, they are the first to appreciate the degradation of a downfall; but the next moment you will hear them talk of him with praise. Is it 'the poor doctor at the Cross-Roads?' 'Oh, he is a ruined man, to be sure, and a sot; but he cures, when another man fails; somewhat dangerous now and then, when too "far in for it," but a marvellous hand at "rheumatisms and the fever."' Is it 'crusty Ned Jones, the lawyer?' 'Drinks like a fish, but with more sharp stuff in his brain than all the bar beside; a devil of a fellow to corner a

witness, break a will, pick a flaw in an indictment, and set a jury a-sobbing: great pity he drinks,—but he's a tremendous orator, and all the better for a glass or two, in a hard case.' We have heard of a lawyer, a lover of his glass, who reformed his habits, and lost his practice.

The worthy Affidavy, who played so prominent a part in the jury of inquest, was one of this unfortunate class of beings, although he had commenced the world with as fair prospects as could be derived from a moderate share of talent, and some native energy of character, and was yet in the prime of his years. He had sunk into poverty and neglect, was any man's fellow, and every man's scorn; yet the lower he sunk, the loftier became men's opinions of his natural parts and his professional knowledge; and Squire Schlachtenschlager was wont to say, 'he pelieved Affidafy mate petter speeches now than he tidt afore, fen he fas a soper man.' While such generous opinions prevailed, the lawyer had still 'something to do' in the way of his profession; but the sad condition of his outward man showed that this was far from being profitable. Indeed, if the truth must be told, his admirers, though of humours sufficiently litigious, were oftener inclined to employ than able to pay; and those of better estates, however they marvelled at the sagacity, and applauded the speeches of the man of buckram, were rather shy of applying to him for assistance, until they felt their cases to be growing desperate. The consequence of this state of things was, that Mr. Theophilus Affidavy was compelled to resort to many shifts to obtain a subsistence, that added little to his reputation; and would indeed have been hooted from the county, had he not been protected by the armour of imputed genius, which his habits seemed to fasten around him.

The account he received of the wealth of the unfortunate Hyland produced a strong effect upon his acquisitive propensities; and he saw at a glance, that if his counsel could be of no benefit to the prisoner, it might undoubtedly be of some to himself. "He is a Hawk of the Hollow," he muttered to himself, "and so every one will be against him. Good! There will be much apparent merit therefore in undertaking his defence. His case is bad,—awful bad—better! To volunteer in such a case, will infer at once the possession of extraordinary skill, worthy of extraordinary reward. He has money—excellent! But, botheration, the other Jack-brains will find that out, and dive at him before me. Must have Schlachtenschlager's horse, if I have to steal

him—nobody else will lend me one. An old ass; but can twist him round my thumb as easily as a tape of tobacco."

Such were the reflections of the attorney, as with his brother jurors, one of whom had given him a seat in his little Jersey wagon, he followed Schlachtenschlager, to share the feast this worthy had prepared for his associates at the Green Tree.

The soliloquy of the lawyer seemed to infer a doubt of the performance of the promise Schlachtenschlager had so generously made of lending him a horse. This doubt was engendered by a sudden change in the sky, which, from having been perfectly clear and placid, suddenly began to be covered with clouds, and these of an appearance so gloomy and menacing that full half the jurors became alarmed, and, excusing themselves from accepting the proffered hospitality, hurried to their homes, leaving the revels to be shared by those who dwelt in the Squire's immediate neighbourhood. The attorney, wonderful to be said, had as strong an impulse to be gone as others, although fully sensible of the excellence of the magistrate's potables, and of the painful sacrifice he should make in tearing himself away; but on the other hand, he perceived that a violent thunderstorm was brewing, and he knew the Squire to be a prudent man, who loved his beast as he loved his wife, and indeed a great deal better, and would be loath to lend him after the storm had once set in. For this reason, as soon as he had reached the inn, he reminded the Squire of his promise, swore he would drink but a single glass, and then be off, without waiting for the rain.

The Squire scratched his head, and replied,

"Vy, Mr. Affidafy, I don't know. The veather vill be padt, and I don't like it: it vill pe padt on the horse. So, Affidafy, ve vill wait a little and see; and, pesides, my poy," added the dignitary, clapping him on the shoulder, as if to atone by condescension for the disappointment he inflicted, "ve fill not forget the dtrinking, and the jolly-making. Py mine heart, my poy, ve fill have petter fun for you than trampling about in the rain mit a stumbling horse. Fat, man, fy we're all Deutschers put you! Here's Jake Musser, and Hans Fackeltrager, and Alberick Klappermuehle, and Franz Beschwerlich, and Simson Kleiber, and mineself; and then there's you. Mine Gott, ve fill be jolly; for I will proach a parrel of Nierensteiner,—mine soul! it is as

goodt as any in the whole Rheingau! and I do keep it for mineself. And ve fill dtrink and ve fill sing, as if ve fas all in the Rheingau itself; for my voman, Gott pless her, she is cone to the fillage, and the poys is out a looking after the ploodty Hawks. Aha, Affidafy, my poy! you shall see fat it is to dtrink Rhine wine, mit six goodt Deutschers to help you. Fat do you say, poys? can you sing the Rheinweinlied in a t'under-storm? Aha, you see, Affidafy! Fell, if ve are few, vy ve fill be merry."

It was in vain to pursue his desire, at such a moment; and indeed the attorney's blood tingled with joy at the thought of the flowing bowls, offered in such an oration. "Very well, you old fool," he muttered to himself, "I will drink till your cursed sour old cider trash, that you call Rhine wine, has opened your heart; and then, botheration, I will bubble you out of the best horse in your stable. Well, it is well it's no worse: it *will* rain, and that cats and dogs."

The indications of the weather were not falsified by the event. In less than half an hour after all were safely housed, the heavens were covered with pitchy clouds, from which were discharged dazzling thunderbolts. Then came a terrific blast of wind, rending boughs from the trees, and making the chimneys rock on the housetop; and this again was followed by a furious driving rain, falling in such torrents as promised in a few hours to swell the smallest brooks into impassable rivers. This continued until nightfall, and was then only terminated to be succeeded by deceitful intervals of calm, broken in upon, even when least expected, by violent gusts of wind and rain.

It is not our design to pursue the conversation, nor to describe the revels of the six Deutschers and their American companion, under the roof of the Herr Schlachtenschlager. Secure from the tempest, they defied its rage, and made even the roar of the thunder and the splash of the rain contribute to their enjoyment. Armstrong has described, in a few lines that find a responsive chord in every bosom, the luxurious addition to the comfort of a warm bed, produced by the tumult of a midnight tempest:

"Oh! when the growling winds contend, and all
The sounding forest fluctuates in the storm,
To sink in warm repose, and hear the din

Howl o'er the steady battlements, delights
Beyond the luxury of vulgar sleep."

The same cause is said by those who are philosophic in such matters, to add peculiar zest to the hissing of the tea-kettle, and the rattle of the punch-bowl. Perhaps, then, it was the violence of the storm, rather than the excellence of the liquor, which betrayed the worthy Schlachtenschlager and his guests into a degree of conviviality somewhat inconsistent with the melancholy duties they had just rendered to the commonwealth and the dead. But whatever was the cause, it is very certain they forgot the dead and the commonwealth together, and by nightfall were seven of the happiest men in all the rebellious colonies of America. By that time Affidavy was as glorified in his spirit as the rest; and suddenly starting up in the midst of a crashing peal of thunder, he hiccuped, and then roared,

"Success to the Rhine wine, sweet or sour! and the devil take him that won't sing its praises as loudly as e'er a rascal of the Rheingau itself! So up, you German pigs, and let's sing! up, you Hanz, Franz, Alberick, Jake, and Simson! up, you old rogue Schlachtenschlager, for you can sing like a cherubim! and up, you jolly dog, Teff Affidavy, who is up already, and can sing as well as the best! join hands, bring flowers, crown the cup, and sing the Rheinweinlied like seven angels—the Rheinweinlied, you hard-headed, jolly dogs, in broad Deutsch! and after that, we'll sing it in my own translation, botheration, which is better than the original, for all that ass, Jingleum, says *he* made it. Are you ready?"

"Ready!" responded the happy six; and in an instant every man was singing, at the top of his voice, the famous Rheinweinlied—a song of such noble and heart-stirring capacity, at least so far as the music is concerned, that if it be objected to it, that it has sometimes set a singer beside himself, it may be wondered how any one can hear it and keep sober at all. The winds blew, the rain fell, and the lightning flashed, while this jolly company rose round the table, and sang in concert the praises of old father Rhine.

THE RHEINWEINLIED.

I.

Bekränzt mit Laub den lieben vollen Becher,
Und trinkt ihn fröhlich leer.
In ganz Europa, Ihr Herren Zecher!
Ist solch ein Wein nicht mehr.

II.

Ihn bringt das Vaterland ans seiner Fülle:
Wie wär er sonst so gut?
Wie wär er sonst so edel, wäre stille
Un doch voll Krafft und Muth?

III.

Am Rhein, am Rhein, da wachsen unsre Reben;
Gesegnet sei der Rhein!
Da wachsen sie am ufer hin, und geben
Uns diesen Labewein.

IV.

So trinkt ihn denn, und lasst uns alle Wege
Uns freum und fröhlich seyn!
Und wüsster wir wo iemand traurig läge,
Wir gäben ihm den Wein.

"Bravo! bravissimo! bravississimo!" cried Affidavy. "Here's to you, you dogs—'*Ihr Herren Zecher!*' And now for *my* paraphrase. All you that don't know it, why you may sing the German lingo over again: the two will go very well together."

So saying, he burst forth on the following *rifacimento* of the original; the others, in general, holding fast to their own more sonorous expressions; the

effect of which Babel-like intermixture of languages was to increase the noise, if it did not add to the spirit of the author.

I.

The right Rhine wine!
We'll crown the cup with roses,
And quaff about, and laugh about,
Till all eyes wink!
Such joys divine
Sure mother Nature owes us:
So laugh about, and quaff about,—
Come, drink, boys, drink!

II.

Our Father-land!
'Tis that the vine produces:
How else should be this jolly wine
So good, so good?
Long as we stand,
We'll put it to its uses:
So laugh about, and quaff about,
As true souls should!

III.

Oh Rhine! old Rhine,
With milk and honey flowing!
There grows the tree so well love we,
The Vine, the Vine!
There clusters shine
On branches ever growing:
So laugh about, and quaff about
The good Rhine wine!

IV.

Come, drink, ha! ha!
And, sure, we'll all be merry;
Come, drink, ha, ha! come, laugh, ha, ha!
Oh! ha, ha, ha!
As full are we
As e'er a Rhine-wine berry:
So laugh about, and quaff about,—
Oh! ha, ha, ha!

It may be supposed that Affidavy had long since, in the joy of revelry, discharged from his mind all memory of the case which had so inflamed his fancy, and was content to leave it to be snapped up by a more fortunate rival. How far this was from the truth may be inferred from a phenomenon that presented itself about an hour after nightfall, at which period he appeared on the porch, followed by Schlachtenschlager and the rest, all singing with as much zeal as before, but vastly out of time and tune. A saddled horse stood at the door, on whose back some assisted the attorney to clamber, while others were seen holding by railing and pillar, and venting much good counsel with a deal of bad music. The Squire himself stood embracing a pillar, now poking forth his bare noddle to the drops trickling from the porch-roof, and now withdrawing it, to utter divers 'teufels!' and 'donners!' as the cold element profaned his visage of dignity, yet still maintaining his stand, and expatiating on the merit of the service he was rendering his guest.

"You see, Affidafy, man," he cried, "I'm a goodt-natured fellow: put there's my horse, my pest horse, and it's a padt night; and, Affidafy, man, you're as dtrunk as a chudge, poor man. But ho, ho! that's no matter, for ve're all so:

'As full are ve
As ever vas a Rhine-fine perry:'

Very goodt that, Affidafy!—Fell, ve're all mortal sinners; and, mine Gott, there is but little left in mine parrel, and Nierensteiner costs money. Fell! goodt pye, Affidafy, my poy, goodt night. Take goodt care of the horse, for

he's my pest horse, Affidavy, for I'm a goodt-natured fellow as ever it vas. Goodt night, Affidavy!"——And "Goodt night, Affidavy!" muttered all, as the attorney, fetching a desperate reel in the saddle, waved a graceful adieu, and turned to depart. Instead of replying, however, to the farewell, he burst out again with

"The right Rhine wine!"

and the others obeying the invitation, again opened their lips, and chanted *Bekränzt mit Laub*, till he was out of sight. Then they staggered back into the house, to continue their orgies; where we will leave them, to follow the course of the attorney.

CHAPTER XIII.

If thou beest a man, show thyself in thy likeness: if thou beest a devil, take 't as thou list.

TEMPEST.

The violence of the storm was over, but the ferment in the elements was not yet allayed. The clouds had broken, and ever and anon, through their ragged gaps, the eye might trace fields of blue sky, studded with stars, which were as suddenly swept out of sight, as gusts came roaring from the tops of distant hills, discharging brief but furious showers.

On such occasions, it was not easy to pick a way along the road, which was washed into gullies and scattered over with the riven branches of trees, besides being, in the hollow places, converted into pools; so that it might have been considered difficult to proceed, even by the light of day.

It was fortunate, perhaps, for Affidavy, that he was in no condition to be daunted, either by difficulties or dangers, of which, indeed, it is most

probable he remained profoundly unconscious, from the beginning of his ride to the end. He set forth on his dark journey, trolling at the top of his voice some snatches of the jolly chorus, in which he had borne no mean part, and plying his heels about the ribs of his horse in such a way as to drum out a kind of barrel-head accompaniment, as agreeable to himself as it was perhaps advantageous to the animal;—for this, instead of being Schlachtenschlager's best horse, as he had said, was a drowsy, lazy, pacific, and somewhat worthless beast, which the Squire's man, supposing that any one might serve the lawyer's turn on such an occasion, had considerably substituted for the better one which his master really designed to provide. On this animal, then, Affidavy departed, bidding defiance to storm and peril, and singing as he went. Sometimes, however, he launched into harangues, as if declaiming before a court and jury, especially when, as was sometimes the case, the beast he bestrode took advantage of his abstraction, to pause before some gully or pool of water, and even, now and then, to stand stock-still in the middle of the road, where there was no obstruction whatever. Nay, he once or twice, relying upon the indifference of his rider, took the liberty of turning his head, and jogging backwards; and how the manoeuvre was detected and counteracted by one in Affidavy's happy condition, we are wholly unable to say. But counteracted it was, and by midnight,—that is to say, after a ride of three hours, the attorney found that his steed had borne him the full distance of two and a half miles from his master's house; at which rate of travel, it was quite evident, he might expect to reach the village, perhaps three or four miles further, some time before noon of the following day. At midnight, however, the horse was brought to a stand by an unforeseen difficulty. It was in a hollow place or glen, thickly wooded, that was crossed by the road at right angles; at the bottom of it flowed a water-course, small and shallow on all ordinary occasions, but which the violent rains, assisted by certain accidental obstructions, had now swelled into a broad and formidable pool. The trunks and branches of trees, swept down by the earlier wash of the flood, and lodged among rocks and the standing stems of other trees on the lower side of the road, had made a sort of dam, through which the waters could not escape so rapidly as they collected; and, in consequence, they had swelled so high, as to be already heard falling over it like a cataract.

When Affidavy arrived at the brink of this flood, his steed came to a sudden halt, of which the rider took no notice for a considerable time, his mind being wrapped up in the remembrance of the joyous potations from which nothing on earth, save the prospect of a good case, could have drawn him, and his ears still tingling with the uproar of the Rheinweinlied. This he trolled over with great fervour, and in the midst of it, plying his heels as usual, the horse, after one or two snorts by way of remonstrance, took heart of grace, and crept into the water.

"Botheration," cried the attorney, as he felt the cold element sweeping over his legs, "will it never have done raining? H—h—hip, Durgan.—Gentlemen of the jury, I appeal, not to your hearts, for I disdain taking advantage of,—of your weakness,—nor to your heads, for—for—who the devil ever supposed a jurymen had one?—Botheration, it rains cats and dogs all round, and my legs are growing marvellous cold. That old Schlachtenschlager! he, he! a great old ass, and his Nierensteiner nothing but sour old crab-cider.—A gold watch worth forty pounds,—a purse of guineas—bills of exchange—long credits.—Dispute the jurisdiction of the court—Hillo! what's all that smashing in the court? I insist upon order—Who says I am out of order? Drunk! I despise the thing! Hillo, Schlachtenschlager! what's the matter? Never mind the rain—strike up: let it blow its worst,—strike up, old boy.

'Come, drink, ha, ha!

And, sure, we'll all be merry;

Come, drink, ha, ha! come laugh, ha, ha!—

Botheration!"——

In the midst of the attorney's song, and just when he had reached the middle of the pool, there happened a catastrophe, which might have frightened any other man out of his propriety. This was nothing less than the sudden giving way of the dam of logs, the disruption of which was followed by the escape of the whole accumulated body of waters, and that with a fury that nothing could resist. In an instant the attorney was swept from his horse, soused head over ears in the flood, and would have been drowned had he not been luckily dashed into the crotch of a low and twisted buttonwood, and there left astride a horizontal bough, by the retreating waters. The whole thing was effected in a trice, indeed with such magical celerity, that he failed to

notice the main point of the casualty, which was the loss of his horse; and supposing himself still at ease in the saddle, he plied his heels with their accustomed vigour against the regardless trunk, wondering somewhat at the immobility of his charger, and the rush of the current at his feet.

"Botheration," he cried; "hip, Durgan, get up; dzick! dzick! That's a fine fellow! Will it never be done raining?"

'Come, drink, ha, ha! come laugh, ha, ha!

Oh, ha!'——

Hip, horsey, hip!" And thus he went on, now spurring the timber flanks of his charger, and now trolling forth the drunken chorus, in the midst of the stream, where he would perhaps have remained until morning, or until sleep had caused him to relax his hold, had not his extraordinary outcries reached the ears of a traveller, who rode to his assistance, the water being already reduced to its ordinary level, and finding him incapable of helping himself, pulled him from his seat, and dragged him to the other side of the stream.

"Botheration, what's the matter?" cried the attorney, who seemed to recover his senses a little, upon finding himself on his feet; "where's Durgan? Sure, o' my life, I did'nt come here on foot! Odds bodikins! where's Schlachtenschlager?—Hillo, there! botheration, you sir! what are you doing with my horse?"

"*Your* horse!" exclaimed the traveller. "Are you drunk yet?"

"Drunk! I defy the insinuation," cried Affidavy, "and demand protection of the court.—Down, you rogue, or I'll indict you for horse-thieving. A pretty prank to play upon an honest man, riding for life and death! Botheration, Sir Sauce-box, whoever you are, give me my horse, or I shall lose the best case was ever entrusted to a lawyer—a gold watch worth forty pounds—bills of exchange—letters of credit—and a purse of guineas!"

"Now were you not drunk," said the traveller, "and more of a beast than the animal that bore you, I could tell you of a case much more to your interest to be engaged in."

"Hah! a case? what sort of a case? Odds bodikins, I'm your man!"

"You are drunken Tef Affidavy?"

"Drunken! That's actionable. Tef! *Tef* Affidavy! Theophilus Affidavy, Esq. —*Esquire*, do you hear?"

"Ay, it is all one. Theophilus Affidavy, sober, might be the man for my money, with twenty guineas to begin upon; but Theophilus Affidavy, drunk"—

"Twenty guineas!" cried the lawyer: "God bless all our souls! twenty guineas for a retaining fee! Why then I'll be Theophilus Affidavy, sober, or Tef Affidavy, drunk, or any thing else that can be wished of man or angel. Out with your money, and state the case."

"Ay,—when you are sober."

"Sober! Twenty guineas would fetch me to, if I had been swimming in Schlachtenschlager's whiskey-barrel for two weeks on a stretch. Botheration, I'll take another dip in the slough there, and come out as clean as a peeled orange. But are you sure that a'n't my horse?"

"Quite; and if your beast belongs to the Squire, you may make your mind easy that he is now safe in his master's stables. I saw a saddled horse on the road, galloping as if a wild-cat was on the back of him."

"Good!" cried the attorney at law; "if I had drowned him, there would have been the devil to pay with old Schlachtenschlager. Hold fast, till I duck the devil out of me." And without waiting to say another word, he ran into the brook, where he began to splash about him with great spirit, the stranger, all the time, sitting by and observing him in silence.

There is, in all cases of drunkenness, a certain degree of voluntary intoxication, as it may be called, in which the mind yields itself a prisoner, before it is entirely overcome by the strength of the enemy. This is evinced by the rapidity with which many good souls, in jovial company, work themselves into frenzy; but still more by the facility with which they shake

it off, when there is any special call for sobriety. In half the instances, even where the conduct is most extravagant, the individual retains a consciousness, more or less perfect, of his absurd acts, is aware that they proceed from a madness partly simulated, and sensible of some power in himself of controlling them, though not easily disposed to the labour of exercising it. We will not pretend to say that Mr. Affidavy, while he sat bestraddling the sycamore, was altogether conscious of his situation; but it is quite certain, he retained so much power of curing his folly, even in that extremity, that a less counter stimulus than the offer of a twenty-guinea fee would have sufficed to bring him to his senses. He frisked about in the water for a few minutes, dipped his head under two or three times, and came out, not entirely sober indeed, but, as he said himself, 'as fit for business as he ever was.'

"If you doubt, stranger, whoever you are," he said, "I'll sing you a song, or—No, hang it, we've had enough of *that*,—I'll make you a speech to court and jury extempore, and right to the point. But come now, jingle your money, and let's begin: or, if it's all one to you, we'll jog back to Schlachtenschlager's and borrow a dry shirt, and so give counsel like a gentleman."

To this proposal the traveller demurred, and requesting the lawyer to follow him, rode up to the brow of the hill, where he dismounted, and suffered his horse to range at will through the bushes, he himself taking a seat on a stone, and inviting Affidavy to do the same.

"A botheration strange fancy this, of yours, certainly," said the lawyer: "are we to sit here, like two stray ducks, and be soaked for nothing?"

"Look over your head," said the stranger: "there is not a cloud left in the heaven. No, not one," he muttered as if to himself; "and come weal or wo, come death or come life, the sun will shine to-morrow as bright as ever."

"Tush, you're right; the storm has given us the go-by," said the lawyer. "But concerning the case, and that twenty-guinea fee——What's your name?"

"Guineas," said the other, rattling a purse apparently well filled with his namesakes, upon the stone.

"Excellent!" said the lawyer; "but that won't do for a jury. Come, sir, your cognomination, compellation, and so forth? your *proprium vocamen*, style and title,—Tom, Dick, or Harry, as the case may be? and then for *the* case! *Quisnam homo est? unde et quo?* No man is drunk who can quote Latin, for it is cursed hard stuff to remember. In the king's lingo, who are you? and what's the case in question?"

"Who I am, we will pass," said the traveller, "that having nothing to do with the case. As for the case itself, I am told, it is one of murder."

"The devil it is!" cried Affidavy. "Why here's hanging work thickening in the county! But what are the circumstances? Who's killed? and who is the killer?"

"The first was a young man, named Henry Falconer,—the second another young man, called Hyland Gilbert"——

"Hah! why, that's *my* case, that I've been labouring after all night! and I assure you——But God bless our two souls!" he added suddenly, springing to his feet as if in alarm, "who are *you* sir? An honest man, sir? I hope, an honest man, sir, and no bloody-minded Hawk, sir! for if you are, sir, I give you warning, sir, if you make an attack upon me, sir, that I carry pistols, sir, and, sir"——

"Peace, fool," said the other, with a stern voice. "Sit down, and fear nothing. If you had twenty pistols, what care I for them?—I," he added, with a laugh both jocose and bitter, "that am armed with twenty—guineas?"

"Right, sir; but if you are a tory, sir—I don't mean to insult you, sir,—but as to aiding and abetting a gentleman of the tory party, sir: why, sir, I am a man of principle, sir, and I must have time to reflect."

"Go to the brook and wallow again: you shall have five minutes to reflect, or rather to sober, for you are not yet in your senses. Why, fool, do you think I will hurt you? or hark! is there a tory bullet in the clink of an English guinea? Come, sit down, and listen. You have nothing to do with tories, save to take their money.—There is one lying in prison in yonder village below, who needs the help of a lawyer. Yourself then, Affidavy, or another."

"Oh, if there be no treason in the matter," said the attorney, "why then——that is, if you will take that cursed tomahawk away, for I dare say you've got one about you, Mr.——that is to say, captain——Zounds, Mr. Oran Gilbert! I know you very well; and I hope you won't murder me, or do me any mischief, if it were even for old times' sake; for we were very good friends in old times."

"Ay," said the refugee; "and for that reason, I have offered you twenty guineas, and employment on a business that may bring you as many——perhaps five times as many more, which any one else will be as happy to accept."

"Botheration, there is no occasion," said Affidavy, creeping timorously back. "I see what it is; I'm not afraid of you, but you have a cursed bad name. I don't agree with you in principles, that is, in politics; but it sha'nt be said, I refused my professional services to an old friend in distress"——

"With twenty guineas in his hand," said the tory.

"Ay; and with as many, or five times as many at the back of them"——

"In case of success."

"Oh, yes, certainly. I understand the case now: your brother, captain"——

"We will drop all titles,—brother, captain, and every one else," said the tory.
"The young man, Hyland Gilbert, is a prisoner."

"Ay; and"——

"Was he hurt?"

"A bruise or so."

"And he shot Henry Falconer?"

"As dead as a herring: I sat on the body myself."

"And he will be tried for that, as for a murder?"

"Ay, faith, and hanged too, unless"——

"Unless *what*?"

"Unless we can prove him innocent, or establish a legal irresponsibility."

"Or snatch him out of his den, some such bright midnight as this?"

"Tush," said the lawyer, waxing in courage, "I have nothing to do with that. But cheer up. There's a way of managing these cases, and I have thought of it already. But concerning that bill of exchange and letter of credit? They say, the young man has money enough—a rich estate in the Islands?"

"Fear not for your reward," said Oran Gilbert. "Do what's expected of you, and you shall have gold enough to content you."

"Here then is the state of the case," said Affidavy: "if the young man be tried in this county, were it but for killing a farmer's dog, he will die. The name—saving your presence—the name of Gilbert will be hanging matter with any jury. But I'll be short—he bears the king's commission, does he not? the commission of a lieutenant among the royal refugees?"

"And what then?"? said Oran.

"Why then, he must dispute the jurisdiction of the civil tribunal, and claim to be considered a prisoner of war. The attack upon the Folly is somewhat of a civil offence, to be sure; but he was taken, as we may say, in battle; and, in battle, he killed the man for whose murder he will be certainly arraigned, if proceedings are not quashed in the beginning. As a commissioned officer of the crown, however"——

"And what if he be *not* a commissioned officer," said the refugee, with a low voice.

"Why then," replied Affidavy, "I have to say, gentlemen of the jury——Pshaw! that is,—hemp seed and a white shirt—you understand me? But with the commission—we will produce that, and then"——

"You shall have it," said the refugee; but added,—*"It will do no good. A court civil or a court martial,—how should a Gilbert look for mercy from either? What turn would the king's commission serve me, if a prisoner? Look you, Affidavy, there are better ways of ending the matter. An hundred guineas are clinking in the bag these came from: it is but the opening of a jail-door to earn it."*

"Ay! are you there, Truepenny?—Sir, I'm a lawyer and a gentleman; and as to aiding and abetting in any jail-breaking—zounds, sir! for what do you take me?"

"For a wiser man than you would have your neighbours believe,—for a man *too* wise to boggle long at a choice betwixt a hundred guineas held in comfort at home, and empty pockets, with hands and heels tied together, in a cave of the mountains."

"God bless our two souls," said Affidavy, "what do you mean?"

"To have your help, or take good care no one else has it," said Oran, laughing. Then, laying his hand upon the lawyer's arm, he added, with the same untimely accompaniment to accents full of sternness, "Look ye, Affidavy, you have heard too much for your own comfort, unless you are ready to hear all. You are a friend, or—a prisoner."

At these words, the lawyer was filled with dismay, and indeed struck dumb. The terror that beset him, when he first conceived with whom he was confronted on the dark and lonely hill, recurred with double violence; he thought of nothing less than being tomahawked and scalped on the spot, and would have taken to his heels without further ceremony, had his strength availed him to shake off the grasp of his companion.

"Fear naught," said Oran, detaining him on his seat, and speaking decisively: "We were old friends once, as you say, Affidavy: I remember, you robbed Elsie Bell's strawberry-patch, when you were a boy, and I thumped you for it. So, fear nothing.—Why, man, am I a snake, or a beast, that I should hurt such a creature as *you*? Know me better."

"Well, I will," said the attorney, still trembling. "But, botheration, sir, this is a strange way of stating a case to a lawyer! As to opening jail-doors, Mr. Oran Gilbert, why I won't oppose: if you were to bribe Bob Lingo, the jailer, why, I say, I'm mum. But what more can you expect? Botheration, sir, I'm no turnkey! I'll be mum, sir; but as to joining you in any such prank, God bless our two souls, why that would ruin me! And why should you think of such a thing? 'Tis needless, sir,—as needless as dangerous. The king's commission is our pillar of safety: with that in his hand, the prisoner can demand, ay, and force his claim to be admitted, to be treated as a prisoner of war; and then, sir, if the matter comes to a court-martial"——

"When it comes to that," said Oran, "what is to save him from being tried and condemned as a spy?"

"What?" said the lawyer; "why a very simple thing. We will hire some one to swear he did not receive the commission until after his flight from Hawk-Hollow: and as for the change of name, intentions, and all that, why we shall have time to coin any lies that may serve our purpose. As to treason, we escape all arraignment there, his domicile being clearly within a foreign jurisdiction."

"In a word," said Oran Gilbert, "and to end your scheme at once, he is *not* a commissioned officer. Fool that he was," continued the brother, bitterly, "he refused, and to the last, the warrant that would have been his best friend."

"Whew!" said Affidavy, "this alters the case with a vengeance. Refused the commission?"

"Ay; and it is now in my own hands."

"Oho, is it? Why then, all's one. We'll clap it into his hands,—fill up the blanks, if it needs, produce it in court, and who is the wiser?"

"You can, at least, try him with it," said the refugee; "but I know what it will end in. You will see him refuse it, even in prison."

"Why then," said Affidavy,—"*Hum, ha*—we won't be particular. Jail-doors *will* open sometimes; and in case of an hundred guineas down on the nail—

(a dangerous business, captain!)—and something more in prospect—(you understand, captain?)—Reputation, captain, reputation! 'T may bring me by the heels, captain.—Another hundred therefore, (say, to be paid at New York; for I don't care if I turn tory along with you, provided I am not set to fighting:) an hundred on the nail, and another at York city, and I don't care if I close with you. And then, we must have fifty or so for Bob Lingo; (no managing such an affair without money.) A deused dull county this, and business all worn out. So, captain, an hundred on the nail, and"——

"It is enough," said the refugee; "you talk now like a man of sense; and here are the twenty for earnest. Let us proceed; I have more to tell you."

Then rising, and whistling to his horse, which obeyed the summons, and followed him with great docility, he led the way with Affidavy along the road, exchanging counsels with this precious limb of the law, on the subject that had drawn him so near to the head quarters of his foes.

CHAPTER XIV.

What foolish boldness brought thee to their mercies,
Whom thou, in terms so bloody, and so dear,
Hast made thine enemies?——
Therefore, by law thou art condemn'd to die.

SHAKSPEARE.

On the following morning, Affidavy presented himself at the prison, and demanded access to his client.

"Client!" said the jailer, with a stare. "Why now, Affidavy, man, (begging your pardon for being familiar,) there's none of your birds roosting in my hen-house."

"A smaller on that, Lingo,—come, what will you lay?" said the man of law, seizing upon the official's hand, and shaking it with great apparent friendship. "Come, stir about, Lingo; clink, clink, stir bolt, clash key, and open. It's long since we've had a crack together; but we'll have a jolly rouse yet. Ah! that knotty old Schlachtenschlager! my head is in a reel yet; must have something to steady my nerves."

"Well, squire," said Lingo, a coarse-featured, shag-headed personage, with a fist like the butt of an oak-tree, and altogether a low and mean look which might have been supposed to sink him below the notice of the attorney, had not Affidavy's habits made him long since a fitting associate for even a meaner man; "Well, squire," he said, with an air as if even he regarded his visiter with some little contempt, "I don't care if I treat you to a drop; though my whiskey's none of the smoothest, neither."

"Curse your whiskey!" said the man of law, pulling a guinea from his pocket. "Do you see this yellow boy, my lad of knuckles? Bothereation upon you, I came here to spend the day with you, and I intend to treat you royally. So, call your boy, Hanschen, and let him fetch me a quart of cognac from old Brauntweinpunsch's, for he keeps the best in all Hillborough. And do you take care of the change for me, and help yourself, if you like, while I am holding counsel with the prisoner."

"Icod," said Lingo, balancing the coin in his hand, "I never stick at a good offer; but I should like to know where this little feller came from. Howsomever, 'tis none of my business; and so Hans shall go. But, who's your client, squire? I'm glad you've got a job, for you're a devil of a feller at a speech,—I always said that for you. Which prisoner do you wish to see?"

"Why, the young Hawk of the Hollow, to be sure."

"Odds bobs, squire," said Lingo, scratching his head, "you're too late for that cock-robin, I'm thinking."

"Too late! He ha'n't broke jail already!" tried the alarmed attorney.

"Broke jail *already*!" echoed Lingo, with a grin. "I dunna what you mean by that; but if he breaks jail at any time, while I'm king of the ring, you may

call me Jack Robinson. No, the matter's not so bad as that: but he sent yesterday for young Pepperel"——

"God bless our two souls!" ejaculated the lawyer.

"And they say," continued Lingo, "he is to have old Timberkin likewise; for, it seems, the youngster has money."

"What! old Long-tongue Timberkin? Zounds, we'll have the whole crow's-nest at the picking! Oons, man, let me in to him."

"Well, I dunna," muttered Lingo, leading the way, however, to the prisoner's cell; "I reckon, 'twere as well to save his money for something else; for it's a clear case with him, eh, squire?" And as he spoke, he made a gesture with his finger around his throat, the meaning of which was not to be mistaken. "Howsomever, here you are. When you're done with him, just knock at the door, and I'll let you out."

The next moment, Affidavy found himself alone with the prisoner. He sat, apparently half stupified, on a low bed, beneath a grated window, from which a silvery light fell upon the crown of his head, his shoulders, his knees, and his hands that were clasped upon them, while his visage, and nearly all his person, were lost in dusky shadow. A little table with food and water was at his side, but both were left apparently untouched. His limbs were unfettered; and this circumstance Affidavy might have referred to the humanity of the jailer, had he not perceived at a glance how unnecessary was such a precaution with one whose bodily powers were as much enfeebled as those of his spirit. Indeed, there was a look of such utter wretchedness about the unfortunate youth as might have softened a harder heart than the jailer's; and even Affidavy began to survey him with a touch of pity. He raised his eyes, when the door was opened, but cast them again on the floor; for indeed there was so little in Affidavy's appearance to excite attention, that he supposed him to be some assistant of the jailer, or perhaps a common officer, come on some errand of duty, with which he would be soon made acquainted. This suspicion was dispelled by the attorney; who no sooner heard the bolt shoot back into the stone door-post, than he advanced, declaring his name and character.

"Affidavy?" muttered the youth, with a dejected voice: "I thought it was Mr. Timberkin, that Mr. Pepperel was to bring me."

"Pshaw, botheration," said the lawyer, "you were a goose to send for such ninnies; we can do better without them. And what can these fellows do for you? Where will you find them riding about of a stormy night, picking up evidence, laying plans, and so on? However, we can find them something to do: I'll sort them; I know what they are fitted for. You stare at me—Very well; I understand what you mean. I come from your friends, sir, and"—

"From my friends?" cried Hyland, starting up, wildly: "from whom? I have no friends here—none, at least, but *one*; and, oh God of heaven! they tell me I have killed her too!"

"Oh, you mean old Elsie," said the attorney: "hang her, (that is, poor old soul!) she's not dead yet."

"But Catherine?—Miss Loring?—Captain Loring's daughter?" cried the youth, with a voice and countenance of despair; "what news of her?"

"Aha! I understand," muttered Affidavy. "But don't be alarmed; there's no death there.—A little fright and grief, sir,—that's all; they never kill one." Hyland clasped his hands, and buried his face between them; and the lawyer continued,—

"Quite a small matter, I assure you, and will blow by, when we get you safely off."

"Get me off!" cried Hyland, again starting to his feet, in the greatest agitation. "Is there any hope of that? No, there is none!" he exclaimed, vehemently: "I am a blood-stained man, I have taken life, I am a murderer"—

"Tush and botheration, hush!" said Affidavy, clapping his hand over the prisoner's mouth; "why need you be blabbing? That was confession enough to end the matter, without plea or witness: 'tis just a charge to the jury, a verdict in the box, and then a long face and the hangman."

"Misery! misery!" cried the unhappy youth: "and to this I have brought myself! the death, the ignominy, of a felon! I know it, I see it very clearly," he added with indescribable emotion, "I see how it must end—good God, upon the gallows! But it shall not be; I will die first—thank heaven, I am dying already! Put but the trial off—they say the court opens this day!—put it off but a week; you shall have an hundred guineas, five hundred, a thousand, all that I have!—only put off the trial a week, that I may die before they drag me into the light again! I deserve to die, I am willing to die, but not, oh heaven! not upon a gibbet!"

"Zounds!" cried Affidavy, who strove in vain to interrupt this burst of frenzied feelings, "you are taking the best way to reach a gibbet, notwithstanding. You are mad, I believe; botheration, sir, if you talk this way, there will be no saving you"—

"Saving me! Can I be saved? that is, not from death, but from ignominious death? Hark you, sir,—they have taken away my money, but I have enough more. Get me a knife, a pistol, a rope, a dose of poison"——

"Tush; if you do not cease this mad raving, and let me speak, I will be gone; you are making the case desperate. Be silent, and listen. Your case is bad, sir, very bad, I must confess, sir. But you have friends, sir; and you may hope; yes, you may hope—if you are wise, sir, you may hope.—You have——Now don't start, or cry out, or I'll leave you—Ehem, sir, I must whisper—you have relations,—a brother, sir"—

"Oran!" cried the prisoner, who would have again started up, had he not been held in his seat by Affidavy: "oh, heaven be thanked! he has not deserted me! Have you seen him? where is he? what can he do for me? will he rescue me?"

"Tush, you must be quiet. If you will speak, let it be in a whisper. As for the trial, why we will stop that if we can. A British officer, with a king's commission in his hand, taken in arms, cannot be shuffled into a cart by a civil tribunal, for following his vocation, and slitting a throat or two. Now, Mr. Lieutenant Gilbert, you understand me? You have a commission."

"No, by heaven! I refused it: I am no officer, and this will not avail me. I am no officer, I was none; nor was I so much even as a volunteer. I refused the commission up to the last moment, and this is the end of it: I would not be the enemy of what was my native country,—of my countrymen; and now they are all enemies of mine! I was not a member of the band; I never acted with it,—never save that fatal once, and then I went not to make war,—no, not even upon the poor wretch I killed—Would to God the pistol had been turned against my own breast!"

"Tush," said Affidavy, interrupting what bade fair to end in another violent paroxysm, "that's wide of the question. The band looked upon you as officer; and unless that fellow, Sterling"—

"The villain! it is he has ruined me!"

"Unless he can swear to the contrary, which he can't, (and, botheration, there's a way of stopping his mouth altogether;) who will be the wiser? Now if we could get Dancy Parkins admitted, along with Sterling, as evidence for the commonwealth—However, we can't; and we'll say no more about it: the prosecuting attorney swears he'll hang him. His mouth is, at all events, sealed. We are safe enough. Here is the commission: Now, sir, you will put a bold face on the matter, insist upon your privilege, and"——

"Perjure myself with a lie? avow myself the enemy of my native land? and so die worse and more degraded than I am? Never! Duplicity has made me what I am; a deception that I thought innocent and harmless, has brought me to this pass. Had I come without concealment, then I had left without disgrace, without crime. Oh fool, fool that I was! Talk of this no more: it was on this ground Mr. Pepperel thought of defending me; but on this ground I will not be defended."

"Oho! and young ninny has been before me there, too?" muttered the lawyer. "Well, botheration," he continued, falling into a deep study, in which he held counsel only with himself,— "there is but the one shift in which the rascals won't join me,—but one path in which I can walk this goose-head off alone. Well now, all depends upon Lingo: the rogue has a head as thick as a mountain, and a considerable deal harder. 'Twere a shame to waste gold upon such a clod-headed pig. Give him fifty guineas! God

bless our two souls! it were a mere casting of pearls before swine, and, in some sort, a robbing of my own pockets. A shilling's worth of laudanum were a better fee, besides being cheaper. But we'll see."

Having concluded his meditations, he turned to the prisoner, who sat surveying him with an anxious countenance, as if expecting some better comfort from his thoughts, and then said,—

"Well, botheration, we'll have to think of another thing. It is well you are not fettered."——

The young man writhed as if struck with a lash; but before he could speak, Affidavy continued, though with an emphatic gesture for silence,—"For that saves us all the vexation and danger of sawing. You see this little instrument?" he said, displaying a file. "Now, be quiet on your life, sir. You will understand from this, that there is something in the wind boding you good. You are sick and wasted—you were hurt in the scuffle, too; but put you beyond these stone walls, with a saddled horse under you, could you ride him?—Why, botheration, what makes you tremble so?"

"Oh heaven!" cried Hyland, "do not mock me! Nay, I will whisper. Give me the file: I will cut the grating through."

"It does not need," said Affidavy, "and I have no notion of running any risk by leaving it in your hands. But you must understand, sir, (hold your ear close,) that this is a very ugly piece of business, especially for *me*: if discovered, sir, I am a ruined man; the penalty, sir, is the very next thing to hanging; ay, sir, and in my estimation, somewhat worse; but that's according as we think of it. Now, sir"——

"I understand you," muttered Hyland. "You shall name your own reward—half of my estate, if you will; nay, all—*all*, so you get me but to the woods, where I can die in peace, and undishonoured!"

"Tush, we'll not think of death: you'll live and be happy. Then as for reward, why, sir, I would not have you think me extortionate, or capable of taking advantage of your distress. No, sir, by no means; I am a lawyer, sir, but an honest man."

"For God's sake, take what you will. Say nothing more; you shall have your wish."

"Oh, sir," said Affidavy, "there is no hurry. As for taking all your estate, or even half of it, sir,—sir, do not believe I will think of that! No, sir; I am neither a buzzard nor a niggur's dog. But I must be indemnified for losses: I ruin myself, sir,—I must sacrifice an excellent practice, sir,—my reputation, sir, and my prospects. In a word, sir, I must e'en take to my heels along with you; for after such a prank as a jail-breaking, the county will be too hot to hold me. Sir, I remember your father: he was a wronged man, sir; and my feelings will not suffer me to see his youngest son too severely handled. I once knew your brothers, sir, and I always thought they were badly treated. Sir, I feel much grieved to see poor old Mr. Gilbert's son brought to such a pass. Sir, my regard for your deceased parent makes me do what I do; and, (not to whip the devil round the stump any longer, sir,) I must confess, sir, that what I do is a very scoundrelly piece of business, sir; which if any body had proposed to me in behalf of any other person in the world, I should certainly, sir, have knocked the proposer over the mazzard,—I would, sir, botheration."

"What needs more words?" said Hyland, too much agitated to think of weighing the motives of his new ally in the balance of conscience or interest. "Make your demand, and have it."

"Ah! sir," said Affidavy, with a snuffle through the nose, "it is a sorrowful thing to be driven from home and friends, to wander an exile over the earth! There's my poor Mrs. Affidavy,—the thing will break her heart. However," he added, for the prisoner began to wax frantic with impatience, "I don't believe in breaking hearts, after all,—especially Mrs. Affidavy's. Sir, you are a rich man, and a young man, and a man without family or cares. I will not sell my humanity, sir; no, botheration, I'm above that; but I will accept of your superfluity what will indemnify me for the losses I endure in your service. Your case is very bad, sir; and indeed, if you were even a commissioned officer, it could not be much better. The indictment is already framed, and will this day, or at furthest to-morrow, be returned a true bill by the grand jury. You are a rich man, sir—had I pleaded your cause and saved your life, I should have expected a fee of five hundred guineas, (a small

sum for a rich man's life;) and there's old Long-tongue and Pepperel would have demanded as much more, each. But, sir, I'll save you five hundred guineas; and leave these fellows to whistle. We'll say a thousand guineas, then, and"——

"All, I tell you, all, all!" cried the unhappy prisoner. "Take any thing, take every thing"——

"God forbid!" cried Affidavy, devoutly; "I will not prey upon you. If you, from your own generosity, should think of adding five hundred more to the fifteen hundred, why sir, I should thankfully receive them. But I leave that to yourself, sir. At present, sir, I shall be content with what I have named; and will take your note of hand for the amount. You see, sir," he added, drawing from a huge and well thumbed pocket-wallet, a slip of paper, which with an ink-horn, he immediately deposited on the table, "I have drawn this entirely in your favour, payment not to be demanded unless upon the successful completion of a certain service not mentioned, and then in such way as will suit your convenience. If I fail, sir, I am ruined, sir, and yet receive nothing. Allow me to fill the blanks, sir, and then, sir, you can sign. I will fill them first, sir, in order that you may see I take no advantage of you, sir. Two thousand guineas, sir, is a small sum, a very small sum, when one thinks of a gallows.—Sir, be not alarmed—your hand trembles, sir; but I trust to your honour to recognise the signature—yes, sir, I prefer your honour to twenty witnesses, sir. You shall escape, sir; or damn it, sir," added the harpy, in the enthusiasm of gratitude, "I will hang along with you!"

It was fortunate the worthy Affidavy had some bowels of compassion; for had he filled up the blanks of his villanous contract with an amount comprehending the whole worldly wealth of the poor prisoner, it would have been subscribed with equal alacrity. What was gold in the balance with life? what price could be held dear that procured a remission from ignominy? Hyland clutched at the pen as at the bolt of his prison-door; and, in the same frenzy, subscribed, in addition, an order committing his good roan horse to the disposition of his counsel, which Affidavy declared to be necessary, Hyland neither asked or sought to know how, to the success of the enterprise. This accomplished, and the papers safely deposited away in the wallet, the attorney wrung his client by the hand, and that somewhat

wildly, giving him to understand that he was to hold himself in readiness that very night to escape, and recommending him to sleep a little during the day, the better to support the toil of flight. He charged him, twenty times over, to be silent and wary, to look as wo-begone and despairing as possible, and above all things to hold no conversation that could be avoided, with his other counsel. Then wringing his hand again, with the most convulsive sympathy, he knocked at the cell-door, was let out, and would have run into the open air without uttering a word, so big was his mind with the conception of his vast fee, had he not been arrested by the astonished jailer.

"Ods bobs!" said Lingo, "have you forgot the brandy, squire?"

"Botheration!" cried Affidavy, with a wild stare.

"Ods bobs!" re-echoed Lingo, "is the man mad? Why, Affidavy, what ails you? You look as white and wild as the prisoner!"

"Oh! ah! ay! the prisoner? yes, the prisoner," said the attorney, rubbing his nose and chin with great zeal, and recovering his wits. "Oh, ay, I remember: the prisoner, poor fellow! Ah, Lingo, Lingo! 'tis a hard case, a sorrowful case, a heart-aching case. I declare, Lingo, I could sit down and blubber; I could, botheration, I could!" and here the sympathetic counsel, to Lingo's amazement, burst into a loud uproarious laugh, such as he had never been known to give vent to before.

"The devil's in the man, sure enough," said Lingo. "But I see, I see," he muttered, surveying Affidavy sagaciously, "he has been blowing it a little too hard, and now he's getting a touch of the *Horrors*. Well, well, brandy's the best cure for that; and he shall have a snap at his own medicine."

So saying, the jailer poured out a glass of cognac, the rich odour of which had no sooner reached Affidavy's nostrils than his spirits became composed, he stretched forth his hand, and the smacking of his lips proclaimed the fervour of his satisfaction.

"Old Brauntweinpunsch for ever!" he cried. "Ah, Lingo, you dog! you know what's what! Ehem, sir, botheration and tush! God bless our two

souls, but I'm monstrous sleepy! Out all last night, Lingo, in the rain; was upset in the brook up at old Schlachtenschlager's, and half drowned, and hadn't a wink of sleep. I believe, I was dreaming all the time the poor fellow up there was telling his story. Must go home and nap a little—But no, I can't! Will finish the jug there, Lingo, before the day's out, ehem. Can give us a bed, here, Lingo, man, in case of necessity? What d'ye say? Rather full at Mrs. Affidavy's, and a wash-day, too. Oh, you dog, botheration, we'll have a rouse under lock and key to-night, won't we? Have something to tell you, and must be near the prisoner. But mum, boy, mum's the word! We'll have a rouse to the health of my client."

With that, the attorney made another long face, fell into a second roar of merriment, and went flying from the prison.

CHAPTER XV.

If this should fail,
And that our drift look through our bad performance,
'Twere better not essay'd: therefore this project
Should have a back, or second, that might hold,
If this should blast in proof.

HAMLET.

It was night before Affidavy returned again to the prison; a circumstance that might be supposed to puzzle the brain of the jailer not a little, whenever he happened to cast his eyes upon the bottle provided at the lawyer's own expense, and considered the notorious degree of attraction existing between the material spirits of the one, and the immaterial spirit of the other. Before he had yet determined whether the phenomenon should be attributed to the disorder of mind he was first disposed to suspect on the part of Affidavy, or to some uncommon display of his zeal on the prisoner's behalf, Affidavy

made his appearance, and notwithstanding the lateness of the hour, was immediately admitted,—not so much, however, as a man of law visiting his client, as an old friend and crony, whom Lingo introduced for his own private satisfaction. The attorney, nevertheless, after squeezing the jailer's hand, and giving way to a grin of extraordinary friendship, averred he must see his client, before indulging a moment in pleasure; and assuring Lingo, with uncommon spirit and generosity, that he designed treating him like a prince, bade him, out of the funds he had placed in his hands, lay in a store of all drinkables he could devise, with pipes and tobacco, and so forth, so that they might have a jolly time of it together. Then, after remaining half an hour with the prisoner, he returned to the jailer's private quarters, snapped his fingers, as if exulting at being delivered from toil and restraint, swore he was the busiest dog that ever slaved at a case, but would take his comfort and his ease, without troubling himself farther for the night, were all the gallows-dogs in the world calling on him for assistance. "Drink, Lingo, you rogue," said he; "give me a pipe, and snuff the candle; for I abhor taking the first whiff out of a greasy old cotton-wick. Drink, you big-fisted, honest old sly-boots; and I'll tell you all about the case."

"Well, squire, I'm for you," said Lingo, swallowing a draught that showed him to be serious; "but I reckon I know all about the case; and it's a clear hanging matter, as you must own."

"If I do, botheration on me!" said the lawyer. "There's two sides to every case; and all killing a'n't murder, nor manslaughter neither, for the matter of that."

"Well, it's well to keep a good heart—I always said you had good pluck, Affidavy, especially in desperate cases: but there was old Timberkin here this afternoon, who went off with a long face; and there was Pepperel, who as much as confessed there was no hope for the young one. And why should there be? For my part, I don't reckon it any great matter to have plumped a bullet into one of the Falconer kidney; but when it comes to a bloody refugee playing such outdacious tricks, why there, Affidavy, I stick; it's clear ag'in all principle; and there's ne'er a man of any jury you can pack in the county, but will say—*Hang!*"

"Tush, drink—here's to you. You've been gabbling with Pepperel and Timberkin—numskulls, Lingo—between you and me, numskulls. What do they know about the case? what have they been doing to study it? Here have they been all day laying their fool's pates together over it, like two owls at mid-day over a dead bull-frog, not knowing what to make of it. Drink, you rascal. Now had you but been at old Schlachtenschlager's last night! Ah!—However, that's neither here nor there. Now, I, my boy, botheration, I study my cases in another manner, and I have been studying this hard all day. But how? Ay, there's the question, tush. Riding about, hunting witnesses from post to pillar, serving *subpoenas*, and all that, and smelling out the intents of the prosecution."

"What witnesses do you want?" said Lingo: "it's a clear case, and the younker owns to it. I'm to swear myself, that he admitted the murder: he made no denial"——

"He's an ass," said Affidavy; "a fool and a madman, who would knock his head against a post, sooner than go round it, were his skull no thicker even than a pumpkin-shell."

"Oh, ay!" said Lingo, nodding over his glass, "I see what you're at: you'll make it out a *non cumpuss* case? But that won't do, squire; I swear ag'in' you there: there's no mad in him; there's more in some of the witnesses. But I suppose you have been raking up for witnesses about old Elsie Bell's? The lad begged I would send for her; but, they say, she is in a dying way?"

"Bad enough, bad enough," said the lawyer: "and a good witness, too; but we can do without her."

"Well, I reckon you'll want all you have," said the jailer; "for they're strong for the commonwealth. There's Dancy Parkins, they've taken him for state's evidence, along with this here gallivanting fellow, Sterling, that came in for quarter, and a power of others beside. I dunna why they're so easy on Dancy; but they say, he's not deep in for't; and the prosecution's ag'in' hanging him. They say, Colonel Falconer has sworn he will have the youngster's blood, if it costs him the price of Hawk-Hollow twice over."

"Tush, what care we? The devil take Falconer, and the witnesses too,—as undoubtedly the devil will. As for your Sterling, I can smash his testimony as I would a rotten apple. Botheration, the man has a neck of his own."

"Oh, ay, in the matter of the spying?" said Lingo: "but they say, they will wink and let him off, if Colonel Falconer be so minded; and they say, too, he was promised protection by the soldiers, and a clear pardon, on condition he fetched 'em into all Oran Gilbert's hiding-places. I don't see, for my part, how a soldier can promise any such thing, seeing that a soldier is neither a judge nor a governor. And moresomover, there's the matter of the attempt to do murder on Colonel Falconer; for, I reckon, that can be proved on him; and how he is to get clear of that, if the Colonel pushes him, I don't know. Howsomever, his case is bad—the man has a bad conscience; though, perhaps, 'tis only a small touch of the horrors,—for he has been drinking hard ever since he has been in prison."

"Oh, the devil take him, base turncoat and betrayer," said Affidavy: "I hold honour among thieves to be as good a rule as honesty between friends. And between you and me, Lingo, he has served the Hawks a turn they will not forget. You know how they hanged that soldier, Parker? Well now, two pigs to a pound of butter, as the saying is, you'll hear of this fellow swinging in a swamp, some time before doomsday."

"Ay; when they get him," said Lingo, "and with all my heart. But, you see, there's no talk of proceeding against him; and when the trial's over, I reckon he'll show the county a clean pair of heels—that is, if he ever gets over his hurts; for, you must know, there's something of the staggers about him,—a sort of horrors, as I said,—but I don't know; and if you stay here long enough, you'll hear him squeal out in his sleep, like a choking dog. Ods bobs! he made a squeak last night, and I thought the devil had him: so I runs into his room, and there I sees him sitting on his bed-side, all of a shiver, and as white as a sheet, singing out, as if he was talking to old Nicodemus,

'Shake not your jolly locks at me,'

or something of that natur', I dunna what, but it was about locks and bolts, and the lord knows what; but I fetched him a box on the ear; and that brought him to, and he fell to groaning. And now, Affidavy, here's to you;

and I don't care if I do you a bit of a service, though I don't see what good can come of it. If it will do your cause any service, to knock this here testimony on the head, why a hint's as good as a long sermon, as the saying is. Just 'validate him on the p'int of his upper story, and call me and Hanschen to swear to his doings and sayings; for I reckon, he's a clearer *non cumpuss* case than the prisoner. Howsomever, that can't do no good; for I'm clear in for swearing to the youngster's admitting he killed the deceased, which is quite a settler of the whole hash."

"Tush," said Affidavy, "let him swear, and swear his best. There is testimony enough to do the business, if we trust to that. The devil take the case; I won't bother my brains with it any further. However, Lingo, my boy, it was a queer thing of yours, that letting the prisoner go clear of gloves and garters. He might break jail,—eh, my boy!"

"As how?" said Lingo. "No, squire, you don't come over me there. I clapped the irons on him at first; but, you see, poor fellow, I saw he was sick, and just as weak and heavy-hearted as a pipped poult, and no more fear of dodging in him than an old horse: so I knocked the clinkers off, and let him have the swing of the room, poor fellow; and there he's safe enough. Moresomover, I never heard tell of his being much of a Hawk, only in blood and name; and I have a sort of pity on him."

"Ah, yes," said Affidavy, with a melancholy stare; "if you were to hear his story, Lingo, it would melt your heart; for you have a soft heart, Lingo, a merciful heart, Lingo; and it will go well with you, Lingo; for there's something said in the Bible about the merciful."

"Well," said Lingo, "I don't set up for much of that, nor for much religion neither; but I never beats a prisoner, except when he's contrary; and this here youngster seems much of a gentleman; and I have a notion, if he's well treated, he may leave me something; for he has a gold watch, (howsomever, the Sheriff's got it;) and, they say, he's well-to-do in the world.—But, squire, drink on; it's getting late."

"Let it," said Affidavy; "here am I fixed for the night; for how do I know but that you may be in trouble before morning, and may want a friend to help you?"

"Trouble! and help!" said Lingo, looking up with surprise. "If you mean that Sterling and his squeaking, why, ods bobs, it only needs a cuff or two to bring him about. Ods bobs, Affidavy," he added, with a grin, "if you stay, I reckon, it's *you* may want a friend to help you. I don't say nothing; but he that's got a speech to make before court and jury to-morrow, should not be too free of the creatur' to-night."

Affidavy, who had not yet betrayed any strong symptoms of being affected by his good cheer, shook his head mysteriously, and then replied,

"There's no telling what might happen, Lingo. These refugees are devils incarnate, as far as daring goes. The whole regiment here is out in chase of them, and all the able-bodied men of the village in company; so that there's nothing left to keep guard over us but old women and young ones. Now, Lingo, we'll suppose a case—how many men, armed with muskets and axes, would it take to sack your stone jug here, smash open a door, and let out the prisoners?"

"Ods bobs!" said Lingo, "I don't know: but I reckon I could hold out, me and Hanschen, until we had assistance. But, howsomever, that's supposing a case that can't happen."

"Don't be too secure," said the attorney, with a solemn voice; "for there's no saying what may happen, when there's such a man as Oran Gilbert in the case. I reckon, an axe and a few crowbars, with an auger or two, might soon make way through the yard-gate; and then, the back-door would be but a mere joke; and then, Lingo, why surrender, or hard axe and soft head would be the end of it."

"Ods bobs!" said Lingo, "what puts such a notion as that into your head? There's ne'er a tory, now, within forty miles of us!"

"Ah, Lingo! This is a wicked world, with a good many crooked ways in it; and there's a deal of 'em lead to the jail-door. My own notion is, that Oran Gilbert is lying where no one would think of disturbing him. Now, Lingo, you and I are friends. You're an honest fellow, Lingo, but, botheration, you're mortal. And so, Lingo, I shouldn't trust you too far, if Oran Gilbert came to the wall-gate, about the time of cricket-cry, chucked you over a

purse with a matter of ten guineas or so in it, while you stood peeping at the key-hole."

"Oho!" said Lingo, staring at the attorney with that sort of perplexity which a stupid man betrays when endeavouring to fathom the point of a jest, which he is sensible ought to be laughed at; "Oho, squire, I see what you are after,—he, he, he!" he said, beginning to giggle, and lifting a glass as he laughed. "I'm a mortal man, sure enough, and might take a fee, as well as e'er a lawyer in the land. But ten guineas is a small sum, Affidavy; and as for opening a jail-door for such a small matter, why, Affidavy, that's only—he, he, he! And so you've been retained by the tories? he, he, he! Well, I was wondering where the yallow boy came from,—he, he, he!"

"Tush! retained by the tories? *I!*" said the man of law, somewhat disconcerted.

"Oh, squire, a joke for a joke's all fair; tit for tat, you know,—

"Tit for tat,
Butter for fat,
Kick my dog, and I'll kill your cat,'

as the saying is;" and the worthy Lingo again burst into a peal of mirth, which allayed the sudden alarm of his companion. Affidavy looked him in the face, and became satisfied from the air of stupid glee which invested the jailer's features, that the liquor was suddenly beginning to fill his noddle; and in this conceit he was confirmed by Lingo adding, after another preliminary giggle,

"Well now, Affidavy, I'm an honest feller,—as you say, but I scorn being a fool. I know what's what; and I wish somebody would chuck me ten guineas over the wall-gate; I wouldn't ask him whether he was a tory or true American; for, you see, a guinea's a guinea, and clean stuff, no matter what pocket it comes from. But then, squire, as to opening the gate for such a small matter, he, he, he! why, I'm too honest for that. I'm a poor man, but, as I said, he, he, he! I scorn being a fool; and so, he, he, he! as you and me is friends, Affidavy, why, if the man was to chuck about fifty more to the back of 'em, why, he, he, he! I don't know what might become of my prisoners."

"Fifty guineas!" cried Affidavy, grinning in return, but with a sort of scorn; "that's putting your honesty at a higher price than your soul, for which, botheration, I would not give half the money."

"He, he!" said Lingo, slapping his boon companion on the knee, and nodding and winking in a manner meant to be exceedingly significant; "but come now, what'll they give? for I'll stand to reason."

"Give! *who* give?" said Affidavy, affecting surprise. "Oh! the tories, you mean. Tush, how do I know? Perhaps you might get twelve or thirteen guineas out of them; and that's a good round sum."

"He, he, he!" said Lingo; "but what do you get yourself?"

"I!" said Affidavy, again alarmed. His trepidation was however driven to flight by another fit of laughter, in which Lingo's honest countenance indicated the most expressive innocence of all suspicion.

"Ods bobs!" said he, "I wouldn't sell a prisoner under fifty pounds; and if they'd talk to me about that, he, he, he!"—and here he could scarce proceed for laughing: "No, no; if you'll strike a bargain for me for fifty pounds, in hard money, why then, he, he! they may take my prisoners, and hang them, if they will. But it's all one; there's no such luck for poor Bob Lingo: honesty won't fetch any thing worth having now-a-days. Fifty guineas! a small sum: why one could get more for letting a tory *in* jail. But, he, he, he! it's all one to Bob Lingo. I'm 'mazing sleepy, squire! But I know what'll keep me awake, he, he! I've got a barrel of wonderful fine cherry bounce; and, he, he! I'll go fetch a pitcher of it, and we'll make a night of it, I warrant me."

With these words, he left the apartment.

"Bravissimo!" said the attorney, as soon as he had departed; "I'll cheat the unconscionable rascal out of every penny. He's as drunk as a pig already."

He stole to the door, peeped out, and then, satisfied that Lingo was beyond observation, proceeded to pour into a glass, from a little vial he drew from his pocket, a goodly dose of laudanum, to which he forthwith added sugar

and brandy, muttering to himself all the while, "Here's a dose for the dog will make him sleep like a wood-chuck at Christmas; but 'twont hurt him. Botheration, I'm sleepy myself, the lord knows: but two thousand guineas! Two thousand devils! I'm a made man, even if the young ass repents his bargain and makes me 'bate one half!—Give *him* fifty guineas! pearls before swine! He'll sleep like a top; and as for Hanschen, why he's fast already——Devils! what's that?—Oh, the drunken fool has tumbled over a chair, and smashed the pitcher!—Could hear the clink and clatter together. Am somewhat drunk myself; but a little does me good."

Having completed the soporific potion so kindly designed for Lingo, and not without producing some clattering of glasses, for he was far from being sober, he sat down and prepared a second glass as much like the first as possible, except that he took good care not to qualify it from the vial, which he restored to his pocket. He then began to hum, and kick his heels together, wondering what kept the jailer away so long. "The town is already fast asleep," he grumbled, "and my three jolly tories will be whistling at the gate like seven thousand katydids. Poor Mrs. Affidavy! how she will stare and scold in the morning! Odd rabbit her, she has a tongue might suit a judge on the bench; and, botheration, it will be a lucky day for me, when I'm well quit of her."

While he rejoiced over his prospect of deliverance, Lingo re-entered the apartment, bearing a huge pitcher, from which he contrived, at every step, to discharge, so wide and uncertain was his gait, no mean quantity of its purple contents. Indeed, if appearances were to be trusted, he was already so far gone in intoxication, that it needed but one glass more to stretch him on the floor; and Affidavy hailed his infirmity as the herald of success.

"Ods bobs!" said the jailer, staggering up to the table, and depositing his burthen with so little dexterity that half its contents went splashing over his friend, "here's stuff for you! But a jail's a bad place to keep liquor. Ods bobs, I broke my shin over a fetter-bolt, and, ods bobs, I broke my new blue pitcher; but, ods bobs, who cares for expense?"

"Botheration," said Affidavy, "here I've mixed you a brandy cock-tail, and you've spilled the bounce into it. However, I warrant, it's all the better."

"Ay, I warrant me, old Teff," said Lingo, giving him an affectionate hug round the neck, "and we'll drink it, my boy, like a lord and a true-hearted American. But, ods bobs, my boy, gi' me a chair; for, d'ye see, I sprained my leg, and it's weak under me."

"Oh, ay," said Affidavy, dragging the jailer's chair round to his own end of the table.—"But stop there, you fool, you've got *my* glass!"

"Hic—cup—where's the difference? he, he!" said Lingo, yielding, however, the glass he had taken, and receiving that which Affidavy had so craftily prepared. "Here's to you, old Teff Affidavy!"

"Here's to you!" said the lawyer; and both raised the glasses to their lips. The attorney watched his victim with the eyes of a mouser intent upon her prey. He saw him swallow one mouthful, and then a second, and then—the jailer withdrew the vessel from his lips.

"Botheration!" murmured Affidavy to himself, "does the villain taste it?"

He was soon relieved from his fear. Lingo laid the glass on the table, and turning to Affidavy, burst into a fit of maudlin weeping, betraying, at the same time, a strong disposition to repeat the fraternal embrace. As Affidavy felt no inclination to balk this friendly intention, he laid down his own glass, and was instantly taken round the neck by the jailer, who exclaimed, in the most pathetic manner in the world,

"Ods bobs, old Teff, I don't know what will become of me!"

"Why, what's the matter?" said Affidavy.

"Why, ods bobs," blubbered the other, "one day, when I was a little boy, I licked my father; and there's no good can come of it."

"Tush, you ass," said the attorney, "you might have trounced your mother too, if you had been so minded. But, botheration on you, let me go, and drink your cock-tail."

"Well, I will," said Lingo; "but it's a murdering piece of business to whip one's father; and I've a notion to give myself up, and let 'em hang me. But I can't hang without counsel, and I can't spare money to pay a fee. Now, old Teff, my boy, you're my friend, and if you'll make a speech for me for nothing—I always stuck up for your being the cutest lawyer in the county, and I'll lick any body that says No to it—now if you'll make me a speech, I reckon I may get off for nothing, with a clear 'quittal."

"Drink, you fool," said Affidavy; "I'll take the case, and charge you nothing."

"He, he!" said Lingo, snatching up his glass, "we'll go 'em, then, slick as a snake in a new skin. Here's to you, Teff, my old boy! and the devil eat his liver that don't drink smash down to the bottom! Hic—cup,—here's to you."

He swallowed his potation, and the attorney, without a moment's hesitation, drained his own at a single draught. But scarce had he withdrawn the glass from his lips, before he started up, exclaiming,

"God bless our two souls! what was in the glass? Ah, Lingo, you fool, 'twas that cursed bounce you spilled in it! Vile trash, you dog, vile trash!"

"What! my bounce?" cried Lingo, indignantly; "as good bounce as was ever brewed, and, ods bobs, a good deal better. But now, you jolly old Teff, let's sing a song. Don't sit there staring at me, like a starved cat; but sing, you old rascal; let's sing 'Vain Britons.'"

"The oddest taste in the world," said Affidavy, in obvious bewilderment: "sure there must have been some mistake!"—And, in effect, there was; for at the very moment when the jailer was embracing his friend, and beseeching the favour of his counsel, he slid one hand behind him to the table, and there kept it until he had effected a mutual interchange of places between the two glasses; the consequence of which was, that when the fondling fit was over, and the vessels resumed, he himself got possession of the innocent draught, while Affidavy caught up and swallowed that designed for his companion. Had Lingo been in any condition but that in which he appeared, the attorney would have conceived the trick in a moment; but a look at the jailer's innocent visage was sufficient to banish

all suspicion of foul play; and in consequence, he could only stare about him in wonder and perplexity, nodding his head up and down in a manner the most ludicrous in the world, while Lingo testified his indifference and patriotism together, by lanching out, in a quavering, drunken voice, upon a camp-song, said to be then highly popular among the continental soldiers.

'Vain Britons! boast no longer, with insolence and glee,
By land your conquering legions, your matchless strength by sea;
For lo! at length Americans their sword have girded on,
And sung the loud Huzza! huzza! for war and Washington!'

'Sent forth by North for vengeance, your gallant champions came;
With *tea*, with *treason*, and with *George*, their lips were all on flame:
Yet, sacrilegious though it seem, we rebels still live on,
And laugh to scorn your empty threats, and so does Washington.'

'Still deaf to mild entreaties, still blind to England's good,
Your knaves, for thirty pieces, betrayed your country's blood:
Like Æsop's cur, you'll only gain a shadow for a bone,
Yet find us dangerous shades, indeed, inspired by Washington.'

The third stanza of this patriotic roundelay (there are a dozen stanzas altogether,) was sung by Lingo with especial emphasis, particularly the second and third line, and might have conveyed to the attorney some inkling of the true state of the question between them, had not his senses been already overpowered. The strength of the draught, aided not a little by the vigilance of the succeeding night, was too much for Affidavy's brain; and before the stanza was concluded, he slipped from his chair to the floor, and there lay like a log.

The jailer concluded the song; then springing up, he burst into a hearty laugh, exclaiming, "Ods bobs, I've outlawyered the lawyer! and there he is, as fast as a poker. Now, you old fool," he added, without a vestige of intoxication remaining, (and indeed his drunkenness had been all assumed) "if there was too much stuff in the mixing, why e'en take the consequence, for it was all of your own brewing."

Then stooping down, he examined Affidavy's pockets. The first thing he laid hands on, was the vial of laudanum, which he smelt at with great glee; he then filched out a leathern purse, containing, according to his own verbal inventory, "sixteen guineas in gold, two Spanish dollars, a French crown-piece, and an English shilling—Oho old Teff!" The next thing discovered was the pocket-wallet, from which he drew to light the note of hand which the cormorant had caused the prisoner to sign in the morning. All these different items he deposited under lock and key, in a closet, from which he also drew a pair of horse-pistols, and an old horseman's sword, all of which he proceeded to buckle round his body.

While thus engaged, some one softly approached, tapped at the door, and being bidden to enter, disclosed the features of his assistant Hanschen.

"Done him up!" said Lingo, pointing to the prostrate figure; and then demanded, "All ready?"

"Yaw."

"How many?"

"Fy, dtare's Sturmhausen, Schnapps, and tree oders, mit guns and pistols."

"Ods bobs, then, we'll nab 'em; for they can't muster half so many. Have you chained the prisoner?"

"Yaw; and he turned pale, and fainted afay. Then I put polts on Tancy Parkins; and now I fill go fix the t'oder, Shterling."

"Never mind him; he's safe. Now, Hans, you must fight like a bull-dog, if there's any fighting at all. But not a word about the lawyer here. Here's a pistol: take a swig at the bounce, and we'll carry it down to the boys, to warm their hearts a little. If we catch that Oran, ods bobs, I don't know what the reward is, but it will be the making of us."

"Yaw," said Hans; and picking up the pitcher, he followed the jailer into the yard. Here they found five stout men, with whom the jailer conversed in whispers, and then, after all had drunk of the pitcher, he led them towards

the gate, saying, as he bade them lie down on either side of it,—“Now mind ye, men; I hold to the lock, and here's my cue: If any enters, why I claps the gate to behind them, and then outs with the key; and then you're to jump up and on 'em, taking 'em alive, if you can. But mind ye, you're not to stir, till you hear me give the signal to fall on; and the signal is, *You're welcome, gentlemen*. Don't forget it. Now, 'taint sure they'll come; but if they do, ods bobs, we've got 'em!”

Having thus received their instructions, the whole party squatted down on the ground, and awaited the issue of their adventure in silence. The village jail was a small, though strong, building of stone, and the yard, therefore, on the rear, in which the prisoners were sometimes allowed to air themselves, was of no great extent. It was surrounded, however, by a high and strong wall, the gate to which was of heavy double planking, strengthened with bars of iron; and the lock was of weight sufficient to make any prisoner despair of forcing it.

It was perhaps midnight, when these silent guards,—seven in number, including the jailer and his assistant,—took their places. The night was perfectly clear, and so far unfavourable to the assailants, if assailants they really were; of which, it must be confessed, honest Lingo could not affect to be certain, his whole information amounting to no more than the few ambiguous phrases he had caught from Affidavy. But then this fellow, under a stupid countenance, concealed an astonishing fund of quickness and cunning, of which the attorney little dreamed; and long before Affidavy had opened his lips on the subject, Lingo had seen and noted enough to give edge to the native suspiciousness of his character. The appearance of Affidavy himself, claiming to be one of the prisoner's counsel, instantly set his wits to work; he marvelled who had retained him, since he knew he had not yet seen the prisoner. Then the appearance of the guinea, a rare coin in such hands, and devoted with such magnificent nonchalance to the purpose of doing honour to *him*, was not without its virtue in stirring his conjectures, especially when it came to be added to the invitation Affidavy so coolly gave himself to repeat his visit, and spend the night in the jail. He ascertained without trouble, that the attorney soon after leaving the prisoner, had ridden into the country, where he remained all day, without once seeking a conference with either of the prisoner's original counsellors; and

one or two other little circumstances he discovered, which prepared him to understand, and make the most of what Affidavy afterwards divulged in the form of supposition.

All his discoveries, however, went no further than to induce a belief that some design for rescuing the young Gilbert was on foot; but where, and in what manner, the enterprise was to be attempted, he was left to infer as he could. He did not doubt, indeed, that the attempt was expected to be made with his connivance, and that Affidavy had been bought to bribe him into compliance; though the covetousness of this unworthy and degraded limb of the law had led him upon a device for dispensing with the jailer's services, and so clapping the additional reward into his own pocket. This circumstance convinced him the force of the conspirators could not be very great; and besides, he had good reason to suppose that not more than two or three could succeed, whatever might be their boldness, in making their way to the village, while the band was so closely beset at a distance. "At all events," he muttered to himself, as he sat by the gate, listening for the sound of footsteps, "if there should come even a dozen of them, and there's not so many left in the gang, I can let in just as many as will serve my turn, and then slap the door to on the rest.—Hist! It sounded like the tramp of a horse; yet 'twas only the splash of the river over the stones. Well now, if they shouldn't come, here's so much trouble for nothing, and the lord knows how much cherry-bounce. Silence there, you Hanschen! you're asleep. Ods bobs, men, don't scratch your heads so hard!"

He kept watch for perhaps the space of an hour, without hearing the stir of man or beast, or indeed any other sound besides the rush of the river, which rolls down a pebbly declivity hard by, and the chirping of numerous field-crickets on the trees of neighbouring gardens; when suddenly one of these insects, tired, as it seemed, of its dewy perch, which it had exchanged for the dry planks of the gate, or perhaps just waked up in the key-hole, began its nocturnal cry with a zeal and energy that instantly captivated the jailer's attention. It now struck his recollection that the attorney had, in some way or other, drawn these minstrels of the night into his suppositions; and he began to fancy the sound might be a signal made by the tories, though he could not imagine how the organs of a human being could be ever taught to imitate a cry so peculiar. He felt his own inability to answer it in the same

tone; and not knowing how otherwise to bring the affair to a point, he replied by a goodly whistle, which his companions supposed to be the signal of the enemy, and therefore prepared to start up at a moment's warning. The whistle was instantly followed by a slight tap on the gate, and Lingo, waving his hand to his backers to be silent, boldly turned the key. Then slipping the bolt aside, he saw three human figures on the outside, ready to enter. "Two to one," he muttered to himself, opening the gate wide enough to admit one to pass at a time. One actually entered, and was moving aside, without speaking, to make way for the others, when Lingo's scheme was defeated by a sudden rattling of chains at the window of Hyland's cell, and by a voice crying out, "Beware! beware! you are betrayed!"—"Up and on 'em!" cried Lingo—"Gentlemen, you are welcome!" and as he spoke, he made a grasp at the first comer, which was answered so effectually, that he instantly found himself sprawling on his back, with such a blaze of lights dancing in his eyes, that he thought his whole brain had been converted into a ball of fire. The next instant, there was a loud cry of voices, and a roar of pistols, which, reverberating from wall to wall, filled the narrow yard with the most dreadful din; and Lingo started up just in time to behold a tall figure darting through the gate into the open air.

"Fire and furies!" he cried, rushing after the fugitive; "I'll pay you for that touch of the tomahawk, you bloody tory!" and the next moment coming up with his chase, he struck him a blow with his heavy sword, that brought him to the ground. Then pouncing upon him, and assisted by another who ran to his assistance, crying that 'all were taken,' he dragged the prisoner into the yard and secured the gate. "Lights, Hanschen!" he cried, "Yaw," said Hanschen; "but fat's the use? Here's one teadt, and anoder tying. And here's Sturmhausen has his headt proke; and here's me mit my finkers chopped off by the tamt *schelm* rogues. But I have kilt vone, mine Gott be thank'd! and I fill hang the t'oders!"

Before Hanschen had wholly delivered himself of his private ills and triumphs, a loud huzza was set up by the others, upon hearing that all the three assailants were secured. Lights were instantly brought into the yard, and, sure enough, there lay three men on the ground, one of whom was stone dead, his head blown to atoms by Hanschen's pistol, a second

writhing to all appearance in the agonies of death, and a third—but what were the surprise and mortification of the jailer, when in this third, the man he had cut down with his own hands, he beheld the visage of his prisoner, Sterling.

Upon this discovery being made, all was again confusion; the gate was a second time thrown open, but only that they might behold the whole village in commotion, the alarm having been given by the previous tumult. It was plain that the third individual, and he perhaps the most important of all, had made his escape. To add to the confusion of the scene, the wounded tory, upon hearing some of those who raised him pronounce the name of Sterling, suddenly snatched a pistol from one, and discharged it at this unlucky personage, with a bitter oath. It was struck from his hands, however, so that it did no hurt to any one.

The jailer, now in fear lest the other prisoners might have broken from their cells, ran to those occupied respectively by Hyland Gilbert and Dancy Parkins, both of whom he found in fetters, the former, in truth, secured by a bolt to the floor, so that, although he had some freedom of motion, he could not approach the window near enough to look out, and must therefore have been led to give the alarm to the rescuers by hearing the crash of the bolt in the gate. This was additional evidence of the guilt of Affidavy; but at that moment, the jailer did not trouble himself to think of that discomfited personage. He stared at the prisoner, heard his beseeching demand, 'Who had been taken? who had been hurt?' answered it by a profane oath, and then ran to Parkins's cell. He then stepped to that occupied by Sterling, and found that this individual, seduced perhaps by the sounds of wassailing below, had employed his time in removing with a knife a hinge from his door, by which means he had made his way into the yard, where he took advantage of the commotion so unexpectedly displayed, to make a bold dash for freedom. What had seduced this wretch, who was in no immediate peril of death, or even trial, and who had freely rendered himself into the hands of justice, to attempt his escape, Lingo could not imagine; and in truth he did not attempt to solve the mystery. He satisfied himself that he had given him a severe, perhaps a serious cut, betwixt the neck and shoulder, and then had him carried into his cell, not without some very hearty curses upon his enterprise, and its effects in robbing him of a more

valuable prize. These were borne by the adventurer without any reply save ghastly looks; and indeed Mr. Sterling was a greatly altered man, presenting an appearance even more wo-begone and wretched than that of Hyland, the victim of his anger. As if to mark the jailer's indignation in the strongest way, the wounded refugee was deposited in the same chamber, as well as the body of his comrade.

Upon examining into the condition of the defenders, it was found that Hanschen had received a cut over the hand, which, as was discovered afterwards, had been inflicted not by a foe, but by one of his fellow-defenders; and this had deprived him of a finger, and perhaps of the service of two others. Another man had been hurt by a bullet in the leg, and a third had been stunned, like Lingo, by a stroke on the head. As for Lingo himself, he discovered, with some surprise, that the blow which prostrated him had left a wide and ugly gash on his crown, though not one from which he had cause to apprehend serious consequences. The only ill effect it produced was, to sour his temper to an uncommon degree; so that after peace was restored in his dominions, and his aiders and abettors all discharged for the night, he betook himself to the sleeping Affidavy, and bestowed some three or four such kicks upon his ribs, that it was a wonder he left a sound one in his body. But even these failed to rouse the stupified attorney; and at last, calling to Hanschen for assistance, he dragged him up into Sterling's cell, where he deposited him on the floor, betwixt the dead man and the dying.

"Now here are four bites for the devil together," he said; "and if they all die before morning, it's all one to Bob Lingo."

With these words, he descended to look after his wound, which was bleeding freely.

CHAPTER XVI.

Jaff. Ha!

Pierre. Speak; is't fitting?

Jaff. Fitting!

Pierre. Yes; is't fitting?

Jaff. What's to be done?

Pierre. I'd have thee undertake

Something that's noble to preserve my memory

From the disgrace that's ready to attain it.

OTWAY.

The attorney's sleep was long and sound; and, by and by, notwithstanding the exciting nature of the midnight events, sleep visited the eyes of all others in the prison, even those of the hapless Hyland. The misery of his situation was complete. His hopes of escape, confirmed almost to certainty by Affidavy in his last visit, in which the whole plan was explained to him by this honest gentleman, threw him into a frenzy of joy; and it was with unspeakable agitation that he listened to the subdued murmurs below, which told him the first and most critical scene of the conspiracy had already begun. How the attempt of Affidavy upon the head of the jailer terminated has been already seen; how the scheme might have eventuated, had this rapacious wretch followed out the plan he had proposed to the others, which was to bribe the jailer into connivance, it is not so easy to say, Lingo being perhaps too much of a philosopher in his way, to refuse a good price for his honesty. But Affidavy, while he held the bone in his mouth, hungered exceedingly for the shadow, or, to speak more strictly, for that smaller morsel destined for the jaws of his friend; and, in consequence, adopted the foolish device of the 'hocussed' cup, in which he encountered so signal a failure. While Hyland sat in his cell, devoured by expectation, the door was opened, and the jailer's assistant entered, bearing a heavy set of fetters, which he forthwith proceeded to fasten upon his limbs. This was the first moment they were ever thus dishonoured; but the unhappy youth thought not of the disgrace; he saw at once that the scheme of flight was defeated, and that his hopes had been encouraged, only to be blasted. The agitation of his spirits threw him into a swoon; rousing from which, he gave himself up to despair, until his thoughts were diverted into a new channel by an unexpected commotion below, which was indeed caused by nothing less

than the entrance into the prison of the five men whom Hanschen had secretly summoned to his assistance. He heard them pass into the yard, and inferred at once that the scheme for his escape was intended to be turned against his unsuspecting friends. For this reason, he gave the alarm, the instant he heard the gate swinging on its hinges, and would have done so sooner, had he been able to approach the window, so as to look out upon the proceedings of the jailer. Let his sufferings be imagined, when he heard the sudden din of pistols and voices, followed by execrations and groans, without knowing aught of the result of the rencounter, except that it had been fatal to his own hopes. He saw the jailer look into the apartment, his visage stained with blood, and then depart without satisfying his painful curiosity; and then followed a long period of silence, equally oppressive and distracting. Great as was his distress, however, it contributed in the end to stupify his mind; and towards morning, he fell into an uneasy slumber, to add the tortures of the ideal to those of the material world. From this he was aroused by a noise, as it seemed, at his window; and starting up, he distinctly heard a voice pronounce his name. It was but a whisper, and that fainter than the lowest chirping of the insects; but he recognized at once the tones of Oran; and, scarce repressing a cry of joy, he rushed towards the window. The chain was still upon his body, and its clash, with the rattling of the ring by which it was attached to the floor, told to Oran, as well as to his own spirit, how vain was the effort. The cell which he inhabited was in a corner of the building, and the wall of the yard was perhaps within six or seven feet of the window, which was more elevated, and therefore overlooked it. It was possible for a man, standing on the top of the wall, and of sufficient strength of body to support himself, lizard-like, while leaning towards the window, almost to reach it with his arms; and Hyland, who had noted these circumstances before, easily understood the situation of his visiter, which besides being extremely dangerous, was also exposed to observation.

"I cannot approach, Oran," he cried in the same whispering tones; "I am chained to the floor."

"Hold forth your hand," muttered the refugee, "and cast me the end of your neckcloth. You shall have files and aquafortis; and to-morrow night you shall be free. Cast out the neckcloth."

"I cannot," replied the prisoner, with a voice of despair; "I cannot reach the bars, even if I had files to cut them. What shall I do? Oh, brother, brother! why did you leave me? Speak, brother, for Heaven's sake, speak! Can you help me?"

The refugee remained silent, apparently struck dumb, either by the reproach of his brother, or by the discovery of his inability to help himself; and Hyland, imagining that his silence was owing to some sudden alarm, held his own peace, awaiting the event. In a short time, however, the refugee spoke again: the whisper was as low as before, but it was broken by some strong tumult of feeling.

"I can *not* help you, Hyland," he said,—"*unless, unless*——But hold; I will fling a file through the bars, and you can saw yourself free. Throw your bed on the floor under the window, that it may make no noise. Are you ready?"

"I am," said Hyland; and the next instant he heard the steel instrument strike upon the bars of the grating, whence it fell ringing among the stones in the yard. A second was cast with better effect, and entering the window, fell upon the couch. But as if fate now designed to tantalize the unhappy youth into distraction, he no sooner sought to obtain it by dragging the bed towards him, than he heard it fall off upon the floor, where it remained beyond his reach, and must remain until discovered by the jailer. This mishap being communicated to Oran, drew from him an exclamation, in which Hyland was made aware of his hopeless situation:

"God help you!" he cried, "I can do no more."

"Yes, Oran, yes!" exclaimed the prisoner, "you can help me yet. Throw me a knife"——

"Hah!" said Oran, "and you will use it on the jailer? ay! as he bears you to the court house, in the morning! Strike him in the throat—I will be by, and, perhaps—Well, well, you will at least die like a man, not like a dog. Will you kill him?"

"No!" said the youth; "God pardon me the blood I have shed already: I will never more harm a human being—no, not even to save my wretched body

from shame. Yet throw it to me, throw it to me!"

"And for what?" muttered Oran, in tones scarce audible.

"For what?" replied the prisoner. "Oh God, do you ask me, brother?"

"For your own bosom then? Ay, can we do no more? And the lawyers, then, can give you no hope, not even for money?"

"None, none: I am condemned already—The knife, the knife!"

"The dream's out!" said Oran, with what seemed a laugh. "When I was a little boy, and the rest were but babes about me, I dreamed, one night, that there were seven of us together, though there were but four of them born, and that I killed them. And so they say *I have* indeed! Well, boy, I have killed you, as well as the rest, and now I am alone. You shall have the knife—yet be not in a hurry. Something may turn up: Sir Guy may demand a military trial—But no, I am lying to my own heart: you must die, Hyland, you must die! for even I cannot help you."

"The knife will help me."

"Take it!" said the refugee, with a voice so loud as to show his feelings had got the better of his caution,—and indeed his accents betrayed the most vehement agitation; "take it!" he cried, flinging it against the window with a motion so reckless or perturbed, that it did not even strike the bars, but coming in contact with the stone framework, it rebounded and fell, like the file, to the ground below. "Ha ha! you see, brother! there is no hope for you,—no, not even in the knife!"

"Brother!" cried Hyland, "you can help me yet."

"It is false!" said the other: "my band is broken, my body bleeding, and now, if they would send a boy against me, why a boy might take me."

"Listen, brother—it is my dying prayer," said Hyland, "and nothing else can be done. Before midnight of the coming day—perhaps earlier—I shall be a doomed man—doomed to death—doomed to the gallows? Brother, don't let

me die on the gallows! Where is Staples? He can send a bullet through the eye of a leaping buck; I have seen him kill a night-hawk on the wing. Brother, you will be my heir—give him what you will, give him *all*, and let him come to-morrow night on the square, and when he sees a candle held at this window, let him fire at it,—let him aim well,—at the candle, brother, at the candle! Oh heaven! do you not hear me?"

"I hear," said Oran. "A wild freak that, but good! ay, boy, good, good, good! But Staples—ha, ha! Choose another: take the whole band; one will be as ready to serve you as another."

Had not the prisoner been prevented by his own feelings from giving note to any thing save the mere words of the refugee, he might have detected the traces of some extraordinary emotion in the unusual abruptness of his expressions. He even failed to observe the incongruity between Oran's invitation to choose an executioner from his whole band, and the late declaration he had made, that the band was broken up. He repeated the name of Staples, adding, "Let it be Staples, brother, for he is the boldest and truest: he fears nothing, and he misses nothing."

"Call him out of the yard then," said Oran; "he lies there cold as a stone."

"Ashburn then, Tom Ashburn!" cried Hyland, after an exclamation of dismay at the intelligence; "he is the next boldest, and a true shot."

"Another, another! They fished him out of the river at the Foul Rift, yoked fast to the carcass of his horse."

"Bettson, then!"

"He lies, with Staples, dead in the yard here."

"Good God! is there none left then to save me from this horror. Oh brother, send any one. Is there not one?"

"There is *one*," said Oran, and his teeth chattered as he spoke; "there is one, and only one; but he shoots well too, and is as bold as any. Farewell, young

brother—the streaks are in the sky: we will never see one another more. Reach forth your hand, brother, and let me touch it."

"Alas, Oran, I am chained to the floor."

"Ay,—I forget: 'tis all one. Say that you beg God to forgive me, and that you forgive me yourself—let me hear you say it."

"Wherefore, Oran? Alas, wherefore?"

"For what I have done to you; for what—But it is nothing. But say it, though; say it, or hope for no friend in the thing you speak of."

"God forgive you then, Oran," muttered the brother, almost mechanically; "I forgive you myself."

"It is enough," said Oran—"Farewell." And these were the last words Hyland ever heard him utter. He descended from the wall—*how* the prisoner knew no more than how he had climbed it,—and that so suddenly, that although Hyland called to him again, the moment the farewell had past his lips, he was already beyond hearing. Finding that he was really gone, the prisoner fell upon his knees, and strove to invoke forgiveness of the act he meditated: for he rightly felt that it must be but a form of self-murder.

He then threw himself on his couch, looked back upon the events that had marked his existence in the valley, and wept over the misery they had entailed upon one whom his love had wrapped in the same destruction with himself.

CHAPTER XVII.

Convict by many witnesses and proofs,
And by thine own confession.

The Master of Fiction has compared the course of a supposititious history to the career of a stone, rolled down the side of a mountain; which, at first, labouring and stumbling along, in a slow and hesitating manner, as if on the point of being arrested by every petty obstruction, gathers force as it descends, and at last pitches onwards with impetuous leaps, which soon conduct it to the bottom. To give the figure the completeness of an allegory, it may be added, that when the moving body has once acquired a little superfluous momentum of its own, it communicates it to other stones, and these again to others, which, increasing in number as they grow in velocity, are at last seen rattling down to the vale below, in a perfect avalanche, as confounding to the senses as it is hurrying to the spirits. In this manner, a single incident begins its weary course along the declivity of story, stirring up others as it rolls onward; until, in the end, there is such a mass in motion, that, if all were to be described as fully as at the starting, it would require a Briareus himself to do them justice. It is, then, difficult to keep pace even with the original event, the course of which is as violent as the others; and this can be done only by imitating the hurry of the moving body, and marching, in great leaps, to the end.

We must pass by, with a word, the confusion caused throughout the whole village by the rencounter in the prison-yard; the steps that were taken in consequence to follow the refugee who had escaped; the proceedings that were had in relation to the bodies, (for the wounded Staples expired within a few hours after his surrender;) and, finally, those that paved the way for the trial of the unfortunate Hyland.

The morning broke; the hour of trial approached; the village was thronged with the idle and the curious; the court was opened, the grand jury empannelled and charged, and in a short time returned into court a formal bill of indictment against Hyland Gilbert, with some two or three *aliases*, for the wilful murder of Henry Falconer.

The details of the trial it is not our purpose to narrate. There were the usual preliminary flourishes, thrusts, and counter-thrusts, on the part of the counsel, with those applications for postponement and arguments against it,

that weary the patience of the good citizens who come to a tribunal of life and death as to a raree-show, and perhaps with some such feelings as conducted the ancient Romans to the amphitheatre. There was even an attempt made by the prisoner's counsel (of whom the unlucky Affidavy was *not* one—at least, he did not make his appearance,) to oppose the jurisdiction of the court, precisely as Affidavy had boasted he would do, but with so little zeal and energy, that it was soon seen the prisoner was to derive no benefit from such a plea. In fact, from the beginning to the end, the counsel for the prisoner conducted the case in so spiritless and desponding a manner, as to convey the most melancholy prognostic to those who judge of the goodness or badness of a cause by the colour of a counsellor's complexion. It seemed as if they were themselves too well satisfied of his guilt to think of contending for his innocence; and it was soon seen that they had good cause to despair; for the prisoner, upon being formally arraigned at the bar, rose up, and despite the opposition of his counsel, insisted upon pleading *Guilty* to the indictment.

From the consequences of this rashness—a result of mingled remorse and despair—the unhappy young man was saved by the humanity of his judges, who directed the plea of Not Guilty to be entered, as, we believe, is usual, or at least frequent, in such cases.

Upon being asked 'How he would be tried?' he answered, with the same readiness, "By God and my country;" and the elder of his counsel making some trivial remark on the latter word, coupled with the hint that his *domicil* was strictly within a foreign territory, he repeated the word with great vehemence, insisting 'that he was born upon the soil on which he stood, and whether he lived or died, and whether it owned the sway of the royal government, or assumed the state of a free Republic, it was still as much *his* country as before, since still the land of his birth.'

He was directed to resume his seat; but the readiness with which he seemed to abandon all the little hopes remaining to him softened the hearts of his judges, and brought tears into the eyes of many who came to see, in a Gilbert and refugee, some dread-looking monster, and beheld only an emaciated youth, evidently nurtured on the lap of gentleness. Indeed, there was no little confusion produced on several occasions, by the compassion

his appearance excited; one instance of which happened, when Captain Loring, summoned entirely without the knowledge of Hyland, along with two or three others, for no imaginable purpose, but to testify to the mildness of his disposition and the excellence of his previous character, entered the witness's box, and laid eyes on the youth for the first time since his arrest. He no sooner beheld his wretched plight, than forgetting half his own wrongs, he began to blubber and stretch out his arms, and declare, 'after all, adzooks, he didn't believe his young Herman had committed the murder, for all they said of him.' Then being reprov'd, and something in the rebuke reminding him of his daughter, he burst into a rage, reproaching the young man for his deceit and base outrage, from which he was only diverted by a second rebuke, to begin to blubber and defend as before. In short, it was soon found that his testimony was not to be obtained, and as his wits were pretty generally thought to be infirm, he was directed to be removed. This was, however, at a later stage of the trial, and after the more important witnesses had been examined. These comprehended those individuals who were present at the scene of blood, the chief of whom were captain Caliver, lieutenant Brooks, and the adventurer Sterling. The evidence of the two former might have been esteemed sufficient of itself to convict the prisoner, and there seemed a degree of cruelty in bringing into the court, merely to confirm their testimony, a man enduring so much bodily suffering as this wretched Sterling. It seemed, that he had received some serious injury, when hurled so roughly by Oran Gilbert among the rocks; for it was remarked, soon after the cavalcade was formed that conducted the body of young Falconer to Hawk-Hollow, that he became wan and troubled, and occasionally a little wandering in his behaviour. He had grown worse during the three days he was confined in prison, and had caused no little trouble by his groans at night. In addition to all this, he had bled freely from the cut he received from the jailer, while attempting to escape; that attempt, as he averred on a previous occasion, having been made in his sleep, he being occasionally afflicted with the infirmity of somnambulism. When he appeared in court, all were struck with his haggard appearance; the light of cunning had departed from his eyes and mouth, being superseded in the one by a certain wild, yet torpid and smouldering ray, such as might be looked for in the organs of an expiring maniac, while the other was distorted with pain, of which it was hard to say whether it existed most in mind or body. Upon being called upon to declare what he knew in relation to the prisoner

and the deceased, he swore, to the surprise of every one, 'that he knew nothing to prove the prisoner's guilt, but much that spoke in favour of his innocence.'

Even Hyland, who had leaned his head down in passive despair, was startled at a declaration so unexpected; his counsel became a little animated, and the Deputy Attorney General reminded the witness, 'that he was now in a court of justice, speaking to truth upon oath, and not upon the boards of a theatre, delivering the tricky paradoxes of a play-wright.'

"Very true," said Sterling, with a ghastly smile; "but that day is over."

Upon being asked what he meant by the last expression, he replied, 'that he alluded to his original profession of the stage, on which he once had his day, like others.' He then proceeded to state, that while pursuing his vocation, some years before, in the island of Jamaica, he had several times seen the prisoner, then a young man of eighteen or twenty, the heir of a rich widow, his kinswoman, and occupying a highly favourable situation in society, and being, as far as he knew, of estimable character. He next encountered him in the month of May, at the tavern of Elsie Bell; although he did not immediately recognise him. The third time he saw him was at the Terrapin Hole, among, or near to, the refugees, among whom, as he caused it to appear, he had himself stumbled by accident; the consequence of which was that he was induced to join the band, to protect himself from a peculiar peril in which he was placed. On the evening of that day, he accompanied the leader of the band to the park of Gilbert's Folly, where the prisoner was found struggling in mortal combat with the deceased. A conflict ensuing, of which he could say but little, having spent several hours previously in drinking, he did himself attack the deceased with a pistol, scarce knowing, in his intoxication, what he did, and would have killed him, had he not been restrained by the prisoner, who took the pistol from his hand, and assisted the deceased to make his escape; "and this the prisoner did," added the witness, with a firm voice, "although, at that moment, he was bleeding from a pistol-shot, received but a moment before from the deceased, with whom he had fought a duel, and by whom he had been treated with some unfairness and much barbarity."

He then continued to state, that the design having been communicated to him of carrying off Miss Loring, he himself, esteeming it rather a wild frolic than a serious outrage, had obtained permission to co-operate in an assumed character; and that what confirmed him in the belief that no wrong was meditated to any one, was his overhearing a conversation betwixt the prisoner and Oran Gilbert, in which the former insisted that no one should be injured, particularly naming the deceased and his father, Colonel Falconer. At the time the band broke into the house, he, being again overcome by wine and in a mischievous mood, knocked down the deceased with a fiddle; and had the prisoner been moved by any malicious impulse, he could have easily killed him at that time. As for the murder itself, all that he could say was, that at the moment the pistols were discharged, he was himself nearer to the prisoner than was any other person on the ground; and yet he could neither swear upon his knowledge nor to the best of his belief, that the prisoner had fired the pistol that terminated the deceased's career. There were several pistols fired, he knew not by whom, nor did he believe any man could say by whom, for the morning was still dark, and all were in confusion. It was as likely that the deceased had been killed by his own (the deceased's) pistol, as by the prisoner's; for being notoriously an expert shot, nothing but accident could have caused him to miss the prisoner, at whom he aimed, and who was so nigh at hand; and the accident that diverted the pistol from the prisoner, might have turned it against the neck of the deceased himself. Finally, he was convinced, that, be the matter as it might, there could have been no malice aforethought on the prisoner's part, or he would have taken advantage of those moments to execute his purpose when he could have done so without risk or discovery.

This testimony, which was justly esteemed extraordinary, coming as it did from one who had been admitted as evidence against the prisoner, produced a remarkable effect throughout the whole court and jury, as well as the spectators; and was indeed more like a harangue designed for the prisoner's benefit than any thing else. It was delivered with pain, but still firmly, and at the close, the witness appearing to be exhausted, he was allowed to retire, while the Deputy, saying, 'he was gratified to hear such mitigating circumstances advanced in the prisoner's favour,' added that he would summon two witnesses to prove the murder from the prisoner's own voluntary confession, and would then produce two pistols, the only ones

discharged, one of which he would prove had been fired by the deceased, the other by the prisoner.

The jailer and his assistant were called, and both swore, that the prisoner had repeatedly called himself a murderer.

Honest Schlachtenschlager, who had officiated as coroner, was then summoned, and appeared in court, bearing five pistols, being those delivered to him by Brooks, while sitting on the inquest. These being handed to the latter gentleman, he immediately identified one as the weapon discharged by the deceased; the second, he averred, he had taken from the ground at the prisoner's side, and the other, its fellow, from his holsters: the remaining pair belonged to Sterling, and had been taken from him before or after the murder, he knew not which, and had been by the witness given into the possession of Schlachtenschlager.

"Yes," said Schlachtenschlager, "that fas fat the young man said. T'at pistol mit the colden star on the preech, and the plue parrel, fas the ploodty feapon."

Here the worthy magistrate was directed to hold his tongue, his evidence not having been required, and his commentaries being wholly superfluous. But he had said enough to give a new and unexpected turn to the whole proceedings; for the prisoner, who had been staring from the pistols to the witness, with a sort of passive recklessness, no sooner heard the words 'golden star,' and 'blue barrel,' uttered than he started up as if seized with a fit of madness, his eyes staring out of his head, his arms outstretched, and his whole figure displaying the influence of some extraordinary conception.

"The golden star! the blue barrel!" he cried, in a voice that thrilled every bosom. "Oh heaven! have I been mad up to this moment? Ha, ha, ha! what a fool! what a dolt! Give me the pistol!"

"Sit down," said one of the judges; and even his own counsel endeavoured to force him back on his seat.

"I won't sit down," he cried in the same tones. "The pistol! the pistol! my life depends upon it! Oh, heaven be thanked! I am an innocent man. The

pistol! look at the pistol: there is a shot in the vent, and it will not fire! I remember now, it flashed when aimed at Sterling. Call Dancy Parkins—examine it, look at it, prick it with a needle,—blow in it, pour water in it—it could not harm him! No! heaven be thanked! no, no, no!" And so great became his agitation, that he fell to the floor in a fit of convulsions.

This singular announcement produced unspeakable agitation. The court was ordered to be cleared, and the prisoner to be withdrawn a moment, until restored to his senses. Dancy Parkins was then called, and upon being shown the pistol, swore positively to the effect, that one of them (he knew not which,) had become useless in consequence of a leaden shot, or some other substance, getting into the vent; that the day before the attempt upon Gilbert's Folly, he had been directed by the prisoner, upon whom he attended, to remove the obstruction; that he had received it for that purpose, but finding the removal more difficult than he anticipated, and being hurried by other circumstances, he returned it to the prisoner's holsters, intending to resume the task at another time; and then being separated from him, for the purpose of intercepting the clergyman, had forgotten it entirely. He knew not which of the two pistols it was; but if, as he supposed, the prisoner had not attempted to fire both, one would be found charged: the other, that is to say, the one out of order, he had himself taken care to empty of its contents before attempting to remove the shot from the vent.

The pistols were immediately examined, and one found well charged. The other was empty; and, as had been said, and as was hoped by almost every man present, it was discovered that there was some foreign body in the vent, which rendered it wholly unserviceable.

"This is indeed extraordinary!" said a judge on the bench.

"With your honour's permission," said the Deputy, who had been whispering to one of the under functionaries of justice, and now looked up in some perplexity, "I will recall the witness Sterling to the stand; though I humbly submit, I know no more than your honour what he has to say more. Yet he desires to be recalled."

"Ay, let him come," said Hyland, clasping his hands with joy. "He remembers the circumstance; for I showed him the pistol, and he told me

the shot could be only taken out by a drill."

At this moment, the current of feeling was strongly in the prisoner's favour, and the condition of his weapon rendering it impossible that *it* could have discharged the fatal bullet, there was scarce a man present who did not believe him innocent, and believe so with pleasure, notwithstanding his unhappy connexion with the outlaws. But it was destined to be seen upon what a reed they had based their commiseration and belief, when Sterling, appearing again, craved to mention a circumstance which was now recalled to his memory by the turn of proceedings, and of which his previous forgetfulness should be rightly attributed to illness and disorder of mind. He remembered well the conversation of which the prisoner spoke; he *had* said, that nothing but a drill would remove the obstruction; *but*—and here he spoke with a degree of agitation that showed his reluctance to advance any thing against the prisoner—it happened that the conversation terminated in himself offering to remove the difficulty, by taking the pistol with him to Elsie Bell's, where some instrument might be found to serve the purpose; that he *had*, accordingly, taken it, leaving one of his own pistols with the prisoner, but had found neither leisure nor opportunity to repair it; that the circumstances of flight had prevented a re-exchange; and finally, that the incident had not been again thought of by him until the present moment. He was not himself disarmed until after Falconer's death; he had a pistol in his hand at the moment, which he dropped, while seizing upon the prisoner; and taking it up again (as he supposed) afterwards, it was probable he had then, without observing it, regained his own; and *this* might perhaps be the weapon with which the unfortunate shot had been fired. He was disarmed a few moments afterwards, and was then seized with indisposition, which prevented his examining into the matter, or indeed thinking of it.

This testimony was as decisive as it was wholly unexpected. It struck the prisoner dumb, and his looks of horror were esteemed the best proofs of guilt. It was in vain that he afterwards exclaimed that the witness had sworn falsely; he had no testimony to disprove the story, and it was one that all others found apt and true, especially when Sterling's pistols having been examined, one of them was discovered to be empty. No one had dreamed of doubting the prisoner's guilt, until the moment when his sudden burst of animation at the sight of the weapons, threw all into confusion; and such

was the change of feeling produced by Sterling's testimony, that it soon became the general impression that the prisoner had been playing a part in first acknowledging himself guilty, and then affecting to be surprised into a belief of his own innocence. Such an opinion as this could not, indeed, long prevail; for it was manifest, upon considering the circumstances, that the prisoner must have been as ignorant as others of the true condition of the pistols, unless he had previously, as if in anticipation of arrest, founded his whole scheme of bloodshed upon the accident of the obstruction; in which case he must have fired the other pistol, which was still loaded, or used some third one, which he had cast out of sight, although instantly surrounded by many different persons. The testimony of Sterling afforded the only and the best solution of the riddle, as far as it related to the crime; while in regard to the prisoner himself, all that could be imagined to account for his change of deportment, was to suppose that even *he* had forgotten the original exchange of weapons,—that he was inspired with the hope of escape, upon the presentation of his own as that by which the murder had been committed,—and that that hope, thus accidentally excited, still nerved him to assert his innocence.

The contest was however over, the hour of grace was past, and the jury, after being charged in a manner highly unfavourable to him, were sent out to form a verdict, the character of which no one thought of doubting. It was even supposed that a few moments would suffice to terminate their deliberations, and that they would shortly return, to pronounce the word of doom. In this, however, the spectators were disappointed: some merciful, or doubting member of the panel had thrown a difficulty in the way of others; and, the prisoner being remanded, the court was adjourned until such time as they should be found to have agreed upon a verdict.

In the meanwhile, expectation was still on the stretch; the spectators from a distance still lingered in the village, the villagers themselves wandered up and down, or collected together at their doors in groups, all awaiting the tap of the bell that should call the court together to receive the verdict, and all agitated by the thousand rumours that were supposed to have made their way from the jury-room. It was twenty times, at least, in the course of the night, reported that the jury had already agreed, and twenty times there was a rush of people towards the court-doors, anxious and eager to behold the

bearing of the prisoner, while listening to the word that should consign him to the death of a felon; but twenty times curiosity was disappointed; and the morning came without bringing the jury from their place of deliberation.

But long before the night had passed away, a new feature was added to the story of Hyland's fate, and new characters mingled in the drama, bringing with them new revelations.

CHAPTER XVIII.

Peace: thou hast told a tale, whose every word
Threatens eternal slaughter to thy soul.
———Heaven is angry, and, be thou resolved,
Thou art a man remark'd to taste of mischief:
Look for't; though it come late, it will come sure.

FORD.

The appearance of the refugees, with the fierce though unavailing contest they had attempted with the pursuers on the night of the outrage, had spread the alarm far and wide; and this was not diminished by the daring assault on the prison, as it was called, the real character of that enterprise not having yet generally transpired. One consequence of the alarm was, to draw to the scene of commotion the governor, or President as he was then called, of the commonwealth, who happened in the neighbourhood upon some tour of duty, and arrived after nightfall, so that his person was not generally known before day. One of the first persons upon whom he laid his eyes, after entering the hotel, was his old and distinguished acquaintance Colonel Falconer, with whose unhappy loss he was already acquainted, as well as with many incidents of the trial. Upon saluting him by name, the Colonel became greatly agitated, and besought him not to repeat the word, if he would not have him murdered before his eyes; with other expressions

indicative of a disordered mind, which the dignitary attributed at once to his melancholy bereavement. He then accompanied him to a private apartment, where he attempted to soothe him by condoling with him on his loss, but found him incapable of listening to argument or entreaty. The death of his son did not seem to affect him so deeply as the malice of the murderer, of whom he spoke with a bitterness and vindictiveness of feeling that shocked his hearer. It has been seen how his heart softened over this unhappy youth, when he met him at the water-fall, and deemed that he owed a life to his virtue. The death of his son had, however, converted his feelings into a new channel; and he saw in the humanity that drove him from the Hollow, only the evidence of a cold-blooded design to withdraw him from the scene, that his son might perish unaided; and this design he contrasted with his own friendly resolutions. In short, the demon of revenge had entered his spirit, along with that of fear; for, it seemed, the repeated discoveries of Oran Gilbert penetrating even to the haunts of his foes, had infected him with terror on his own account. The sight of the governor, in whose hands lay the power of life and death, seemed to throw him into alarm, lest he had come with the design of pardoning the murderer; and he lunched at once into a strain of vehement complaint, in which he mingled denunciations against the prisoner with personal calls upon the governor for justice.

In the midst of this scene, which the magistrate strove in vain to bring to an end, the door of the chamber was thrown open, and the figure of Elsie Bell entered the apartment. She had risen from a bed of sickness,—it might have been supposed from a bed of death, for her appearance was more like that of a moving corse than a living being: and as she tottered up to Colonel Falconer, who stood aghast at the spectacle, her bloodless cheeks, livid lips, and eyes shining, almost without speculation, through the gray locks that had escaped from her head-dress, filled even the governor with awe.

"Where is Richard Falconer?" she cried, "I heard his voice but now; and it called for justice!"

Her looks wandered from the governor, upon whom they were first fixed, to the object of her inquiry; and it is impossible to describe the expression of mingled triumph and horror with which she surveyed him. She raised her

shrivelled hands, and shaking them with a fierce but palsied motion, cried,
—

"Yes, Richard Falconer, you called for justice, and now you have it. It has come, at last, in blood, and in blood richer than that of your own bosom. The death-bed curse of a ruined woman will not be forgotten,—it curses forever!"

"For God's sake, governor," cried Falconer, trembling from head to foot, "leave me, or take the wretched creature away."

"Yes, leave us," said the widow: "let no one look upon him more, let no one look upon him now. Away, if you have pity for him who has none for himself."

The governor looked at Falconer, and perceiving that, although incapable of utterance, he made earnest gestures to him to depart, he left the chamber without speaking a word, but with a look indicating amazement and suspicion. He was no sooner gone than Elsie, stepping up to Falconer, laid her hand on his arm, now seemingly as palsied as her own, and said, with accents that sounded in his ear like the cry of a raven,—

"You asked for justice—ay, I heard the words with my own ears! you asked for blood,—the blood of him who has shed that of your son! You called for justice—it was for justice on your own head! Richard Falconer," she continued, "well may you tremble; the curse of Jessie Gilbert is now upon your soul, and it will be on it for ever."

"Woman," said Falconer, endeavouring to shake her off, but in vain, "you will drive me distracted."

"I will do you no such mercy," said Elsie: "Hearken—the last words of Jessie Gilbert were a curse,—the curse of a broken-hearted woman upon her betrayer: she died cursing you, and now the curse you feel, without knowing half its dreadfulness. Richard Falconer, you ask for the blood of Henry Falconer's murderer. Miserable man!" she added, relaxing her grasp, and clasping her hands with horror, "it is the blood of your own son,—the blood of the child of Jessie Gilbert!"

"Hah!" said Falconer,—but said no more. He gazed in the face of the speaker, and read a dreadful confirmation of her words, while she continued to utter, as in a kind of insane exultation,

"Is not this revenge for Jessie Gilbert? The brother kills the brother, and the father kills the son!—ay, as he before killed the mother! Now, Richard Falconer, repent and die—the victim is avenged! It is true!"

"It is false! false as hell!" said Falconer, recovering speech; "or what, oh God of heaven! what am I!"

"The avenger of your own black and heartless villany," said the woman. "Hearken, Richard Falconer, and you shall know all. When Oran Gilbert knew the shame of his sister, he swore its miserable fruit should never see the light; and I knew he would slay it, even out of hatred of the father. That night! that night! it was a night of horror. Jessie Gilbert lay dead, with a babe wailing on her bosom; and the mother, the broken-hearted step-mother gave to my hands her own untimely and still-born offspring—the brothers raved at the door, calling for the child of shame. I had mercy—mercy on your child,—not because it was yours, but because it was the babe of Jessie. I laid it in the arms of the step-mother, and it lived. She kept the secret, and the father of her you betrayed kept it also, though he sent it afar from his sight. Thus was it saved—thus was the child of sorrow preserved, that he might imbrue his hands in the blood of his brother, and then perish at the call of his father!"

"Wretch!" said Falconer, sinking on a seat, "and this dreadful secret you kept, that *I* might be made the most miserable of men? And you incited on the unhappy Hyland to the murder of his brother?"

"I did what I could to save him,—not for your sake, though, Richard Falconer, but for the love of Jessie. I warned the boy of his danger—nay, I would have told him of his birth, but that I knew it would kill him; and I loved him for his goodness. Why should I have filled him with shame, staining him who was innocent of his father's crimes, with the disgrace of his birth?"

"Elsie Bell," said Falconer rising and advancing towards her, "I am a villain.—My poor Harriet! my poor Harriet!" he added, and as the widow looked into his face, she was amazed to see it streaming with tears. "But for her, but for *her*," he added, "but for her and my wretched Henry—but for my children, Elsie, I might, I *would* have done justice to Jessie's memory. Oh God! had I but known of this thing before! But why, *now*, should it be known? You revenge the murdered Jessie not on me, Elsie, but on my poor Harriet. The stain you feared to cast on the name of Hyland, you fling on the forehead of my daughter. Elsie Bell, Elsie Bell," he exclaimed, in unspeakable agitation, while drops of sweat rolled from his temples and mingled with his tears, "if I tell you what you know not, though it show me to have done worse by Jessie Gilbert than you dream, it will destroy my remaining child. And why should I destroy her? Why fling her before the world as a creature to be scorned, for the sake of a wretched fratricide? I will not do it,—I will say no more—what *have* I said? When they are dead,—when all are dead, then let me lay bare my baseness, and think of the memory of Jessie. But this child,—this wretched, this blood-stained Hyland,—I will save his life,—the governor shall grant me his pardon; it cannot be that he will refuse me—But I will never see him, no, never—Hah! hear! what is this? They are bringing him forth! Hark! they are shouting aloud for his condemnation!—Oh heaven support me! To this I—I have brought him!"

But we have not the courage to pursue further the agonies of the wretched father, whom a sudden commotion in the street, with loud cries of "To the court! to the court! the jury have made a verdict!" one of twenty false rumours to which expectation gave birth,—threw into new transports of anguish. At last, moved by an irresistible impulse, he started up and ran into the streets, through which he made his way to the prison.

In the meanwhile, Hyland strode (for though securely fettered, he was no longer chained to the floor,) to and fro in his cell, a changed, we might almost say, a happy, man. The sight of his pistols in the court had introduced a new set of associations, from which he perceived clearly, that, although he had so long esteemed himself the author of Falconer's death, that young man had, in truth, fallen by some other hand. The story told by Sterling of the exchange of pistols between him and the prisoner, was, as

Hyland had pronounced it, a sheer fabrication; although he was unable to devise any reason Sterling could have for swearing falsely; his original testimony having made it clear, that he was not actuated by motives of malice. He remembered that he had raised a weapon against his rival, which, as others were discharged at the same moment, he did not dream had failed to go off; although he now recalled to mind that the same one—he had taken it from the same side of the saddle—had flashed in his hands, when aimed at the head of Sterling. Remembering these circumstances in connexion with Dancy's declaration that he had restored the pistol, entirely empty, to the holsters, he saw at once, however others failed to see it, that Providence had interposed to save him from the crime of bloodshed, and that he was therefore, save in intent, wholly innocent. This persuasion was enough to banish his despair, which was founded chiefly on remorse; and perhaps, in great measure, also, his apprehensions; although in a cooler moment, he would have perceived upon how weak a foundation he built his hope of escape, so long as the falsehood of Sterling was not exposed.

Twenty times he endeavoured to throw himself upon his knees, to thank Heaven for its signal interposition in his favour; but his devotions were checked by the tumult of his mind, which increased at last into such distraction, that although he received a visit from his jailer, whose errand had no unimportant bearing upon his interests, he failed to take any advantage of Lingo's good will, or even to understand the purport of his communications. The fact was, the note of hand which he had drawn from Affidavy's pocket, besides affording confirmatory evidence of that worthy individual's connexion with the attempted rescue, had made a strong impression upon Lingo's cupidity; and his object in the visit was nothing less than to intimate *his* willingness to serve the prisoner in the same way, and on much more reasonable terms. But he found the prisoner in no condition to treat with him on such a delicate subject; and after unmasking his battery, and uttering several broad hints in regard to his friendly intentions, he was forced to give over in despair, resolving, however, to open negotiations at a more favourable moment.

In the meanwhile, Hyland still paced to and fro through his dungeon, till his feeble limbs refused to support him longer. He then threw himself upon his couch, and becoming more collected, pondered bitterly over his situation.

He heard the rush of the people towards the court-house, which was at no great distance, as well as their shouts 'that the jury had descended!' and he felt at once, with a thrill of fear, that he still lay hovering on the brink of a precipice. He started up in an agony of mind not to be controlled, and throwing himself upon his knees, began to invoke heaven with wild exclamations; when the door of his cell was thrown open, a bright lamp flashed in his face, and looking up, his eye fell upon that of Colonel Falconer, who entered the room, followed by the tottering Elsie. The door was closed behind them, and Falconer stood rooted to the floor, surveying his wretched offspring, who seemed petrified at his appearance, while Elsie stepping up to him, held the lamp to his face, and bade the father look upon the features of his son.

"It is Jessie's face over again," she muttered, "and as pale, as ghastly, and as distracted as when she cursed her betrayer. She cursed him, but do not *you*, Hyland—the curse has fallen upon all. Now, Richard Falconer, behold your son, and remember Jessie Gilbert!"

"His son!" cried Hyland, starting to his feet; "*his* son! Are you mad? Oh, Elsie, I am half distracted myself. Why do you bring that man to me?"

"Because," said Elsie; "he claims to see his offspring."

"His offspring! Vain old woman!"

"Would that you were not," said Colonel Falconer, with clasped hands. "I am now punished enough. Alas, wretched boy, you have killed your father's son. Harken to this woman, and then add to the crime that already stains you, a malediction upon your parent."

"It is true, Hyland, it is true," said Elsie. "As there is a heaven above you, you look upon your own father, and you have killed your half-brother."

"I have killed nobody," said the youth, impetuously; "and if you would have me still innocent, drive that man away. His son! sooner make me the way-side beggar's—nay, make me believe myself a murderer rather. His son!"

"Ay," said Colonel Falconer, with deep emotion, "the sinful son of a sinful parent."

"Stand away! approach me not!" said Hyland, for Falconer was approaching. "Your misfortune has turned your brain. Touch me not, for I remember my sister!"

"Your mother, boy, your mother!" said Elsie.

"Be it my mother, if you will: what then have I but more cause to curse the author of her shame?"

"The author of her death, not shame," said Falconer, with a smothered voice. "Murderer of your brother, even for your sake I will take that veil of disgrace from your mother's memory that must be hung round the brows of my daughter. Do not curse me, my son—Elsie Bell, I deceived you all, and it was the deceit that killed my poor Jessie. This boy was born in wedlock,—the child of the abandoned and broken-hearted, yet wedded, wife of her destroyer."

"Your wife! gracious heaven, your wife!" said Elsie, on whom these words produced as strong an effect as upon the bewildered Hyland. "Now, Richard Falconer, if you have spoken the truth, you are indeed a blacker villain than ever men believed you."

"I am," said Falconer; "for with the lie I killed my wife and laid her in a grave of dishonour. You were made to believe it was but a mock ceremony that united us: it was a legal and honourable tie, and broken only by the death of Jessie. And for what purpose? You know, Elsie Bell, you know very well, yes, surely you know," he added, with much agitation, and as if afraid to speak further. But Elsie sternly affirming her ignorance of any cause he had for destroying the peace and good name of her whom he acknowledged his lawful wife, and Hyland now regarding him with a look of mingled fear and entreaty, he essayed to speak; and again the sweat-drops, oozing from his temples, betrayed the anguish and shame of mind with which he exposed an act of unexampled duplicity and baseness. His confession was indeed one which no light remorse could have wrung from his spirit; but it was made, and made without concealment or attempted

extenuation, although it undoubtedly revealed a strong if not just reason for his failure to rescue from shame the memory of his betrayed wife. He had begun the world as a needy adventurer; but was early patronized by a gentleman of great wealth, with whose daughter, an only child, he soon presumed to fall deeply in love; the consequence of which was the withdrawal of his patron's favour, and immediate expulsion from his house. It appeared, that he had not failed to make some impression upon the lady's heart; but she was a spoiled child and coquette, and he left her with but little hope of ever deriving any advantage from her tenderness. He betook himself to the army, was transferred, in course of time, to the frontiers, and in less than two years after his departure, found himself recovering from the wounds he had received at the Moravian town, under the roof of Gilbert's Folly. The youth and beauty of Jessie, his gratitude for her kindness, and still more, perhaps, for her affection, which the simple-hearted maiden gave him almost at first sight, and had not the power to conceal, touched his imagination, if not his feelings; and in a moment of excitement, and folly, he proffered her his hand, and was married. The marriage was secret—it might be added, accidental; for the freedom of manners, at that day, and in that country, allowing such license, he often, as he recovered, found himself galloping with the merry maiden on visits among the settlements a dozen or more miles distant; and it was upon one of these occasions that he gave his love and faith together to the thoughtless maiden. The knot was, however, no sooner tied, than he was seized with fears and regrets: he had already received overtures towards a reconciliation by his old patron, and without well conceiving in what manner he could profit by a return of friendship in such quarter, he persuaded himself, and his bride also, that his interest demanded some temporary concealment of their union. To this Jessie was easily induced to accede; for having no distrust in her lover, she saw in such concealment only an additional frolic, such as she esteemed her marriage to be. She feared no censure from her parent, who had indeed long since signified the pleasure with which he would receive so gallant a gentleman for his son-in-law; and she looked forward with merry anticipation to the hour when she should present herself to him as a bride of a month's standing. She consented therefore, not merely with readiness, but alacrity, to preserve the wedding a strict secret; and in that fatal consent paved the way for her own ruin and untimely end. We will speak the remainder of the mournful story in a word. The overtures from the patron were renewed, and

were accompanied by the smiles of his daughter. Falconer looked upon Jessie with anger, perhaps with abhorrence,—she stood in the way of his fortune. The old love smiled again, and forgetting that now the smile came too late, he yielded to the intoxication of his original passion, threw himself at her feet, and became, even with her father's consent, an accepted lover. The state of his mind can be now better imagined than described; love, avarice, and ambition together, as well as a consciousness that he had involved himself beyond all retreat, urged him to persevere in a suit both dishonourable and criminal; and Jessie was now thought of only to be hated. Months passed by, and the jest of the frolic was over; yet the marriage was not divulged; the young bride begged to disclose the secret, and every entreaty filled him with new alarm and anger; until the accidental death of the regimental chaplain by whom they had been united, and the previous decease of the only witnesses to the ceremony, put him upon a scheme for relieving himself from his bonds worthy rather of a fiend than a human being. His witnesses were two soldiers of his company, whom he had bribed to silence so liberally, that they quarrelled together in their cups, and fought, and that with such fury, that one was killed on the spot, and the other died before he could be brought to a trial. The chaplain was drowned five months after in attempting to cross a flooded river. There remained therefore no witness of the union, and the only testimony remaining, to wit, the certificate signed by the unfortunate chaplain, was already in Falconer's hands. Opportunity—the devil that seduces beyond all other fiends—destroyed every vestige of honour and humanity in his bosom; he fled from his betrayed wife, leaving her to believe that the ceremony of marriage between them had been only a brutal mockery, contrived by a villain for her ruin. He left her to believe this, to madden, and to die; and before she had drawn her last sigh,—nay, upon the morning of that dreadful midnight that saw her expire,—he had yielded to the fate he had encouraged, and taken a second wife to his bosom.

"I lived, I prospered," he cried, when he had brought his dark confession to a close; "and two fair infants sat upon my knee; but their looks were curses to me—their birth was *infamous*; and I myself, though men knew it not, was in the eye of God and the law, a *felon*!—Now, Hyland, son of the wronged Jessie, I have defended your mother's memory; but I am not less a villain. Expose me to the world, curse me, for I deserve it—yes!" he added,

with wildness, and even falling upon his knees before the horror-struck son,—"expose me and curse me, but have pity upon my child,—have mercy upon your sister,—the sister of the brother you slew,—my poor, wretched, dishonoured Harriet."

"God forgive you, sir," said Hyland, with tears. "Leave me—I cannot call you *father*: but I will not disgrace your daughter. No, I will not—but my mother——And she *was* my mother then?—my mother's name must rest no longer in infamy. Go, sir; I forgive you—that is, I will not upbraid you; but I cannot, I cannot call you father. I am innocent of Henry's—of my brother's death——Yes, I will call him brother, for surely *he* never wronged my poor mother. Take this much comfort—*my* hand never fired the pistol that killed him; and, whether I live or die, it will soon be seen that I am innocent of his blood."

"God grant it," said Colonel Falconer, but with an accent showing how vaguely the thought of Henry now sat on his bosom. "God grant it—but—hark! what is that? They cry again! It is the descent of the jury! Oh Heaven, I am punished indeed for that act of baseness! Farewell, my son: I do not ask you for forgiveness—but touch my hand, grasp my hand but once"——

"I cannot," said Hyland, recoiling with such horror, that the unhappy father bowed his head with shame. He then snatched up the light, unconscious of what he did, and moved towards the door, as if to depart; but a louder cry from the street striking his ear, he again turned round, and looked Hyland in the face.

"They are calling for your blood," he said, "but they do not know you killed your brother!—What! not touch my hand? Well, it is but justice.—I will not trouble you more."

With these words, he turned to depart, still holding the lamp; but had scarce moved his foot, before there was heard, at a little distance without, the sound, as it seemed, of a rifle, or other small arms.

"Oh Heaven! my father!" cried Hyland, starting up, with a voice that thrilled Elsie to the brain,—"*I have killed my father!*"

The lamp fell from Colonel Falconer's hands, and all was in darkness. As Hyland rushed to where he had stood, his foot struck against a prostrate body; and reaching down, he found his hand slipping in a puddle of warm blood.

"Elsie! Elsie!" cried the distracted youth, "a light for God's sake! It was meant for *me*, but it has struck my father! Why did I forget? Oh, I thought not of my folly.—Help me, Elsie—he groans."

"Enough,—let me lie where I am," said Falconer, with a voice almost inaudible. "There is retribution for all."

"Call the jailer!—Quick, jailer, quick!" cried Hyland, as the door opened, disclosing the broad and wondering visage of Hanschen: "help me to place him upon the bed; and then, oh for God's sake, quick for a surgeon!"

But Hanschen answered only by slapping to the door, without uttering a word; and making his way as fast as he could towards the cell of Sterling, in which was, at that moment, presented a scene of not less fearful character than that which had passed before Hyland's eyes.

CHAPTER XIX.

Let me sit heavy on thy soul to-morrow.

KING RICHARD III.

It was not until long after noon of the day of trial that Affidavy woke from the stupefaction into which he was plunged by the cup he had so craftily qualified; and then it was some time before he could summon his recollection, and conceive where he was. He found himself in a cell obviously of the prison; for the single window that lighted it was strongly grated, and the door fast bolted on the outside. There was a bed hard by, in which, as was apparent from its condition, some one had passed the night; but who that might have been he knew not, no one being now visible. As for himself, he found that his couch had been nothing better than the hard floor; and close by where he lay, he discovered a pool of coagulated blood. He was seized with alarm, and finding the door refuse all egress, he ran to the window, and beheld in the yard which it overlooked, a sight that, besides filling him with new terror, conveyed an inkling to his mind of his true situation and its cause. This was nothing less than the dead bodies of two men, lying stiff and gory upon a bench, without even a cloth to conceal them from the light of day.

"Botheration, and God bless my soul!" he cried, "I'm a ruined man!"

"Done up,—as clean as a skinned eel," said a voice at his back; and, looking round, he beheld his friend, the jailer, enter the cell, with a grim smile on his visage, which was not much improved in beauty by a red handkerchief, that swathed it round from jaw to top-knot. "Done up, Teffy, my boy, as slick as a new bolt. Who'll you have for your counsel?—or do you think of pleading your own cause? Ods bobs, you can make a good speech;—I always said that for you."

"Counsel!—cause!—speech!" echoed the man of law;—"God bless our two souls!"

"Amen,—or e'er a one of 'em," said Lingo, with solemn utterance; "for I'm thinking it will go hard with one of us. Howsomever, I'm glad to see you in your senses. Sorry you had so hard a bed of it; but howsomever, when they hang your client up there, I'll give you better quarters. I reckon, it will be imprisonment for life with you; though some says, they are to try you on the capital charge of aiding and 'betting with the tories, which is clean hanging treason."

"God bless our two souls!" said Affidavy, with an air of wo and terror so irresistibly ludicrous, that Lingo, perceiving his utterance failed to supply any further expressions, burst into a loud laugh, and threw himself on the vacant bed, where he rolled over and over, giving way to mirth and triumph together.

"Blarney and ods bobs!" he cried, after he had amused himself awhile in this fashion; "and so you thought to come the humbug over *me*, old Teff! Ha, ha, ha! I always said you could make a good speech, and so you can; but as to pulling straws with Bob Lingo, why I never said no such thing, for I won't lie for no man. How did you like the cock-tail, with the cherry-bounce and doctor's stuff in it? Ods bobs, did you think I could go any such liquor as that? But now you see what you've come to,—clean done up, broke, smashed, pounded into hominy, and cribbed under lock and key. So much for not playing fair, and making honest snacks of the plunder! Where's them seventeen guineas in goold? and the note for two thousand more? Oh, you old ox-fly! would you have sucked the poor young feller's blood?"

At the mention of these valuables, Affidavy, who stood mute with surprise and dismay, clapped his hands into his pockets, first into one and then the other, and groaned to find them empty. "You've robbed me, Bob Lingo!" he said.

"As clean as ever I curried a horse," said the jailer, betaking himself to his own pockets, and displaying both the money and the treacherous note, the latter of which he moved before Affidavy's eyes with peculiar glee, saying,

"Here's evidence that'll be a smasher; and then the bottle of laudanum! Oh, you old Teff," he cried, shaking his fist, but more in exultation than anger, "when you mean to p'ison any of your friends, don't you go for to get the p'ison the same day; lay it up a month before-hand. Ods bobs, if you wasn't as poor as a rat, I'd have an action ag'in you on my own account, for an attempt to murder. But, ods bobs, I do think now you look like a singed cat, —I do, Affidavy!"

Here he burst into another roar, having indulged which, he rose, and satisfied with the terror he had inflicted, proceeded very coolly to inform the discomfited prisoner that his case was not so bad as he thought; that he had not 'blowed him' yet; and that he didn't know whether he would, for he was a merciful man in his way. "I smoked you, Affidavy," said he, "as soon as I heard you talk of *your* client, and saw you show that 'ere guinea, —'specially when you fell so much in love with me of a sudden, and with the jail here. I sent Hans after you, and he saw you ride out on the prisoner's horse; and, ods bobs, I thought of sending some so'diers to dog after you; but they was all out in the bushes already. Then I went to the doctor's shop, to get some laudanum for an aching tooth, and said he, 'Vy there's Affidafy has been pying laudanum for an aching tooth, too!'—Oho! said I; and then, old boy, I was ready for you. And you see the end! while you was lying snorting here like a corn-fed pig, we was knocking the tories on the head at the yard-gate. And then we had the coroner on 'em, and you no wiser; and the magistrates and all the town inquiring into the fuss, and you no wiser; and there, indeed, there's your client, poor fellow, they're trying in court as hard as they can, the evidence all over, the speeches half done, and still, Affidavy, my boy, you no wiser. Ha, ha! I do think you look like an apple-dumpling that's tumbled out of the pot, and staring up out of the ashes!"

"Well, Bob," said Affidavy, with an attempt at a laugh, that ended in a groan, "I knock under to you: you've beat me hollow. But now, if you please, and with many thanks to you for not blabbing, I'll take that wallet, and the guineas; and as for the silver, why I don't care if you keep it."

"No, I reckon not," said Lingo, with a grin. "But, I'm thinking, you'll just take the silver yourself, and be thankful I let you off so easy. What, man, do you suppose I'll run the risk of defending you from a prosecution—a

criminal prosecution, d'ye see—by holding my tongue, for nothing? Don't go to be such a fool."

"Well then," said Theophilus, with a groan, "do as you like, and let me out."

"Not so fast, neither," said Lingo; and then added, with a nod of the head, "I reckon there's more of the shiners where these come from?"

"Well," said Affidavy, "what then?"

"Why then," said Lingo, "I don't care if I run a risk with you, and go snacks."

"Will you?" said Affidavy. "Then, ehem, humph!—You know what I mean; and there's a thousand a-piece on that note!"

"The ready, old boy, the ready! hang all your paper promises; I go for the ready."

"Well then, let me out, and I'll state the case to one we know of. But, I fear, the ready's not to be had—We'll take a second note of the prisoner."

"Ods bobs! are you there with your notes still? Now if you come to that, I reckon I can do all that without assistance, and no snacks neither. And so good by to you."

With that the jailer, giving the attorney another nod, flung out of the cell, taking good care, however, to lock the door behind him; leaving Affidavy to suspect, as he did, that Lingo was resolved to manage the case, and reap the harvest, on his own account.

"Oh the villain!" sighed the disconsolate attorney. "But I'll be even with him yet. Let me see—hum—good! the rascal is already implicated, having concealed my—faugh! So he will not dare to accuse me now. Well, I'll see through it by and by. That cursed laudanum! I do think it has turned my brain into a dough-cake—Very well—Was there ever such an ass!—That I should let such a jolterhead get the upper hand of me!—I wonder what's the

matter with my ribs!—Nothing to drink!—no, botheration, nor to eat, neither.—Very well, Bob Lingo; I'll remember you."

He then sought to relieve the perplexity of his mind by walking about; but the excessive and unnatural debauch had bereft him of strength, so that he was soon compelled to sit down upon the bed, where he found the stupor, which had not yet entirely deserted his faculties, returning and growing upon him, in spite of all his efforts to resist it. In a word, he became again very drowsy, and fearing lest some additional evil should befall him if caught again napping, he rose up and looked from the window, to divert his mind from its lethargy. He saw, from the ruddy hue of the sunshine on the neighbouring roofs, and the golden tinge of the floating clouds, that the day was already declining; by which he perceived how long he had already slept, and wondered that, after such a siege of slumber, he should so soon feel any inclination to sleep again. But, while he wondered, he found the clouds and house-tops blending their outlines together on his vision, while the hum of the village grew confused in his ear. He stalked about again, then again sat down on the bed; when, fearing lest that should seduce him into slumber, and being incapable of remaining longer upon his feet, he betook himself to a corner, where he sat down on the floor, pursuing his meditations; and there, after much nodding, musing, and scratching of head, he fell, in spite of all efforts to the contrary, fast asleep.

He slept long and soundly; and the shadows of night had been long gathered over the earth, before certain sounds in the narrow apartment, mingling with his dreams, imparted to them the horrors of nightmare, and then suddenly dispelled them. He was awakened by a human groan, hollow and sepulchral, but so loud that he deemed it was breathed just at his ear; and looking up, he beheld a spectacle that caused his hair to bristle with terror. It was, as he perceived, dark night; but a lamp, standing upon a little table near the bed, poured a dim and ghastly light over the cell, sufficient to reveal the few objects it contained. Upon the bed sat a tall man, in his night-gear, with a visage of death-like hue, and eyes staring out of his head, which he rolled now to the right hand and now to the left, as if gazing upon objects invisible to the attorney; although Affidavy was accustomed to declare afterwards, when good cheer made him communicative, that he distinctly saw at the right hand of the sick man, and not fifteen feet from himself, a

figure as of a man swathed in a bloody sheet, that stood gazing the other in the face, and gradually melted into the obscurity, as he himself surveyed it more intently. Be that as it may, there was enough of the ghostly and terrific in the appearance and expressions of the sick man, to keep the attorney cowering with fear in his corner, without any addition of horrors from the world of spirits; and accordingly, Affidavy sat looking on and listening, without the power to move, or even to rise.

The sick man continued to roll his eyes, occasionally uttering deep groans, and now and then muttering expressions that showed the horror of his mind, without, at first, clearly disclosing the cause.

"Ay, wave your hand," he heard him say, as if addressing some phantom revealed only to his own senses; "wave your hand, and point to the bloody throat: it was well aimed, boy, well aimed, and it was well done. I care not for *you*: it is the other that moves me; for him I killed with a lie, and there he sits smiling! His face is black and swollen, yet he smiles; his arms are bound behind, yet he smiles; a rope is round his neck, yet he smiles.—Ay, smile, boy, smile! that smile is heavier on my heart than the frown of the soldier!—A smile! men would call that poor revenge; but we, boy, ha, ha! we know better!"

He then fell back upon the bed, and lay for a moment quiet; so that Affidavy had leisure to recall his spirits, and penetrate the mystery, which had at first so deeply appalled him. His first thought was, that he was enclosed with some wounded refugee, captured in the toils to which he himself had unwittingly brought him; but remembering presently that he had seen two bodies stretched in the yard below, and had good reason, from Lingo's expressions, to believe the third man had made his escape, he perceived that this must be some prisoner of an earlier date; and he knew that, the night before, there were but three in Lingo's charge. With the person of the unfortunate Hyland he was already well acquainted, and Dancy Parkins was, it might be said, his old acquaintance. His thoughts reverted immediately to Sterling, whom he had never seen; and he remembered, at the same time, that Lingo had hinted to him the ease with which he might weaken this man's testimony, if that were desirable, by convicting him of insanity. "Oho, the dog, Lingo!" said he to himself; "he has shut me up with

a madman then? Now, if he should be dangerous, God bless our two souls! —Ha! there, he's rising again! God bless our two souls!"

"They are gone then?" muttered the wretch, in whose sunken features, hollow voice, and altered spirit, one would with difficulty have recognised the humorous, bold, and reckless adventurer; "they are gone; but it will not be long. Hah!" he added, fixing his eye, with a fearful stare, upon the vacant wall, "you come again, and frowning! Yet I fear not: other men have shed blood, and lived happy. It is not for you, but for the other—him that lies across my feet smiling! Hah, what!" he screamed, rather than said, as his eye, wandering towards the foot of the bed, suddenly fell upon the figure of Affidavy, in his corner, now cowering low with terror, "are there *three*? Devil! you lie!" he exclaimed, leaping out of bed, "there were but two—him that I shot, and him that I killed with false witness. Ha, ha, ha! these are juggling fiends! devils of legerdemain! that make a man worse than he is! You look me in the face—Well! I look back:—do you think to fright me? Look at me then, and say, if you dare, that *I* hurt you!"

And with these words, he advanced towards Affidavy, who now perceived that his right arm was swathed in bandages across his breast, as if maimed by some injury. But his left hand he brandished with menacing gesticulation, and his countenance was covered with a ghastly frown; so that Affidavy feared nothing less than that he should be immediately torn to pieces. From this apprehension, which deprived him of the power of raising a finger in self-defence, he was relieved by the sudden appearance of the jailer, who, entering the cell with an oath, seized upon the madman, and shook him with violence, until he groaned with pain, suffering himself to be pushed back upon the bed.

"I'll have the law of you, Bob Lingo!" said the attorney, starting up from an ecstasy of fear to lanch into a tumult of rage; "I'll have the law of you, you villain! and what's more, I'll chouse you out of your fees and bribes,—your cheating and tampering with the prisoner, Hyland Gilbert: he's an innocent man, you rascal, and you know it! and here's this man Sterling has avowed the murder himself."

"Ods bobs!" said Lingo, "what do you mean?"

"I mean what I say," cried Affidavy, whom rage, the desire of requiting upon Lingo some of the disappointments he had himself endured, and a sudden prospect that seemed to open on him of retrieving his lost fortune, had restored to the possession of his faculties. "I mean, that my client, Hyland Gilbert, whom you cheated out of my services, is an innocent man; and that there lies the true criminal. He has confessed the whole matter; murder and perjury—murder and perjury, you villain! do you hear that? and I'll make him depose the particulars, you cheating, covetous, conniving rascal! and so chouse you out of all your expected fees, you rascal! botheration, I will!—Harkee, you Sterling!" he said, now advancing boldly towards the object of his late fears, "you've blabbed all, and so you may as well confess at once. I overheard all you said; and my testimony will settle the matter; so, for the good of your soul, confess. You're a dying man; the devil's as good as got you already—you'll not last a day longer; so confess, confess, and don't damn yourself for ever, by hanging an innocent man. What! do you pretend to deny it?" he continued, adopting a course of persuasion founded on what he had witnessed of the prisoner's hallucinations—"do you see that young man there, with the bloody throat, frowning? Look—I know him well—it is young Harry Falconer!"

"Ay," said Sterling, rolling his eyes to the wall; "but where is the other?"

"Why, they are hanging him; and all because you swore falsely against him."

"Is he alive yet?" muttered Sterling; "I thought he was dead. Send me a priest, and I'll confess."

"A priest! A magistrate, you mean."

"It is all one—I am a dying man; there is something wrong here,—*here*," he murmured, striking his forehead. "I will do reparation—ask me what you will; but drive Henry Falconer out of the room; ay, and take that young Hawk off my feet—he chills them to the marrow."

"It was *your* pistol killed Henry Falconer?" cried the lawyer.

"Ay; I shot him over Gilbert's shoulder. I fired at both; either would have served me. But who was the *third* one? Old Falconer did not die!"

"A justice of the peace, Lingo! do you hear?" said Affidavy, grinning with triumph. "I reckon I'll sort you, you covetous, cheating dog!"

"Come, squire, don't be mad," whispered the jailer, with two or three significant winks: "We'll go snacks yet."

"What, you rascal, do you think to bribe me to keep silence? Oho! you cormorant, I've got the play now in my own hands; and we *won't* go snacks: I work on my own foundation. You've heard the man's words here; deny them if you can. Send for a squire, or refuse at your peril: I'll bawl out the window, and raise the town."

"There's no need of being contractionous," said Lingo, coolly. "I sent Hanschen for old Squire Leger an hour ago; for I reckon I was a leetle before you! The man asked for him of his own accord, while you was a snoozing in the corner; for it's a gone case with him, and he knows it."

The lawyer was petrified at this announcement; it was a new and mortal disappointment; for he designed to make profitable use to himself of his discovery; and to complete his confusion, the door was opened at that moment, and Hanschen entered, ushering in the worthy Schlachtenschlager, whom he had lighted upon by accident, after searching in vain for the other magistrate, after whom he had been sent an hour before. The attorney groaned; with one hand he grasped the Squire's extended palm, and the other he shook in the face of Lingo, who grinned, and winked, and nodded at him, with the most provoking good-humour. But Affidavy was not a man to be disheartened even in such an extremity; he no longer dreaded an exposure of his extra-professional services on the prisoner's behalf; and he perceived that there was still a field, although a narrow one, on which to display his zeal. Trusting therefore to his skill to make his client sensible of the full merit of his labour, he addressed himself to the task of shriving the discovered felon, with a tact and sagacity that were soon perceived to be as useful as they were really indispensable.

It was found that Sterling was in a very critical state, his bodily powers being completely wrecked, and his mind so much unhinged that he could scarce answer two consecutive questions without wandering. The causes that had brought him to this condition it was not easy to imagine, unless by supposing he had received some fatal internal injury during his struggle with Oran Gilbert; or by referring all at once to the horror of mind with which, it seemed, he had been affected from the moment he felt himself a homicide. A homicide he was, as was soon made apparent; for being led on and assisted by the questions of Affidavy, he confessed, without any reluctance or attempt at equivocation, that he had sworn falsely in regard to the exchange of pistols betwixt himself and Hyland, such exchange never having taken place; and that he, and no other, had shot the pistol that killed young Falconer. The reasons for this act were but imperfectly developed; and the strongest seemed to be a bitter hatred he had conceived against the deceased, in consequence of an indignity offered him long since in the theatre, from which he had been hissed, chiefly through Falconer's instrumentality. Such a cause for vengeance may be understood by those who remember the rivers of blood poured out at Lyons, ten years after, to satiate the rankling fury of a Collot d'Herbois. It will be remembered in what manner he volunteered, while in the swamp with Oran Gilbert, to take the life of this unlucky youth; as well as the attempt he made upon it the following night, in the park, when he discovered him struggling with Hyland. It appeared, besides, that after having rendered himself into the hands of the pursuers, and confessed his true name and character, the reckless lieutenant pursued him with divers jests and jeers, which were the more intolerable that his quarrel with the Gilberts had left his mind in a state of furious passion; and an additional incentive was offered by the scuffle between the two rivals, in which any execution of vengeance would be so readily imputed to accident, if traced to him at all. He succeeded beyond his expectations; the object of his hatred lay a corpse before him—but from that moment Sterling was another and a changed man. His mind was filled with horror—not remorse, for to the last he testified nothing like penitence—but with a nameless and oppressive dread, which was increased tenfold by the reflection that this act had, or would in the end, deprive a second fellow being of life, that second being the unfortunate youth whom an extraordinary accident had imbued with a belief that he was himself the murderer. Hence the singular turn of his testimony, and his attempt to throw

a doubt upon the prisoner's guilt; until the sudden discovery of the damaged pistol struck him with a fear, until then unfelt, for his own safety. He dreaded lest his own weapons, which had been taken from him immediately after the catastrophe, and from which, in the agitation of his spirits, he had forgotten to remove the evidences of guilt, should be examined, and thus suspicion diverted upon himself. To prevent this, he invented the falsehood concerning the exchange, and thus screened himself from suspicion, at the expense of a second act of murder. But from that moment his horror became insupportable; and after struggling with it in vain, and becoming persuaded that his own fate was drawing nigh, he summoned Lingo, made a deliberate confession of his villany, and desired that his deposition might be taken, before his madness, of whose approaches he seemed conscious, should render reparation impossible.

It was now taken, and with difficulty, but it was conclusive; and so intent became all present upon the strange and impressive story, and, after it was concluded, so eager were all to confirm it by inducing repetitions of the most important circumstances, that even the sudden sound of fire-arms on the square, followed by the outcries in Hyland's cell, were unheard and unnoticed, until Hanschen suddenly rushed among them, with the intelligence, as he expressed it, 'that there fas murdter going on in the Hawk's room.'

All started up, leaving Sterling to rave, perhaps to die, alone, and made their way to the prisoner's apartment, where Colonel Falconer was found weltering in blood in the arms of Elsie and his son, a rifle-bullet having penetrated his side, and lodged in the body; and it was soon gathered, from the remorseful expressions of Hyland, that it had been shot by a refugee—the last act of friendship that could be rendered to a helpless and hopeless comrade.

"It was shot by Oran Gilbert," said Elsie Bell, "for there is none left but him! Yes, Richard Falconer, I said it would come sooner or later! It is well for you, too,—you will not see the death of your son's murderer!"

"He is innocent!" said Affidavy, snatching at his client's hand. "Botheration, my boy, we've found the true murderer! He has confessed, and you are an

innocent man. The pistol was shot by Sterling! We'll clear you, or secure a free pardon."

"By Sterling!" murmured Colonel Falconer. "Then, oh heaven! then is my son guiltless of his brother's blood!"

"I am, father, I am!" said Hyland; "but, wretch that I am, my madness and folly have killed my father!"

"I die content.—I will do you justice, my son—I am not so faint as before—They shall carry me to—to—I forget—it is no matter—Well, well"—

With these words he fell into a swoon, in which he was at first esteemed dead; but a surgeon having been sent for, and now entering the cell, he declared, upon a hasty inspection of the wound, that it was by no means mortal, and that there was every reason to prognosticate a speedy recovery. The sufferer was then carried to the inn, and put to bed; but with no such assurances of life as had been pronounced in the prison. A consultation was called, the result of which was a more rational declaration, that his days were already numbered.

CHAPTER XX.

Farewell ye dungeons dark and strong,
The wretch's destiny;
M'Pherson's time will not be long
On yonder gallows-tree.

M'PHERSON'S FAREWELL.

The singular discovery of Hyland's innocence was long before morning bruited over the village, and besides exciting a double interest in his fate, produced no little curiosity in regard to the movements of the jury, who

were still deliberating over the charge, as well as to the course to be pursued by the court, in such a strange conjuncture of circumstances.

Expectation was not, however, kept long at stretch. An early and formal representation of the discovery being made by the prisoner's counsel to the presiding judge, the court was straightway convened, and the jury ordered to be recalled, for the purpose of receiving the new testimony. This, consisting of Sterling's deposition and the evidence of witnesses as to its authenticity, it may be supposed, was sufficient to terminate their deliberations in a moment. Had the confession been made at a later period, it would undoubtedly have saved the prisoner's life; but it occurred at a time to save his good name,—to save it, at least, from the reproach, which, however undeserved, must ever follow upon even unjust conviction. His true story and character, and, in fact, his real parentage, were now becoming generally known; new friends, as well as many an old one, were labouring in his service, and all were desirous to see the end of a prosecution, that had caused him so much unmerited suffering. The trial was therefore despatched without difficulty; the evidence was given; a few brief and impressive words, indicative of their gratification at the defendant's happy escape from his difficulties, and their own from a share in wrong-doing, were pronounced by the bench; after which the whole matter was submitted to the jury, who, without leaving their seats, immediately returned a verdict of acquittal. The defendant was then discharged, in the ordinary way, by proclamation, and shed tears of genuine transport to find himself released from the ignominy that had before, as strongly almost as his remorse, crushed him to the earth. He had scarce stepped from the bar before he found himself in the arms of Captain Loring, who hugged and blubbered, and swore 'adzooks, he always thought him an honest fellow, for all of their talking; and adzooks, it was no wonder he loved him, since he was of his own blood and bone, though he didn't like his having so much Gilbert blood in him; and if he had only told him as much before, it would have been much better for him, and, adzooks, for his poor Kate, and, adzooks, for the picture!'

At the bed-side of the dying Falconer he found his father's daughter. His sister!—With what strange and contradictory emotions he received the hand of the being, to whose unhappy hostility he owed the long series of

sufferings and indignities that had brought him almost to the grave. And she,—with what feelings she must have herself seen in the object of her greatest hate, one to whom nature had given the strongest claims on her love. But the place in which they met called for other than selfish emotions: it was at the death-bed of their common parent.

It is not our design to pursue further in detail the history of this unfortunate man. The bullet of Oran Gilbert (for it was now known that the shot could have been fired by no other, all the members of his band having been either killed or captured,) had been well aimed, though he who fired it deemed it was speeded against the breast of his own brother. The better victim lingered but a few days, and then expired; so that the same grave which received his unlucky son closed over the guilt and sorrow of the parent. He lived long enough to remove the veil of shame from the sepulchre of the betrayed wife, and to do her reparation in the person of her son; but it was, as he had before declared, at the expense of his daughter. She never more lifted up her head. A sense of her parent's baseness, and the disgrace now attached to her own origin, with perhaps the bitter consciousness that her cruel design upon the happiness of her friend had caused the ruin that surrounded her, weighed her to the earth; and two years after her father's death, she was herself borne to the grave, the last victim of the retribution which so often visits the sins of the father upon the heads of his children.

It remains but to reveal the fate of two other prominent persons in the story, before exchanging the gloom pervading the last act of the tragedy, for the sunshine that should mark the close.

The prisoner Sterling, notwithstanding his own expectations of a speedy dissolution, lingered a full month before he expired; and in all that time displayed the workings of the hallucination which had been the consequence of his crime. He saw before him continually—for day and night were now alike to him—the ghastly figure of young Falconer, frowning at his bed-side; and frequently the phantom of the elder brother was added, in imagination, to the terrors of the other. He died in this fearful frame of mind; and thus carried to the after-tribunal the guilt which escaped the punishment of man.

The fate of Oran Gilbert remained for many months wrapped in obscurity. He must have fired the shot that struck a bosom he had so often coveted to pierce, from the open square behind the prison; yet he effected his escape from the village without pursuit and almost without observation, the discharge of the rifle having excited but little notice at a moment when all the crowded throngs in the streets were rushing towards the court. The alarm, however, being soon given, many men armed themselves and started in pursuit, though without any knowledge of the direction in which he had fled, and, indeed, without at first being aware whom they followed. The first traces of him were discovered in the Hollow, at Elsie Bell's cottage, which it seems he had entered before day, and there rested for awhile, to the great terror of the little negro girl Margery, who was at that time the only inmate of the hovel, and to whom he appeared little short of a demon, his countenance being wild and dreadful, and his words and actions, at least in her opinion, distracted. It was from the circumstances developed here, that the pursuers found they were upon the track of Oran Gilbert himself, now deprived of all followers, and flying with the dreadful persuasion at his spirit, that his hand had slain the last of his father's children.

It appeared from little Margery's account, that, after wildly searching the house over, he asked for Elsie, and being told she was in the village, sat down upon a chair, whence the girl soon saw blood fall upon the floor; and, in fact, upon examination, it was found that a considerable quantity of gore still lay by the chair on which he had rested. He then called for water, and a napkin, the latter of which he put upon his right side, securing it under a leathern belt; after which he drank freely of the water, and going into Elsie's private apartment, he took from the wall a little sampler, a relic, as it appeared, of his deceased sister, tore it to pieces, and scattered it over the floor. He then proceeded to the chamber so long inhabited by Hyland, where finding many little sketches, and other neglected scraps, he destroyed them in like manner. After this, he descended to the room below, took up his gun, which he charged with great care, and hunted about until he had found a strong and sharp-pointed knife, which he stuck in his belt; and then, drinking again from the pitcher, he left the hovel, without uttering a single word, and Margery heard him ride away, apparently towards the mountain.

This was enough for the pursuers, whose numbers had been increased by volunteers along the way; and they instantly resumed the road, though with no great hope of coming up with the fugitive, who had foiled them so many times already. They knew, however, that the land was full of parties still in search of him, none of which had perhaps been so close upon his track as themselves. They were also inspired by a discovery that was made when they came to examine the marks of his horse's feet in the moist earth bordering the runlet in the oak-yard, and this was, that the animal had cast a shoe; for which reason, they supposed, the rider would be soon compelled to abandon him, and seek shelter in some fast place among the woods, where he might be surrounded, and perhaps taken alive. They rode on therefore with new spirit, and coming at an early hour in the morning upon the river bank, led by the tracks of his horse, which did not seem once to have left the road, they descried him, or at least a horseman they supposed to be him, riding along the bluff, at a slow gait, indicative of the daring or recklessness of his character.

He rode a black horse, apparently of great native strength and spirit; but, it was now obvious, the animal had been of late taxed severely, and beyond his powers; for which reason, it was not doubted, the fugitive could be overtaken, before he reached the mountain, which was still distant three or four miles. The party proclaimed their discovery and their hopes, by setting up a great shout. At this, to their surprise, the refugee checked his wearied steed, and turned round, as if for the purpose of making battle,—a display of audacity and resolution that went far to cool the ardour of many who had been, a moment before, the bravest of the whole party. They saw him fling the rifle he carried into the hollow of his left arm, and then, with his right hand, remove from his visage the long locks of black hair that had, a moment before, swung wildly in the wind; and they fancied they beheld, even at the distance which separated them from him, a smile writhing over his pallid features, like that of the panther at bay.

"Well done, old Oran the 'Awk!" cried one of the party, taking a long rifle from his shoulder, and advancing to the head of the others, who had come to an universal halt. He was a man of middle age, with a face as bleak and weather-worn as the rocks at the river's edge, tall and gaunt of frame, but sinewy, and of a certain bully-like look about the fists and eyes, that showed

him to be no inconsiderable man in his degree. "Well done, old Oran the 'Awk!" he cried; "I up'old you to be game, chock-full; and so, if you're for a pull ag'in current, why, I'm clear for showing fair play. So men, just 'old by, like honest fellers; and, my logs 'gin' his, I'll show him what long shots is; for he and me was good friends of old."

"Go it, Dan Potts, the raftsman!" cried several of his companions, handling their own arms, as if to try their virtues at a distance, while others cried out, to advance in a body without further delay, but set no example themselves, the appearance of the outlaw being uninviting to all save the bold raftsman, who continued to move onwards, though slowly and cautiously, as if well aware of the danger of a personal contest with one who had been, as he said, his good friend in old times. But the refugee, without regarding the challenge of the raftsman, took advantage of the hesitation of his companions to change his own plans, and by suddenly turning his horse and spurring off with unexpected speed, he gained a considerable space before they could recover from their surprise and follow. They darted after him, however, with what activity they could; and cheering one another with their voices, they rode on at such a pace that, in a few moments, the whole party was sweeping betwixt the yawning jaws of the Gap, up the course of which he directed his flight.

The mountain is here perhaps two thousand feet or more, in elevation. Its course is oblique to the river, which itself is bent and twisted out of its path by the irregular protrusion and retrogression of cliffs and promontories. The right bank of the river, looking to the east, is fenced by a dizzy and inaccessible wall of crags; while the mountain on the other side, presenting a similar wall to the south, dips down, westward, to the water in an angle more practicable to human daring, though the whole declivity is covered over with loose rocks, the remnants of some stony avalanche, tumbled from pinnacles above by the same convulsion that thrust the mountain from the bowels of the earth, or shivered it, already uprisen, asunder. A few withered hemlocks are here and there seen springing from between these disjointed fragments, which are, in other places, veiled by patches of flowering-raspberry, alder, and other shrubs; though, in general, the eye reposes on rocks entirely bald and naked, or, at best, tufted with mosses, lichens, and ferns. It presents a scene of dreary sterility and gloom; but its savage

wildness can be only appreciated by those who clamber up to its summit over those loose and ever-precarious rocks, which afford the only footing.

Into the gorge bounded by these frowning limits the refugee was seen to urge his steed; when suddenly, to the amazement of the pursuers, he turned from the road, dashed through a wall of rosebays that hedged it in, and the next moment plunged into the river, swimming his horse right towards the opposite mountain. The cause of this extraordinary step was soon perceived; for the next instant a troop of horse in the continental uniform, came dashing down the Gap, uttering a wild hurrah, that made the rocks ring. It was one of the many parties of military by whom all the passes of the county were guarded; and it seemed the fugitive had rushed almost amongst them, before he discovered their presence. Nothing remained for him, thus checked in front, and retreat cut off behind, but to fling himself into the river, and seek refuge among the dens of the eastern mountain; and this he attempted, though the chances were ten to one that he should be shot from his horse, before he reached the opposite bank. In fact, he had scarce swum beyond the middle of the stream, before the two parties rushed to the water's edge and let fly a volley, which, had it not been fired almost altogether from pistols, must have brought his flight to a bloody close. The water was seen bubbling around him, as the bullets pattered like rain-drops over its surface; but he still swam on, as if unhurt, and some dozen or more of the boldest riders present spurred their horses into the river to follow.

"Well done, old Oran the 'Awk!" cried Dan Potts, waving over his head the long rifle he had not thought fit yet to discharge; "it's agin my conscience to shoot an old friend in the back, 'specially when there's no tree to cover him."

"Bang away, Dan Potts," cried others; "shoot, for the honour of the county."

"The county be d——d," said Dan Potts; "I shoots from my own raft." And with that, he raised his weapon, and taking deadly aim right betwixt the refugee's shoulders, drew the trigger. But at that moment, the horse, which had until now breasted his way gallantly through the deep water, flung himself aloft in terror or in agony, and rolling backwards, plunged his rider into the water, so that he escaped the shot entirely, as perhaps the animal did also, though that could never be known with certainty.

"I swog! and may I wreck my next raft on the Foul Rift, if I didn't!" said Dan Potts, "but I hit the 'oss on the 'ead, and cuss the bit of his master! Neversomever, I'll try for a spell ag'in, and the next'll be a right-down rusty!"

With these words he spurred his horse into the river, with which his employment as a raftsmen had doubtless made him familiar; for, whether it proceeded from this circumstance, or some other advantage he possessed over the others, he was soon at the head of the swimmers, and leading the pursuit.

In the meanwhile, Oran Gilbert was seen to spring erect on his horse's back; but the animal never raised his head again from the water, and Oran, abandoning him entirely, trusted to his own courage and strength of arm to reach the rocks that were now close at hand. In this attempt he succeeded. He was seen to issue from the water, and aim his rifle, which he still retained, at the advancing Potts.

"Try it ag'in, old 'Awk!" roared Dan, as he saw the imperfect flash expire, without being followed by any explosion; "try it ag'in, old boy; or out knife and be ready!"

The only answer the tory deigned the bravado was, to fling his now unserviceable and burdensome piece into the river, and then rush up the mountain with all his speed. He was soon lost sight of among the rocks and bushes; a piece of good fortune which he owed to a simple expedient. As he clambered up, he took care to spurn from its lodgment every stone that shook under his foot, which rolling down the declivity, became a source of extreme confusion and peril to the pursuers, (as such are indeed yet to the laggards in a mere party of pleasure,) who were thus forced to loiter in the ascent, after having previously lost some time in securing their horses at the bottom of the hill, until there remained little hopes of overtaking him. The raftsmen was the only individual who, in this conjuncture, was able to proceed with any spirit. He pressed upward, dodging the descending rocks with infinite address and agility, and was soon lost sight of; until, finally, even his voice, with which he continued to cheer the others, was no longer heard.

The mountain was, however, climbed at last; but the refugee had vanished. The only practicable path conducts you to the summit of the hill along the edge of the southern precipices; and the last step is from a shelf that overhangs the wooded abyss below, whence, peeping over the brink of the cliffs at their most tremendous height, the eye looks over many a league of blue hill and misty hollow, of living wood and winding river,—a scene whose loveliness is made more impressive by contrast with the savage desolation that reigns around the point of view. A broad table of stone, shelving downwards, and in part overhanging the abyss, lies like a parapet upon the extreme brink of the precipice; and it is from this, lying upon his breast, clinging with foot and hand to its crevices and the stunted bushes that grow upon its surface, and advancing his head beyond the naked verge, that the adventurous spectator looks down into the dizzy gulf below,—if he have indeed the courage to look.

Upon this platform the raftsmen were found reposing, their elbows resting upon the parapet stone, and their countenances betraying wonder mingled with perplexity. Upon being asked what had become of the fugitive, he pointed to certain marks of fresh blood that lay on the stones where he stood, hard by the parapet, which was itself dabbled with blood; and, in addition, the black lichens with which it was overgrown, were torn up, as by the struggles of some human being sliding down its inclined surface towards the horrible abyss beneath; and a shrub springing from the verge, was snapped off, as if broken by a human hand.

"I once," said the raftsmen, "chased a two-year buck off this here very rock; and I reckon, you may see some of his bones among the bushes below. I was hunting with Oran Gilbert; we were boys together; and, I remember, he said, 'It was a brave jump for a hard-pushed beast, and a wise one, too.' Now let any man run his nose over the rock's edge, and tell me what he sees swinging to a bush some fifty or sixty fathoms below; for, to my eyes, it has much the look of a green hunting-shirt, or a big rag of it. There's a stream of blood running up along the rocks, and here's the ending of it. There was some old wound bursting out on him afresh, and, to my thought, the man was not able to run further; and so he remembered the deer, and took a jump;—and I must say, it was a brave fancy of his, and a wise one too."

To this conjecture confirmation was given, when one of the party, having peered over the rock, declared that he saw the flutter of some garment, hanging on a bush many a weary foot below. The stones were hunted over again; a track of blood was plainly distinguished, and had been remarked before, staining the rocks for some distance below; and on this platform it ended. The closest search could not detect any mark to show that the fugitive had proceeded a step further; it was believed at once, that, having reached this spot, and found himself incapable of proceeding further, the pursuers, headed by Potts, pressing him close, he had thrown himself from the rocks, preferring a death in keeping with his savage career, to falling alive into the hands of his foes. There was no other way to account for his disappearance, the presence of blood on the parapet, and the wave of the garment below; and, indeed, a second, and then a third person, looking down, they swore they could see, among the bushes at the bottom of the cliffs, something that looked like a human form, as they doubted not it was. It was accordingly resolved to descend the mountain without delay, which, after uttering a loud shout of triumph they did, with the single exception of the raftsmen; who, declaring himself overcome with fatigue, sat down upon a stone on the platform to rest, and was soon lost sight of by the others. As the last man left the shelf, he beckoned to him with his hand, nodded his head, and took other means to arrest his attention; but these being disregarded, or perhaps unperceived, he ceased his signals, and muttered half to himself, half aloud,—

"Well done, Tom Wolf; you're no fox, and a man must ha' said, 'Fifty guineas!' aloud, to fetch you. But I was a fool to think on't; no 'alves and no quarters, is my cry; and a man mought as well take the money and the credit into his own hands, without sharing; for, I reckon, the creatur's clean done up, and can make no more fight than a 'possum. Neversomever, there's no varmint of the woods or water can stand by him for a trick; and so we'll look sharp, Dan Potts, and see what'll come out of it. I reckon I shall make them 'ere fellers stare! They say, the governor has offered five hundred dollars for him, hard money, dead or alive. Five hundred dollars isn't to be made, every day, a-rafting. There's a big hole under that stone; and, I remember, he boasted he had been down in it afore; which was like enough, for he was always a ventur'ing devil."

It may be gathered from these expressions what cause had prevented the raftsmen leaving the shelf with his companions. Immediately beneath the projecting portion of the table-rock, so often mentioned, there is a cavity or niche in the face of the cliff, visible, on a clear day, even from the foot of the mountain, and inaccessible from the top only because there are few men in the world of sufficient nerve to attempt reaching it, by climbing over the face of the cliff,—an exploit the very thought of which is appalling. It occurred to the ancient comrade of the refugee, that the latter, persuaded he must be captured, unless he could throw his pursuers off the scent, or delay the chase for a time, might have bethought him of the stratagem of causing them to believe he had thrown himself from the rocks, while, all the time, he was lying snugly and safely in the cavity beneath the shelving rock, from which he might be expected to sally out, the moment the pursuers had descended. This was rather a conceit in the raftsmen's mind than a positive suspicion; but it was sufficient to impel him upon a new course of action, a main incentive to which was the prospect it seemed to open to him of securing the rewards that had been offered for the apprehension of the noted outlaw.

He sat down therefore upon a stone opposite to the parapet, and scarce twenty feet from it, holding his rifle ready cocked upon his knee, his knife loosened in the sheath, and his little hunting-axe lying at his feet; and he sat thus without fear, knowing that, even if the refugee were armed and in the pride of his strength and daring, he could not ascend to the shelf, without being entirely at his mercy. He sat in silence, expecting each moment to see the fierce eyes of the outcast peering over the rock, or to hear the rattling of stones along the face of the cliff, denoting that he had left his hiding-place, and was beginning to ascend. He sat watching, however, a long time in vain;—and was beginning to believe that his suspicion was groundless, and that the desperate Oran had in truth leaped from the cliff, when suddenly there rose beyond the verge of the rock the apparition of a human head, but so spectral, so pale, so ghastly with blood, and so wildly unnatural of expression, that he was seized with a sudden fear, and beheld the whole body succeed it, and the refugee himself (for it was he) stand erect upon the parapet, before he could raise his piece, and charge him to surrender.

"I have you, Oran, old friend!" he said, at last; "so down knife, and take quarter. If you move foot or hand, I'll fire upon you."

The outlaw heard his voice, and beheld the threatening weapon, without any manifestation of surprise. He bent his eyes upon him with a stare that curdled the raftsmen's blood. "Fire!" he said, and laughed; and then suddenly drawing the knife he had taken from Elsie's cottage, he made a fierce spring from the rock right against the uplifted rifle. The attack was so unexpected and energetic that Potts had scarce time to pull the trigger, before the tory lighted on the shelf at his feet. He drew it, however, with the certainty that the next moment the assailant would be lying dead at his foot—he drew it, and not even a flash burst from the treacherous powder; it snapped in his hands; and before he could exchange it for another weapon, nay, before he could even draw his knife, he found the blade of his opponent glimmering at his breast. He caught at his wrist, the only expedient that saved him from a mortal thrust: and being of great nerve, he strove, at the same time, to hurl the tory upon the rock. But great as was his strength, and feeble as he had supposed the powers of Oran to be, the attempt was foiled, and he began in his heart to curse the covetousness, that had deprived him of a helper, in such a time of need. As he caught the wrist of Oran in his left hand, he sought, with the other, to snatch his own knife from the sheath; but the motion was anticipated, and his own right hand grasped in Oran's left; so that the two stood for an instant facing one another, entangled, as it might be said, like two wild bucks, that have, at the first blow, interlocked their antlers together, and thus remain glaring at each other, waging battle only with their eyes. In that instant, the raftsmen beheld enough to make him repent the temerity with which he had sought to bring the refugee to bay. Instead of being weakened by loss of blood, or exhausted by the toil of ascending the mountain, it seemed as if he was suddenly imbued with new strength, as well as additional fury, by the mere presence of a foe; and there was that in his countenance, which expressed, along with a native love of conflict, the malignant ferocity of a maniac. Indeed, his appearance was so fearful, and his ability to resist to the uttermost so manifest, that the raftsmen felt strongly moved to call for a parley and propose a mutual release; but the desire came too late. The tory perceived the fainting of his heart, and laughed:

"I never did harm to you or yours, Dan Potts," he said; "but you shall never say so more. You would sell the blood of a dying man—you must first win it."

With that, he relaxed his grasp on the raftsmen's right hand, as if for the purpose of seizing him by the throat; and Potts took instant advantage of the motion, to snatch his knife from its sheath. The motion was a trick of juggling, such as the outlaw had learned among the red associates of his boyhood, and perhaps practised in similar encounters before. The next instant, he had thrown the whole weight of his body upon the raftsmen's breast, and directing the half-drawn blade at the same time with his hand, Potts fell upon the rock, his own weapon buried to the handle in his side.

"Go!" shouted the victor, leaping up, and dragging his victim towards a corner of the shelf, where no parapet intervened betwixt them and the abyss,— "to your fellow bloodhounds below!—Something in memory of Hyland Gilbert!"

He struck the body with his foot,—it rolled crashing over the slender twigs and decaying flakes of stone on the brink of the precipice, and then disappeared, with not a sound to indicate its fall upon the shivered rocks below. The next moment, the victor ran from the platform, and was buried among the forests that darken the long and desolate summit of the ridge.

It was perhaps two hours, or more, before the party of pursuers, descending the mountain to the river, and making their way along the lesser elevation of rocks, heaped at the foot of the great southern precipice, from which they have fallen, reached the spot where they expected to find the mangled corse of the outlaw. Their astonishment and horror may be conceived, when, instead of that, they lighted upon the body of the raftsmen, known by his garments, for scarce a vestige of humanity remained, and sought to penetrate the mysterious cause of his fall. The true reason was rather supposed than inferred; but their suspicions were confirmed when the mountain was re-ascended, and his axe and cap found lying on the shelf, as well as a new track of blood, leading along the ridge. This was followed, until it led them to a spot, where, it was evident, the fugitive had rested awhile and bound up his wounds. But here the trace entirely failed, and was

never again recovered. The mountains were hunted over and over for weeks, but not the slightest vestige of the refugee rewarded the search.

In the course of the ensuing winter, a party of hunters, following a wolf, were led to the banks of one of those little lakes, that lie, like dots of sapphire and crystal, along the broken ridges of the mountain. In this remote nook, in a hollow, surrounded by jagged rocks and hemlock-trees, were found several rude huts, or wigwams, of boughs, now in ruins, such as the hunters make, when they 'camp out' in the wilderness, with the remains of fires in front of each. This place was supposed to have been one of the chief retreats of the refugees. At some distance from the huts, on the edge of the lake, they fell upon the bones of a human being, scattered about among the stones and bushes, as if rent asunder by wild beasts; and near them was discovered a rusted rifle, which, being taken to the valley, was recognised as the weapon of Potts, the raftsmen, which had not been found either upon the platform where the party of pursuers had left him, or near his body. This circumstance induced a suspicion that the bones were those of Oran Gilbert, who had armed himself with the raftsmen's piece, before leaving the platform. There remained no other memorial of his fate, and no other circumstance was found to identify the skeleton with the man once so much dreaded and detested; but it was not doubted that hither, into the savage wilderness, he had dragged his mangled frame, and perished miserably.

The close of Hyland's story may be readily imagined. His sufferings he might have considered as being retributive in their nature,—since his return to the land of his birth had no worthier cause than a desire to take part in the conflict against her liberties. This desire had been indeed cooled by personal observation of the feelings and principles which supported his countrymen through a long period of disaster and suffering; and the last blow was given to the unworthy ambition by the love for one of his country's daughters that soon entangled his spirit. The giving way to wrath and the lust of blood, though but for a moment, had been followed by the last and heaviest of his griefs, not the lightest of which was his temporary belief in his own guilt, and his consequent remorse. But the shadow had now departed from him, and for ever; and it was soon perceived by all who chose to ponder over his history, that his greatest crime had been his affection, and the ill-judged deed of violence into which it had led him.

His meeting with the Captain's daughter, after his liberation, was one of mingled joy and grief; but it was the last one marked with tears. The bloom returned again to Catherine's cheek, and, in course of time, the gay and merry spirit, native to her bosom, revisited its former cell; and if a shadow ever again darkened her countenance, it was only when, sometimes wandering along the brook and by the waterfall, (whence the bones of Jessie had been long since removed, to be deposited near those of her step-mother in the village church-yard,) she remembered the trials of sorrow, and the scenes of blood, through which she had been conducted to final happiness. She wept, indeed, when Harriet died, for she had forgiven her; but that was the only grief that clouded a long period of peace and sunshine.

Our inquiries after the fate of the less important personages of our tradition have never been very satisfactory in results. Americans are a race of Utilitarians, all busied in the acquisition of profitable knowledge, and just as ready, if not as anxious, to forget all lore of an useless character. The little anecdotes of a district last but for a generation; the fathers tell them to the children, but the children find something better to think about, and so forget them. We know nothing of the latter years of Elsie Bell, but can readily believe they passed in comfort and peace. Her little cottage has long since vanished from the earth, the running of newer and better roads in other places having long since diverted all travel from the precincts of Hawk-Hollow.

Dancy Parkins, we suppose, under the auspicious patronage of the new master of the valley, pursued his claims to the love of the fair Phoebe; but as that was a matter of much more consequence to him than the reader, we never cared much to inquire his fate.

Our curiosity in relation to the career of the unworthy limb of the law, Theophilus Affidavy, Esq., has been somewhat stronger; yet we could never find that a single act of his life, or even his name, has been retained by those who dwell near the scene of his exploits. His adventure in the brook, with his ride on the back of the buttonwood tree, has, by some strange accident, travelled into an adjacent county, where it is told as a very good story, though the honour is supposed to attach to an individual of another

name and profession. But it is with a strange story as with an old pun; it finds fathers, as it travels.

As for Captain Loring, all we have to say of him is, that he lived long enough to rejoice over the union of his daughter with Hyland Falconer as much as he would perhaps have mourned over her early grave, had her destiny wedded her to the unlucky younger brother. He lived also to see, with a rapture that lasted to his dying day, the painter resume the brush, and put the last finish to 'the grand picture of the Battle of Brandywine, and Tom Loring, dying.'

THE END.

*** END OF THE PROJECT GUTENBERG EBOOK THE HAWKS OF
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